

**COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

KRAZY DAZE INC., et al.,

Plaintiffs,

v.

OHIO BOARD OF PHARMACY,

Defendant.

Case No. 26 CV 004790

Judge Mark Serrott

FINAL JUDGMENT ENTRY

Pursuant to Rule 65(B)(2) of the Ohio Rules of Civil Procedure, and with the agreement of Plaintiffs Krazy Daze, Inc., Botanic Tonics, LLC and Defendant Ohio Board of Pharmacy the Court consolidates the May 29, 2026, preliminary injunction hearing with the trial of the above-captioned action on the merits, *instanter*. The Court has conferred with the parties and confirmed that they do not object to the Court entering a final judgment based on the evidence and arguments currently before the Court. Further, for the reasons set forth in the Court's August 4, 2026, Order Denying Plaintiffs' Motion for Preliminary Injunction, the Court: (1) denies the Plaintiffs' motion for class certification, (2) enters a declaratory judgment finding that Adm.Code 4729:9-1-01.1 was properly promulgated and is not unconstitutional, (3) denies the Plaintiffs' request for a permanent injunction, (4) enters final judgment dismissing Plaintiffs' claims and (5) terminates this case.

The Board of Pharmacy has also moved for a modification of the August 10, 2026 stay order and has requested that the Court incorporate the exhibits attached to its August 13, 2026 Motion to Modify as part of the record and consideration of its final judgment in this case. The Court denies the Board's Motion to Modify. With agreement of the parties, the Court admits the Board's exhibits and incorporates them as part of the record of its final judgment in this case. Upon expiration of the temporary stay the Court imposed by an Order issued on August 10, 2026, the

EXHIBIT

A

Court will not grant or issue a further stay or injunction pending appeal and hereby denies Plaintiffs' request for the same.

IT IS SO ORDERED.

Case Terminated.

Franklin County Court of Common Pleas

Date: 08-21-2026
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Case Number: 26CV004790
Type: ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a faint, circular, dotted background.

/s/ Judge Mark A. Serrott

Court Disposition

Case Number: 26CV004790

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Case Terminated: 06 - Court Trial

Final Appealable Order: Yes

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 08-13-2026-MOTION - DEFENDANT: OHIO BOARD OF PHARMACY - OHIO BOARD OF PHARMACY S MOTION TO MODIF

Disposition: MOTION DENIED

2. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 08-07-2026-MOTION TO STAY - PLAINTIFF: KRAZY DAZE INC

Disposition: MOTION GRANTED IN PART

3. Motion CMS Document Id: 26CV0047902[REDACTED]970000

Document Title: 06-29-2026-MOTION FOR LEAVE TO FILE - DEFENDANT: OHIO BOARD OF PHARMACY

Disposition: MOTION IS MOOT

4. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 06-03-2026-MOTION TO RECONSIDER - DEFENDANT: OHIO BOARD OF PHARMACY

Disposition: MOTION IS MOOT

5. Motion CMS Document Id: 26CV0047902[REDACTED]910000

Document Title: 05-29-2026-MOTION - PLAINTIFF: KRAZY DAZE INC -
PROVISIONAL CLASS CERTIFICATION

Disposition: MOTION DENIED

6. Motion CMS Document Id: 26CV0047902[REDACTED]920000

Document Title: 05-21-2026-MOTION FOR LEAVE TO FILE - PLAINTIFF:
KRAZY DAZE INC

Disposition: MOTION IS MOOT

Testimony of Ramsey Atallah, Chief Science Officer of Botanic Tonics

Friday, May 29th, 2026

PLAINTIFFS
EXHIBIT

5-A

embarcadero.com

Botanic Tonics, LLC

Headquarters:	Calabasas, California (corporate) & Tulsa, Oklahoma (manufacturing)
Years in Business	2021 - present
Nature of Business	Manufacture, marketing, and sale of botanical dietary supplements
Product Lines	Feel Free Classic (2oz), Feel Free Classic Capsules, Kratom Capsules
Key Ingredients	<i>Piper methysticum</i> , known as Kava <i>Mitragyna speciosa</i> , known as Kratom



Market Landscape - Ohio



Feel Free Classic

- **Feel Free is sold in >1600 retailers** including large chains
- **Feel Free 2025 sales: \$4.8 million**
- **Feel Free life time sales: >\$13 million**

- **Total size of Ohio market:** est. \$87.5 million per year
- Includes local brands like Columbus-based Miracle Kratom
- Industry market analysis estimates the U.S. natural kratom market to be approximately \$2.5 billion in revenues annually. Applying a conservative population-based allocation, Ohio's proportionate share of this market is approximately \$87.5 million per year.



Maximize Market Research, *Kratom Market Size, Share & Trends Analysis Report* (U.S. kratom market estimate), <https://www.maximizemarketresearch.com/market-report/kratom-market/216882/>

Pathway to Market

- Two legal paths to the market
 - As a food
 - As a dietary supplement
- Kava and kratom are dietary ingredients. Therefore, to comply with DSHEA and manufacture unadulterated dietary ingredients and supplements, BT must
 - Establish basis of safety at labeled conditions of use, and
 - Manufacture in compliance with 21 CFR Part 111 Subparts A-P, which include specification requirements for identity, strength, and purity (Subpart E), labelling (Subpart L), and post-market surveillance (Subpart O).

Why Kava and Kratom Qualify as Dietary Ingredients (21 U.S.C. § 321(ff)(1)):

Kava Root (*Piper methysticum*):

- Qualifies as "an herb or other botanical" under 21 U.S.C. § 321(ff)(1)(C)
- Used in the Pacific Islands for centuries as a traditional botanical beverage; marketed in the U.S. as a dietary supplement ingredient prior to October 15, 1994
- Intended to supplement the diet; not presented as a conventional food or as the sole item of a meal or diet

Kratom Leaf (*Mitragyna speciosa*):

- Qualifies as "an herb or other botanical" under 21 U.S.C. § 321(ff)(1)(C)
- Natural leaf of a Southeast Asian tree with documented traditional use spanning over 150 years; commercially available in the U.S. dietary supplement market prior to October 15, 1994
- Intended to supplement the diet; not presented as a conventional food or as the sole item of a meal or diet

Feel Free Classic

- Qualifies as "a product that bears or contains one or more dietary ingredient" under 21 U.S.C. § 321(ff)(1)

(ff) The term "dietary supplement"-

(1) means a product (other than tobacco) intended to supplement the diet that bears or contains one or more of the following dietary ingredients:

- (A) a vitamin;
- (B) a mineral;
- (C) an herb or other botanical;
- (D) an amino acid;
- (E) a dietary substance for use by man to supplement the diet by increasing the total dietary intake; or
- (F) a concentrate, metabolite, constituent, extract, or combination of any ingredient described in clause (A), (B), (C), (D), or (E);

Feel Free Classic is not a food additive

Kava and kratom (dietary ingredients) and Feel Free Classic (a dietary supplement) are statutorily exempt from food additive categorization under 21 U.S.C. 321(s)(6)

(s) The term "food additive" means any substance the intended use of which results or may reasonably be expected to result, directly or indirectly, in its becoming a component or otherwise affecting the characteristics of any food (including any substance intended for use in producing, manufacturing, packing, processing, preparing, treating, packaging, transporting, or holding food; and including any source of radiation intended for any such use), if such substance is not generally recognized, among experts qualified by scientific training and experience to evaluate its safety, as having been adequately shown through scientific procedures (or, in the case of a substance used in food prior to January 1, 1958, through either scientific procedures or experience based on common use in food) to be safe under the conditions of its intended use; except that such term does not include-

- (1) a pesticide chemical residue in or on a raw agricultural commodity or processed food; or
- (2) a pesticide chemical; or
- (3) a color additive; or
- (4) any substance used in accordance with a sanction or approval granted prior to September 6, 1958, pursuant to this chapter, the Poultry Products Inspection Act [21 U.S.C. 451 et seq.] or the Meat Inspection Act of March 4, 1907, as amended and extended [21 U.S.C. 601 et seq.];
- (5) a new animal drug; or
- (6) an ingredient described in paragraph (ff) in, or intended for use in, a dietary supplement.

Franklin County Ohio Court of Appeals Clerk of Court Aug 25 2:38 PM-26AP000735

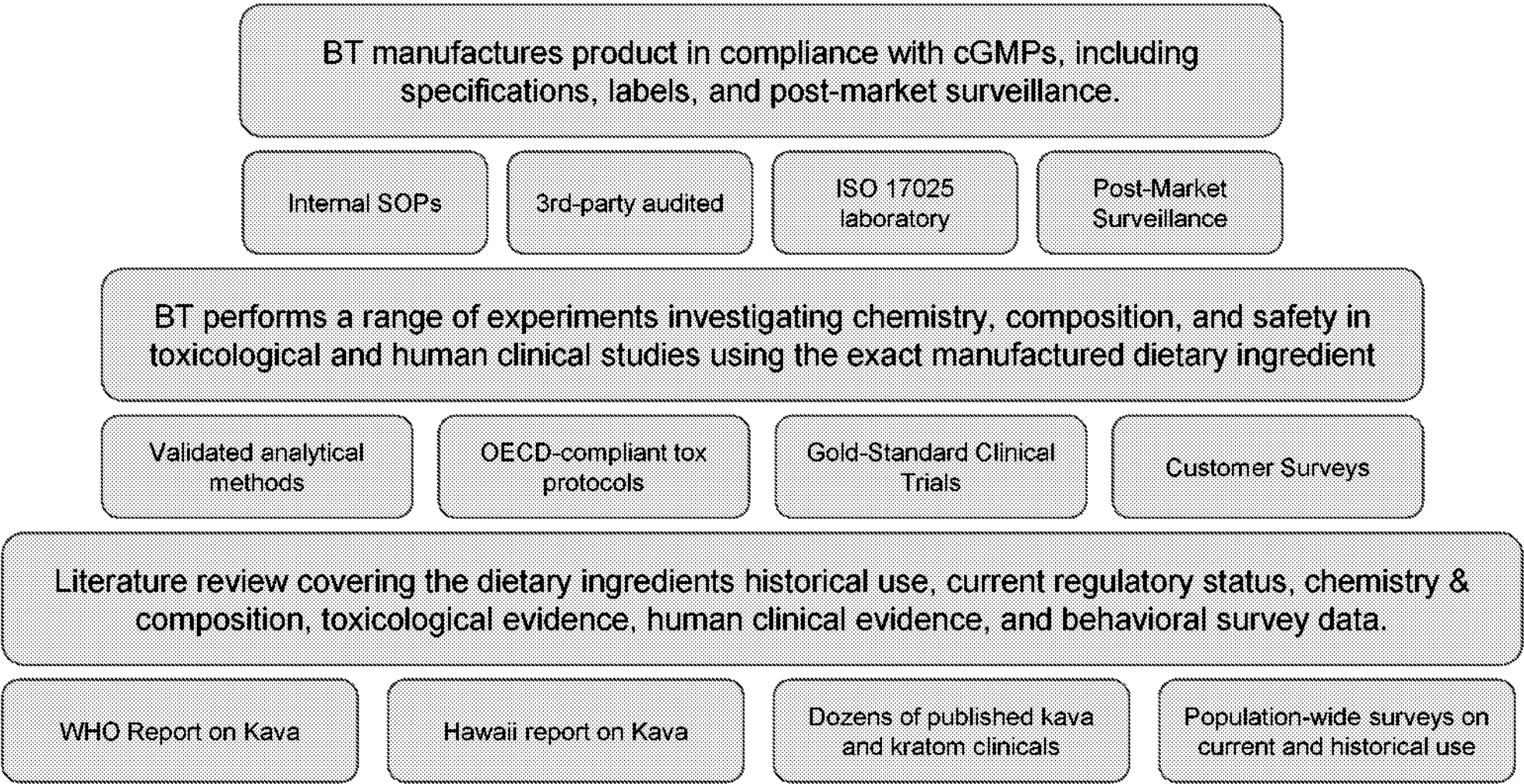
BT establishes the basis of safety of each ingredient in accordance with best practices for risk assessment. The multi-layered approach takes into account published literature, the guidance of regulatory authorities, and experimental data produced with our exact dietary ingredient.

BT manufactures product in compliance with cGMPs, including specifications, labels, and post-market surveillance.

BT performs a range of experiments investigating chemistry, composition, and safety in toxicological and human clinical studies using the exact manufactured dietary ingredient

Literature review covering the dietary ingredients historical use, current regulatory status, chemistry & composition, toxicological evidence, human clinical evidence, and behavioral survey data.

The system is robust: each layer supports the next with 3rd party verifications and additional product-specific data that is analyzed in accordance with cGMPs. This guarantees we know that the product we sell is consistent with the product we proved is safe.



FDA Registration and State Registrations

[illegible]

		Food License	
Permit (Not transferrable)			
Department of Finance - 918-596-7646			
CUSTOMER NO: 119991007		LICENSE EXPIRATION DATE: 06/01/2012	
CERTIFYING THAT: Botanic Tonics LLC 10405 E 151st ST S x D Broken Arrow, OK 74012		OWNING BUSINESS AS: Botanic Tonics LLC 10405 E 151st ST S x D Broken Arrow, OK 74012	
COMMENTS:			
SUBJECT TO THE ORDINANCES AND REGULATIONS OF THE CITY OF TULSA, OKLAHOMA		ISSUED BY:  For the Director of Finance	
THIS LICENSE MUST BE POSTED IN A CONSPICUOUS LOCATION OR CARRIED WHILE ENGAGED IN THE BUSINESS SPECIFIED			
NOTE: PLEASE READ REVERSE FOR THE IMPORTANT TERMS, ADVICE AND REGULATORY RESTRICTIONS			

3rd party certification



LETTER OF CONFORMITY

Intertek hereby declares that:

BOTANIC TONICS, LLC

13105 E. 61st Street - Suite B, Omaha, Nebraska 68122, UNITED STATES OF AMERICA

has been assessed by Intertek as conforming to the requirements of:

21 CFR PART 312 - GMP IN MANUFACTURING, PACKING, LABELING OR HOLDING OPERATIONS FOR DIETARY SUPPLEMENTS

The scope of activities:

THE MANUFACTURE AND PACKAGING OF "FEEL FREE" PLANT-BASED HERBAL SUPPLEMENTS (LIQUID FORM)

Audit Dates:

10-March-2026 to 13-March-2026

Malcolm Ting

Apr 17, 2026

Malcolm Ting
Accreditation Manager - ISO 9001 Programs North America

This Letter of Conformity is valid 12 Months from 17-Apr-2026 to 17-Apr-2027 when accompanied by the report bearing the same audit dates as listed above.

Malcolm Ting

Digitally signed by Malcolm Ting
Date: 2026.04.17 15:08:57 -0500

Intertek is a registered provider of training and certification services. For more information, please visit www.intertek.com. Intertek is not responsible for the actions of its clients or the actions of its employees.



**PERRY JOHNSON LABORATORY
ACCREDITATION, INC.**

Certificate of Accreditation

Perry Johnson Laboratory Accreditation, Inc. has assessed the Organization of:

Botanic Tonics LLC

13105 East 61st Street S.B., Tulsa, OK 74146

and hereby declares that the Organization is accredited to conform with the recognized International Standard:

ISO/IEC 17025:2017

Whereby, Botanic Tonics LLC has been assessed for its ability to provide supplement, in the field of:

**Biological and Chemical Testing
(as detailed in the supplement)**

Accreditation declares the evaluation process used by Botanic Tonics LLC to be in conformance with the requirements of the International Standard for Supplement Testing and this supply chain management system in the field of 17025. The accreditation is granted subject to the requirements of the International Standard for Supplement Testing and this supply chain management system in the field of 17025.

For P.J.A.

Initial Accreditation Date:

March 27, 2025

Issue Date:

March 27, 2025

Expiration Date:

March 27, 2027

Clay Johnson

Accreditation No.:

075129

Certificate No.:

020-280

Traceable
Procedure

The validity of this certificate is maintained through ongoing surveillance testing and a continuous improvement cycle. The validity of this certificate shall be confirmed through the P.J.A. website: www.pja.com.

Perry Johnson Laboratory
Accreditation, Inc. (P.J.A.)
730 W. Big Brown, Suite 1125
Tulsa, Oklahoma 74106

Good Manufacturing Practices

- BT has SOPs in place for all components of 21 CFR Part 111 cGMP guidelines including
 - **Subpart E, System and Specification Requirements**
 - Identity: Two methods of identity including full spectrum analysis (HPTLC or FTIR) and unique feature analysis (microscopy or HPLC)
 - Strength: Specifications on the total alkaloid containing fraction
 - Purity: Specifications for microbial content, residual solvents, pesticides and mycotoxins, and elemental impurities
 - **Subpart L, Labeling requirements**
 - **Subpart O, Post-Market Surveillance**

Product Label

1ST SERVING

DO NOT EXCEED 1 BOTTLE IN 24 HOURS

ONE SERVING IS 1/2 BOTTLE



feel free

CLASSIC

KAVA ROOT + KRATOM LEAF

HERBAL SUPPLEMENT

CAN BE HABIT-FORMING

CONSUME RESPONSIBLY

2 FL OZ (59ml)

2ND SERVING

DO NOT EXCEED 1 BOTTLE IN 24 HOURS

ONE SERVING IS 1/2 BOTTLE

ADULTS 21+ ONLY
KEEP OUT OF REACH OF CHILDREN

Supplement Facts

Serving Size: 1 fl oz (29.6 mL)
Servings Per Container: 2

	Amount Per Serving	%DV*
Kava	0.4 mg	4%
Noble Kava Root (extract)		
Total Kavalactones	260 mg	†
Kratom Leaf (ground)	1.75 g	
Total Alkaloids	94 mg	†
Mitragynine	20 mg	†
7-hydroxymitragynine	0.0 mg	†

* Percent Daily Values (DV) based on a 2,000 calorie diet.
† Daily Values (DV) not established.

DO NOT EXCEED 1 SERVING (1/2 BOTTLE) AT ANY ONE TIME. DO NOT EXCEED 2 SERVINGS (1 BOTTLE) IN A 24 HOUR PERIOD. SHAKE WELL. REFRIGERATE AFTER OPENING.

Warnings: Contains kratom leaf which, like nicotine and alcohol, can be habit-forming and harmful if not consumed as directed. DO NOT USE if you have a history of substance abuse. When consumed as directed, feel free CLASSIC has not been shown to cause any serious physical harm. Caution: Not for consumption by or sale to persons under the age of 21. Can interact with certain medications—consult a licensed, qualified health care professional before use. Do not consume with excessive alcohol. Not intended for those sensitive to the active ingredients or women who are pregnant, nursing, or trying to become pregnant.

These statements have not been evaluated by the FDA. This product is not intended to diagnose, treat, cure, or prevent any disease.

BOTANIC TONICS, LLC • BROKEN ARROW, OK 74012 • HW@BOTANICTONICS.COM

1ST SERVING

DO NOT EXCEED 1 BOTTLE IN 24 HOURS

ONE SERVING IS 1/2 BOTTLE

2ND SERVING

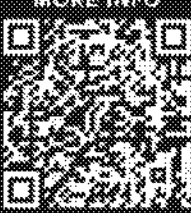
DO NOT EXCEED 1 BOTTLE IN 24 HOURS

ONE SERVING IS 1/2 BOTTLE

Barcode: 09679 50009 2

REV 0008

SCAN FOR MORE INFO





Product Label

ADULTS 21+ ONLY
KEEP OUT OF REACH OF CHILDREN

Supplement Facts

	Amount Per Serving	%DV
Serving Size: 3 capsules		
Servings Per Container: 30		
Kratom	0.4 mg	40%
Kava root (extract)		
Total Kavalactones	210 mg	1
Leaf Kratom (ground)		
Total Alkaloids	28 mg	1
5-Hydroxytryptamine	17 mg	1
7-Hydroxymitragynine	<0.06 mg	1

Other ingredients: organic kava root, organic kratom leaf, organic kratom root, organic kratom stem, organic kratom seed, organic kratom fruit, organic kratom flower, organic kratom leaf, organic kratom root, organic kratom stem, organic kratom seed, organic kratom fruit, organic kratom flower.

DIRECTIONS: ONLY TAKE 1-3 CAPSULES BY MOUTH AT A TIME. DO NOT EXCEED 5 CAPSULES IN A 24-HOUR PERIOD. STORE IN A COOL, DRY PLACE.

Warning: This product contains kratom which has caffeine and stimulant. May be habit-forming and harmful if consumed excessively. Avoid if you have a history of substance abuse. When consumed as recommended, feel free CLASSIC has not been shown to cause any serious physical or mental harm. Caution: Not for consumption by children or persons under the age of 21. May interact with certain medications—consult a licensed healthcare professional before use. Do not consume with alcoholic drink. This product is not intended for those who are sensitive to the active ingredients or women who are pregnant, nursing, or trying to become pregnant.

These statements have not been evaluated by the FDA. This product is not intended to diagnose, treat, cure or prevent any disease or illness.

BOTANIC PONIES, LLC
13125 E. 81ST STREET, SUITE 8 - BROKEN ARROW, OK 74012



Product Label



ADULTS 21+ ONLY
KEEP OUT OF REACH OF CHILDREN

Supplement Facts	
Serving Size: 2 capsules Servings Per Container: 30	
Amount Per Serving %DV	
Kratom	0.4 mg 100%
Kratom Leaf (ground)	
Total Alkaloids	20 mg †
Mitragynine	17 mg †
7-Hydroxymitragynine	0.0 mg †

† Percent Daily Value (DV) based on a 2,000 calorie diet. Other ingredients: vegetable capsules.

DO NOT EXCEED 1 SERVING (2 CAPSULES) AT ANY ONE TIME. DO NOT EXCEED 2 SERVINGS (4 CAPSULES) IN A 24-HOUR PERIOD. STORE IN A COOL, DRY PLACE.

Warning: Contains kratom leaf which, like nicotine and alcohol, can be habit-forming and harmful if not consumed as directed. **DO NOT USE if you have a history of substance abuse.** When consumed as directed, *feel free* has not been shown to cause any serious physical harm. **Caution:** Not for consumption by or sale to persons under the age of 21. Can interact with certain medications—consult a licensed, qualified healthcare professional before use. Do not consume with excessive alcohol. **Not intended for those sensitive to the active ingredients or women who are pregnant, nursing, or trying to become pregnant.**

These statements have not been evaluated by the FDA. This product is not intended to diagnose, treat, cure, or prevent any disease.

BOTANIC TONICS, LLC • BROKEN ARROW, OK 74012



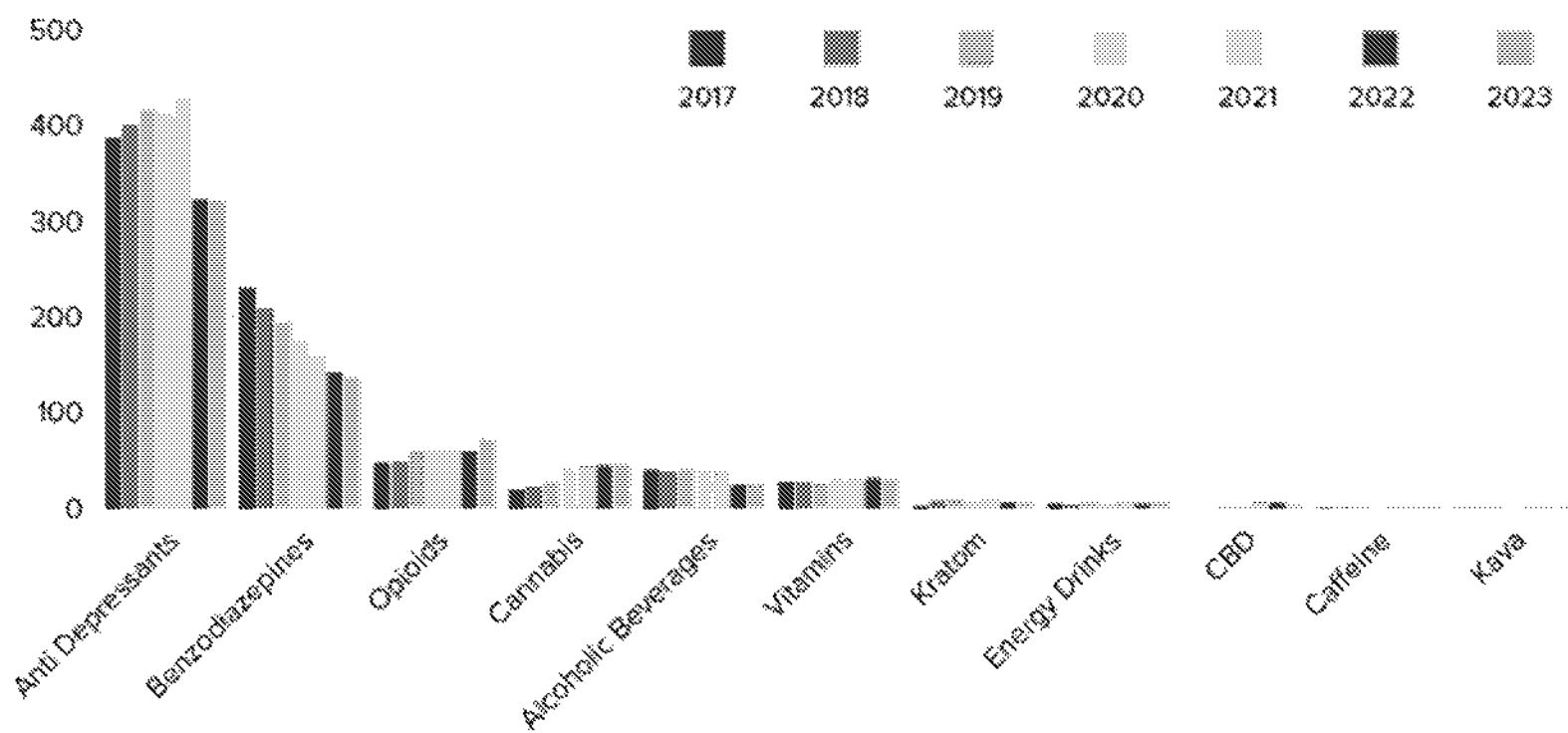
Post-Market Surveillance

- Required by 21 CFR Part 111 Subpart O
- BT SOP includes voluntary Adverse Event (AE) reporting via FDA MedWatch Form 3500 and mandatory Serious Adverse Event (SAE) reporting via FDA MedWatch Form 3500A for
- BT has recorded fewer than 1000 AE, and zero (0) SAE over its lifetime sales of >150 million servings

Relative Safety Landscape

Poison Center Calls Per 100K Users

2017 - 2023



<https://poisoncenters.org/annual-reports>

Position on Synthetics

- BT has established a basis of safety for natural kratom leaf with a specific composition (i.e. identity, strength, and purity).
- The natural kratom leaf has been consistently identified and consumed safely for over 100 years
- Most published literature, and all of Botanic Tonics experimental data, is conducted using natural kratom leaf or extracts of natural leaf, which tend to maintain the natural alkaloid composition
- BT is not aware of a basis of safety for any synthetic kratom alkaloids, nor any kratom ingredients that were modified by the addition of synthetic alkaloids so as to present a novel alkaloid composition.
- Therefore, based on lack of safety evidence, BT is not aware of any legal pathway to introduce synthetics to the food supply.

IN THE COURT OF APPEALS OF OHIO
TENTH APPELLATE DISTRICT

Krazy Daze Inc, et al., :
Plaintiffs-Appellants, :
v. : No. 26AP-735
Ohio Board of Pharmacy, : (REGULAR CALENDAR)
Defendant-Appellee. :

JOURNAL ENTRY

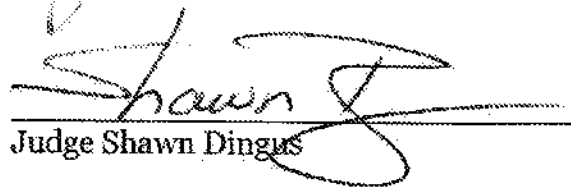
Appellants' August 25, 2026 motion for an injunction pending appeal is denied.
Appellants' August 25, 2026 motion to expedite this appeal is also denied.



Judge Julia L. Dorrian



Judge Terri B. Jamison



Judge Shawn Dingus

cc: Clerk, Court of Appeals
Clerk, Common Pleas Civil
Court Reporter

Court Disposition

Case Number: 26AP000735

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26AP0007352[REDACTED]700000

Document Title: 08-25-2026-MOTION FOR INJUNCTION - KRAZY DAZE INC

Disposition: MOTION DENIED

2. Motion CMS Document Id: 26AP0007352[REDACTED]840000

Document Title: 08-25-2026-MOTION - KRAZY DAZE INC - MOTION TO
EXPEDITE APPEAL

Disposition: MOTION DENIED

**IN THE COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

MIRACLE KRATOM, LLC, *et al.*,

CASE NO. 26CV004720

Plaintiffs,

JUDGE SERROTT

v.

**OHIO DEPARTMENT OF
AGRICULTURE, *et al.*,**

Defendants.

FINAL CONSENT JUDGMENT ENTRY

Pursuant to the stipulation and agreement of the parties, Plaintiffs Miracle Kratom, LLC, BKP Industries, Co., Braymoore Corp., and Glenwood Mountain Co. (“Plaintiffs”) and Defendants Ohio Board of Pharmacy (“the Board”) the Court hereby finds:

BACKGROUND

1. Plaintiffs state that they are retailers, within the state of Ohio, of natural kratom leaf products made with natural, pure-leaf vegetative kratom in its dried and powdered form.
2. The Board is an agency of the State of Ohio that is statutorily charged, under R.C. 3719.41(A) & (B), with adopting and updating rules, in accordance with Chapter 119 of the Revised Code, “establishing schedule I, schedule II, schedule III, schedule IV, and schedule V [drugs in Ohio] incorporating the five schedules of controlled substances under the federal drug abuse control laws.”
3. On or about May 19, 2026, Adm.Rule 4729:9-1-01.1 (“the 7-OH rule”) went into effect. The 7-OH rule established that “mitragynine related compounds” are schedule I controlled substances.
4. The 7-OH rule expressly provided that vegetative kratom is *not* a schedule I controlled substance. The rule provides:

EXHIBIT

E

“Mitragynine-related compounds do not include . . . (D) Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code.” Adm.Code 4729:9-1-01.1 (D).

5. The Board agrees this provision establishes that vegetative kratom is not a schedule I controlled substance, but that the requirements of the Pure Food and Drug Act (R.C. Chapter 3715) would still apply. Therefore, vegetative kratom in a person’s possession will not become a schedule I controlled substance simply because that vegetative kratom violates one or more provisions of R.C. Chapter 3715.

6. On May 14, 2026, the Board issued a document entitled: “Consumer and Retailer Notice: Sale and Possession in Ohio.” (“The May 14th Guidance.”) The Board intended the May 14th Guidance to provide guidance regarding “the enforcement of OAC 4729:9-1-01.1 and the manufacture, possession and sale of kratom in Ohio.”

7. The Board and the Plaintiffs agree that a reasonable person could read the May 14th Guidance as indicating that the Board intended to treat vegetative kratom products as a schedule I controlled substance if those products, for whatever reason, did not comply with R.C. Chapter 3715.

8. Plaintiffs and other retailers of kratom products believed that the Board intended the May 14th Guidance to establish that vegetative kratom products would be a schedule I controlled substance if, for whatever reason, the products did not comply with R.C. Chapter 3715.

RELIEF GRANTED

9. In accordance with these stipulations and the parties' agreement, and for good cause shown, the Court ORDERS, ADJUDGES, and DECREES, and hereby enters FINAL JUDGMENT, as follows:

- A. Pursuant to Chapter 2721 of the Ohio Revised Code and Rule 57 of the Ohio Rules of Civil Procedure, the Court declares that Adm.Code 4729:9-1-01.1 (effective May 19, 2026) does not make vegetative kratom (including natural kratom leaf and ground natural kratom leaf) a schedule I controlled substance regardless of compliance with R.C. Chapter 3715.
- B. The Board must apply the interpretation of 4729:9-1-01.1 found in this Order for all retailers of vegetative kratom.
- C. The Board will forthwith amend the May 14th Guidance to include the following: "Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf is not a schedule I controlled substance under this Rule. All entities that possess, manufacture, market or sell kratom or kratom products must comply with R.C. Chapter 3715, the Pure Food and Drug Act, regardless of whether the kratom product is a controlled substance or not."
- D. Plaintiffs must comply with any relevant portions of R.C. Chapter 3715, the Pure Food and Drug Act, and acknowledge it is not lawful to sell products in Ohio that fail to comply with R.C. Chapter 3715.
- E. This Order does not bar the Board or any other party from exercising any other authority granted pursuant to Chapter 4729, Chapter 3719, or Chapter 3715 of the Ohio Revised Code.

- F. This Order applies only to Adm.Code 4729:9-1-01.1 (effective May 19, 2026), and does not restrict the Board from proposing or adopting any other rule relating to kratom products, mitragynine, or mitragynine-related compounds.
- G. Each party shall bear its own attorneys' fees, expenses, and court costs.
- H. Each of the undersigned parties, via its respective legal counsel, approves, and irrevocably waives all rights to appeal, this Final Consent Judgment Entry.
- I. This is a FINAL JUDGMENT as to Plaintiffs and the Board of Pharmacy and the Board of Pharmacy is dismissed with prejudice. Plaintiffs' claims against the Ohio Department of Agriculture remain pending.
- J. The Court hereby retains continuing, exclusive jurisdiction to enforce, and to adjudicate any disputes or issues relating to, this Final Consent Judgment Entry.

IT IS SO ORDERED.

Judge Mark Serrott

Approved:

/s/ Jonathan R. Secrest

Jonathan R. Secrest (0075445)
 David A. Lockshaw, Jr. (0082403)
 Nicola R. Lewis (0106044)
 DICKINSON WRIGHT PLLC
 180 East Broad Street, Suite 3400
 Columbus, Ohio 43215
 (614) 744-2572
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dlockshaw@dickinson-wright.com
nlewis@dickinson-wright.com

Counsel for Plaintiffs

/s/ Henry G. Appel

D. Grant Wilson (0100293)
 Henry G. Appel (0068479)
 Assistant Attorneys General
 Health and Human Services Section
 30 East Broad Street, 26th Floor
 Columbus, Ohio 43215
 (614) 466-8600
Grant.Wilson@OhioAGO.gov
Henry.Appel@OhioAGO.gov

Counsel for Ohio Board of Pharmacy

Franklin County Court of Common Pleas

Date: 06-10-2026
Case Title: MIRACLE KRATOM LLC ET AL -VS- OHIO DEPARTMENT OF AGRICULTURE ET AL
Case Number: 26CV004720
Type: AGREED ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a circular, dotted official seal.

/s/ Judge Mark A. Serrott



Consumer and Retailer Notice: Kratom-Related Products Now Illegal in Ohio

Date Issued: 12/12/2025

DISCLAIMER: *The information contained in this notice does not, and is not intended to, constitute legal advice; instead, all information provided is for general informational purposes only. Information contained in this notice may not constitute the most up-to-date legal or other information. The Ohio Board of Pharmacy is not able to provide any additional guidance beyond what is provided in this notice. For additional questions, readers should contact an attorney to obtain advice with respect to the information provided in this notice.*

Effective December 12, 2025, OAC 4729:9-1-01.1 makes all forms kratom-related products, except for products composed solely of mitragynine, illegal to sell, possess, or distribute in the state of Ohio. For more information on this emergency rule, see the Board of Pharmacy's 3-Factor Analysis (www.pharmacy.ohio.gov/7QH) and Governor DeWine's Executive Order.

A copy of the emergency rule is available at the end of this document.

What is considered a kratom-related product?

A kratom-related product includes all derivatives of kratom, except for products that contain only mitragynine. This includes, but is not limited to, the following formulations of kratom-related products:

- 7-hydroxymitragynine (sometimes referred to as 7-OH);
- Mitragynine pseudoindoxyl;
- Dihydro-7-hydroxy mitragynine; and
- 7-acetoxymitragynine.

**PLAINTIFFS
EXHIBIT**

8-D

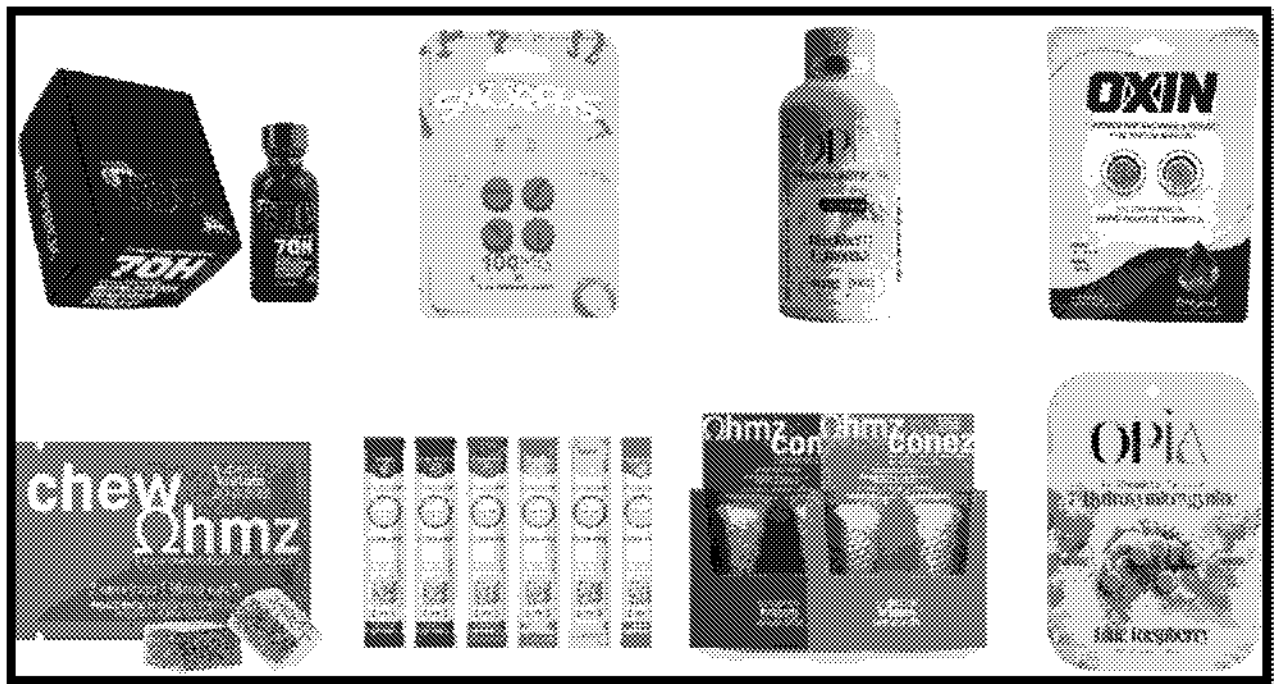
Does this ban apply to kratom products that contain only mitragynine such as natural kratom in its vegetation form?

No. The rule does not prohibit the sale, possession, or distribution of kratom products containing only mitragynine, including natural kratom in its vegetation form. Any product that contains both mitragynine and another derivative of kratom, such as 7-hydroxymitragynine (sometimes referred to as 7-OH), would be illegal to sell, possess, or distribute under this rule.

How do I identify kratom-related products banned under this rule?

Retailers should look for any products (capsules, tablets, vapes, gummies, drinks, etc.) that contain any kratom-related compounds, including the following ingredients:

- 7-hydroxymitragynine (sometimes referred to as 7-OH);
- Mitragynine pseudoindoxyl;
- Dihydro-7-hydroxy mitragynine; and
- 7-acetoxymitragynine.



Examples of kratom-related products. US Food and Drug Administration. Preventing the Next Wave of the Opioid Epidemic: What You Need to Know About 7-OH. <https://www.fda.gov/media/118791/attachment>. Accessed Nov. 12, 2025.

What do I do if I discover kratom-related products on my shelves or in my possession?

These products should be disposed of immediately.

What are the next steps the Board is considering to address kratom and kratom-related products in Ohio?

For Kratom-Related Products: The emergency rule banning kratom-related products is effective for 180 days. During this time, the Board will propose a permanent rule to ban all kratom-related products in the state.

For Kratom Products (mitragynine only): For those kratom products that are not covered by this rule, ~~Governor DeWine is asking the Ohio Board of Pharmacy to pursue the scheduling of mitragynine, the active opioid compound found in the natural kratom plant. This pathway recognizes that legislation establishing kratom regulations has been introduced and will allow for hearings on the topic by all interested parties.~~

4729:9-1-01..1

Mitragynine-related compounds.

The following are classified as schedule I controlled substances:

(A) Mitragynine-related compounds, whether synthetic or naturally occurring substances contained in the plant, or in the resinous extractives of mitragyna speciosa (also known as kratom) and/or synthetic substances, derivatives, prodrugs, isomers, esters, ethers, salts and salts of isomers, esters and ethers with similar chemical structure.

Mitragynine-related compounds include, but are not limited to, the following: 7-hydroxymitragynine; mitragynine pseudoindoxyl; dihydro-7-hydroxy mitragynine; and 7-acetoxymitragynine. Mitragynine-related compounds do not include any of the following:

(1) Any dangerous drug that is the subject of an application approved by the United States food and drug administration under subsections 505(c) or (j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355(c) or (j)) (December 12, 2025) for marketing as a dangerous drug;

(2) Any compound used in food consistent with either:

(a) A food additive regulation published in the United States code of federal regulations; or

(b) A "no questions response" issued by the United States food and drug administration in response to a generally recognized as safe notice.

(3) Any drug approved by the United States food and drug administration to that may be lawfully sold over the counter without a prescription in accordance with section 505G of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355h) (December 12, 2025).

(4) Mitragynine.

4729:9-1-01..1

Effective: 12/12/2025

CERTIFIED ELECTRONICALLY

Certification

12/12/2025

Date

Promulgated Under: 119.03
Statutory Authority: 3719.45
Rule Amplifies: 3719.41, 3719.44, 4729.26

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

KRAZY DAZE INC., et al.,	:	
	:	
Plaintiffs,	:	Case No. 26-CV-004790
	:	
v.	:	Judge Mark Serrott
	:	
OHIO BOARD OF PHARMACY,	:	
	:	
Defendant.	:	

MIRACLE KRATOM, LLC, et al.,	:	
	:	
Plaintiffs,	:	Case No. 26 CV 004720
	:	
v.	:	Judge Mark Serrott
	:	
OHIO DEPARTMENT OF	:	
AGRICULTURE, et al.,	:	
	:	
Defendants.	:	

AMENDED ORDER EXTENDING AND MODIFYING TEMPORARY RESTRAINING ORDER

Consistent with the Court’s comments at the conclusion of the May 29, 2026, preliminary injunction hearing in Case No. 26 CV 4790, and for good cause shown, the Court indefinitely extends the Temporary Restraining Order issued on May 28, 2026 (the “TRO”), pending further order of the Court. Further, the TRO is hereby modified to include the following, additional paragraph:

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant the Ohio Board of Pharmacy, its officers, agents, servants, employees, attorneys and those persons in active concert or participation with it who receive actual notice of this Order, are enjoined from treating and shall not treat as a Schedule I (or other) controlled substance any product that



contains, as an ingredient, vegetative kratom in either leaf or ground up/pulverized leaf form, whether the product is sold in liquid, capsule, or other form and irrespective of whether the product is marketed for ingestion or consumption. For the avoidance of doubt, this Order specifically applies to and includes, without limitation, Plaintiff Botanic Tonics, LLC's "Feel Free" line of products.

Plaintiffs do not sell synthetic 7-OH and nothing in this Order shall prevent the Board of Pharmacy from enforcing Adm.Code 4729:9-1-01.1 as applied to kratom products containing any amount of 7-OH or other mitragynine-related compounds beyond those present in natural kratom leaf. This order does not prohibit the Ohio Department of Agriculture from enforcing Ohio Revised Code 3715 et. Seq. as it relates to any of the above substances or products.

IT IS SO ORDERED.

Franklin County Court of Common Pleas

Date: 07-13-2026
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Case Number: 26CV004790
Type: ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a faint, circular, dotted background.

/s/ Judge Mark A. Serrott

Court Disposition

Case Number: 26CV004790

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 06-12-2026-MOTION TO AMEND - DEFENDANT: OHIO BOARD OF PHARMACY

Disposition: MOTION GRANTED IN PART

[illegible]

“[n]othing in this Executive Order and Emergency Rule shall be construed to apply to natural kratom in vegetation form.”

4. On December 12, 2025, Defendant adopted Ohio Admin. Code § 4729:9-1-01.1 as an emergency rule (the “Emergency Mitragynine-Related Compounds Rule”). The Emergency Mitragynine-Related Compounds Rule classified “[m]itragynine-related compounds” as schedule I controlled substances. The Emergency Mitragynine-Related Compounds Rule also states, in Ohio Admin. Code § 4729:9-1-01.1(A)(4), that “[m]itragynine” is not a “[m]itragynine-related compound[.]”

5. Kratom, even in its vegetation form, contains trace amounts of other mitragynine-related compounds; specifically, 7-hydroxymitragynine (“7-OH”). These trace amounts have not historically been detected by Ohio crime labs under current testing protocols.

6. On December 29, 2025, Defendant issued an updated Consumer and Retailer Notice about the Emergency Mitragynine-Related Compounds Rule (the “Updated Notice”). In the Updated Notice, Defendant included the following question and answer:

Does the [Emergency Mitragynine-Related Compounds Rule] impact kratom in its natural vegetation state that contains trace amounts of 7-hydroxymitragine (7-OH)? (Updated 12/29/2025)

Kratom that is sold in its natural vegetation state that contains trace amounts of 7-OH is not banned under the emergency rule. The Governor’s Executive Order specifically exempts natural kratom in vegetation form. ...

7. On January 20, 2026, Plaintiffs filed this lawsuit seeking a declaratory judgment interpreting the rule as well as injunctive relief barring Defendant from enforcing the Emergency Mitragynine-Related Compounds Rule as against the sale of natural kratom and natural kratom leaf products that contain trace amounts of mitragynine-related compounds.

8. The Emergency Mitragynine-Related Compounds Rule is currently in effect with the same language originally adopted on December 12, 2025. However, Defendant agrees that it did not intend, by way of the Emergency Mitragynine-Related Compounds Rule, to schedule natural kratom and natural kratom leaf products that contain trace amounts of 7-OH or other mitragynine-related compounds.

RELIEF GRANTED

9. In accordance with these stipulations and the parties' agreement, and for good cause shown, the Court ORDERS, ADJUDGES, and DECREES, and hereby enters FINAL JUDGMENT, as follows:

- A. Pursuant to Chapter 2721 of the Ohio Revised Code and Rule 57 of the Ohio Rules of Civil Procedure, the Court declares that the Emergency Mitragynine-Related Compounds Rule was not intended to, and does not, schedule or otherwise apply to natural kratom and natural kratom leaf products that contain trace amounts of mitragynine-related compounds.
- B. Defendant Ohio Board of Pharmacy is permanently enjoined from taking any steps to enforce or otherwise attempting to enforce, or from directing, acting in concert with, or advising any other entity (including, without limitation law enforcement) to enforce or attempt to enforce the Emergency Mitragynine-Related Compounds Rule as to natural kratom and/or natural kratom leaf products that contain trace amounts of mitragynine-related compounds.
- C. This Order does not bar the Defendant or any other party from enforcing the Emergency Mitragynine-Related Compounds Rule as applied to kratom products containing more than trace amounts of 7-OH or other mitragynine-related

compounds, or from exercising any other authority granted pursuant to Chapter 4729, Chapter 3719, or Chapter 3715 of the Ohio Revised Code.

- D. This Order applies only to the Emergency Mitragynine-Related Compounds Rule, and does not restrict the Defendant from proposing or adopting any other rule relating to kratom products, mitragynine, or mitragynine-related compounds.
- E. Each party shall bear its own attorneys' fees, expenses, and court costs.
- F. Each of the undersigned parties, via its respective legal counsel, approves, and irrevocably waives all rights to appeal, this Final Consent Judgment Entry.
- G. This is a FINAL JUDGMENT and the case is hereby TERMINATED.
- H. The Court hereby retains continuing, exclusive jurisdiction to enforce, and to adjudicate any disputes or issues relating to, this Final Consent Judgment Entry.

IT IS SO ORDERED.

Judge Stephen L. McIntosh

SO STIPULATED:

/s/ Marion H. Little, Jr.
 Marion H. Little, Jr. (0042679)
 Christopher J. Hogan (0079829)
 ZEIGER, TIGGES & LITTLE LLP
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Counsel for Plaintiffs

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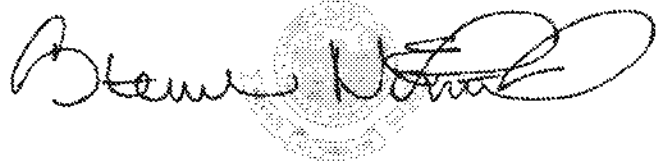
Counsel for Defendant Ohio Board of Pharmacy

1431-001.1076033

Franklin County Court of Common Pleas

Date: 02-04-2026
Case Title: CHANNEL ZERO MARKETING LLC ET AL -VS- OHIO BOARD
OF PHARMACY
Case Number: 26CV000497
Type: CONSENT JUDGMENT

It Is So Ordered.



/s/ Judge Stephen L. McIntosh

Court Disposition

Case Number: 26CV000497

Case Style: CHANNEL ZERO MARKETING LLC ET AL -VS- OHIO
BOARD OF PHARMACY

Case Terminated: 07 - Settled/dismissed prior to Trial

Final Appealable Order: No

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0004972[REDACTED]880000
Document Title: 01-20-2026-MOTION FOR PRELIMINARY
INJUNCTION - PLAINTIFF: CHANNEL ZERO MARKETING LLC
Disposition: MOTION IS MOOT
2. Motion CMS Document Id: 26CV0004972[REDACTED]890000
Document Title: 01-20-2026-MOTION FOR TEMPORARY
RESTRAINING ORDER - PLAINTIFF: CHANNEL ZERO
MARKETING LLC
Disposition: MOTION IS MOOT

Rule 4729:9-1-01.1 | Mitragynine-related compounds.

Ohio Administrative Code / 4729:9 / Chapter 4729:9-1 | Controlled Substance Schedules

An Emergency Filing is currently in effect for this rule. Please access the Register of Ohio to search this rule number and obtain further details.



Effective: December 12, 2025 Promulgated Under: 119.03

The following are classified as schedule I controlled substances:

(A) Mitragynine-related compounds, whether synthetic or naturally occurring substances contained in the plant, or in the resinous extractives of mitragyna speciosa (also known as kratom) and/or synthetic substances, derivatives, prodrugs, isomers, esters, ethers, salts and salts of isomers, esters and ethers with similar chemical structure.

Mitragynine-related compounds include, but are not limited to, the following: 7-hydroxymitragynine; mitragynine pseudoindoxyl; dihydro-7-hydroxy mitragynine; and 7-acetoxymitragynine. Mitragynine-related compounds do not include any of the following:

- (1) Any dangerous drug that is the subject of an application approved by the United States food and drug administration under subsections 505(c) or (j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355(c) or (j)) (December 12, 2025) for marketing as a dangerous drug;
- (2) Any compound used in food consistent with either:
 - (a) A food additive regulation published in the United States code of federal regulations; or
 - (b) A "no questions response" issued by the United States food and drug administration in response to a generally recognized as safe notice.

(3) Any drug approved by the United States food and drug administration to that may be lawfully sold over the counter without a prescription in accordance with section 505G of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355h) (December 12, 2025).

(4) Mitragynine.

Last updated December 16, 2025 at 2:28 PM

Supplemental Information

Authorized By: 3719.45

Amplifies: 3719.41, 3719.44, 4729.26

IN THE COURT OF APPEALS OF OHIO
TENTH APPELLATE DISTRICT

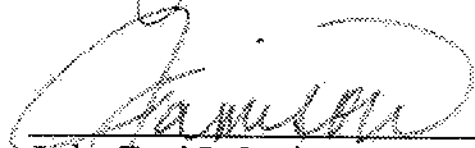
Krazy Daze Inc, et al., :
Plaintiffs-Appellants, :
v. : No. 26AP-735
Ohio Board of Pharmacy, : (REGULAR CALENDAR)
Defendant-Appellee. :

JOURNAL ENTRY

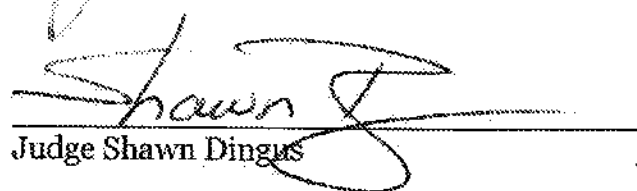
Appellants' August 25, 2026 motion for an injunction pending appeal is denied.
Appellants' August 25, 2026 motion to expedite this appeal is also denied.



Judge Julia L. Dorrian



Judge Terri B. Jamison



Judge Shawn Dingus

cc: Clerk, Court of Appeals
Clerk, Common Pleas Civil
Court Reporter

Court Disposition

Case Number: 26AP000735

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26AP0007352[REDACTED]700000

Document Title: 08-25-2026-MOTION FOR INJUNCTION - KRAZY DAZE INC

Disposition: MOTION DENIED

2. Motion CMS Document Id: 26AP0007352[REDACTED]840000

Document Title: 08-25-2026-MOTION - KRAZY DAZE INC - MOTION TO
EXPEDITE APPEAL

Disposition: MOTION DENIED

MARYELLEN O'SHAUGHNESSY
CLERK OF THE COURT OF THE TENTH DISTRICT COURT OF APPEALS
FRANKLIN COUNTY, OHIO
APPEALS DIVISION

KRAZY DAZE INC

26APE-08-735

-VS-

OHIO BOARD OF PHARMACY

**** NOTICE OF FILING THE RECORD ****

NOTICE IS HEREBY GIVEN THAT PURSUANT TO OHIO RULES OF APPELLATE PROCEDURE, RULE 11(B), YOU ARE HEREBY NOTIFIED THAT THE RECORD OF APPEAL WAS FILED IN THE COURT OF APPEALS ON: 09/10/26.

RECORD CONTAINS:

64 PLEADINGS
1 TRANSCRIPTS OF PROCEEDINGS
0 DEPOSITIONS
0 RECORD OF PROCEEDINGS
0 ENVELOPE OF EXHIBITS
0 MISCELLANEOUS EXHIBITS (POSTER BOARDS, PHOTOGRAPHS, ETC...)

RCD ELECTRONICALLY TRANS TO C/A W/64 PLEADINGS & 1 TP(IN BINDER)

PURSUANT TO OHIO RULE OF APPELLATE PROCEDURE RULE 18(A), IF THE APPEAL IS ASSIGNED TO THE REGULAR CALENDAR THE BRIEF OF APPELLANT IS DUE 20 DAYS FROM THE FILING OF THE RECORD; THE BRIEF OF APPELLEE IS DUE 20 DAYS FROM THE FILING OF THE BRIEF OF APPELLANT; THE REPLY BRIEF OF APPELLANT, IF ANY, IS DUE 10 DAYS FROM THE FILING OF THE BRIEF OF APPELLEE.

PURSUANT TO OHIO RULE OF APPELLATE PROCEDURE RULE 11.1(C). IF THE APPEAL IS ASSIGNED TO THE ACCELERATED CALENDAR THE BRIEF OF APPELLANT IS DUE 15 DAYS FROM THE FILING OF THE RECORD; THE BRIEF OF APPELLEE IS DUE 15 DAYS FROM THE FILING OF THE BRIEF OF APPELLANT; NO REPLY BRIEFS ARE PERMITTED IN CASES ASSIGNED TO THE ACCELERATED CALENDAR.

DATE MAILED TO COUNSEL: 09/10/26

** COUNSEL OF RECORD ARE ENCOURAGED TO CHECK THE RECORD TO MAKE SURE THE RECORD IS CORRECT AND COMPLETE. THE CLERK OF COURT OF APPEALS DIVISION IS OPEN FROM 8:00 A.M. TO 5:00 P.M. MONDAY THROUGH FRIDAY DURING WHICH HOURS THE RECORD MAY BE INSPECTED.

MARYELLEN O'SHAUGHNESSY
CLERK OF COURTS

RINDY M. MARCUM
DEPUTY CLERK
(614) 525-3624

(APLQ26-A48)

**Binder Name : 26AP-735 (26CV4790) KRAZY DAZE INC -VS- OHIO BOARD
OF PHARMACY**

Case Number: 26CV004790
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Court Name: GENERAL DIVISION, COURT OF COMMON PLEAS
Created For: APPEALS, (GENERAL)
Created By: SIMMONS, KELLI
Generated Date: 09-10-2026

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Reply Memo	06/26/2026	501-505
Reply Memo	06/26/2026	506-508
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Motion For Leave To File	06/29/2026	513-514
Answer To Amended Complaint	06/29/2026	515-519
Motion To Extend Time	07/06/2026	520-521
Memo Contra Filed	07/06/2026	522-532
Amended	07/07/2026	533-534
Extension Of Time	07/08/2026	535-537
Brief In Opposition	07/10/2026	538-594
Order	07/13/2026	595-598
Reply Memo	07/13/2026	599-605
Brief Of	07/13/2026	606-633
Amended Answer	07/27/2026	634-638
Order To Vacate	08/04/2026	639-649
Motion To Stay	08/07/2026	650-653
Hearing/event Scheduled	08/10/2026	654-655
Order	08/10/2026	656-657
Motion	08/13/2026	658-681
Notice	08/14/2026	682-685
Notice	08/14/2026	686-694
Court Reporter Certificate Filed	08/14/2026	695-695
Judgment Entry	08/21/2026	696-700
Notice Of Appeal Filed - Court Of Appeals	08/24/2026	701-702

THE STATE OF OHIO } I, MARYELLEN O'SHAUGHNESSY, Clerk
Franklin County, ss } OF THE COURT OF COMMON PLEAS
HEREBY CERTIFY THAT THE ABOVE AND FOREGOING IS TRULY
TAKEN AND COPIED FROM THE ORIGINAL.

Cape History

NOW ON FILE IN MY OFFICE
WITNESS MY HAND AND SEAL OF SAID COUNTY
THIS 10 DAY OF Sept A.D. 2026
MARYELLEN O'SHAUGHNESSY, Clerk
By [Signature] Deputy

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

KRAZY DAZE INC., et al.,	:	
	:	
Plaintiffs,	:	Case No. 26-CV-004790
	:	
v.	:	Judge Mark Serrott
	:	
OHIO BOARD OF PHARMACY,	:	
	:	
Defendant.	:	

MIRACLE KRATOM, LLC, et al.,	:	
	:	
Plaintiffs,	:	Case No. 26 CV 004720
	:	
v.	:	Judge Mark Serrott
	:	
OHIO DEPARTMENT OF	:	
AGRICULTURE, et al.,	:	
	:	
Defendants.	:	

ORDER

I. INTRODUCTION

This case is before the Court on Plaintiffs’ Motion for Preliminary Injunction. A hearing was held on May 29, 2026. For the reasons set out below, the motion for Preliminary Injunction is DENIED.

II. BACKGROUND

Ohio administrative Code 4729:9-1-01.1 was adopted by the Ohio Board of Pharmacy (hereinafter Defendants or the Board) as a permanent rule which classified mitragynine-related compounds as a schedule I controlled substance. Mitragynine is a highly addictive substance that is naturally found in the kratom leaf. The administrative code explicitly states that “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf,



in accordance with Chapter 3715 of the Revised Code” is not a “mitragynine-related compound” for the purposes of the administrative code. Before this rule went into effect, the Board of Pharmacy released a document to the public giving guidance to how the rule would be enforced. The document appeared to state that kratom leaf in leaf or ground form that is sold in any other way or in violation of the Pure Food and Drug Law under chapter 3715 of the revised code, including in capsules or mixed in a liquid would be considered a schedule I drug, akin to heroin.

Plaintiff Krazy Daze is a retailer of products manufactured by Plaintiff Botanic Tonics (hereinafter Plaintiffs). Botanic Tonics products use ground kratom leaf as an ingredient in the beverages that are sold at Krazy Daze and other retailers in Ohio. Plaintiffs argue that the rule is impermissibly vague and is therefore unenforceable, as it relates to natural kratom leaf. They argue that the administrative rule and the Board of Pharmacy’s guidance in how it will be enforced oversteps the Board of Pharmacy’s function and jurisdiction. Plaintiffs seek an injunction to enjoin the Board of Pharmacy from treating as a schedule I (or other) controlled substance any combination of ingredients that contains vegetative kratom in either leaf or ground up/pulverized leaf form.

The Board of Pharmacy counters that the language of the rule is not overly vague or broad and does not overstep their jurisdictional bounds. The Board appears to make clear that the intention of the rule is to make natural kratom leaf mixed with anything else a schedule I controlled substance. Additionally, the Board of Pharmacy points out that without the rule, Plaintiffs are still in violation of the Pure Food and Drug law (which is not the subject of this injunction).

III. LEGAL STANDARD

In general, "the purpose of a preliminary injunction is to preserve a status between the

parties pending a trial on the merits." *Proctor & Gamble Co. v. Stoneham* (2000), 140 Ohio App.3d 260, 267, 747 N.E.2d 268. Further, "the right to an injunction must be clear and the proof thereof clear and convincing, and the right established by the strength of plaintiffs' own case rather than by any weakness of that of his adversary." *White v. Long* (1967), 12 Ohio App.2d 136, 140, 231 N.E.2d 337. A party requesting a preliminary injunction must ordinarily show that: "(1) there is a substantial likelihood that the plaintiff will prevail on the merits, (2) the plaintiff will suffer irreparable injury if the injunction is not granted, (3) no third parties will be unjustifiably harmed if the injunction is granted, and (4) the public interest will be served by the injunction." *Proctor & Gamble*, supra, at 267.

"The grant or denial of an injunction is solely within the trial court's discretion and, therefore, a reviewing court should not disturb the judgment of the trial court absent a showing of a clear abuse of discretion." *Garono v. State*, 37 Ohio St.3d 171, 173, 524 N.E.2d 496 (1988).

IV. LAW AND ANALYSIS

a. Likelihood of Success on the Merits

First, this Court will consider the likelihood or probability of success on the merits. Plaintiffs argue that the rule is vague, the rule violates the rule of lenity, the Board's document interpreting the rule is unlawful rulemaking, and the Board has acted outside its statutory grant of authority.

Defendants argue that Plaintiff Botanic Tonics, as a foreign corporation unlicensed in the state of Ohio, are ineligible to bring suit. Furthermore, Defendants counter that the rule was made within the Board of Pharmacy's jurisdiction and is not impermissibly vague. Defendants argue the rule clearly sets forth what conduct is prohibited.

All statutes or regulations designed to promote the health and safety of the public are

granted a strong presumption of constitutionality. State ex rel. Jackman v. Court of Common Pleas, 9 Ohio St.2d 159 (1967). A court's power to invalidate a rule or statute should only be exercised with "great caution." Columbia Gas Transm. Corp. v. Levin, 117 Ohio St.3d 122 (2008). The party claiming a rule is unconstitutionally vague bears the burden of proving the rule is unconstitutional "beyond a reasonable doubt." Valerian v. Ohio Liquor Control Comm., 2003-Ohio-6930, ¶ 15 (10th Dist.).¹ Beyond a reasonable doubt is the highest burden in the law.²

A civil rule or statute applied in an administrative setting, as herein, does not require the same degree of specificity as a criminal statute involving criminal penalties. Salem v. Liquor Control Com., 34 Ohio St.2d 244 (1973) and Valerian, *supra*.

The Ohio Supreme Court has explained that "a law will survive a void-for-vagueness challenge if it is written so that a person of common intelligence is able to ascertain what conduct is prohibited, and if the law provides sufficient standards to prevent arbitrary and discriminatory enforcement." State v. Williams, 88 Ohio St.3d 513, 533 (2000). "Facial-vagueness challenges are generally allowed only where the statute is vague in all of its applications. This means that the statute does not supply a definitive standard by which to determine what conduct is included and what conduct is excluded." Id. at 532.

Here, Plaintiffs argue that the section of law carving out natural leaf kratom from being a schedule I drug, as long as it complies with the Pure Food and Drug law in chapter 3715 of the revised code, does not give clear guidance on how to legally utilize natural kratom. The Court, at this juncture, does not agree with Plaintiff's interpretation of the plain language of the

¹ This standard is applied to statutes and the same logic applies to duly enacted regulations. Moreover, a civil regulation or statute is unconstitutional for vagueness "only if it is so vague and indefinite that it sets forth no standard or rule or if it is substantially incomprehensible" Columbia Gas Transm. Corp. v. Levin, 117 Ohio St.3d 122, 2008-Ohio-511, ¶ 46.

² Beyond a reasonable doubt requires that an ordinary person would be willing to act and rely on the proof offered in deciding and acting on the most important of their own personal affairs. It has been likened to making life and death decisions.

administrative rule. The rule provides the exemption of “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code” from being considered a schedule I drug. As written, it appears clear that the code is intended to only carve out unadulterated natural kratom leaf and natural ground kratom leaf from a schedule I drug classification. The phrase “in vegetation form” is particularly instructive. Vegetation is defined as “plant life or total plant cover.” *Vegetation*, Merriam-Webster.com Dictionary, <https://www.merriam-webster.com/dictionary/vegetation> (last visited July 31, 2026). Synonyms for vegetation include *foliage, flora, green, herbage, greenery, and leafage*. *Vegetation*, Merriam-Webster Thesaurus, <https://www.merriam-webster.com/thesaurus/vegetation> (last visited July 31, 2026).

Plaintiffs argue that simply adding water to kratom leaf should not, as a matter of policy, render the natural kratom leaf as a schedule I drug. However, it appears that the plain language of the rule unambiguously makes that distinction. It does not require a doctorate degree to determine once the kratom leaf is mixed with anything else, it stops being “vegetation.” Much like black or green tea leaves mixed with water aren’t considered “caffeine in vegetation form,” so too does natural kratom leaf mixed with water (and certainly with the plethora of other ingredients found in Feel Free, a beverage manufactured by Botanic Tonics) cease to be considered mitragynine in vegetation form.³ Therefore, based upon the Courts analysis, at this juncture, Plaintiffs’ void for vagueness claim’s likelihood of success is lacking. Plaintiffs most certainly have not established the rule is vague “beyond a reasonable doubt.”

³ The Court does agree that if only water, or another liquid is added to natural kratom leaf that only contains very small amounts of mitragynine, that common sense would permit such products. The goal of the regulation as set forth in the Governor’s emergency order is to prohibit “synthetic” or other forms of kratom containing addicting and dangerous amounts of mitragynine. The products sold herein seem to contain the same amount of mitragynine as is present in the leafy or vegetation form of kratom. However, this Court does not make policy and leaves that distinction to those experts in the Board of Pharmacy. If the Board determines the rule should be amended as a matter of policy that is within its purview, not this Court.

As to Plaintiff's arguments regarding the rule of lenity, the Court is also similarly not convinced of the likelihood of success. While the scheduling of natural kratom leaf mixed with water (or any other substance) as a schedule I drug may appear draconian, given the Courts analysis of the rule and finding it unambiguous, the rule of lenity likely does not apply. The rule of lenity appears to be a statutory interpretation rule of last resort. The Ohio Supreme Court explained that the rule of lenity "applies only if, after considering text, structure, history and purpose, there remains a grievous ambiguity or uncertainty in the statute such that the Court must simply guess as to what [the rulemaker] intended." State v. Pribble, 158 Ohio St.3d 490, 2019-Ohio-4808, ¶ 23(internal citations omitted). Here, no such ambiguity exists.

Turning now to Plaintiffs' claims that the Board of Pharmacy acted outside the bounds of its delineated authority, this Court is also unconvinced. The Board of Pharmacy released a document providing guidance on how it interpreted the rule, including what was expected regarding the way kratom was being packaged or marketed for sale. The Board of Pharmacy, in a consent agreement⁴, walked back their guidance, and reissued a document that appears to remedy any of the issues brought up by Plaintiffs by operating outside the statutory rulemaking procedure. Regardless, it can hardly be said that the issuance of guidance in the form of a press release is tantamount to the issuance of an administrative rule. There has been no showing that the Board of Pharmacy is seeking to enforce the document, but rather, the Board seeks to enforce the plain reading of the properly promulgated rule. Furthermore, the Court finds Plaintiffs' arguments that Defendants exceeded their authority by referencing the Ohio Pure Food and Drug Law in the rule are similarly unfounded and lack a legal basis.

⁴ See Final Consent Judge Entry, filed June 10, 2026 in case 26CV4720 (stating "[t]herefore, vegetative kratom in a person's possession will not become a schedule I controlled substance simply because that vegetative kratom violates one or more provisions of R.C. Chapter 3715.")

b. Irreparable Harm to Plaintiffs

The Court now turns to the second factor as to whether the issuance of the injunction will prevent irreparable harm to Plaintiffs. If the injunction is not issued, Plaintiffs contend that they could face criminal felony prosecution for distributing products containing natural kratom leaf as an ingredient. Additionally, if the injunction is not issued, Plaintiffs, to avoid criminal prosecution, would have to cease operating their otherwise legal business activities in regard to natural leaf kratom. Defendants allege that Plaintiffs' conduct is already not permitted under the Pure Food and Drug Law and thus there really is no harm under the rule. Furthermore, any harm to Plaintiffs is economic in nature. Upon review, Plaintiffs have not made a showing that irreparable harm will result from denial of the injunction.

Here, if the injunction is not granted, Plaintiffs will have to cease selling certain products that contain natural leaf kratom mixed with other ingredients or face possible criminal prosecution. However, any threatened prosecution can be avoided by following the rule that this Court has found to be unambiguous. While ceasing the distribution of products containing natural kratom leaf as an ingredient may result in a loss of sales, this does not constitute irreparable harm. "Irreparable harm is defined as harm that cannot be measured in money damages." Smith v. Advantis Computer Consulting, 10th Dist. Franklin No. 00AP-361, at *9 (10th Dist. Mar. 29, 2001). Thus, Plaintiff has not met its burden as to this element.

c. Injury to Third Parties

As to the third factor for consideration, there does not appear to be any third-parties that will be harmed by the granting of an injunction.

d. Service to the Public Interest

Finally, the Court finds that the public interest will not be served by the granting of an

injunction. The Court is mindful of the addictive effects of mitragynine-related compounds and the possibility for abuse of kratom. Defendants followed the proper procedure in promulgating the rule, and its plain interpretation - while detrimental to Plaintiff's business interests - appears to be beneficial to the public in attempting to prevent the ill effects that may arise from abuse of products containing natural leaf kratom. Plaintiffs' expert, while no doubt qualified to testify about the effects of natural kratom leaf and its addictive properties, did not convince this Court that the public interest would be served by the granting of the requested injunction. Moreover, Plaintiffs' expert, a resident of the United Kingdom, conceded on cross examination that kratom in any form is banned in the United Kingdom and throughout Europe for public health reasons.

e. Lack of Standing

Defendant's claim of lack of standing of Botanic Tonics as an unlicensed corporation in Ohio appears to possibly have some merit. However, the Court need not decide that issue based upon the Court's ruling on the merits.

V. CLASS CERTIFICATION

The Court now turns to a separate but related issue brought forth by Plaintiffs: Class Certification. Based upon this Court's ruling herein, Plaintiffs may reevaluate their request to certify as a class. The Court is somewhat skeptical that Plaintiffs meet the class certification requirements for the following reasons:

1. While Plaintiffs do provide a scope for the class, the class as described does not appear to be sufficiently unambiguous. Particularly, the term supplement is somewhat vague and the catchall for retailers who sell "similar natural-leaf kratom product" leaves this Court questioning what the scope of the class truly is.
2. Krazy Daze has provided some evidence of its business, but not to the extent that the

Court is comfortable in deeming it a member of the putative class.

3. The scope of the class is broad and amorphous such that it is unclear how many retailers are qualified to join the class – or if there is any limit to what kratom retailers may join.

Based upon these doubts, the Court is leery to certify the class. However, the Court will not make a formal ruling at this juncture.

VI. CONCLUSION

Therefore, for the aforementioned reasons, this Court DENIES Plaintiffs' motion for a Preliminary Injunction. The temporary restraining order issued in this case is hereby VACATED.

IT IS SO ORDERED.

Franklin County Court of Common Pleas

Date: 08-04-2026
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Case Number: 26CV004790
Type: ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a faint, circular, dotted background.

/s/ Judge Mark A. Serrott

Court Disposition

Case Number: 26CV004790

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0047902[REDACTED]900000

Document Title: 05-21-2026-MOTION FOR PRELIMINARY INJUNCTION -
PLAINTIFF: KRAZY DAZE INC

Disposition: MOTION DENIED

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

KRAZY DAZE INC., et al.,	:	
	:	
Plaintiffs,	:	Case No. 26-CV-004790
	:	
v.	:	Judge Mark Serrott
	:	
OHIO BOARD OF PHARMACY,	:	
	:	
Defendant.	:	

MIRACLE KRATOM, LLC, et al.,	:	
	:	
Plaintiffs,	:	Case No. 26 CV 004720
	:	
v.	:	Judge Mark Serrott
	:	
OHIO DEPARTMENT OF	:	
AGRICULTURE, et al.,	:	
	:	
Defendants.	:	

ORDER

I. INTRODUCTION

This case is before the Court on Plaintiffs’ Motion for Preliminary Injunction. A hearing was held on May 29, 2026. For the reasons set out below, the motion for Preliminary Injunction is DENIED.

II. BACKGROUND

Ohio administrative Code 4729:9-1-01.1 was adopted by the Ohio Board of Pharmacy (hereinafter Defendants or the Board) as a permanent rule which classified mitragynine-related compounds as a schedule I controlled substance. Mitragynine is a highly addictive substance that is naturally found in the kratom leaf. The administrative code explicitly states that “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf,



Franklin County Ohio Court of Appeals Clerk of Courts- 2026 Aug 25 1:37 PM-26AP000735

in accordance with Chapter 3715 of the Revised Code” is not a “mitragynine-related compound” for the purposes of the administrative code. Before this rule went into effect, the Board of Pharmacy released a document to the public giving guidance to how the rule would be enforced. The document appeared to state that kratom leaf in leaf or ground form that is sold in any other way or in violation of the Pure Food and Drug Law under chapter 3715 of the revised code, including in capsules or mixed in a liquid would be considered a schedule I drug, akin to heroin.

Plaintiff Krazy Daze is a retailer of products manufactured by Plaintiff Botanic Tonics (hereinafter Plaintiffs). Botanic Tonics products use ground kratom leaf as an ingredient in the beverages that are sold at Krazy Daze and other retailers in Ohio. Plaintiffs argue that the rule is impermissibly vague and is therefore unenforceable, as it relates to natural kratom leaf. They argue that the administrative rule and the Board of Pharmacy’s guidance in how it will be enforced oversteps the Board of Pharmacy’s function and jurisdiction. Plaintiffs seek an injunction to enjoin the Board of Pharmacy from treating as a schedule I (or other) controlled substance any combination of ingredients that contains vegetative kratom in either leaf or ground up/pulverized leaf form.

The Board of Pharmacy counters that the language of the rule is not overly vague or broad and does not overstep their jurisdictional bounds. The Board appears to make clear that the intention of the rule is to make natural kratom leaf mixed with anything else a schedule I controlled substance. Additionally, the Board of Pharmacy points out that without the rule, Plaintiffs are still in violation of the Pure Food and Drug law (which is not the subject of this injunction).

III. LEGAL STANDARD

In general, "the purpose of a preliminary injunction is to preserve a status between the

parties pending a trial on the merits." *Proctor & Gamble Co. v. Stoneham* (2000), 140 Ohio App.3d 260, 267, 747 N.E.2d 268. Further, "the right to an injunction must be clear and the proof thereof clear and convincing, and the right established by the strength of plaintiffs' own case rather than by any weakness of that of his adversary." *White v. Long* (1967), 12 Ohio App.2d 136, 140, 231 N.E.2d 337. A party requesting a preliminary injunction must ordinarily show that: "(1) there is a substantial likelihood that the plaintiff will prevail on the merits, (2) the plaintiff will suffer irreparable injury if the injunction is not granted, (3) no third parties will be unjustifiably harmed if the injunction is granted, and (4) the public interest will be served by the injunction." *Proctor & Gamble*, supra, at 267.

"The grant or denial of an injunction is solely within the trial court's discretion and, therefore, a reviewing court should not disturb the judgment of the trial court absent a showing of a clear abuse of discretion." *Garono v. State*, 37 Ohio St.3d 171, 173, 524 N.E.2d 496 (1988).

IV. LAW AND ANALYSIS

a. Likelihood of Success on the Merits

First, this Court will consider the likelihood or probability of success on the merits. Plaintiffs argue that the rule is vague, the rule violates the rule of lenity, the Board's document interpreting the rule is unlawful rulemaking, and the Board has acted outside its statutory grant of authority.

Defendants argue that Plaintiff Botanic Tonics, as a foreign corporation unlicensed in the state of Ohio, are ineligible to bring suit. Furthermore, Defendants counter that the rule was made within the Board of Pharmacy's jurisdiction and is not impermissibly vague. Defendants argue the rule clearly sets forth what conduct is prohibited.

All statutes or regulations designed to promote the health and safety of the public are

granted a strong presumption of constitutionality. State ex rel. Jackman v. Court of Common Pleas, 9 Ohio St.2d 159 (1967). A court's power to invalidate a rule or statute should only be exercised with "great caution." Columbia Gas Transm. Corp. v. Levin, 117 Ohio St.3d 122 (2008). The party claiming a rule is unconstitutionally vague bears the burden of proving the rule is unconstitutional "beyond a reasonable doubt." Valerian v. Ohio Liquor Control Comm., 2003-Ohio-6930, ¶ 15 (10th Dist.).¹ Beyond a reasonable doubt is the highest burden in the law.²

A civil rule or statute applied in an administrative setting, as herein, does not require the same degree of specificity as a criminal statute involving criminal penalties. Salem v. Liquor Control Com., 34 Ohio St.2d 244 (1973) and Valerian, *supra*.

The Ohio Supreme Court has explained that "a law will survive a void-for-vagueness challenge if it is written so that a person of common intelligence is able to ascertain what conduct is prohibited, and if the law provides sufficient standards to prevent arbitrary and discriminatory enforcement." State v. Williams, 88 Ohio St.3d 513, 533 (2000). "Facial-vagueness challenges are generally allowed only where the statute is vague in all of its applications. This means that the statute does not supply a definitive standard by which to determine what conduct is included and what conduct is excluded." Id. at 532.

Here, Plaintiffs argue that the section of law carving out natural leaf kratom from being a schedule I drug, as long as it complies with the Pure Food and Drug law in chapter 3715 of the revised code, does not give clear guidance on how to legally utilize natural kratom. The Court, at this juncture, does not agree with Plaintiff's interpretation of the plain language of the

¹ This standard is applied to statutes and the same logic applies to duly enacted regulations. Moreover, a civil regulation or statute is unconstitutional for vagueness "only if it is so vague and indefinite that it sets forth no standard or rule or if it is substantially incomprehensible" Columbia Gas Transm. Corp. v. Levin, 117 Ohio St.3d 122, 2008-Ohio-511, ¶ 46.

² Beyond a reasonable doubt requires that an ordinary person would be willing to act and rely on the proof offered in deciding and acting on the most important of their own personal affairs. It has been likened to making life and death decisions.

administrative rule. The rule provides the exemption of “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code” from being considered a schedule I drug. As written, it appears clear that the code is intended to only carve out unadulterated natural kratom leaf and natural ground kratom leaf from a schedule I drug classification. The phrase “in vegetation form” is particularly instructive. Vegetation is defined as “plant life or total plant cover.” *Vegetation*, Merriam-Webster.com Dictionary, <https://www.merriam-webster.com/dictionary/vegetation> (last visited July 31, 2026). Synonyms for vegetation include *foliage, flora, green, herbage, greenery, and leafage*. *Vegetation*, Merriam-Webster Thesaurus, <https://www.merriam-webster.com/thesaurus/vegetation> (last visited July 31, 2026).

Plaintiffs argue that simply adding water to kratom leaf should not, as a matter of policy, render the natural kratom leaf as a schedule I drug. However, it appears that the plain language of the rule unambiguously makes that distinction. It does not require a doctorate degree to determine once the kratom leaf is mixed with anything else, it stops being “vegetation.” Much like black or green tea leaves mixed with water aren’t considered “caffeine in vegetation form,” so too does natural kratom leaf mixed with water (and certainly with the plethora of other ingredients found in Feel Free, a beverage manufactured by Botanic Tonics) cease to be considered mitragynine in vegetation form.³ Therefore, based upon the Courts analysis, at this juncture, Plaintiffs’ void for vagueness claim’s likelihood of success is lacking. Plaintiffs most certainly have not established the rule is vague “beyond a reasonable doubt.”

³ The Court does agree that if only water, or another liquid is added to natural kratom leaf that only contains very small amounts of mitragynine, that common sense would permit such products. The goal of the regulation as set forth in the Governor’s emergency order is to prohibit “synthetic” or other forms of kratom containing addicting and dangerous amounts of mitragynine. The products sold herein seem to contain the same amount of mitragynine as is present in the leafy or vegetation form of kratom. However, this Court does not make policy and leaves that distinction to those experts in the Board of Pharmacy. If the Board determines the rule should be amended as a matter of policy that is within its purview, not this Court.

As to Plaintiff's arguments regarding the rule of lenity, the Court is also similarly not convinced of the likelihood of success. While the scheduling of natural kratom leaf mixed with water (or any other substance) as a schedule I drug may appear draconian, given the Courts analysis of the rule and finding it unambiguous, the rule of lenity likely does not apply. The rule of lenity appears to be a statutory interpretation rule of last resort. The Ohio Supreme Court explained that the rule of lenity "applies only if, after considering text, structure, history and purpose, there remains a grievous ambiguity or uncertainty in the statute such that the Court must simply guess as to what [the rulemaker] intended." State v. Pribble, 158 Ohio St.3d 490, 2019-Ohio-4808, ¶ 23(internal citations omitted). Here, no such ambiguity exists.

Turning now to Plaintiffs' claims that the Board of Pharmacy acted outside the bounds of its delineated authority, this Court is also unconvinced. The Board of Pharmacy released a document providing guidance on how it interpreted the rule, including what was expected regarding the way kratom was being packaged or marketed for sale. The Board of Pharmacy, in a consent agreement⁴, walked back their guidance, and reissued a document that appears to remedy any of the issues brought up by Plaintiffs by operating outside the statutory rulemaking procedure. Regardless, it can hardly be said that the issuance of guidance in the form of a press release is tantamount to the issuance of an administrative rule. There has been no showing that the Board of Pharmacy is seeking to enforce the document, but rather, the Board seeks to enforce the plain reading of the properly promulgated rule. Furthermore, the Court finds Plaintiffs' arguments that Defendants exceeded their authority by referencing the Ohio Pure Food and Drug Law in the rule are similarly unfounded and lack a legal basis.

⁴ See Final Consent Judge Entry, filed June 10, 2026 in case 26CV4720 (stating "[t]herefore, vegetative kratom in a person's possession will not become a schedule I controlled substance simply because that vegetative kratom violates one or more provisions of R.C. Chapter 3715.")

b. Irreparable Harm to Plaintiffs

The Court now turns to the second factor as to whether the issuance of the injunction will prevent irreparable harm to Plaintiffs. If the injunction is not issued, Plaintiffs contend that they could face criminal felony prosecution for distributing products containing natural kratom leaf as an ingredient. Additionally, if the injunction is not issued, Plaintiffs, to avoid criminal prosecution, would have to cease operating their otherwise legal business activities in regard to natural leaf kratom. Defendants allege that Plaintiffs' conduct is already not permitted under the Pure Food and Drug Law and thus there really is no harm under the rule. Furthermore, any harm to Plaintiffs is economic in nature. Upon review, Plaintiffs have not made a showing that irreparable harm will result from denial of the injunction.

Here, if the injunction is not granted, Plaintiffs will have to cease selling certain products that contain natural leaf kratom mixed with other ingredients or face possible criminal prosecution. However, any threatened prosecution can be avoided by following the rule that this Court has found to be unambiguous. While ceasing the distribution of products containing natural kratom leaf as an ingredient may result in a loss of sales, this does not constitute irreparable harm. "Irreparable harm is defined as harm that cannot be measured in money damages." Smith v. Advantis Computer Consulting, 10th Dist. Franklin No. 00AP-361, at *9 (10th Dist. Mar. 29, 2001). Thus, Plaintiff has not met its burden as to this element.

c. Injury to Third Parties

As to the third factor for consideration, there does not appear to be any third-parties that will be harmed by the granting of an injunction.

d. Service to the Public Interest

Finally, the Court finds that the public interest will not be served by the granting of an

injunction. The Court is mindful of the addictive effects of mitragynine-related compounds and the possibility for abuse of kratom. Defendants followed the proper procedure in promulgating the rule, and its plain interpretation - while detrimental to Plaintiff's business interests - appears to be beneficial to the public in attempting to prevent the ill effects that may arise from abuse of products containing natural leaf kratom. Plaintiffs' expert, while no doubt qualified to testify about the effects of natural kratom leaf and its addictive properties, did not convince this Court that the public interest would be served by the granting of the requested injunction. Moreover, Plaintiffs' expert, a resident of the United Kingdom, conceded on cross examination that kratom in any form is banned in the United Kingdom and throughout Europe for public health reasons.

e. Lack of Standing

Defendant's claim of lack of standing of Botanic Tonics as an unlicensed corporation in Ohio appears to possibly have some merit. However, the Court need not decide that issue based upon the Court's ruling on the merits.

V. CLASS CERTIFICATION

The Court now turns to a separate but related issue brought forth by Plaintiffs: Class Certification. Based upon this Court's ruling herein, Plaintiffs may reevaluate their request to certify as a class. The Court is somewhat skeptical that Plaintiffs meet the class certification requirements for the following reasons:

1. While Plaintiffs do provide a scope for the class, the class as described does not appear to be sufficiently unambiguous. Particularly, the term supplement is somewhat vague and the catchall for retailers who sell "similar natural-leaf kratom product" leaves this Court questioning what the scope of the class truly is.
2. Krazy Daze has provided some evidence of its business, but not to the extent that the

Court is comfortable in deeming it a member of the putative class.

3. The scope of the class is broad and amorphous such that it is unclear how many retailers are qualified to join the class – or if there is any limit to what kratom retailers may join.

Based upon these doubts, the Court is leery to certify the class. However, the Court will not make a formal ruling at this juncture.

VI. CONCLUSION

Therefore, for the aforementioned reasons, this Court DENIES Plaintiffs' motion for a Preliminary Injunction. The temporary restraining order issued in this case is hereby VACATED.

IT IS SO ORDERED.

Franklin County Court of Common Pleas

Date: 08-04-2026
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Case Number: 26CV004790
Type: ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a faint, circular, dotted watermark seal.

/s/ Judge Mark A. Serrott

Court Disposition

Case Number: 26CV004790

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0047902[REDACTED]900000

Document Title: 05-21-2026-MOTION FOR PRELIMINARY INJUNCTION -
PLAINTIFF: KRAZY DAZE INC

Disposition: MOTION DENIED

IN THE COURT OF APPEALS
TENTH APPELLATE DISTRICT

Krazy Daze, Inc., et al.,

Plaintiffs-Appellants,

v.

Ohio Board of Pharmacy,

Defendant Appellee.

Case No. 26-AP-000735

APPELLEE OHIO BOARD OF PHARMACY'S
MEMORANDUM IN OPPOSITION TO APPELLANTS' MOTION
FOR AN EXPEDITED APPEAL

Marion H. Little, Jr. (0042679)
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Attorney General of Ohio

Henry G. Appel (0068479)
Matthew E. Meyer (0075253)
D. Grant Wilson (0100293)
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Appellants Krazy Daze, Inc. and Botanic Tonics, LLC (collectively “Krazy Daze”) ask this Court for an expedited appeal process because it claims its case is “extremely time sensitive.” (Motion to Expedite at 3).

It wants 7-day merit briefing, but also a reply brief and an oral argument. Krazy Daze does not, however, ask for this case to be placed on the Court’s Accelerated Calendar pursuant to App. R. 11.1.

“The accelerated calendar is designed to provide a means to eliminate delay and unnecessary expense in effecting a just decision on appeal by the recognition that some cases do not require as extensive or time-consuming procedure as others.” App R. 11.1(A). “One of the important purposes of the accelerated calendar is to enable an appellate court to render a decision more quickly than in a case on the regular calendar where the briefs may be more lengthy and the facts and legal issues more complicated.” *Crawford v. Eastland Shopping Mall Ass’n*, 11 Ohio App.3d 158 (10th Dist. 1983).

Krazy Daze is pointedly not requesting an accelerated calendar under the rule, asking instead for an ad-hoc “expedited” process. Strangely, Krazy Daze spends at least eight of its ten pages arguing the merits of the appeal. Perhaps Krazy Daze is arguing that expedited briefing is warranted because

the trial court got the wrong result. But that is not a good reason for expediting the case. It is hardly unusual that an appellant would believe that a trial court was wrong.

In the end, Krazy Daze is unhappy that it cannot sell beverages in Ohio that it admits are addictive. This is not an emergency case. This Court should not push aside all of the other cases on this Court's docket.

Respectfully submitted,

D. ANDREW WILSON (0073767)
Attorney General of Ohio

/s/ Henry G. Appel
HENRY G. APPEL (0068479)
Principal Assistant Attorney General
MATTHEW E. MEYER (0075253)
Principal Assistant Attorney General
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grant.wilson@ohioago.gov

Counsel for Defendant-Appellee
Ohio Board of Pharmacy

CERTIFICATE OF SERVICE

I certify that a copy of the foregoing was served on the date of filing by operation of this Court's electronic filing system on all counsel of record. A copy has also been served by email on August 27, 2026 to counsel for Krazy Daze and Botanic Tonics, Christopher J. Hogan hogan@litohio.com, and Marion H. Little, Esq., little@litohio.com.

/s/ Henry G. Appel
HENRY G. APPEL (0068479)
Principal Assistant Attorney General

TENTH DISTRICT COURT OF APPEALS DOCKETING STATEMENT

Krazy Daze Inc., et al.

v.

Case No. _____

Ohio Board of Pharmacy

1. This appeal should be assigned to ☒ the regular calendar or ☐ the accelerated calendar.
2. This appeal should be assigned to the accelerated calendar because (please check all that apply):

☐
☐
☐
☐
☐

- No transcript is required.
- The transcript consists of 50 or fewer pages or is of such length that its preparation will not be a source of delay.
- An agreed statement will be submitted within 20 days.
- An administrative hearing record was filed with the trial court.
- All parties to this appeal agree to an assignment to the accelerated calendar.

3. Although the appeal meets one or more of the reasons for being assigned to the accelerated calendar, it should *not* be assigned to the accelerated calendar because:

☐
☐
☐

- A brief in excess of 30 pages is necessary.
- Appellant wishes to file a reply brief.
- Other: _____

*Previously ordered and filed

4. Has a copy of the order for transcript been provided to the court reporter? ☐ Yes ☒ No ☐ N/A
5. Is a copy of the order for the transcript being filed? ☐ Yes ☒ No ☐ N/A
6. Will the court reporter complete and file the transcript within 40 days or 20 days for accelerated calendar? ☐ Yes ☒ No ☐ N/A
7. If this appeal is taken from consolidated cases, have notices of appeal been filed in each case? ☐ Yes ☐ No ☒ N/A

(The following apply **ONLY** to civil and administrative appeals)

8. How would you characterize the extent of your settlement discussions? ☒ None ☐ Moderate ☐ Extensive
9. Have settlement discussions taken place since the judgement or order appealed from was entered? ☐ Yes ☒ No
10. Would a mediation/settlement conference be of assistance to resolve this matter? ☐ Yes ☒ No ☐ Possibly

/s/ Marion H. Little, Jr.

Appellant or Attorney for Appellant

0042679

Attorney Registration Number

IN THE COMMON PLEAS OF FRANKLIN COUNTY, OHIO
CIVIL DIVISION

- - -

** COPY NOT FOR FILING **

MIRACLE KRATOM, LLC, :
ET AL., :
 :
Plaintiffs, : Case No. 26CV-4720
 :
vs. :
 :
OHIO DEPARTMENT OF :
AGRICULTURE, ET AL., :
 :
Defendants. :

- - -

KRAZY DAZE, INC., :
 :
Plaintiffs, : Case No. 26CV-4790
 :
vs. :
 :
OHIO BOARD OF :
PHARMACY :
 :
Defendants. :

- - -

TRANSCRIPT OF PROCEEDINGS

- - -

Before the Honorable Mark A. Serrott, heard on
Friday, May 29, 2026.

- - -

LAUREL A. AURIGEMA, RPR
Franklin County Court of Common Pleas - General Division
Columbus, Ohio 43215 (614) 525-5991



APPEARANCES:

Mr. Jonathan Secrest,
Attorney at Law,
On behalf of the Plaintiffs, Miracle
Kratom, LLC, et al.

Messrs. Marion Little and Christopher
Hogan,
Attorneys at Law,

On behalf of the Plaintiff, Krazy Daze,
Inc.

Messrs. Henry Appel, Matthew Meyer, and
Grant Wilson,
Attorneys at Law,

On behalf of the Defendant, Ohio Board of
Pharmacy.

Ms. Heather Williams and Mr. Jacob Erwin,
Attorneys at Law,

On behalf of the Defendant.

Franklin County Ohio Court of Appeals Clerk of Courts- 2026 Aug 25 2:38 PM-26AP000735

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LAUREL A. AURIGEMA, RPR
Franklin County Court of Common Pleas - General Division
Columbus, Ohio 43215 (614) 525-5991

1 Friday Morning Session,
2 May 29, 2026.

3 - - -

4 THE COURT: Our next case set today is
5 Krazy Daze, K-r-a-z-y, D-a-z-e, Inc., and
6 they're trying to file a class action, but
7 right now it's Krazy Daze and Botanic Tonics,
8 LLC -- I don't know if they're added as a party
9 yet. You can file an amended complaint, I
10 guess, because there hasn't been a response to
11 the pleading -- versus Ohio Board of Pharmacy;
12 and then we have Miracle Kratom, LLC, et al.,
13 plaintiffs, versus the Ohio Department of
14 Agriculture, et al. The Krazy Daze case is
15 26CV-4290; Miracle Kratom case is 26CV-4720.

16 We also have on the table a motion to
17 dismiss by the department of agriculture.

18 Did the board of pharmacy file a motion
19 to dismiss too? I don't recall.

20 MR. APPEL: No.

21 THE COURT: Okay. All right. Counsel,
22 do you want to enter your appearances, please,
23 starting with the plaintiffs.

24 MR. SECREST: Thank you, Your Honor. On
25 behalf of plaintiffs Miracle Kratom, BKP

1 Industries, Braymoore Corp., and Glenwood
2 Mountain Company, Jon Secrest.

3 MR. LITTLE: May it please the Court,
4 Marion Little, Chris Hogan, and Brittney Pierson
5 from our office on behalf of Krazy Daze, Inc.,
6 et al.

7 And with us today we also have Ramsey
8 Atallah seated behind me, who is the chief
9 science officer for Botanic Tonics.

10 THE COURT: Very good.

11 Over here for the defendants, please.

12 MR. APPEL: Henry Appel, A-p-p-e-l,
13 Principal Assistant Attorney General. I
14 represent the board of pharmacy. Along with me
15 are Matt Meyer and Grant Wilson.

16 MS. WILLIAMS: Good morning. Heather
17 Williams, Assistant Attorney General, on behalf
18 of Ohio Department of Agriculture along with
19 Jake Erwin.

20 THE COURT: All right. So, as we know,
21 sometimes these acoustics are not great. We
22 have microphones. So if you do speak, maybe
23 get near the microphone or speak loudly. Our
24 court reporter has to take everything down.
25 There are some medical, scientific, chemical

1 terms in this case. You need to spell those
2 for her, please, or any names of people that,
3 you know, it's not a common spelling. Please
4 do that for our court reporter. It makes it so
5 much easier.

6 Do not speak or talk over each other.
7 She cannot get two people talking at once,
8 although I do have a habit of interrupting
9 lawyers. So I'll try not to do that too much,
10 and then I'll instruct our witnesses to
11 basically -- I think we have one by Zoom --
12 when they come up here, I'll instruct them as
13 to what to do. And try not to talk too fast.

14 I think that covers it, Laurel.
15 Anything you want to add?

16 THE REPORTER: That's enough. Thanks.

17 THE COURT: All right. We have to
18 protect our court reporters.

19 So we -- as I understand it, part of the
20 case is settled and we have a motion to dismiss
21 that I want to discuss for a moment.

22 Who wants to outline the part of the
23 case that is settled? Mr. Secrest or
24 Mr. Appel?

25 MR. SECREST: Sure. Happy to do so,

1 Your Honor.

2 On behalf of Miracle Kratom, et al.,
3 plaintiffs, we have reached a consent judgment
4 which we submitted to the Court requesting they
5 enter. That was the product of negotiations
6 and collaboration with the board of pharmacy to
7 resolve not only the injunctive portion of our
8 client's claims against the board of pharmacy,
9 but also the entirety of the action for
10 declaratory relief that we brought against the
11 board of pharmacy.

12 We respectfully request that the Court
13 enter that.

14 THE COURT: All right. I haven't
15 reviewed it thoroughly, but I understand the
16 parameters of it. I'm sure we'll approve it.
17 If you agree, I approve. I approve anything
18 that shortens up the case.

19 MR. APPEL: Yes. This was an agreed
20 entry with -- you know, with many drafts going
21 back and forth making sure we had the exact
22 language that we wanted; and so I believe that
23 it is appropriate for you to sign the entry
24 because it does -- it resolves their concerns
25 and -- and allows the case to be resolved in a

1 fair and equitable manner.

2 THE COURT: Thank you. I appreciate
3 that.

4 So do you have any defendant left?

5 MR. SECREST: The Miracle Kratom
6 plaintiffs in their complaint for declaratory
7 relief has also named the Ohio Department of
8 Agriculture in their motion for preliminary
9 injunction, have requested that the Court
10 restrain the defendants, which would include
11 department of ag; however, given the
12 representations of the department at the TRO
13 hearing as well as within the motion to dismiss
14 that it has no enforcement responsibilities
15 related to the board of pharmacy's permit rule,
16 we will withdraw our request for injunctive
17 relief as to the department of ag.

18 If the Court would like me to address
19 ag's motion to dismiss right now, I'm happy to
20 do so as well.

21 THE COURT: I'm going to let her, as the
22 proponent, outline it briefly for me.

23 It does make some sense to me that I
24 can't issue orders, I think, against the
25 department that's not going to enforce this

1 rule. Their own interpretation could be later
2 under 3715, but why don't you outline that
3 briefly for me, please.

4 MS. WILLIAMS: Thank you, Your Honor.

5 As stated in the motion to dismiss on
6 behalf of the Ohio Department of Agriculture
7 what this really boils down to is that the
8 department of agriculture, its enforcement of
9 the food and drug law in Ohio is not affected
10 or amended or impacted at all by pharmacy's new
11 rules.

12 To the extent that there's any
13 interplay, it's just incorporation by reference
14 in the rule and the fact that that remains the
15 law of the land and that the Ohio Department of
16 Agriculture is going to continue enforcing to
17 maintain food safety and supplement safety in
18 Ohio.

19 And with that --

20 THE COURT: So you would not be sending
21 anyone out to look at potential violations
22 under this regulation that the board of
23 pharmacy's promulgated, correct?

24 MS. WILLIAMS: No, Your Honor. And I
25 believe we have a witness who will be

1 testifying that Krazy Daze's injunctive relief
2 matter this morning or today, who will add
3 clarity to how cases come before ODA and what
4 the mechanisms actually look like.

5 I think it's important to know at this
6 point that the department of agriculture's
7 Statute 3715 references the federal standards,
8 and all of the rules that the department of
9 agriculture enforces are directly pulled from
10 the C.F.R.s. -- they are the C.F.R. So they
11 take their cues from the feds; and unless and
12 until certain things are deemed to be safe for
13 ingestion or approved as dietary ingredients,
14 then that's what they will be able to do. It's
15 not whether there's a schedule for anything.

16 I think that one example that comes up
17 often is bleach. There's no rule saying you
18 can't put bleach in food, but it's also not
19 considered something safe for dietary
20 supplements or as an ingredient in food.

21 So in light of all that background, ODA
22 does move this Court to dismiss the case I
23 guess in its entirety at this point because ODA
24 has no enforcement authority of the rule. So
25 if there's any harm that would be caused to the

1 plaintiffs in Krazy Daze, it's not linked or
2 traceable to ODA. There's nothing judiciable
3 between ODA and the plaintiff. There is no
4 active investigation. There is no pending
5 enforcement. Even if there were, it would be
6 done through separate channels -- whether it
7 would be an embargo, a civil action that way.
8 Or if there is some potential for misdemeanor
9 charges which will be elicited later this
10 morning or today, happens quite infrequently;
11 and I don't believe that Miracle Kratom or any
12 of the other plaintiffs are licensed by ODA.
13 So there wouldn't be any licensure actions
14 under Revised Code 119 that would occur.

15 So I think that -- I would still move to
16 dismiss under 12(B)(6) for lack of standing,
17 lack of justiciability for declaratory judgment
18 and, you know, I think it's Civil Rule 21, even
19 though it's misjoinder, I think that still
20 stands because we are not the right party.

21 If anything, if Miracle Kratom has an
22 issue with ODA's statutory scheme or how it
23 looks, the proper party to really complain
24 about it would be the FDA because that's where
25 ODA comes from; and that is by statute. So in

1 accordance with the statute, ODA is not acting
2 ultra vires by --

3 THE COURT: U-l-t-r-a v-i-e-r-e-s, I
4 believe. I could be wrong.

5 Go ahead.

6 MS. WILLIAMS: Thank you.

7 It's not acting beyond its scope by
8 adopting the C.F.R. Again, we would ask this
9 Court to dismiss ODA.

10 THE COURT: All right.

11 So, Mr. Little, how is there a
12 controversy involving the department of
13 agriculture when they're not going to enforce
14 this rule? You know, if they determine
15 independently that there's a problem, you know,
16 then there will be a controversy if they charge
17 with a misdemeanor. If you're not -- clients
18 are not licensed, they're not subject to
19 administrative action. So why shouldn't I just
20 dismiss them?

21 MR. LITTLE: Your Honor --

22 THE COURT: Either one of you. I don't
23 care.

24 MR. LITTLE: -- my client did not sue
25 the department.

1 THE COURT: Oh, okay.

2 MR. SECREST: My client did, Your Honor.

3 Respectfully, Your Honor, when the
4 complaint was filed, given the reference and
5 incorporation of 3715 into the board of
6 pharmacy's permanent rule, it certainly was not
7 clear who was going to enforce, whether there
8 was joint enforcement, et cetera.

9 Regardless of that, we would just
10 request the Court provide us the opportunity to
11 respond to the motion to dismiss as provided
12 but, more specifically, to amend the complaint
13 as we're permitted to do in response to a
14 motion to dismiss.

15 One thing I do have to address,
16 Ms. Williams stated that all ODA does is follow
17 the federal standard. There is no federal
18 standard for kratom, Your Honor. I heard
19 reference to statutes and C.F.R.s. There's no
20 C.F.R. --

21 THE COURT: There's just guidelines, I
22 think, on their website.

23 Sorry, Laurel.

24 Yeah, there's just guidelines on the
25 website. We talked about that.

1 MR. SECREST: That's correct, Your
2 Honor.

3 So with regard to ODA's enforcement
4 related to kratom and the basis for that
5 enforcement, that is why we just request the
6 Court provide us the opportunity to respond to
7 the motion to dismiss in due course.

8 Thank you, Your Honor.

9 THE COURT: All right. So the Court
10 will receive ruling on that; and we'll go ahead
11 with our hearing, although, again, it does seem
12 to me that they have nothing to do with the
13 board of pharmacy's rule, although it
14 incorporates 3715. But until there's some kind
15 of real controversy or declaratory judgment
16 action, you're not attacking anything that any
17 regulation ODA has that I can see.

18 And if there's guidelines and they have
19 some interpretation or they're thinking about
20 doing something, well, they're going to have to
21 wait until they do something; but I'm happy to
22 look at your response.

23 MR. SECREST: Thank you, Your Honor.

24 And given our withdrawal of injunctive
25 relief and ag and with the board of pharmacy,

1 with the Court's permission, I'll get out of
2 the way here.

3 THE COURT: Well, that sounds good to
4 me. One less lawyer, one -- a shorter hearing.

5 THE REPORTER: Your Honor, when we get
6 done with this portion, can I ask for a break,
7 please. It's equipment.

8 THE COURT: Sure. Go ahead and take a
9 break right now.

10 - - -

11 Thereupon, a recess was taken.

12 - - -

13 THE COURT: All right. We're back on
14 the record.

15 Are there any other preliminary matters
16 other than brief opening statements? Anything?

17 MR. LITTLE: Yes, Your Honor. We'd move
18 for a separation of witnesses. I'm not sure if
19 there are other witnesses in here, but just as
20 a precaution.

21 MR. APPEL: Understood.

22 THE COURT: All right. Each side police
23 your own witnesses. If they are here, they're
24 going to need to step out in the hallway.
25 Don't discuss your testimony with each other.

1 All right. Anything else preliminarily?

2 MR. APPEL: Two preliminary matters.

3 The first is we want to raise the issue of
4 should we be even having a preliminary
5 injunction hearing today in light of the fact
6 that there was a new complaint filed last
7 night; and I mean, we're having a preliminary
8 injunction about a case that is so brand-new
9 that it doesn't make sense to be having --
10 certainly having one today.

11 The department -- the board should be
12 having at least an opportunity to review the
13 complaint in detail in order to determine
14 whether a different written response would be
15 needed for the preliminary injunction.

16 And the second issue is whether or not
17 it's appropriate to maintain this case as a
18 consolidated case in light of the fact that it
19 sounds like if, as we expect, the board of
20 pharmacy is going to be dismissed from the
21 Miracle Kratom case, that means we have no
22 parties in common between the Krazy Daze case
23 and Miracle Kratom.

24 THE COURT: All right. And brief
25 response?

1 I guess what I would say, just to keep
2 it short is, let's have our hearing. We've got
3 witnesses.

4 I'll be happy to look at any other
5 responses and maybe I'll rule in your favor --
6 I don't know -- and then, you know, that will
7 move out a lot of this.

8 But we may as well take today. I do
9 have a very busy schedule, so we may as well
10 take today and then I'll let that be brief.

11 Go ahead.

12 MR. LITTLE: That's fine, Your Honor.

13 The issue of consolidation I think is
14 simple. There was already a motion for
15 consolidation made. The Court granted it. You
16 don't get to simply drop cases after
17 consolidation.

18 THE COURT: All right. So, again, I
19 will consider all the briefing on that and take
20 that seriously. So --

21 All right. Anything else preliminarily?

22 MR. APPEL: Nothing from the State.

23 Thank you.

24 THE COURT: All right. All right. So
25 opening statements.

1 Mr. Little.

2 MR. LITTLE: Mr. Hogan will present
3 first.

4 THE COURT: Mr. Hogan, welcome. Haven't
5 seen you for a while. Good to see you.

6 MR. HOGAN: Good morning, Your Honor.
7 Same.

8 May it please the Court, the purpose
9 obviously of a preliminary injunction is to
10 maintain the status quo.

11 The status quo here is that 1,600
12 retailers in the state of Ohio have been
13 selling products that contain natural leaf
14 kratom in its vegetative state for years
15 without issue.

16 What has changed is the board of
17 pharmacy's mitragynine-related compound rule
18 and --

19 THE COURT: Do you have that spelling?
20 She's got it. Thank you.

21 MR. HOGAN: Thank you, Your Honor.

22 -- and the board's interpretation of it
23 that's been proffered to the Court.

24 Now, I would note this is not the first
25 time that the board's interpretations and

1 statements do not jive with what the rule
2 actually says. We were in front of Judge
3 McIntosh six months ago dealing with a similar
4 issue.

5 Now, what we have is a subject matter
6 exception in the rule that I referenced for
7 natural leaf vegetative kratom in its powdered
8 or leaf form. We have clients who manufacture
9 and sell products that contain natural leaf
10 vegetative kratom in its powdered form.

11 The exception is in a rule that is
12 designed to schedule elicit substances in the
13 state of Ohio. So the purpose of the exception
14 is to provide an exception as to a substance,
15 not as to how that substance is packaged or how
16 it is marketed. It is simply a subject matter.

17 Now, we have client -- we have witnesses
18 here today, Your Honor, who will better explain
19 in fact what the products contain, how they're
20 prepared, that sort of thing. But when you
21 have this subject matter exception, you --
22 strike that. You have the subject matter
23 exception and now we have the board of pharmacy
24 saying, well, actually, it's not -- it's not a
25 subject matter exception because it only allows

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1 for the sale of kratom in its truly literal
2 leaf form or in a powder. So, in other words,
3 I could sell a bag of leaves or a bag of powder
4 and it's not a scheduled substance at all; but
5 if I add water -- if I do as little as add
6 water to that substance, Your Honor, it
7 automatically becomes a Schedule I controlled
8 substance that is equal to heroin. That is
9 even more highly regulated than cocaine.
10 Again, the addition of water in the board's
11 view changes a perfectly legal substance into
12 heroin.

13 Now, there are a number of problems with
14 the board's position; but the first one, as
15 we've now had confirmed through the consent
16 entry presented to the Court, is that the
17 entire rule itself is facially ambiguous and
18 vague and it cannot be enforced. What the
19 board has said -- has judicially admitted is
20 that this very exception is subject to two
21 interpretations that are directly
22 contradictory.

23 The whole point of an administrative
24 rule and the due process clause as it comes
25 into play with respect to administrative rules

1 is that the regulated parties must have notice
2 of how to form their actions in order to comply
3 with the regulation.

4 Here the board says reasonable people
5 can't figure it out. And irrespective of the
6 consent order, the rule is still in place and
7 the rule does not provide guidance to the
8 regulated parties as to a matter that could,
9 because it would be a Schedule I substance,
10 result in imprisonment, frankly, Your Honor,
11 because this is the most highly regulated
12 category of controlled substances.

13 Now, the -- even if the Court was not to
14 find the rule void for vagueness -- and we
15 think that the admissions require that it be
16 deemed as such -- there's another problem; and
17 that is, as reflected in the papers the board
18 filed last night. The board, as a regulatory
19 agency whose regulations can give rise to
20 criminal liability, has asked this Court to
21 strictly construe the exception in favor of the
22 State and thus in favor of expanded criminal
23 liability for the citizens of Ohio.

24 The rule of lenity, which is embodied in
25 the Revised Code and applied by the Ohio

1 Supreme Court to administrative rules that have
2 a criminal impact says just the opposite. The
3 board doesn't get deference. In fact, the
4 Supreme Court has said it's entitled to no
5 deference; but this isn't just a matter of
6 deference. This is a matter of the rule of
7 lenity says the Court must construe rules and
8 statutes that provide for potential criminal
9 liability against the State and resolve all
10 doubts in favor of the regulated parties.

11 So the board has asked the Court to do
12 exactly what it can't do and what the rule of
13 lenity prevents it from doing. The -- you
14 know, we submit for both of those reasons
15 the -- the rule and the interpretation offered
16 by the board is wrong and it's also unlawful
17 and cannot be enforced.

18 I would just add that the board has also
19 taken the position -- and this sort of goes to
20 the interplay between the board and ODA -- the
21 board has taken the position, well, it's always
22 been illegal. Our clients have been breaking
23 the law for years, even though no one's ever
24 done anything about it or said anything about
25 it. That also is simply wrong, Your Honor.

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1 There is -- the ODA has never adopted a
2 rule blanketly banning any type of kratom
3 product, whether it's natural leaf or
4 otherwise. The FDA has never adopted a rule or
5 taken any action to ban natural leaf kratom or
6 any synthetic kratom. In fact, as we've
7 submitted in our papers and the Court will see
8 through the testimony today, the FDA's recent
9 position is that they don't care about natural
10 leaf kratom products. They only care about the
11 synthetic 7-OH products, which is what the
12 board claimed it was attempting to regulate;
13 and in fact, it is all the board has authority
14 to regulate at this point because, as
15 Mr. Little mentioned earlier, the board has a
16 separate proposed rule that would in fact
17 accomplish the result that they're seeking to
18 accomplish today, but it's been stalled because
19 it was so -- it was subject to so many comments
20 from the public.

21 Now, again, going back to the lawfulness
22 of the activity, without a rule -- without an
23 FDA rule, all you have is the ODA's
24 case-by-case adulteration process; and that
25 requires ODA on an individualized basis to go

1 out, tag the goods that it believes are
2 adulterated, petition the local county or
3 municipal court for a ruling as to whether its
4 determination was correct that would then be
5 binding in that individual case. But there is
6 no authority for the board of pharmacy or ODA
7 to simply blanketly declare a supplement to be
8 adulterated and have that result in potential
9 criminal liability for, again, citizens of
10 Ohio.

11 So, Your Honor, for the reasons stated
12 in our papers, for the reasons you'll hear
13 today through the testimony, we think there are
14 multiple reasons why both the rule and the
15 board's position as to the rule are unlawful,
16 are due no deference from the Court, and in
17 fact should be rejected; and with our client's
18 provided, we request an injunctive relief to
19 maintain the status quo.

20 THE COURT: Thank you, Counsel.

21 MR. HOGAN: Thanks, Your Honor.

22 THE COURT: Mr. Appel.

23 MR. APPEL: Thank you, Your Honor.

24 Got to start with this case is moot.

25 The complaint in -- the complaint and the

1 amended complaint is that the board had done
2 improper rule-making by passing -- by
3 implementing this guidance on May 14 yesterday
4 in -- consistent with its consent agreement
5 with another party. It has amended that. It
6 corrected it. You've been given a copy. We
7 will be introducing evidence. It now says
8 unequivocally that vegetative kratom is not a
9 Schedule I controlled substance even if it
10 somehow violates some other provision of
11 Chapter 3715.

12 And for -- in terms of what's lawful
13 under 3715, the guidance now says that's the
14 department of agriculture, here is their
15 guidance, and here is the rule, and here are
16 the rules that you can look at. So it doesn't
17 have any of the guidance issues that they had
18 in their complaint.

19 So this lawsuit is now moot. Certainly
20 the preliminary injunction request is moot.

21 THE COURT: But it's my understanding --
22 and, again, you can correct me -- your clients
23 and the board's position is that if you add
24 water, you add anything else like they had to
25 make it drinkable, that that would make it a

1 Schedule I potential felony and in certain
2 amounts that's mandatory prison.

3 MR. APPEL: The -- I think we need to
4 look at -- the answer is probably yes in most
5 cases. There may be some subtleties, and there
6 may be close cases if it truly is some water.
7 Because you've got plants, but they're wet.
8 You know, but is it -- you know, or is it
9 something where you have it completely
10 dissolved?

11 And, frankly, the rule does make sense
12 because the rule does say that mitragynine
13 compounds, whether synthetic or naturally
14 occurring contained in the plant are a
15 Schedule I controlled substance. There is a
16 carve-out that they have had for kratom in its
17 vegetation form. They're asking for some sort
18 of fancy reading. It says it. It's plain law.

19 THE COURT: Well, it does -- the
20 language is pretty clear, right? I think it
21 says vegetative form and what's the other word,
22 "leafy," in the rule?

23 MR. APPEL: It says specifically in --
24 mitragynine and in vegetation form, including
25 natural kratom leaf and ground natural kratom

1 leaf.

2 THE COURT: That's the carve-out.

3 MR. APPEL: It's got the carve-out.

4 It's -- however you want to look at it, a tonic
5 is not vegetation. Vegetation is a synonym for
6 plant.

7 We got to -- you know, so whatever you
8 have, it's not a plant.

9 And the reality is what they're asking
10 for is for you to take upon yourself the
11 rule-making for what is safe that should be
12 done by the food and drug administration or
13 perhaps the department of agriculture in terms
14 of what -- how things can be done.

15 I am not going to try to delve too
16 deeply into the process for the FDA guide --
17 process for getting something declared a food
18 or a supplement. I jokingly said to someone
19 yesterday I had a full head of hair before I
20 started trying to understand the C.F.R.
21 provisions, but suffice to say I've attached in
22 response to the opposition to a motion for a
23 preliminary injunction an application that
24 Ocean Spray submitted for cranberry extract.
25 It's 66 pages without the attachments. It's

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1 extreme levels of detail.

2 You don't need to understand all the
3 nuances of food and drug law to know that --
4 that you are not being provided with anywhere
5 near that level of detail that would be
6 necessary for something to be declared safe.
7 They're asking you to take upon yourself the
8 declaration that this is safe without the
9 proper testing.

10 And one thing they have to keep in mind,
11 they're saying powder dissolved in water, but
12 that's not what they're selling. They're
13 selling -- they allege is powder infused with
14 water and mixed with other ingredients. We
15 don't know what those other ingredients are;
16 but once -- you're getting farther and farther
17 away from any reasonable description of what
18 would be a plant, a vegetation.

19 THE COURT: But wasn't the rule designed
20 to prohibit the synthetic and high levels of
21 7-OH and -- I guess what troubles me is making
22 it a felony of the first degree or making it a
23 felony because you add something to it. I'm
24 not saying they should be allowed to add
25 something to it, but I think that's in the

1 purview of the department of agriculture.

2 But -- so that's what I'm struggling
3 with a little bit, but I appreciate what you're
4 saying; and the rule says what it says. And it
5 does say there's a carve-out, and there is
6 specific language used.

7 MR. APPEL: The good news is that this
8 is clear language -- clear enough language that
9 they know that they can't sell these beverages
10 under this law unless they get a court order
11 essentially. That's the issue that we have
12 here.

13 And no matter what you do, we beg you do
14 not strike the entire rule because there are
15 people out there who are dying because of 7-OH,
16 who are dying because of synthetics. If you --
17 if you follow their instruction and say --
18 their suggestion that the entire rule is
19 invalid, that would mean that people are going
20 to die from the synthetics.

21 And I will leave you with this last
22 thought: You're a law enforcement officer.
23 You see this rule and you're trying to enforce
24 it and you've got a beverage. It says it's
25 kratom infused with water and with other

1 dietary ingredients. How do they know whether
2 those ingredients include -- are only from the
3 leaf and from the powder, and how do you know
4 that they haven't been enhanced with extra
5 mitragynine, which is itself addictive, or with
6 something that would be clearly horrible like
7 7-OH.

8 I can tell you, having worked for the
9 State and representing the pharmacy board that
10 helped them in rule-making, rule-making is
11 really hard; and sometimes it's hard to get
12 something that addresses all the nuances and
13 all the other issues.

14 This rule is reasonable. It gives
15 proper guidance. If they don't -- if people
16 don't like it, they have the option of
17 petitioning to have the general assembly
18 overrule it or to go back to the board of
19 pharmacy and to say please fix the rule.

20 THE COURT: Yeah. If you're the tobacco
21 industry and have a great lobby, you can do
22 that. Mr. Secrest knows that.

23 But go ahead.

24 MR. APPEL: I would not understand that,
25 but I do think there are mechanisms that if

1 they don't think this is an appropriate thing
2 for them to do without putting -- having you
3 take the responsibility of declaring some
4 unknown substances to be safe for the public.

5 Thank you.

6 THE COURT: Thank you very much. I
7 appreciate it.

8 All right. You can call your first
9 witness.

10 MR. LITTLE: Your Honor, if you could
11 open up the Zoom, please, for Robert Verkerk.

12 - - -

13 Thereupon, a discussion was held off the
14 record.

15 - - -

16 THE COURT: Now, do we all have access
17 and able to see the screens?

18 The audience, can you see it?

19 All right. Do you want to spell your
20 witness's name, please, and then I'll address
21 your witness.

22 MR. LITTLE: Sure. Dr. Robert
23 V-e-r-k-e-r-k.

24 THE COURT: Very good.

25 Doctor, I'm Judge Serrott. I'm going to

1 swear you in. If you would raise your right
2 hand for me, sir.

3 Hopefully you can hear me all right.

4 (Witness sworn.)

5 THE COURT: All right. So I want to
6 give you some instructions. So you're going to
7 be testifying. You have to answer verbally.
8 Our court reporter is down in the center of the
9 courtroom. Wait until the lawyer finishes the
10 questions so we're not talking over each other.
11 It's hard for her to record two people talking
12 at once.

13 If you use technical terms, please spell
14 those and explain them to me because I'm just a
15 layperson, you know.

16 So those are the rules.

17 If you hear objection, stop and then
18 I'll direct you as to what to do.

19 All right. Do you want to go ahead and
20 introduce yourself to me and tell me what you
21 do for a living.

22 THE WITNESS: Thank you, Your Honor.
23 Can I just confirm that you have a copy of the
24 slide deck in front of you?

25 THE COURT: I do have the exhibits.

1 Do I have those, Mr. Little?

2 MR. LITTLE: You do, Your Honor. That
3 would be found at Exhibit 4A.

4 THE COURT: Okay. I do have that.

5 THE WITNESS: Wonderful. Well, I'll
6 start with the second slide. You'll see in my
7 resume I am the president and scientific lead
8 of the consultancy Regulation Strategies
9 International. I'm also the executive and
10 scientific director of the nonprofit Alliance
11 for Natural Health.

12 I've spent the last 40 years of my life
13 involved with plant sciences in academia. I
14 was with Imperial College London for over ten
15 years, also with nonprofit advocacy, and then
16 scientific consultancy.

17 My specific expertise around toxicology
18 involves looking at toxins in plants as well as
19 nutrients that are beneficial within them and
20 specifically in the area of risk assessment and
21 risk analysis, hazard identification, and the
22 development of safe products primarily for
23 foods and dietary supplements. I have specific
24 expertise also in the manufacture of products.
25 I consult with many companies that use contract

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1 manufacturers.

2 From an academic point of view, I have a
3 master's degree and Ph.D. in plant sciences
4 from Imperial College London. I was also there
5 for another seven years as a postdoctoral
6 fellow. I'm a fellow of the American College
7 of Nutrition, Fellow of the Regional -- Fellow
8 of the Royal Society of Medicine; and I've
9 authored over 60 papers, some of them in this
10 specific realm.

11 Over the last four years I have been
12 focusing to a large degree in my consultancy
13 efforts in the field of kratom and kava that
14 relate specifically to this case.

15 THE COURT: Very good.

16 Do you want to ask questions, proffer
17 him? What do you want to do?

18 MR. LITTLE: What is the Court's
19 standard? Do you want him --

20 THE COURT: Generally what I do is that
21 I -- I accept the fact that he's qualified to
22 testify in this area. I would allow Mr. Appel
23 to voir dire on the issue if he wants to at
24 this point.

25 MR. LITTLE: Let me have an exhibit

1 marked first, Your Honor.

2 - - -

3 ROBERT VERKERK

4 Called as a witness on behalf of the plaintiff,
5 being first duly sworn, testified as follows:

6 DIRECT EXAMINATION

7 BY MR. LITTLE:

8 Q. Doctor, we're going to show you what's
9 been marked as Exhibit 4B and -- which I
10 believe is your CV. It will be posted there in
11 a moment. You can ID that for us and that will
12 help set forth a foundation for your testimony.

13 A. Yeah, yes.

14 Q. One moment.

15 A. I can see the CV.

16 THE COURT: He said he could see it I
17 think.

18 MR. LITTLE: And, Brittney, if you'd turn
19 to the second page so we can have that
20 displayed.

21 BY MR. LITTLE:

22 Q. And if you can confirm for the record,
23 Doctor, that that is a current copy of your CV?

24 A. That absolutely is a current version of
25 my CV, one used for Regulatory Strategies

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1 International. Absolutely.

2 Q. I should have asked you the question
3 before we began. Where are you physically
4 located today?

5 A. I'm physically located in the United
6 Kingdom, which is the reason that I'm coming on
7 via the Zoom.

8 Q. If we could look at the first page of
9 your CV again marked as Exhibit 4B, bravo; and
10 you had briefly referenced your educational
11 background. If we look under qualifications,
12 does that give a complete listing of your
13 educational degrees post high school?

14 A. It does. Absolutely. Three -- three
15 science degrees including a BSC, a master's,
16 and a Ph.D.

17 Q. And then under the heading "Relevant
18 Areas of Expertise," are each of the bulleted
19 items there set forth under that heading those
20 areas for which you've developed expertise?

21 A. Yes. Those are areas that I've been
22 working on over the last four decades of my
23 career. Absolutely.

24 Q. And as it relates to the subject of
25 kratom and kava I think you indicated, could

1 you briefly elaborate a bit more about what
2 your involvement has been with respect to those
3 items?

4 A. Yes. My involvement has been
5 specifically working with large manufacturers
6 who produce both kava and kratom in order to be
7 able to understand the science and -- both, you
8 know, in terms of the fundamental science, the
9 botanical side of it, but as well as the
10 toxicology to ensure that they're selling safe
11 products.

12 You will be aware that pretty much all
13 botanical species at some dosage -- this is the
14 fundamental principle of paracelsus -- at some
15 dosage there is the potential of toxicity. So
16 I've worked with companies that are very keen
17 to ensure that they're selling safe products,
18 and I've produced a number of extremely
19 detailed risk analysis reports for them, some
20 of which are identified on the back page of the
21 slide deck I've provided as references.

22 Q. And, Doctor, just for a moment I'm going
23 to --

24 MR. LITTLE: Your Honor, if it's
25 acceptable to you, what I'd like to do is

1 proffer him. If there's more that's needed, if
2 there's an objection, I'll cover more of the
3 background; but I think we probably have
4 sufficient information in the record now to
5 offer the doctor as an expert on subjects of
6 botanical chemistry, toxicology, and issues
7 with respect to addiction potential and risk
8 analysis.

9 THE COURT: Do you wish to voir dire or
10 question, Mr. Appel, regarding the proffering
11 as an expert?

12 What I do as a court is similar to what
13 Judge Holbrook does or whoever wants to voir
14 dire is that I'll make a determination that
15 he's qualified, if he is based on your cross;
16 and then, of course, credibility and the weight
17 to be given that evidence is up to me.

18 MR. MEYER: Your Honor, Matthew Meyer on
19 behalf of the State. We'll waive voir dire and
20 stipulate to his qualifications.

21 THE COURT: Very good.

22 So the Court says that he is qualified
23 to offer testimony and opinions in this area.

24 MR. LITTLE: Thank you.

25 One moment, Your Honor, just from a

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1 technology standpoint.

2 THE COURT: Sure.

3 MR. LITTLE: Your Honor, apparently
4 there's some technical limitations. The doctor
5 has a copy of Exhibit 4A; and so we're just
6 going to go ahead and refer to it in the
7 notebook rather than trying to display it, if
8 that's acceptable to the Court.

9 THE COURT: Sure.

10 BY MR. LITTLE:

11 Q. Doctor, if you could turn to page 3 of
12 Exhibit 4A; and let's talk about what role
13 you've been asked to undertake in your review
14 of this matter.

15 A. Thank you. Yes. My background on
16 botanical chemistry, toxicology, looking both
17 at pharmacodynamics, pharmacokinetics as well
18 as addiction potential when it comes to any
19 botanical that -- nutmeg would be an example
20 that could be addictive. So many botanicals
21 have addiction potential at some dosage risk
22 analysis. Specifically here what we are
23 looking at is the alignment between the science
24 and Ohio's treatment of kratom with respect to
25 the 7-OH rule and other rules that are being

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1 considered.

2 And one of the fundamental points here
3 is that if you look at a particular botanical
4 species, it is impossible to make any risk
5 analysis without looking at the matrix in which
6 it's delivered, the dosage at which it's being
7 delivered, and the labeling that is linked to
8 it, exactly what kind of consumer you're
9 looking at -- what age group, what condition,
10 whether they have an addiction past.

11 And, finally, the views that I'm going
12 to offer do fill the exact same system that is
13 accepted by the World Health Organization, the
14 European Food Safety Authority in Europe, and
15 the FDA itself through the Center for Food
16 Safety and Applied Nutrition, which is to look
17 at these three elements of risk. One is the
18 assessment of the risk. The second is what
19 steps are taken to manage that, and that's
20 particularly important as around labeling. And
21 then the third aspect is around communication,
22 how is that risk communicated. And obviously
23 we've got different communications happening at
24 a federal level, as well as a state level, and
25 what impact that has in the end on consumer

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1 health.

2 Q. So it sounds like there are a number of
3 factors that are evaluated by governmental
4 agencies and manufacturers in determining the
5 risk associated with a particular product?

6 A. Correct.

7 Q. You made a reference to -- I think it's
8 pronounced paracelsus. Maybe I mispronounced
9 it. P-a-r-a-c-e-l-u-s-u-s [sic]. I just want
10 to back up a second and make sure, one, you
11 pronounce it correctly, since I may have
12 butchered it; and, two, if you could explain
13 the correlation of dose to toxicity.

14 A. Yes. This is a very fundamental
15 principle set out by the scientists some 450
16 years ago called paracelsus, and so the
17 spelling is p-a-r-a-c-e-l-s-u-s.

18 And essentially what the principle says,
19 it is the dose that makes the poison. Now,
20 many would assume that there might be a linear
21 dose response. In other words, the more of
22 something you take, the more toxic it becomes
23 and there's almost a smooth curve as you go up
24 the dose range.

25 Now, in the case of many, many plants

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1 that is not the case. It is not a smooth
2 dose-response relationship. So while the
3 paracelsus principle is of key importance
4 and -- for example, in the case of kratom, you
5 can always find some 7-OH in minuscule amounts,
6 7-hydroxymitragynine. It is an oxidation
7 product of the primary chemical, the alkaloid
8 mitragynine within kratom, but tiny amounts of
9 form.

10 The question is: How much makes a
11 poison? And it's very well-established that
12 the very, very small amounts that oxidize
13 within the leaf can have absolutely no
14 toxicological concern whatsoever. Yet when
15 those -- that same chemical is concentrated, it
16 can have very grave concerns. It can act on
17 opioid receptors and it has addictive
18 potential.

19 So the paracelsus principle is
20 particularly important as well as recognizing
21 that the dose response is not a smooth curve.
22 It follows what we call a hormetic -- that's
23 h-o-r-m-e-t-i-c -- relationship, if you like, a
24 hockey stick curve which -- a beneficial effect
25 at a low dose and then a toxic effect at a high

1 dose.

2 Q. So -- and I may be jumping ahead a
3 little bit. So going back to this concept of
4 dose impacts toxicity, can you give the Court
5 an example of where a otherwise everyday
6 product could become toxic because of the
7 dosage associated with it?

8 A. Absolutely. On Slide 5, Your Honor,
9 you'll see that there is an image in the bottom
10 right of the slide there showing two
11 substances. One is turmeric root. So turmeric
12 root is widely regarded as being a healthy
13 product; but we also know that when you consume
14 too much of it, which can be done, and there
15 are concerns with people who are consuming vast
16 amounts of it either as a juice or in shots,
17 that it can become a liver poison.

18 Another very clear example of this is
19 drinking water. Drinking water was used in
20 medieval times as a torture. You can -- you
21 can die by consuming too much drinking water;
22 and, of course, moderate amounts are essential
23 for health and for life.

24 So that relationship exists really in
25 all aspects of our interaction with natural

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1 substances -- foods, beverages, and the like.

2 THE COURT: Well, let me ask you a
3 question. So you say that 7-OH is minuscule in
4 the kratom and they're talking about a high
5 dose. So let's say it's in a beverage form and
6 you drink 18 ounces of this beverage form or
7 36 ounces. Does that, even though it's in a
8 minuscule form -- and, again, I understand it's
9 not a linear-type analysis; but if you drink
10 excess, would that cause the dosage to be
11 higher, even though it's a very small
12 percentage? If that question makes sense to
13 you.

14 THE WITNESS: Yes, Your Honor, it
15 absolutely does make sense. The bottom line is
16 that the amount of 7-OH in particular is at
17 trace levels. So it's almost inconceivable
18 that someone could consume enough 7-OH when it
19 was in trace levels.

20 You've got to remember that the limits
21 of detection now with modern analytical
22 equipment is such that you can measure down to
23 the part per billion range, even lower than
24 that. So there are extremely small amounts.

25 The concern would be if you consumed

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1 vast amounts of a concentrated form of it, not
2 so much the 7-OH, but the mitragynine itself,
3 which is present at much higher levels; and
4 that is one of the reasons that I believe the
5 federal government as of July 29 last year
6 published its own views on this subject saying
7 that concentrates were a potential risk.
8 Because it's very easy to concentrate the
9 amount of mitragynine, put it into a beverage,
10 put it into a liquid form, and then consume
11 vast amounts of it. So the mitragynine itself
12 from the 7-OH would be a more likely safety
13 concern.

14 THE COURT: If additives are, you know,
15 added, and I don't know what all is added in
16 the liquid form, is there any type of additives
17 other than the chemical itself that would cause
18 a rise in the trace levels you say exist or
19 have some synergistic effect, if any? If that
20 makes sense.

21 THE WITNESS: Your Honor, again, it
22 does, of course, make sense. It's very
23 important to look at interactions within any
24 delivery of any of substance.

25 In the case of Feel Free that -- given

1 that I've been an expert specifically
2 commissioned by Botanic Tonics and I have a
3 great familiarity with their products, you'll
4 see that there are kavalactones. There is a
5 kava extract that's specifically added to it,
6 and critically the kavalactones do not act on
7 opioid receptors.

8 So the concern with kratom is if you did
9 consume vast amounts, you move from this
10 positive beneficial effect that is experienced
11 from traditional use where you're taking it in
12 low amounts and if you take it in vast amounts
13 in the concentrated form, it can become a
14 mu-opioid agonist, receptor agonist. So that
15 becomes something that is more like morphine.
16 That is the concern that the federal government
17 has. I'm sure it's the concern that the Ohio
18 Pharmacy Board have as well.

19 The kavalactones that are present, the
20 kava extract that is present within the Feel
21 Free we have done very detailed risk
22 assessments of that, again, is at the lower end
23 of traditional use. And if anything, it will
24 reduce any potential adverse effect in the
25 event of overdosing because it's not acting on

1 the same receptors. It has a calming affect
2 rather than a stimulatory affect.

3 THE COURT: Thank you.

4 You may ask questions.

5 BY MR. LITTLE:

6 Q. And we -- I'm going to go a little bit
7 out of sequence, but just following up on one
8 of your comments, Doctor, you were talking
9 about what the FDA announced last July. And us
10 who are nonscientific in background, we've
11 heard the term "synthetic." How does that term
12 come up in this particular area and what does
13 that mean?

14 A. What it generally means is biosynthetic.
15 So there may be an element of plants of kratom
16 plant that it produced and that when they are
17 put into artificial conditions in which extreme
18 oxidation is applied to the mitragynine that
19 has been already concentrated. So typically
20 you take a concentrate that is formed using an
21 extraction system -- and bear in mind an
22 extraction system, based on the July 29
23 announcement of FDA, would not be acceptable --
24 and then it is artificially oxidized.
25 Oxidation is, if you like, the same process

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1 that is undergone when iron rusts. In other
2 words, it's exposed to oxygen. That converts
3 to 7-OH, 7-hydroxymitragynine; and it is that
4 breakdown product, that metabolite, that is of
5 such concern. And, of course, that metabolite
6 can be further rearranged by additional
7 oxidation in the laboratory to -- bless you,
8 Your Honor.

9 THE COURT: Thank you.

10 THE WITNESS: -- that can be further
11 rearranged to a secondary oxidation product,
12 which is the pseudoindoxyl form of mitragynine
13 that is an even stronger mu-opioid receptor
14 agonist. So those are the concerns. That is
15 one of the big shifts that has happened in the
16 U.S. industry.

17 If you imagine that the dietary
18 supplement was around from the 1970s being
19 consumed in its traditional form, it's only
20 when biosynthetic production became involved
21 that health concerns have arisen and these
22 produce levels of these oxidation products and
23 rearrangement products that have most definite
24 opioid activity and clearly understandable
25 concerns both at a state and federal level.

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1 Q. And I'll jump a little to the punch
2 line, but the Feel Free product that you had
3 described earlier I take it's not a
4 synthetic-based product?

5 A. Absolutely. It is a -- it is made using
6 ground leaf. So kratom in its vegetation form,
7 which is the form specifically that in the
8 announcement -- it is also obviously mentioned
9 in the Ohio rule as well; but, obviously, you
10 know, the complication is then if it is allowed
11 in its vegetation form, in what form can it be
12 presented to the public.

13 Q. Sure. Let's go to -- I want to try to
14 answer some of the Court's questions in greater
15 detail, so let's go to Slide 4 of Exhibit 4A.

16 And if you could provide the Court a
17 little bit of background on the history of --
18 well, what natural kratom is and explain a bit
19 more about the alkaloid matrix.

20 A. That's right. The alkaloid component,
21 which is the bit that everyone has
22 understandable concerns about is a very small
23 fraction of the overall component of natural
24 kratom leaf, some two and a half percent only.
25 So you can see when you consume kratom leaf in

1 its vegetation form, it's very difficult.

2 This comes back to the question, Your
3 Honor, that you asked at the outset, could you
4 consume vast amounts of it. And that really
5 puts us in the same territory as turmeric. You
6 know, if you consume turmeric root, can you
7 consume enough to reach a toxic dose? Well, in
8 practical terms, no; but if you concentrated
9 it, you absolutely could.

10 So in its natural form, it comes with a
11 whole bunch of antioxidants, primary
12 polyphenols, and glycosides; but actually over
13 half of it is fiber. And so if you look at the
14 Feel Free product, it is actually a cloudy
15 product that -- where that ground kratom leaf
16 is mixed with water. So it is delivered truly
17 in its vegetation form.

18 Q. Going back to the history a bit more,
19 though, what has been the traditional
20 preparations of kratom products; that is, how
21 are they historically consumed?

22 A. Exactly. In Southeast Asia in
23 particular it's got hundreds, in fact,
24 thousands of years of traditional use; and
25 because it was only being consumed in its leaf

1 form, no one really was aware of its addictive
2 potential at the high doses because it was
3 being chewed as whole leaf. So laborers would
4 use it for its stimulatory effects.

5 Remember I talked about this two-phase
6 dose response? So the lower dose is where you
7 make it into a tea or you chew the leaves or
8 you consume pounded leaf. You get this
9 stimulatory effect at low doses. It is only
10 recently in the western world where modern
11 extraction techniques have been applied to this
12 traditional foodstuff that we start to see
13 recognition of what happens when you
14 concentrate these alkaloids that exist, as I
15 mentioned, in tiny amounts in the leaf and then
16 consume large amounts of those.

17 Frankly, if we did the same with nutmeg,
18 we would have exactly the same problem. Nutmeg
19 does contain alkaloids that have addictive
20 potential and obviously toxicity; but kratom
21 has become, if you like, a victim of this
22 modern technology. And now there is a huge
23 array of different products out there in the
24 marketplace, and many of them in my mind have
25 significant toxicity and addiction problems

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1 associated with them.

2 Q. Still looking at page 4 of your
3 materials, so in terms of the constituent parts
4 of the kratom leaf, that's illustrated in the
5 pie chart?

6 A. Yes. The -- the alkaloids, the green
7 segment in the diagram is the alkaloid section,
8 of which mitragynine is the dominant alkaloid.

9 Q. Okay. And how does that -- in answering
10 the Court's question you made a reference to
11 receptors. Expand on that a bit and show and
12 explain the connectivity between the connectors
13 in the alkaloids.

14 A. Well, we all actually have opioid
15 receptors and -- and they are particularly
16 important in the reward pathways in the brain.
17 Actually, one of the reasons that people become
18 addicted to sugar is because glucose also, when
19 it's concentrated, can speak to those
20 particular receptors. We have many different
21 types of opioid receptors. It is the mu-opioid
22 receptor that is most tightly -- for which
23 mitragynine has the strongest affinity; but,
24 again, when it is present at very low doses, it
25 doesn't give sufficient signal to those

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1 receptors to trigger the reward symptom. And
2 you will see even in a later slide when we look
3 at the FDA's own study, a single ascending dose
4 study, you'll see that they looked at what
5 happens when you consume small to large
6 amounts -- 1-, 3-, 8-, 10-, and 12-gram amounts
7 of leaf. And they found no evidence at all at
8 the lower end of consumption, which also is
9 exactly the consumption level that is directed
10 on the label of Feel Free, absolutely no
11 evidence at all that there was any liking,
12 which is the earliest trigger for these opioid
13 receptors, if you like, being simulated. So
14 it's below that threshold of being -- because
15 they are actually technically partial mu-opioid
16 receptor agonists. So you need a lot of it to
17 trigger those reward pathways --

18 Q. I'm sorry.

19 A. -- and that's why people who have
20 addiction --

21 Q. Going back to what you described earlier
22 about the -- all of this is dose dependent?

23 A. One hundred percent.

24 Q. So if we go to Slide 5 of the material
25 which provides additional information on

1 kratom's history as a food, you have a chart in
2 the upper right-hand portion of that slide that
3 describes the -- it looks to be increasing
4 potential for risk and it has chewed leaf,
5 teas, concoction, powered leaf, high
6 concentration, et cetera. Would you explain
7 that just so we can make sure the Court has the
8 benefit of that illustration?

9 A. Yes. This diagram I've used simply
10 because it's -- if you like, puts into
11 diagramatic form exactly what the FDA and
12 Secretary Kennedy were saying during the
13 announcement with Dr. Makary on July 29 last
14 year; that in the leaf form when you chew the
15 leaf, when you take a decoction -- a decoction
16 is different from a tea that is only steeped.
17 A decoction is simmered for a while so that you
18 take a more concentrated but, nevertheless,
19 aqueous water-based extract. So it's slightly
20 concentrated, but not in the same way that it
21 would be if it was extracted by alcohol or the
22 powered leaf.

23 Now, all those forms tend to deliver
24 the -- the combination of alkaloids of which
25 mitragynine is dominant below the level that

1 agonize those opioid receptors. However, as
2 soon as you start concentrating those
3 alkaloids, particularly mitragynine -- and
4 obviously now we're seeing biosynthetic 7-OH
5 being added to the mix with very significant
6 amounts of it in -- we start to go into that
7 second level where the mu-opioid receptors and
8 other opioid receptors are being stimulated.
9 And the question is: At what level does that
10 occur?

11 And this is really why the FDA has
12 conducted its single ascending dose study.
13 There are now 18 clinical trials looking at
14 leaf. Consistently we see a pattern with leaf
15 that you do not reach the level that starts
16 triggering opioid receptors in the brain. So
17 you do not trigger that addiction response as
18 well as the sedation response because you move
19 into an inhibitory effect and away from the
20 stimulatory effect that you get at low doses.

21 Q. Still looking at that illustration,
22 Doctor, then when you had the concoction,
23 does that mean that's a product in which
24 there's been water added?

25 A. Yes, it is. So a tea is simply taking

1 the leaves -- this is done traditionally taking
2 the leaves and pouring boiling hot water; and a
3 decoction is then taking water and the leaves,
4 boiling it for a while, and then taking off
5 slightly more concentrated version within the
6 water. So the same as if you decided to take
7 tea leaves and put them in a sauce pan and boil
8 them up longer, you would end up with a
9 stronger brew than if you just steeped the tea
10 in the normal way.

11 Q. And so with respect to the items that
12 are depicted I think in the darker green or
13 maybe that's a darker blue -- excuse me, I
14 can't tell -- those would be uses that
15 historically have been viewed as non having
16 opioid stimulatory effect; is that right?

17 A. Correct. We consistently see that on
18 the condition that generally less than 8 grams
19 or 5 grams are consumed, you will not trigger
20 the opioid receptors in any way and you get
21 that stimulatory beneficial effect.

22 As soon as you start moving into the
23 high dose area, exactly the opposite happens.
24 You start getting sedation, which is a
25 morphine-like effect, given that morphine is

1 your classic opioid receptor agonist.

2 Q. Let's, if we can, go to Slide 6, which
3 has the title, Natural kratom's history as a
4 dietary supplement in the U.S. And can you
5 briefly describe the history there for the
6 benefit of the Court?

7 A. Yes. So -- so in terms of the United
8 States, it was Vietnam vets that had experience
9 because of the wide use of kratom through
10 Southeast Asia and through Thailand, Vietnam,
11 Malaya, Indonesia. And they brought it back
12 because they had positive experiences with it
13 and started marketing it.

14 We've seen extensive evidence -- because
15 obviously from the FDA's point of view it
16 becomes very relevant whether it should be
17 considered a new dietary ingredient or could
18 the kratom leaf, which was the only form that
19 was sold up until 2013, is an old dietary
20 ingredient; and we see very clear evidence from
21 evidence of sale, receipts, invoices,
22 brochures, and even affidavits that it was sold
23 for many, many years. So we have over 50 years
24 historical use, safe use, in the United States.

25 When things began to change was in 2013

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1 when people started extracting using
2 sophisticated methods of extraction often
3 involving alcohol or carbon dioxide, what is
4 called supercritical distillation or
5 extraction. And then you can pull out vast
6 amounts of these alkaloids that are not
7 extracted from -- in water, even if you use a
8 decoction. So suddenly the alkaloid level went
9 through the roof and -- and, you know, for some
10 of the kava operators, that's what they've been
11 doing. They've been trying to get as high a
12 concentration into products as possible and
13 selling them online, in vape shops, convenience
14 stores, et cetera. So that's where the trouble
15 has arisen.

16 Q. Let me interrupt you for a moment just
17 for us liberal art majors' benefit. So when
18 you're talking about an extract, is that a
19 process by which a -- some chemical is
20 extracted so that it can create a higher
21 concentration or is there some other way you
22 can describe it for us English majors?

23 A. An extract involves a form of processing
24 of one form or another. So in the simplest
25 form of extracts are water-based or aqueous

1 extracts, and obviously a decoction is that
2 form. If you continue to boil and simmer, you
3 would take out more and more up until a
4 point -- in fact you'd maintain in an awful lot
5 of these, you'd eventually degrade it. But
6 there are ways of trying to optimize the level
7 of water soluble components.

8 Now, the issue is that these alkaloids
9 are not water soluble but they are soluble
10 insolvants like alcohol and methanol and they
11 also can be taken out with carbon dioxide using
12 supercritical extraction methods.

13 So any process, I mean, this is
14 fundamentally why the term "vegetation form"
15 becomes so important. A vegetation form means
16 an unprocessed form. So it is whole leaf,
17 pulverized leaf, pounded leaf. As soon as you
18 start to use an extraction system, albeit with
19 water taking the least of it out, you start
20 concentrating the components and particularly
21 the alkaloid components that are our prime
22 concern to an increasing degree. And, of
23 course, there hasn't been any effort to curb
24 that kind of extraction up until the July 29
25 announcement by the FDA.

1 Q. And so that extract process, is that
2 what resulted in what's referred to as the 7-OH
3 product?

4 A. Yes. So anyone that is declaring 7-OH
5 as a -- an ingredient in a product rather than,
6 for example, indicating its level in trace
7 amounts, for example, less than 1 milligram in
8 any serving, will have used some kind of
9 processing extraction system to concentrate
10 that. And as I said earlier, very often that
11 requires artificial oxidation where you create
12 a kind of forced oxidation so that you convert
13 as much of the mitragynine as possible to its
14 7-OH oxidized form.

15 Q. So that --

16 THE COURT: Before we move on, so can
17 you have him address the board of pharmacy's
18 position that how do we know what's in these
19 beverages? How do we know whether extract --
20 whether it's been extracted? Are we just
21 relying on some manufacturer?

22 And, again, I assume that, you know,
23 they want to sell the most they can and people
24 are going to buy what has the most effect for
25 the dollar. So that's part of why maybe we

1 have the rule. If we see it in leafy form or
2 we see it in ground-up powder, we know it's not
3 been extracted. When you sell it in a
4 beverage, how do we know what's been added, not
5 added, other than we're relying on somebody not
6 regulated that puts a label on a bottle?
7 That's one of my concerns.

8 MR. LITTLE: Labeling is regulated, Your
9 Honor. We have a separate witness to talk
10 about the labeling.

11 BY MR. LITTLE:

12 Q. But, Doctor, one of the things you -- I
13 think you in fact indicated earlier -- and let
14 me see if I can find it in your materials.
15 Let's go back to page 3, Tab 3 of your slide.

16 THE COURT: What tab is that? Same tab?

17 MR. LITTLE: Still 4A, Your Honor.

18 THE COURT: Okay.

19 MR. LITTLE: Page 3.

20 THE COURT: Got it.

21 BY MR. LITTLE:

22 Q. You have a balloon -- I call it a
23 balloon -- scientific bottom line: Potential
24 for risk includes assessment of botanical
25 species, plant part, product form,

1 phytochemical profile, dose, adulteration and
2 labeling. And what's the importance of the
3 labeling as part of this process in assessing
4 risk?

5 A. Labeling is crucial. And this would be
6 one of my concerns, obviously, with the Ohio
7 rule if you didn't allow a dietary supplement
8 form. So if you have a dietary supplement
9 form, it does require labeling; and any
10 component that is of nutritional concern should
11 be labeled. Any contaminant -- you'll see this
12 very often, contaminants can be also labeled if
13 people have concerns over those.

14 So essentially what accurate labeling
15 does is not just tell you what the species is,
16 what part of the plant it's come from -- in
17 this case it would be the leaf, not the root,
18 not the stem, what product form is it.

19 Now, Your Honor, you raised the issue if
20 it's in liquid form, you know, how do we deal
21 with that. Well, in much the same way that we
22 do for a turmeric shot. So if you look at a
23 turmeric shot that's delivered as a dietary
24 supplement that you can buy in pretty much any
25 grocery store in the United States, you will

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1 see that it tells you how much root is in it.
2 So very often you'll find a product will say
3 12 grams of turmeric root per shot. So the
4 consumer knows that they're getting a good old
5 dosage of it, and then they also -- if it's a
6 dietary supplement, it will have a direction
7 that gives you some warning of what the maximum
8 safe dose is to consume.

9 So on a turmeric shot, the same as a
10 responsible kratom shot, it will stipulate do
11 not consume more than two shots per day or
12 whatever it is. So that is the way in which
13 labeling becomes a critical mechanism of
14 ensuring that someone consumes a dose that has
15 been shown to be safe.

16 The problem about not having any
17 labeling and just selling it as a bagged herb
18 is that you would then -- you know, a consumer
19 wouldn't know how much to take. They could try
20 and consume the whole bag. They wouldn't have
21 any directions for use, and that might result
22 in greater concerns than having responsible
23 dietary supplement labeling.

24 Q. And, Doctor, you described this as a
25 dietary supplement. Has the FDA taken any

1 position as to whether kratom qualifies as a
2 dietary supplement?

3 A. Well, it absolutely does under statutory
4 law because it is a botanical that is -- can be
5 recognized as a dietary supplement. I have a
6 concern, as do many in the kratom industry,
7 that the primary web page that the FDA has up
8 actually has information that isn't up-to-date.
9 It is largely staff opinion, and it does not
10 comply with any of the recent statements made
11 by the FDA or HHS with regard to its role as a
12 food or a dietary supplement.

13 It has been used as a dietary
14 supplement, as I said, for over 50 years in the
15 United States; and it has been consumed safely
16 up until recent times when these concentrated
17 extracts became available.

18 MR. MEYER: Objection, Your Honor.
19 Nonresponsive. Has the FDA approved it as a
20 dietary supplement?

21 THE COURT: Go ahead and answer that
22 question, if you would. I know that you said
23 that what's on the website is staff opinion.
24 Has the FDA approved it as a dietary
25 supplement?

1 THE WITNESS: Your Honor, there is no
2 premarket approval for dietary supplements, and
3 they're sold as foods in the same manner that
4 if a baker chooses to sell a loaf of bread.
5 The onus is on the baker to ensure that that
6 loaf of bread is safe. The same applies for
7 dietary supplements.

8 The FDA has the ability to act under the
9 Dietary Supplement Health and Education Act in
10 the event that there is evidence of harm or
11 injury. And, of course, this is exactly what
12 the FDA was doing on July 29 last year given
13 that there have been reports of harm and injury
14 and all of it appears to relate to concentrated
15 products.

16 BY MR. LITTLE:

17 Q. Let's --

18 MR. MEYER: Same objection, Your Honor.
19 I think the answer was no, but it wasn't clear.

20 THE COURT: I'm going to overrule the
21 objection and give the weight I deem
22 appropriate.

23 BY MR. LITTLE:

24 Q. Doctor, let's go to Tab 7 of your
25 exhibit. And, again, if you could just draw

1 out the differences between the natural kratom
2 leaf and then the synthetic products that
3 you've been discussing.

4 A. Yes. Thank you. Tab 7, again, shows
5 you the difference -- some of the differences
6 that are related to both the composition and
7 the bioavailability, the way in which the
8 alkaloid components within kratom are absorbed
9 into the body.

10 So, as we saw in Slide 4 where we have
11 the pie chart that shows all the fiber and the
12 antioxidants present within the natural leaf
13 matrix, the vegetation form, when kratom is
14 consumed in that way, what we see is the rate
15 of absorption of the alkaloid is slower. So we
16 get, if you like, a slower flatter peak to max
17 peak, the time it takes to get to the maximum
18 blood concentration, which typically is
19 incidentally in the order of two to four hours.
20 So once you have a single dose of the
21 alkaloids, by the time four hours have elapsed,
22 your liver has detoxified it and there is no
23 further amount in the blood.

24 Now, what we see is when you consume the
25 synthetic isolated forms that lack all the

1 elements in the matrix, not only is that peak
2 sharper so it's -- perhaps an analogy would be
3 the difference in your blood-sugar response
4 when you eat a chocolate bar on its own in the
5 middle of the afternoon compared with when you
6 eat a chocolate bar after your main meal. The
7 blood-sugar response is blunted by the presence
8 of the other components in the meal. Exactly
9 the same thing happens here. So when you
10 separate it from the matrix, you have a greater
11 potential for mu-opioid receptor. So that
12 abbreviation, the MOR, stands for mu-opioid
13 receptor activity.

14 The natural controls that are provided
15 by the leaf matrix are no longer there and,
16 therefore, those are the products that addicts,
17 you know, people who have abused recreational
18 drugs or even pharmaceutical drugs in the
19 middle of a opioid crisis are looking for; and
20 then you get that very significant concern
21 where they're acting as a respiratory
22 depressant.

23 Now, if you take way too much of it, we
24 talked about the inhibitory effect of these
25 opioids. They can be so great that someone can

1 actually die as a result of it. So that is the
2 concern when the synthetic, semisynthetic,
3 biosynthetic versions of 7-OH or increasingly
4 we've seen the pseudoindoxyl form. A few years
5 back the pseudoindoxyl form wasn't in the
6 marketplace at all. Irresponsible actors are
7 now out there specifically including it in
8 products because they know it has even more
9 affinity for opioid receptors than 7-OH. So
10 it's worse still than 7-OH, and this is being
11 recognized even by the World Health
12 Organization that have conducted, you know, a
13 global evaluation of kratom. In fact, they say
14 there is insufficient evidence to establish
15 a -- if you like, a global guideline for
16 kratom; and they absolutely recognize exactly
17 what the FDA recognized, that when it's
18 consumed in the natural vegetation form, it
19 presents absolutely no risk and there are
20 substantial benefits, which, of course, is one
21 of the reasons that it has had a 50-year
22 history of use in the United States as a
23 dietary supplement.

24 Q. Let's go to --

25 THE COURT: Hold on.

1 MR. MEYER: Could counsel or the witness
2 direct us as to what page of what exhibit we're
3 on?

4 THE COURT: I believe it's, Natural
5 kratom leaf is not toxicologically equivalent
6 to fortified or synthetic products. It's,
7 like, about five or six -- yeah. They're not
8 labeled, but it's, like, page 7.

9 MR. MEYER: Exhibit 7?

10 MR. LITTLE: Page 7.

11 THE COURT: Of 4A.

12 MR. MEYER: Thank you, Your Honor.

13 THE COURT: 4A.

14 We're going to take a break. Court
15 reporter probably needs a break. So she's been
16 at it about an hour and a half. We're going to
17 take a ten-minute break, and then I'd like to
18 see counsel just in the conference room.

19 All right. We'll be on a break, Doctor,
20 for ten minutes. Court reporter is taking a
21 lot down and a lot of terms here that are
22 difficult. Thanks.

23 THE WITNESS: Thank you, Your Honor.

24 - - -

25 Thereupon, a recess was taken.

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THE COURT: All right. We are going to go back on the record.

Thank you for your patience, Doctor.

Go ahead. You may resume questioning.

MR. LITTLE: Thank you, Your Honor.

BY MR. LITTLE:

Q. Doctor, we're going to cover a few more background foundational issues, but then we want to try to get to some of the punch lines for the Court's benefit so we can keep -- because there's a number of other witnesses that have to testify today.

So if we could briefly look at -- and with respect to Exhibit 4A in its entirety, which is the slides that you have in front of you, is that material that you prepared for today's hearing?

A. Absolutely.

Q. Okay.

A. I prepared that myself over the last few days, yeah.

Q. Okay. Now, let's go to page 8 of your materials, which has the heading, Clinical trials of kratom leaf, zero trials on

1 concentrated 7-OH. And can you just briefly in
2 two or three sentences explain what is depicted
3 on this page?

4 A. Yes. Essentially, clinical trials are
5 critically important to understand the
6 interaction with human beings both from a
7 safety and an efficacy standpoint; and all of
8 the trials, all of the criminal trials have
9 been carried out on kratom leaf because that is
10 the prime concern for people who are interested
11 in its use as a dietary supplement, as a health
12 supplement. And the -- there have been no
13 trials that we've been able to find that are
14 published within the peer review specifically
15 on concentrated 7-OH, and I would suspect the
16 reason for that is because it is recognized
17 that that is a drug product and it would only
18 be drug companies that may have an interest in
19 such a compound.

20 Q. To the left of the chart summarizing the
21 various clinical studies, there's two blocks
22 there. What does that information tell us, or
23 what are you trying to communicate to the
24 Court?

25 A. Essentially that if you look at all of

1 the 18 clinical trials, what we see is a
2 consistent pattern of safety and -- and that is
3 because all of the clinical trials have
4 relatively small amounts, lower gram amounts
5 per daily -- per serving per daily consumption.

6 So when you add all of the clinical
7 trials combined with the 50 years of safe
8 history of use, many, many more than that in
9 Southeast Asia, we see a consistent pattern of
10 safety because it's the low end, the non-opioid
11 end.

12 However, when we look at concentrated
13 7-OH, we don't see clinical trials. We don't
14 see any history of traditional use, and we only
15 see much more recent use in the U.S. And I
16 believe that use is a concern for all of us who
17 are interested in the welfare of the American
18 public.

19 Q. If we could go to Tab 9 of Exhibit 4A
20 and if you could -- which has the title,
21 Original NDI notification made in 2024. What
22 is the data depicted there, please?

23 A. Okay. So that is the Huestis study that
24 is using a capsule form of dried kratom leaf.
25 You'll see that the primary end points there

1 was single ascending dose and a 15-day multiple
2 ascending dose study within that up to only
3 4 grams of kratom. Again, no adverse effects;
4 but the point I'm really wanting to make here
5 is that for the purpose of this study a new
6 dietary ingredient notification was made.

7 So when people say, you know, it hasn't
8 been indicated as a dietary ingredient, we
9 would say both it is -- it is recognized based
10 on historical sale that it was around for some
11 50 years the United States and, therefore,
12 meets the definition pre-1994 use of an old
13 dietary ingredient; but in addition to that and
14 specifically for the purpose of this study, an
15 NDI notification was made in 2024. So that for
16 me provides additional confirmation of it being
17 a dietary ingredient.

18 Q. And just so I'm clear, who completes or
19 performs these NDIs?

20 A. So this is a notification that is made
21 directly to the FDA and it is a notification.
22 Now, if the FDA has concerns of it, it can deny
23 that; but that notification is in process.

24 Q. And then if we look at the orange block
25 in the lower left-hand corner, it says the FDA

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1 has completed clinical report. And what is
2 that in reference to? Is that the ascending
3 dosing study you mentioned?

4 A. That report, the Huestis study -- and I
5 believe Ramsey Atallah will be another witness
6 was the senior author in that study. The FDA
7 has received that clinical report along with
8 the NDI notification, the new dietary
9 ingredient notification. So they have full
10 receipt of that.

11 In addition to that, that is the next
12 slide, the FDA has carried out its own study
13 and that has very recently been published and
14 it is an extremely important study because it
15 confirms all of the data that many of us who
16 have been involved in risk analysis with kratom
17 are been able to confirm that when you consume
18 smaller amounts less than, say, 5 grams, there
19 are absolutely no safety signals or any
20 indication of addictive potential at all. And,
21 obviously, we can talk in more detail about the
22 FDA's study as well.

23 Q. Let's do that. Let's turn to page 10,
24 and if you could briefly explain to the Court
25 what that illustrates.

1 A. So this is 40 subjects in the study. So
2 the FDA are coauthors with it. They've also
3 funded it, and they really want to get to the
4 bottom of understanding this dose response that
5 we were talking about earlier.

6 So what they did is basically they had
7 eight cohorts of which six in each cohort were
8 given kratom, two were on placebo, and they
9 delivered 1 gram, 3 grams, 8 grams, 10 grams,
10 and 12 grams that had to be consumed within
11 five minutes. So this is a single dose, very
12 much more -- if we want to put that into some
13 perspective, a single serving of Feel Free
14 delivers 1.75 grams. When it is in a tonic
15 form, 1.5 grams. So it's right at the low end
16 of that.

17 Even at the very high doses the FDA
18 study found no evidence of serious adverse
19 effects. And when they were looking for
20 signals for addiction, whether there was -- the
21 opioid reward system in the brain were being
22 triggered and when asked did the subjects
23 indicate liking for the product, what was found
24 was at the bottom end of the threshold between
25 1 and 3 grams absolutely no evidence of liking

1 at all. Even at the extreme high end of the --
2 of the dosing, 8, 10, and 12 grams, vomiting
3 was the most common adverse effect, which is,
4 you know, a rather useful adverse effect in the
5 sense that it prevents further absorption of
6 the alkaloids. But if you look at the
7 right-hand side, you'll see there are only four
8 adverse events in the highest dose and two of
9 them were gastrointestinal and others were skin
10 or other disorders.

11 But -- so, yes, at the low end of it it
12 confirms what we've been talking about, no
13 adverse events and no evidence of any
14 addiction. So totally in keeping with what we
15 had found looking at the totality of available
16 evidence.

17 Q. So the FDA pilot study simply confirmed
18 what your studies and research had previously
19 confirmed?

20 A. Yes. And that is the nature of
21 consensus science. The more studies are
22 repeated and done with different subjects in
23 different ways, this is how we start to
24 establish evidence of what some might refer to
25 as truth. I would argue that truth is nearly

1 always subjective, but we are really
2 consistently seeing a pattern when less than
3 5 grams of dried leaf are consumed, there are
4 absolutely no potential of any adverse effects
5 whatsoever, no difference from placebo, and
6 there's no suggestion that there can be any
7 addictive potential at those low doses as well.
8 And Feel Free, as I indicated, is right at the
9 low end of the dosing that the FDA themselves
10 tested.

11 Q. Let's look at page 11 of your slide
12 packet. And if you could -- let's start off
13 with simply you explaining in a couple
14 sentences what this is intended to illustrate.

15 A. This is actually a summary slide that
16 I've developed from the very comprehensive risk
17 analysis that I've conducted that incidentally
18 is now being endorsed by some of the leading
19 kratom scientists in America, including
20 Dr. Oliver Grundmann from Florida University.

21 And essentially it relates to the risk
22 analysis of the Feel Free product. So you'll
23 see on the left if you look at MIT, which is
24 short for mitragynine, when you have about
25 20 milligrams per dose in two divided doses

1 more than six hours apart, there is zero risk.
2 There is no evidence of risk. That is now
3 confirmed also by the published FDA study.

4 The 7-OH in the natural leaf we just see
5 trace levels, and the risk threshold would have
6 to be, you know, greater than 1 milligram per
7 serving. In the -- in the Feel Free product
8 what we're seeing is 0.05 milligrams. So it is
9 truly a trace amount; and that's why, Your
10 Honor, given your earlier question, it would be
11 almost impossible to reach a threshold. People
12 would almost certainly vomit before they got
13 there.

14 We then got this new rearrangement
15 oxidation product mitragynine that's appeared
16 on the market and the pseudoindoxyl form
17 abbreviated to MPI here. If there is any
18 significant amount, and we're looking at levels
19 above ultra-trace levels. So this is in the
20 very low end of the limits of detection.
21 You'll see an asterisk right at the bottom
22 where I look at a common method of analysis
23 that's using high pressure liquid
24 chromatography with mass spectrometry that
25 shows that, you know, 0.01 to .1 parts per

1 billion is the limited detection.

2 So it is very easy to find pseudoindoxyl
3 within kratom, but only at this part per
4 billion level. What we're starting to see is
5 products that have milligram levels in it; and
6 that, we would argue, is a very significant
7 problem.

8 What we also show is that it does -- is
9 produced naturally. There is some evidence
10 that there are tiny microbes, fungi that exist
11 on the surface of the leaf that can create
12 these rearrangement oxidation products like the
13 pseudoindoxyl but they should only be at trace
14 levels. Now, I would argue that quality
15 control in a dietary supplement should be able
16 to determine if these products are there or
17 not.

18 And then, obviously, looking at the
19 total alkaloid profile that 2 and a half
20 percent on leaf, you can manipulate those
21 alkaloids, which is what companies have done
22 with respect to many different botanicals; but
23 because of the potential of concentrating them,
24 we would argue that if you keep the alkaloid
25 profile in the same profiles that's delivered

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1 in natural leaf, it will conform with the kind
2 of expectation of the toxicology associated
3 with the natural leaf. In other words, there
4 would be no problems whatsoever.

5 And, finally, on quality control, it is
6 really important to have full quality control
7 throughout the process from -- from harvest all
8 the way through to creation of the finished
9 product. And that would involve having
10 certificates of analysis, using validated
11 methods to measure mitragynine, 7-OH, and also
12 MPI, and any displeasure or any solvents
13 present. In the case of Feel Free, there are
14 no solvents used because it is simply ground
15 leaf to which water is added as well as the
16 cover extracts and then you would run a
17 contaminant screen to, you know, verify that
18 there are no heavy metals, no microbiological
19 contaminants in there as well.

20 That's what you don't get when you take
21 it out of a dietary supplement context and
22 simply bag up leaves, which is something that
23 we would be very concerned about.

24 Q. And we're going to skip ahead to Tab 13
25 of your materials; but if you simply sold

1 kratom as a leaf in a bag or something ground
2 up in a bag, are there --

3 THE COURT: Well, what he's saying is
4 that could have contaminants, it could have
5 that substance growing on the leaf and could be
6 more dangerous, as I understand what he's
7 saying.

8 MR. LITTLE: Okay.

9 THE WITNESS: Your Honor, that is right.
10 There would be no controls. The dietary
11 supplement, a lot of people will argue that
12 dietary supplements are unregulated. They are
13 most certainly regulated, and there is a
14 requirement to ensure quality control. And,
15 obviously, the scheduling of 7-OH, as the FDA
16 has now indicated, obviously, it still hasn't
17 been formally passed through DEA; but that
18 process is occurring at the moment is the start
19 of that process. But quality controls are
20 always associated with a responsible dietary
21 supplement manufacturer. They wouldn't be
22 required if it was just bagged up and sold with
23 a label on it.

24 We have seen that before with some other
25 products. It is always a concern. People will

1 slap labels on things saying not for human
2 consumption; and if you happen to be an opioid
3 addict, you would probably hunt out that kind
4 of product. You would have no labeling, no
5 indication what was in it, no testing, no batch
6 control, none of the requirements for proper
7 dietary supplement regulation.

8 Q. In your research have you seen kratom
9 used in any other context other than a food or
10 a dietary supplement?

11 A. No. I've only ever seen it used as a
12 food and a dietary supplement. I have visited
13 many vape stores and convenience stores in the
14 United States, and I have to say I am concerned
15 by what I see in many states. And that's
16 because there are many products that are on the
17 market that you could argue are -- have the
18 potential to be injurious for health and,
19 therefore, would not be compatible with the
20 Dietary Supplement Health and Education Act at
21 the federal level where they're required to be
22 safe.

23 Q. Let's fast forward to Tab 14, please.
24 And the heading is: Kava, a legal dietary
25 ingredient, may be added to kratom. What is,

1 again briefly, kava and how does that relate as
2 relates to the Feel Free product for example?

3 A. The reason why kava has -- has become a
4 concern is there was a period -- the whole
5 issue started in -- in Europe, particularly in
6 Germany, in 1998. So between 1998 and 2001
7 there was -- there were reports of kava
8 toxicity.

9 The long and short of it is that it led
10 in 2002 the German government to impose a ban,
11 and the FDA had similar concerns around kava.
12 There's now been extensive science around this
13 as well as the imposition of the courts; and
14 after the German ban in 2002 all the way
15 through to 2014 it was demonstrated that of the
16 26 cases that have been shown to occur
17 worldwide, probably only two were valid and
18 those two were based on, you know, people who
19 had concomitant recreational and/or
20 pharmaceutical drug use as well.

21 The issue for kava, why it rose its head
22 is that there started to be issues around
23 quality control where non-noble varieties were
24 being used, where the stems were being used,
25 that there was the presence of a particular

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1 alkaloid pipermethystine that was creating
2 problems. Again, it was a fantastic example
3 where the traditional use showed no problems;
4 but when, if you like, bad actors got involved
5 with kava and found that they could use
6 different varieties, use extraction techniques,
7 there was the potential for a problem.

8 And so in this particular instance what
9 Feel Free had done to ensure that they look at
10 all of that science, they use a profile of kava
11 from a noble variety that is -- conforms almost
12 exactly to the noble varieties that are
13 associated with traditional use in Polynesia;
14 and there is no evidence at all at the doses
15 that they're being used that it has any
16 untoward effect at all either on its own or
17 through its interaction with -- with kratom
18 alkaloids.

19 Q. So then looking at Slide 15 -- I think
20 you already answered the question, but your
21 slide is entitled, Kava and Feel Free does not
22 present a significant risk of harm or injury.
23 Could you very briefly explain to the Court
24 what data is populated on that schedule?

25 A. Yes. Yes. This, again, is a summary

1 slide that I produced from my extensive risk
2 analysis of the kava in Feel Free; and
3 basically what it's saying, when you look at
4 the overall combination of the kratom
5 mitragynine, the 7-OH, the kavalactones, and
6 the kind of profile that is within there that
7 the flavokavains you'll see, even though a
8 supercritical extract is used, they're present
9 in tiny, tiny amounts. So the significance
10 from a toxicological point is absolutely
11 negligible. The fact that they're even being
12 measured in my mind indicates a degree of great
13 responsibility.

14 There are many other kava sellers in the
15 United States market who do not do that level
16 of quality control. I believe this is one of
17 the most carefully controlled products on the
18 market in the United States.

19 MR. MEYER: Your Honor, I'd like to
20 object on relevance grounds. I'm not sure what
21 the kava testimony is really driving at here
22 with the ultimate issue in the case.

23 THE COURT: Well, I think it goes to the
24 injurious to the public because their product
25 has kava, I think, and some of their Feel Free

1 products have kava and the kratom. That's what
2 I think. So I'll consider it for what it's
3 worth.

4 THE WITNESS: You're right.

5 THE COURT: I'm going to overrule.

6 THE WITNESS: Your Honor, if I can just
7 say -- Your Honor, the interaction of different
8 botanical components may have a negative, a
9 neutral, or a positive effect on the
10 toxicology; and this is simply confirming that
11 through very detailed risk analysis it doesn't
12 have a negative impact.

13 BY MR. LITTLE:

14 Q. Let's look, if we could, at Tab 16. I
15 do not want to go through this in detail, but
16 this simply outlines the type of risk variables
17 that you've identified that -- in trying to
18 determine the safety of a particular product
19 and how it should be handled?

20 A. Exactly. So I think there is strong
21 reason, as we've already discussed, that there
22 can be problems with some forms of kratom. So
23 the idea of, for example, scheduling 7-OH and
24 now the pseudoindoxyl form makes total sense,
25 given that there aren't the drug-like

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1 qualities; and to use the nutmeg example, if it
2 turned out that people were supercritically
3 extracting nutmeg and using those alkaloids for
4 that purpose, the same should apply there. So
5 if you're then concentrating the products, they
6 should be regulated.

7 It is critical that drug-related claims
8 are not used and false claims are not used. If
9 the products are only regulated as food and
10 dietary supplements, those kind of claims are
11 illegal. So the FDA in the States would be
12 able to enforce on that.

13 Obviously products which didn't have
14 certificates of analysis or didn't have
15 accurate labeling would be able to be targeted
16 by enforcement authorities. Again, there are
17 regulations for food as well as dietary
18 supplements that prevent the addition of
19 contaminants and adulterants in solvent
20 residues over a specific threshold. So they
21 would be applicable; and, obviously, with any
22 dietary supplement or even foods you can
23 stipulate age controls. And, obviously, we've
24 seen that throughout the United States.
25 Generally kratom is not sold to anyone under

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1 21.

2 So on the right-hand side we're simply
3 here highlighting where FDA appears to be going
4 with -- with controls using the leaf-based
5 products only, using a traditional alkaloid
6 profile, making sure that there is disclosure
7 and testing of mitragynine 7-OH and the
8 pseudoindoxyl form stipulating serving sizes,
9 maximum daily doses, potentially even
10 stipulating the interval between dosing.
11 Because, again, if people take a daily dose all
12 in one go rather than divided doses, the
13 implications are different. Then including
14 warnings and also having full traceability and
15 then, you know, validated third-party
16 certificates of analysis.

17 Q. You used the word "adulterated." I
18 assume that has some scientific import. Would
19 you explain to the Court what that means?

20 A. Yes. So that is an addition of an
21 unlawful ingredient that is added. So -- and
22 it's usually done specifically to engender a
23 specific effect. So it becomes a noncompliant
24 product. Adulterants are not permitted in
25 dietary supplements.

1 Q. So I think you told us that the
2 introduction of kava would not be an
3 adulteration of the kratom leaf. What about
4 water? Does water cause some type of
5 adulteration to the kratom leaf?

6 A. No, it does not. Water is not an
7 adulterant. It is a food ingredient. So, no,
8 there is no issue about water or any lawful
9 additional ingredient being added; but the
10 issue that we just discussed where you have a
11 combination of different botanicals, it is
12 always important to look at herbal interactions
13 because some of these can be antagonistic. In
14 this case this isn't the case at the doses at
15 which they're being used.

16 Q. Now, Doctor, looking at the last --

17 THE COURT: On page 17, Doctor, are
18 these -- does this summarize all your opinions
19 and are all of your opinions within a
20 reasonable degree of scientific certainty and
21 probability within your field?

22 THE WITNESS: Absolutely, Your Honor.
23 We discussed many, many areas. I felt these
24 were some of the most important points to pull
25 out of the information that we've discussed in

1 relation to the Ohio rule and the 7-OH rule.

2 THE COURT: And I'll allow counsel to
3 summarize those quickly.

4 BY MR. LITTLE:

5 Q. And, sir, with respect to all your --
6 all the observations you've offered throughout
7 your testimony, would it likewise all been to a
8 reasonable degree of scientific certainty that
9 you've offered those comments?

10 A. Yes. A high degree of scientific
11 certainty that is now supported by a large
12 number of clinical trials including 18
13 specifically on kratom, including the FDA's own
14 ascending dose study.

15 MR. LITTLE: And, Your Honor, is there
16 an objection to this exhibit? If there is, I
17 won't have him read these.

18 THE COURT: Yeah. Is there any
19 objection?

20 MR. MEYER: No objection, Your Honor.

21 THE COURT: All right. So I'll admit
22 Exhibit 4 and all its contents. And page 17,
23 as I understand it, are his opinions and
24 conclusions that he's already testified to and
25 the Court will accept it as such.

1 MR. LITTLE: Doctor, by doing that it's
2 not necessary for you to explain it in any
3 greater detail. So I'm going to turn the
4 examination over to counsel for the State.

5 Thank you for making yourself available
6 today.

7 THE COURT: Thank you.

8 Cross-examination.

9 MR. MEYER: Point of order, Your Honor.
10 It is the lunch hour. I don't know what the
11 Court's preference is as far as continuing with
12 the examination or if a break is necessary.

13 THE COURT: How long do you think your
14 cross might last? I mean, I work through
15 lunch; but, obviously, we're not going to work
16 all day and not have lunch I guess.

17 MR. MEYER: I'd envision a half an hour.

18 THE COURT: Let's go ahead and do the
19 cross-examination and then we'll break.

20 MR. MEYER: Thank you, Your Honor.

21 THE COURT: Thank you.

22 And redirect will be very brief, I'm
23 sure.

24 MR. LITTLE: Sure.

25 THE COURT: And I think it's 5:00 in

1 England, so he's probably going to get hungry
2 here in a half hour or so also.

3 - - -

4 CROSS-EXAMINATION

5 BY MR. MEYER:

6 Q. Good afternoon, sir.

7 A. Good afternoon.

8 Q. My name is Matthew Meyer. I represent
9 the Ohio Board of Pharmacy. I'm an Assistant
10 Ohio Attorney General.

11 I'm going to ask you some questions; and
12 if any of the questions I ask are unclear, just
13 let me know and I'll do my best to explain
14 them. Is that all right?

15 A. Thank you, Mr. Meyer.

16 Q. Okay. I gather from your accent and
17 your location that you are a citizen of the
18 United Kingdom?

19 A. No. I'm actually a citizen of the
20 Netherlands; but I've spent many years in the
21 United Kingdom, based in the United Kingdom.

22 Q. I see. Okay. So you have been in the
23 United Kingdom how long?

24 A. Sorry. I missed the question. I've
25 been --

1 Q. How long have you lived in the United
2 Kingdom, sir?

3 A. Oh, I lived in the United Kingdom -- I
4 was educated here -- since 1968. I then had a
5 period when I lived in Australia, and I
6 returned to Imperial College London in 1994.
7 And I've been based there, but I've -- I do
8 spend a very significant amount of my time in
9 the United States as I run the Alliance for
10 Natural Health USA in the United States as
11 well.

12 Q. Okay. And we'll get back to that.

13 Now, sir, you've talked about public
14 safety and risk to the public, and I gather
15 from your testimony that those are things that
16 you care about.

17 A. Absolutely.

18 Q. And I think, if I understand your
19 testimony, you have described the process of
20 regulation and that's a process that you
21 believe in; is that right?

22 A. Absolutely. I think it is essential
23 that products are regulated in order to ensure
24 safety.

25 Q. And it's the regulators whose job it is

1 to ensure that the public is not harmed by
2 unsafe food products?

3 MR. LITTLE: Objection. Calls for a
4 legal conclusion.

5 THE COURT: Overruled.

6 You may answer.

7 BY MR. MEYER:

8 Q. Sir?

9 A. Yes. I think the regulation has two
10 sides. One is in terms of restricting harm --

11 Q. It's a yes --

12 A. -- and the other is facilitating choice.

13 Q. It's a yes-or-no question.

14 Just as a general matter, you believe in
15 regulation, correct?

16 A. Yes, yes. Absolutely.

17 Q. Thank you.

18 And the country where you are physically
19 located right now, that country bans kratom,
20 United Kingdom or Great Britain, right?

21 A. It does. It does.

22 Q. Okay. And that's under the Psychoactive
23 Substances Act of 2016?

24 A. Correct.

25 Q. Okay.

1 A. Because it doesn't recognize the dose
2 relationship.

3 Q. Okay. Are you a kratom user?

4 A. I'm actually not a kratom user.

5 Q. Okay. So you're not taking it right
6 now, are you?

7 A. I'm not.

8 THE COURT: He said he doesn't use it.

9 BY MR. MEYER:

10 Q. Okay. And in the United Kingdom it
11 would be illegal to sell it, wouldn't it?

12 A. It would.

13 Q. And you said you lived in Australia.
14 Australia also treats it as a scheduled
15 narcotic, doesn't it?

16 A. Correct, yeah.

17 Q. Also Malaysia?

18 A. Yes.

19 Q. Bulgaria?

20 A. But not Thailand.

21 Q. Bulgaria?

22 A. Yes. There are many countries who have
23 not permitted the use of kratom, and I think
24 that one of the reasons is that it is very
25 early in people's understanding of the complex

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1 toxicology of kratom.

2 Q. Right. So countries like even France
3 since 2020 ban it as a psychotropic substance,
4 don't they?

5 A. Yes.

6 Q. Italy, can't go to Italy and use it
7 there, can I?

8 A. It is -- it's banned in Europe, yes, for
9 sure.

10 Q. Sweden, Denmark, Germany, all those
11 places?

12 A. Yeah. There is a centralized European
13 medicine agency has issued a view on it, and
14 that is one of the reasons that EU member
15 states have followed suit with those non --
16 essentially they see it as a psychoactive
17 substance and don't recognize its lower dose
18 usage and its traditional usage.

19 Q. Okay. Now, if I understand your
20 testimony, you would agree with me, would you
21 not, sir, that kratom products can present
22 toxicity, dependence, withdrawal, and
23 interaction risk particularly in circumstances
24 of abuse, chronic high dose exposure,
25 adulteration, polysubstance use or elevated

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1 exposure to the compounds that kratom contains;
2 is that right?

3 THE COURT: Hold on.

4 MR. LITTLE: Objection. Compound.

5 THE COURT: No. I think the question is
6 understandable.

7 BY MR. MEYER:

8 Q. Did you understand my question, sir?

9 A. I understood the question very well. I
10 agree it has the potential to do that.

11 Q. In fact, are those words that you have
12 written, sir?

13 A. I believe they may be words that I've
14 written. I certainly agree with them.

15 Q. And kratom products can be addictive,
16 can cause withdrawal upon cessation, can lead
17 to overdose or death, and the kratom negatively
18 affects liver function, did you write those
19 words, sir?

20 A. They sound like my words. I've
21 extensively studied the NIH liver tox database,
22 and there are multiple references pointing to
23 those issues of hepatotoxicity at the high end
24 of consumption.

25 Q. Okay.

1 A. That is why the FDA ascending dose study
2 is so important.

3 Q. And you stand by those words that you
4 wrote?

5 A. Yes.

6 Q. Okay. So I think we can agree, then,
7 that kratom is a potentially dangerous product.
8 Do we agree on that?

9 A. We agree. Most foods are potentially
10 dangerous, most botanicals are potentially
11 dangerous products --

12 Q. So is a --

13 A. -- hence the need --

14 THE COURT: Okay. One at a time.
15 Finish the question.

16 BY MR. MEYER:

17 Q. Is a Fig Newton psychoactive?

18 MR. LITTLE: Excuse me. I'm not sure
19 the witness finished his answer before counsel
20 interrupted him with his question.

21 THE COURT: Well, go ahead and finish
22 your answer. As I understand your answer,
23 you're saying that a lot of botanicals are
24 potentially dangerous. Then we're going to
25 move on to the Fig Newton example that's not, I

1 assume. But if you want to finish your answer
2 about the botanicals, go ahead.

3 THE WITNESS: Thank you. Thank you,
4 Your Honor.

5 There are many botanicals that have
6 toxicity issues at high concentrations.
7 There's 114 that are currently being looked at
8 by the European medicine's agency for exactly
9 that reason.

10 The second question related to do I
11 think that kratom is psychoactive. I would say
12 not at low dose and it is at a high dose. That
13 is that bimodal dose response that we discussed
14 with -- discussed earlier.

15 BY MR. MEYER:

16 Q. All right. Now, you used a word in your
17 earlier testimony; and I want to make sure I
18 understand it. "Deconcoction," do you remember
19 using that word?

20 A. "Decoction" is the word, yes.

21 Q. Sorry.

22 Okay. What do you mean when you say
23 that word, sir?

24 A. As I explained, a decoction is a
25 pulverized, ground, or leaf form that is placed

1 in hot water and then simmered or boiled as
2 distinct from a tea in which hot water is
3 poured and it is only steeped. So it is a way
4 of extracting water soluble elements out of the
5 leaves into the brew that then is formed. It's
6 a classical system used in many traditional
7 cultures. It's very well used in the Ayurveda
8 culture of the Indian continent.

9 Q. Okay.

10 A. Those are also used all through
11 Southeast Asia and for many botanicals.

12 Q. Well, I want to talk about the Feel Free
13 product that you were, I guess, advocating for.
14 Is that decoction process used for the Feel
15 Free product?

16 A. No, it isn't. It is purely a pulverized
17 leaf, a ground leaf -- that is stipulated
18 clearly on the label -- and to which water is
19 added. And one of the reasons we had the
20 discussion about kava is that there is a kava
21 extract added to the Feel Free classic product
22 as well.

23 Q. Okay. If I understood your testimony
24 about the kava, you're saying that different
25 ingredients can interact with the compounds in

1 the kratom to cause different effects; is that
2 right?

3 A. Yes. And it's very important to
4 understand the mode of action of those
5 compounds, how they work in the body. And one
6 of the points that I stressed is they work --
7 it's a bit like looking at the combination of
8 ibuprofen with aspirin, for example. They have
9 different modes of action so they can be taken
10 together.

11 So these -- the kava components, the
12 kavalactones in particular, none of the kava
13 compounds are opioid agonists, so they do not
14 create an additive or synergistic effect.

15 Q. And, sir, I think, if I understood your
16 testimony, you believe that rigorous scientific
17 study is necessary to understand which
18 ingredients can interact with vegetative
19 kratom?

20 A. As always, it's a very long process.
21 Research has been ongoing for decades and --
22 and work on herbal interactions is ongoing.

23 Q. Okay. And I think, if I understood your
24 testimony, you believe that the regulators
25 should consider those interactions and how they

1 might affect a food product that you're
2 suggesting is safe, right?

3 A. Yes. I believe it's also the
4 manufacturer's responsibility given they have a
5 requirement to sell safe food or dietary
6 supplement products.

7 Q. Right. And I -- I think I understood
8 this from your testimony earlier, but has the
9 FDA, yes or no -- it's a yes-or-no question --
10 certified vegetative kratom as a safe food
11 product for ingredients in the United States?

12 A. I believe it has in its July 29
13 announcement. It says it has no concern over
14 leaf kratom.

15 Q. Okay. Leaf kratom as an ingredient in
16 food, sir, that's my question. Has it
17 certified leaf kratom as an ingredient in food
18 in the United States? That's a yes-or-no
19 question.

20 A. Correct. Yes.

21 Q. Okay. And what, again, do you point to?

22 A. The announcement that was made on
23 July 29 by Secretary Kennedy and the then
24 commissioner of the FDA Dr. Makary.

25 Q. Okay. So your testimony is the federal

1 government has endorsed kratom as a food
2 product?

3 A. As a food product bearing in mind that a
4 dietary supplement is regarded as a category of
5 food.

6 MR. MEYER: May I have a moment, Your
7 Honor?

8 THE COURT: Sure.

9 BY MR. MEYER:

10 Q. We'll come back to that, sir; but I want
11 to cover a different topic with you. You've
12 talked about vegetative kratom, and I think
13 you've talked about it in general terms. Is
14 all vegetative kratom the same?

15 A. Can I just clarify that the term that is
16 used is vegetation form of kratom, and
17 vegetation form has a very specific botanical
18 meaning in relation to regulation. And it
19 relates specifically to the unprocessed plant
20 part, in this case the leaf when it is either
21 whole leaf or it is ground or pulverized in
22 some form. It has not been subjected to any
23 additional form of processing such as
24 extraction.

25 Q. Okay. So kratom -- the kratom plant is

1 a tree, right?

2 A. It's -- it's a bush more than a tree.

3 Q. Okay. And so are we talking about the
4 leaves, the stems, the stalks? What are we
5 talking about?

6 A. It's -- we're talking about leaf kratom.
7 The announcement on July 29 and all of the 18
8 clinical trials and the other evidence I
9 discussed, including in relation to the plant
10 part used by -- by Botanic Tonics in Feel Free
11 relates to the leaf only.

12 Q. Okay. And so kratom is grown in
13 Southeast Asia; is that right?

14 A. Correct.

15 Q. And are all kratom plants the same?

16 A. Like any plant, there are slight
17 variations in the alkaloids depending on
18 exactly where it's grown, what soil type, what
19 temperature profile it's undergone, which is
20 one of the reasons that, just as the components
21 in the broccoli that you might have for dinner
22 vary plant to plant, kratom does as well.

23 Q. Okay.

24 A. That is one of the key reasons for
25 measuring the bioactive constituents within it,

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1 which is why I believe they should be labeled.

2 Q. So just like with, for instance, the
3 marijuana plant, cannabis, you can have
4 different strains of or potency of THC in
5 different strains of the plant, can't you?

6 A. Including no THC, yes, or very low
7 levels.

8 Q. Right. So different kratom bushes will
9 have different amounts of the psychoactive
10 compound depending on where it's grown, how
11 it's grown, what the particular strain of the
12 plant is, for instance?

13 A. Exactly. Which is why it's so important
14 that -- however, the variation is relatively
15 small compared with some plants. Kava is an
16 example where the variation can be massive,
17 very, very significant, which is why the
18 traditional use was restricted to noble plants;
19 but there is some variation between different
20 kratom plants, which is why it's critically
21 important to -- in my view to measure the key
22 bioactive alkaloids within it.

23 Q. So I guess for those folks who are
24 familiar with this world, a strain of Acapulco
25 Gold marijuana or Panama Red is going to be

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1 different than some sort of ditch weed. Kratom
2 is the same?

3 A. Much smaller levels of variation; but,
4 yes, there are different types of kratom that
5 have different alkaloid profiles. And as I
6 said, that is one of the important reasons why
7 before being delivered to the public from a
8 safety and toxicological point of view I would
9 argue that those levels should be measured and
10 in my mind responsible operators do do that.
11 They batch measure every batch for those
12 alkaloids. Some of the less responsible
13 operators do not do that.

14 Q. Okay. So I gather then that you've been
15 to Springfield, Ohio, and visited Krazy Daze,
16 then?

17 A. Sorry. I'm -- you just broke up at that
18 point. Could you just repeat the question,
19 please.

20 Q. Yes. Do I understand that you've been
21 to Springfield, Ohio, and visited Krazy Daze,
22 the client that you're testifying on behalf of
23 here today?

24 A. No, no, I haven't. And I -- I have not
25 worked for Krazy Daze. I've been a consultant

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1 to Botanic Tonics that produce the Feel Free
2 product --

3 Q. Okay.

4 A. -- which is why my conclusion slide
5 related to Feel Free and not to Krazy Daze.

6 Q. Okay. So you don't actually know then
7 which products that Krazy Daze even wants to
8 sell, do you?

9 A. No. I'm not familiar with Krazy Daze.
10 I'm deeply familiar with Feel Free.

11 Q. Are you even familiar with the position
12 that they're advocating for before the Court
13 and what they're actually asking the Court to
14 do? Do you know that, sir?

15 A. Not the detail. I've read the contra
16 motion that -- that your board submitted, but I
17 haven't -- and I've seen reference to their
18 positions in it, but I have no direct knowledge
19 of exactly what they're asking the Court to do.

20 Q. All right. So, given your I think
21 previous testimony on the need for rigorous
22 standards, rigorous scientific study and
23 regulation is designed to ensure public safety,
24 you would not, sir, advocate for a rule that
25 allows any product to be sold in any manner

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1 with any vegetative kratom, would you?

2 MR. LITTLE: Objection. Outside the
3 scope.

4 THE WITNESS: I would --

5 THE COURT: Hold on.

6 Overruled. I'll consider it for the
7 weight to be given it.

8 THE WITNESS: I would absolutely agree
9 that the vegetation form should be permitted to
10 be sold on the condition that the levels of
11 alkaloids, mitragynine, and -- you know, was
12 not at an extreme level. I think at the moment
13 the view is that it would be unlikely to be at
14 a high level if it was in the vegetation form.

15 And, obviously, if there were
16 significant levels of 7-OH in it, particularly
17 if they were added as adulterants, I would have
18 significant concerns over that.

19 Q. So you're not -- forgive me. You're not
20 from this country, but you're not advocating
21 for a Wild West approach, are you?

22 MR. LITTLE: Objection.

23 THE WITNESS: Quite to the contrary.

24 THE COURT: I sustain that objection.

25 And I will point out -- and there's been

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1 some effective cross-examination here, but I
2 will point out under your rule it doesn't
3 matter what variation of the plant is if
4 it's -- you know, if it's leafy form or it's
5 ground up, you're not -- you're allowing it and
6 not testing it for the levels.

7 But go ahead.

8 I'm going to sustain that objection.

9 MR. MEYER: Very good, Your Honor.

10 BY MR. MEYER:

11 Q. Sir, could I refer you to one of the
12 tabs in the exhibits that your counsel has
13 submitted to the Court if you have them there.
14 I believe that it's 4A, page 11.

15 THE COURT: Looks like it says, Dose
16 alkaloid profile. Is that the page?

17 MR. MEYER: Yes, Your Honor. Thank you.

18 THE COURT: Okay.

19 BY MR. MEYER:

20 Q. Let me know when you're there, sir.

21 A. I'm there. Thank you.

22 Q. Okay. Now, I see a box at the bottom of
23 that page. Could you read the words in the box
24 for me, please.

25 A. Yes. High levels of mitragynine greater

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1 than 40 milligrams per day, higher than trace
2 levels of 7-OH greater than 1 milligram per day
3 or ultra-trace levels of the pseudoindoxyl form
4 MPI that is significantly above the limits of
5 detection, do not reflect natural leaf-based
6 products and should be treated adulteration
7 signals.

8 Q. Okay. So if I understand your
9 testimony, you've advocated for a product that
10 in each dose has 20 milligrams; is that right?

11 A. Correct. Twenty milligrams of
12 mitragynine.

13 Q. And you -- you say high levels would be
14 no more than -- or more than 40 milligrams,
15 right?

16 A. The -- that is -- that is with a twofold
17 safety factor. So, actually, the threshold
18 that we have found from extensive risk analysis
19 for the most sensitive people would be in the
20 order of about 18 milligrams. So that level of
21 40 milligrams per day has already got a twofold
22 uncertainty factor; which is a normal caution
23 that is applied when there is uncertainty in
24 the data. And with most risk assessments,
25 there is a degree of uncertainty.

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1 Q. Okay. And so, then, if I had more than
2 two doses of your tonic or whatever you're
3 calling it, then I would be at an unsafe level;
4 is that what I understand?

5 A. No. No. You would not be at -- you'd
6 have to have four within a very short time
7 period to put yourself above -- you got to
8 remember that the -- the safe threshold has a
9 big margin of safety built into it. So you
10 wouldn't be as at an unsafe level, but you have
11 to recognize that there's always a potential
12 for some abuse, which is why the directions on
13 the labeling is so critical.

14 Q. Okay. And the product you're advocating
15 for has a label; is that right?

16 A. Correct. It has a very detailed label
17 including the levels of 7-OH that are at very,
18 very low trace amounts.

19 Q. And your testimony is that responsible
20 operators and manufacturers should be
21 responsible for this?

22 A. They -- they absolutely should; and they
23 should have certificates of analysis, full
24 traceability from the origin of the product all
25 the way through to the production of the

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1 finished product. And they should be doing
2 batch testing to ensure that they know exactly
3 what the level of alkaloids and any potential
4 contaminants are in there.

5 Q. Are you familiar with the fact that in
6 March of this year the maker of the Feel Free
7 product, the tonic or whatever we're calling
8 it, paid \$8.75 million in a class action
9 settlement for mislabeling their product?

10 A. I'm not aware of the absolute detail of
11 that. No, I'm not.

12 Q. Okay. Would that be helpful to know
13 about?

14 MR. LITTLE: Objection. Speculation.

15 THE COURT: The Court will note the
16 following: I don't know if that was a court
17 judgment or whether it was a settlement.

18 MR. MEYER: It's a settlement, Your
19 Honor.

20 THE COURT: All right. And so
21 settlements can have lots of reasons; but if he
22 knows, I'll let him answer. He said he wasn't
23 familiar with it.

24 You would be concerned, though, Doctor,
25 would you not, if in fact -- and, again, we

1 know cases settle because of lawyer fees, and
2 God knows they're being run up here today. So
3 cases settle for reasons other than mislabeling
4 as a substantive issue, but you would be
5 concerned if there was mislabeling on a
6 product, correct, of Feel Free?

7 THE WITNESS: I would definitely be
8 concerned. I would be concerned if there was
9 genuine mislabeling.

10 All of the dealings I've had with
11 Botanic Tonics suggest an extreme attention to
12 detail when it comes to quality control as
13 well --

14 MR. MEYER: Okay.

15 THE WITNESS: -- as accuracy in
16 labeling.

17 BY MR. MEYER:

18 Q. You would agree with me that the
19 regulators are in the best position, would you
20 not, to decide what a label should have and how
21 to best protect the public, not you, or an
22 individual manufacturer?

23 MR. LITTLE: Objection. Form and
24 compound. I mean, I'm not sure what he's
25 asking at this point and what the basis he's --

1 THE COURT: Rephrase the question,
2 please.

3 BY MR. MEYER:

4 Q. Yeah, I'll ask a better question, sir.

5 You would agree with me, sir, that the
6 regulator's in the best position to decide what
7 detail is on the label to protect public
8 safety, wouldn't you?

9 MR. LITTLE: Objection. I don't know
10 what best is, Your Honor.

11 THE COURT: Overruled.

12 THE WITNESS: I wouldn't agree with that
13 in the event that the regulator is not expert
14 in that specific botanical field. There are,
15 obviously, hundreds of botanicals in the U.S.
16 market. This is a relatively new botanical to
17 many regulators, and we have seen evidence of
18 consistent misunderstanding of this complex
19 dose-response relationship.

20 The principle of -- of labeling that is
21 set out safe-for-dietary supplements under the
22 Dietary Supplement Health and Education Act and
23 under labeling law, obviously, we believe is
24 very important as a means of protecting
25 consumers and ensuring that they know what

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1 they're buying and also ensuring that the
2 manufacturers are forced to maintain quality
3 controls so that their products meet the
4 stipulations on their own labels.

5 Q. Okay. Who sets those standards? Do
6 you?

7 A. Absolutely not, no. The -- the history
8 of dietary supplements relates to essentially
9 understanding what the bioactive components are
10 in, are present.

11 Q. My question --

12 THE COURT: Hold on. Stop.

13 BY MR. MEYER:

14 Q. Who sets the standards --

15 THE COURT: I get his answer. His
16 answer is, listen, somebody like him he thinks
17 may have more expertise with this particular
18 botanical than a regulator that's trying to
19 regulate 50 botanicals; and we don't know that.
20 There could be an expert that's on the
21 regulatory commission. I get his answer, but
22 the law says, hey, it's the regulatory
23 commission that makes these decisions, not
24 experts.

25 MR. MEYER: Very good. Very good, Your

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1 Honor. I will move on.

2 BY MR. MEYER:

3 Q. Now, sir, I want to come back to a topic
4 we touched on earlier; and that was the FDA.
5 Are you familiar with the concept of generally
6 recognized as safe or GRAS?

7 A. I'm very familiar with that, yes.

8 Q. Okay.

9 A. Yes.

10 Q. Has the FDA recognized kratom,
11 vegetative kratom, generally recognized as
12 safe, have they issued that determination?

13 A. No, they haven't --

14 Q. Okay.

15 A. -- because it's a botanical ingredient.

16 Q. Very good, sir. Thank you.

17 MR. MEYER: May I have a moment, Your
18 Honor.

19 THE COURT: Sure. And I'm going to ask
20 a question while you take a moment just so I
21 want to make sure I understand everything.

22 So with regard to the Feel Free bottle
23 tonic, it's my understanding that very low
24 trace levels of 7-OH but there's 20 milligrams
25 per bottle of MIT; is that right?

1 THE WITNESS: Twenty milligrams per
2 dose, 40 milligrams per bottle. So 2 doses per
3 day, a maximum of 2 servings per day,
4 20 milligrams in each dose.

5 THE COURT: So two servings are in one
6 bottle, or one bottle is one serving?

7 THE WITNESS: No. Two servings are in
8 one bottle.

9 THE COURT: Okay. And one bottle you
10 consider safe and anything greater than 40 you
11 say is a very low threshold level and 80 is
12 more realistic, 40 would be for people maybe
13 particularly sensitive, as I understand it?

14 THE WITNESS: No. It would be 80 would
15 be for people who are particularly sensitive.
16 So this would be the lowest observable adverse
17 effect level would be at 80 for the most
18 sensitive individuals.

19 THE COURT: Okay.

20 THE WITNESS: So we built in safety
21 factors to get down to 20, and there are
22 operators out there who are selling products
23 with more than 100 milligrams of mitragynine in
24 them --

25 THE COURT: Okay. Thank you.

1 THE WITNESS: -- for single doses.

2 THE COURT: That clears that up for me.

3 Thank you.

4 BY MR. MEYER:

5 Q. Doctor, you agree with me, do you not,
6 that -- pardon my pronunciation -- mitragynine;
7 is that right?

8 A. Mitragynine.

9 Q. Mitragynine. Sorry. It's an addictive
10 substance. You agree with me, right?

11 A. In the same way that nutmeg is. It is
12 only addictive over a certain dose threshold.
13 It is the law of paracelsus in toxicology.

14 Q. Okay. So if I put it in my pumpkin pie,
15 am I going to be addicted to the pumpkin pie?

16 A. Depends how much you put in. If you put
17 it in the vegetation form, almost certainly
18 not. You would make it -- you'd have to
19 concentrate it to get enough to trigger the
20 opioid receptors in your brain.

21 Q. Okay. And the -- the regulator, though,
22 is the one that decides how much of a substance
23 is safe when you're talking about addiction,
24 right?

25 A. Correct.

1 Q. And the FDA has not decided that here,
2 have they?

3 A. They've yet to decide it, but they have
4 made a decision on the scheduling --

5 Q. Thank you.

6 THE COURT: They haven't said it's
7 unsafe either; is that right? I mean, that's
8 what I'm assuming, so --

9 MR. LITTLE: That's going to save your
10 redirect, Your Honor.

11 THE COURT: Okay. I got you. Good
12 point.

13 THE WITNESS: If I can argue just on
14 that point, what -- what --

15 THE COURT: Well, you'll be asked on
16 redirect.

17 MR. MEYER: I'll object as nonresponsive
18 at this point.

19 THE COURT: Let's stop. He's going to
20 answer on redirect. Let him answer.

21 Go ahead. You can elaborate on that
22 point.

23 MR. MEYER: Okay.

24 THE COURT: Hold on. Let him elaborate.

25 You wanted to elaborate, Doctor?

1 THE WITNESS: I was just going to say
2 that on the 29th of July what the FDA
3 specifically indicated is they said they don't
4 have concern over leaf kratom.

5 MR. MEYER: Okay.

6 THE WITNESS: And that is supported by
7 the -- the arguments that I've given in my
8 testimony.

9 BY MR. MEYER:

10 Q. As a food ingredient they said that?

11 A. As a food ingredient, which includes as
12 a dietary supplement ingredient because a
13 dietary supplement is a category of food.

14 Q. Okay. That's your testimony?

15 Sir? You're under oath, sir. Could you
16 answer.

17 MR. LITTLE: He did.

18 THE WITNESS: So yes, yes.

19 BY MR. MEYER:

20 Q. Okay. Now, you've also talked about
21 mitragynine as a substance that could lead to
22 overdose or death, right?

23 A. Yes.

24 Q. Okay. Who decides how much of a product
25 is acceptable when you're -- when you're

1 talking about the possibility of overdose or
2 death? Do you?

3 THE COURT: Well, the regulatory agency
4 does. We've covered that.

5 MR. MEYER: Okay. One moment, Your
6 Honor.

7 THE COURT: Sure.

8 THE WITNESS: Would you like me to
9 answer that?

10 THE COURT: No.

11 THE WITNESS: That is a decision they
12 regulate that's based on a huge body of
13 science.

14 MR. MEYER: Objection, Your Honor.

15 THE COURT: Yeah, that's okay. You'll
16 be asked some things on redirect, so just hold
17 on, Doctor. Thank you.

18 MR. MEYER: All right.

19 THE WITNESS: No problem.

20 BY MR. MEYER:

21 Q. Now, sir, you described a little earlier
22 who you were working for. Could you elaborate
23 a little bit more for me who exactly you're
24 working for in this case.

25 A. The company is called Botanic Tonics,

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1 and they have a product called Feel Free. And
2 I have done extensive risk analysis for them,
3 which have been referenced in some of the
4 references, the citations I've given at the
5 back of my written testimony in the slide deck.

6 Q. Okay. So Botanic Tonics is paying your
7 bills here?

8 A. They are paying my bills, indeed.

9 Q. And how much are they paying you to say
10 these things?

11 MR. LITTLE: Objection.

12 THE COURT: I'm going to sustain that.

13 You're being paid for your time. How
14 much are you being paid for your time, Doctor?

15 THE WITNESS: \$650 an hour.

16 BY MR. MEYER:

17 Q. Okay. How many hours?

18 A. I -- I would have to consult a time
19 sheet. I think specifically in relation to
20 this Ohio case there is about 12 hours of time.

21 Q. Okay. In the other cases that you've
22 worked on for Botanic Tonics, give me a sense
23 of how many hours you've worked on there.

24 A. The risk analysis I think was in the
25 order of -- it may have been about 18 hours

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1 from a guess. I'd have to consult time sheets
2 looking back to '24 and '25 for that.

3 Q. So your testimony is that in total
4 Botanic Tonics has compensated you for roughly
5 30 hours of work? Is that your testimony?

6 A. It would be approximately that.

7 Q. So doing the math, how many dollars
8 total?

9 THE COURT: It's about twenty grand.

10 THE WITNESS: That would be about right.

11 BY MR. MEYER:

12 Q. Twenty grand. So that's the total that
13 you've made?

14 A. I would say it's the total I've earned.
15 I believe my rate is not as high as some
16 scientific consultants; but, yes, I believe we
17 all get paid for the work we do.

18 Q. Yes, sir, indeed.

19 MR. MEYER: All right. One moment, Your
20 Honor.

21 THE COURT: Sure.

22 MR. MEYER: Very good, Your Honor.

23 Thank you.

24 THE COURT: Thank you very much.

25 Redirect. Let's not replot ground.

1 MR. LITTLE: I don't think it's going to
2 be necessary, Your Honor.

3 THE COURT: All right.

4 - - -

5 REDIRECT EXAMINATION

6 BY MR. LITTLE:

7 Q. Very briefly, Doctor, you were asked a
8 few questions about words you wrote but you
9 weren't asked where you wrote them and in what
10 context. So -- and those words that were
11 quoted for you about certain things being
12 dangerous, could you just provide the Court
13 some background of what you've written on that
14 would have provided any type of statements in
15 that regard and in what context so that we
16 don't have some misleading statement on the
17 record?

18 MR. MEYER: Actually, Your Honor. One
19 moment. Is there -- are there any witnesses
20 present in the room today?

21 Yeah, we got a violation of the
22 separation of witnesses.

23 THE COURT: Is he a party or company
24 rep?

25 MR. LITTLE: He's a client rep.

1 MR. MEYER: All right. Very good.

2 THE COURT: Okay.

3 BY MR. LITTLE:

4 Q. Doctor, can you go ahead and answer the
5 question, please.

6 A. Yes. I believe those reports were taken
7 from the very detailed risk analysis that I
8 conducted in evaluating historical use and the
9 totality of available evidence. We inevitably
10 do encounter evidence that stems from what
11 happens when people abuse products and consume
12 vast amounts of them.

13 I mentioned also the NIH liver tox
14 database that I studied in great detail that is
15 the U.S. government's primary source for data
16 on liver toxins, which is -- many of these
17 botanicals affect the liver because that's
18 where they are detoxified. So those statements
19 I believe were taken from my risk analysis that
20 when dissected down, you know, the -- the
21 detailed risk analysis of what happens when you
22 take different levels and that's how we
23 establish that -- the lower levels that are now
24 entirely consistent.

25 It is interesting that at the time that

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1 I did the risk analysis the single ascending
2 dose study from the FDA was not released, and
3 it is comforting to see from a scientific
4 standpoint that now the FDA's own study aligns
5 with my own risk analysis and my own risk
6 analysis has also been supported by one of the
7 foremost kratom scientists in the United
8 States, Dr. Oliver Grundmann, who's agreed with
9 it as well.

10 It takes into account -- because I do a
11 lot of this kind of risk analysis in Europe
12 that has a very precautionary approach. I've
13 chosen to include a precautionary approach,
14 which is why I've ended up with a level of
15 40 milligrams of mitragynine as a safe
16 threshold with uncertainty factors included.

17 Q. And so then with the words that you've
18 expressed, that was in the context of
19 assessing, I think what you told us earlier,
20 that dosage is telling as it relates to
21 associated risk?

22 A. One hundred percent. It is entirely
23 dose dependent. So this is a classic situation
24 where the principle of paracelsus is extremely
25 important to recognize.

1 Q. You were asked a couple questions
2 regarding the variations of kratom plants. Can
3 you give us a sense that -- and I think you've
4 suggested this a little bit, but the variation
5 that exists from plant to plant, how do -- what
6 is the material impact as it relates to the
7 toxicity of that particular plant once it is
8 ground or pulverized?

9 A. The -- yes. Well, whether it's
10 pulverized, those alkaloids remain relatively
11 intact if they're not exposed to heat; and
12 different plants will deliver slight
13 differences in the alkaloid profile. There are
14 over 40 different alkaloids present of which
15 mitragynine and 7-OH are the most widely
16 studied.

17 And essentially as long as -- because
18 mitragynine is the dominant alkaloid, it will
19 make up often well over 60 percent of the total
20 alkaloid content. That is the key player; and
21 that is all of the university research groups,
22 the publications that are associated with --
23 with kratom would suggest that the critical
24 thing to know is the mitragynine content
25 because the levels of all the other alkaloids

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1 are much lower and it is the mitragynine and
2 the 7-OH that have the prime role as opioid
3 receptor agonists.

4 Q. And if you do not synthesize or use some
5 type of extraction process, irrespective of the
6 plant, can you tell the Court whether there's
7 any type of risk associated that you've
8 identified?

9 A. No. There is no additional risk. The
10 problem occurs when you start to concentrate or
11 biosynthesize and then add -- I would argue
12 that those become adulterants -- and add those
13 to products, and in my view there are many
14 adulterated kratom products that contain these
15 additional ingredients in addition to the
16 vegetation or leaf form of kratom that are on
17 the U.S. market at present.

18 Q. And is that why you said that the
19 labeling is so essential?

20 A. Absolutely.

21 MR. LITTLE: Your Honor, that's all the
22 questions I have. Thank you.

23 THE COURT: All right.

24 Yeah, I allow it even though, you
25 know -- I allow it, but then that opens it up

1 for him then. So let's keep it on what was
2 asked over here on redirect, if you could.

3 - - -

4 RECROSS-EXAMINATION

5 BY MR. MEYER:

6 Q. So help me understand, sir, then what
7 standards are in place to ensure that the
8 kratom product is processed in a way that you
9 believe is safe. What standards exist in Ohio?

10 MR. LITTLE: Objection. I didn't talk
11 about processing.

12 THE COURT: Overruled. I'll see if he
13 can answer.

14 THE WITNESS: I would argue that the --
15 given the vegetation form is the only form that
16 is to be used, there is no processing involved
17 at all.

18 BY MR. MEYER:

19 Q. Well, I --

20 A. There is no processing permitted --

21 THE COURT: Let him finish. Stop. I
22 let you ask the question what is the standard.
23 Let's let him finish, then you can follow up.

24 Go ahead.

25 THE WITNESS: So the only kind of

1 processing is mechanical processing in the form
2 of crushing, pulverizing, grinding the leaf;
3 but there is no chemical processing permitted
4 if it is to be the vegetation form.

5 The addition of water, which is what
6 happens in products like Feel Free, obviously
7 is not a form of processing.

8 BY MR. MEYER:

9 Q. Sir, the question was what standards
10 exist. Do standards exist?

11 A. The rule exists. I don't believe that
12 there are specific standards that say that you
13 have to pulverize to a certain size or -- you
14 know, you can have anything between a leaf form
15 or any ground mechanically processed form but
16 not a chemically processed form.

17 Q. Or how the product should be grown or
18 harvested in a way that you suggest would be
19 safe when it's then in turn put in a product
20 for human consumption, do those standards
21 exist?

22 A. There is a requirement, absolutely, to
23 ensure that the product is safe. No operator
24 is able to sell an unsafe product that has the
25 potential to be -- to cause illness or harm to

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1 consumers. That is a responsibility of the
2 seller.

3 Q. That was not my question, though, sir.
4 As it relates to how kratom is grown --

5 THE COURT: Yeah. But the rule doesn't
6 differentiate between plants. The rule just
7 says in its vegetative or, as I understand,
8 powdered form. So I don't get the question.
9 Your own rule doesn't have standards set.

10 MR. MEYER: Well, actually, there's a
11 rule that says don't ingest. There's a
12 standard. So that's what I'm driving at,
13 though. He's suggesting safe in certain
14 fashions, and I'm asking him what standards --

15 THE COURT: But your own rule doesn't
16 say ingest. It just says you go to 3715,
17 whatever all that is. So, again, I don't think
18 this line of questioning is going to --

19 MR. MEYER: Okay.

20 THE COURT: -- do much for you at least
21 as it relates to me.

22 MR. LITTLE: Let me make the objection
23 here. Let me make the objection because, one,
24 he's not been asked about the 3715. So counsel
25 keeps asking these generic questions about the

1 rules and regulations; but, more fundamentally,
2 the Court's already noted the point their
3 entire cross-examination just indicted the
4 State for its lack of standards.

5 THE COURT: No.

6 MR. MEYER: No. Public safety is the
7 element we're driving at here.

8 THE COURT: I agree, and that's why I
9 allowed all this testimony. So, yes.

10 BY MR. MEYER:

11 Q. So last question, then, sir: If the
12 Court grants the proposed injunction, how would
13 we ensure that these vegetative kratom products
14 put in food products are safe?

15 MR. LITTLE: Objection. Outside the
16 scope and improper question for an expert.

17 THE COURT: I'm going to sustain that
18 objection.

19 MR. MEYER: Very good.

20 THE COURT: Thank you.

21 All right. Anything else?

22 MR. LITTLE: No, Your Honor. They've
23 done enough. Thank you.

24 THE COURT: All right. Doctor, I want
25 to thank you. You've been patient, and I

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1 appreciate your patience in answering questions
2 and you weren't, you know, argumentative -- I
3 don't think -- at least the way some experts
4 are. So I appreciate your testimony, and we're
5 going to cut you off now. And you have a good
6 rest of the evening there over in England.

7 My ex-son-in-law is from London. He's
8 here now, and he coaches soccer at the high
9 school. And even though they're divorced, I
10 still hold him in somewhat high regard.

11 Thank you.

12 THE WITNESS: Thank you very much, Your
13 Honor. Thank you.

14 THE COURT: All right. You can cut that
15 off, Murphy.

16 We're going to break for lunch. We're
17 not going to take a huge break; but, I don't
18 know -- there's a cafe next door.

19 We're off the record.

20 - - -

21 Thereupon, a recess was taken until
22 12:57 o'clock p.m. of the same day, to wit,
23 May 29, 2026.

24 - - -

25

1 Friday Afternoon Session,
2 May 29, 2026.

3 - - -

4 Thereupon, the further trial of this
5 cause was resumed pursuant to adjournment.

6 - - -

7 THE COURT: We're going to be back on
8 the record.

9 Do you want to call your next witness?

10 MR. LITTLE: Yes, Your Honor. We'd call
11 Ramsey Atallah.

12 THE COURT: Okay.

13 (Witness sworn.)

14 THE COURT: Thank you.

15 Go ahead and have a seat.

16 I think you've already heard the rules.
17 So just try not to talk over each other.

18 Go ahead and introduce yourself to me
19 and spell your name.

20 THE WITNESS: Thank you for having me,
21 Your Honor. My name is Ramsey Atallah.
22 Spelled R-a-m-s-e-y; last name, A-t-a-l-l-a-h.

23 THE COURT: Thank you.

24 You may ask questions.

25 MR. LITTLE: Thank you, Your Honor.

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RAMSEY ATALLAH

Called as a witness on behalf of the plaintiff,
being first duly sworn, testified as follows:

DIRECT EXAMINATION

BY MR. LITTLE:

Q. Mr. Atallah, where are you employed and
in what position?

A. I'm the chief science officer of Botanic
Tonics.

Q. And how long have you served in that
capacity?

A. Since July 2024.

Q. How long have you had any work in any
capacity in the kratom industry?

A. I've been in the kratom space since
2020.

Q. And if we could look at Exhibit 5B,
which is one tab in from what's opened in your
notebook. I'm just going to try to expedite
things by having you identify your resume.

A. That is my resume.

Q. And could you briefly describe your
educational background.

A. I have a degree in molecular toxicology

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1 from UC Berkeley.

2 Q. And in what different positions and --
3 excuse me. Have you had any publications
4 you've prepared on the subject of kratom?

5 A. Yeah. I have multiple kratom
6 publications based on clinical trials I've
7 administered.

8 Q. And are some of those publications
9 identified on Exhibit 5B?

10 A. Yeah. In fact, three of the top five
11 publications are of mine.

12 Q. And then do you otherwise present on
13 subjects and to various groups on the subject
14 of kratom?

15 A. Yes. Indeed.

16 Q. And what -- in terms of your experience
17 in the industry, what have been some of the
18 companies you've been associated with in what
19 capacity?

20 A. Prior to working for Botanic Tonics as
21 the chief science officer, I was the CEO of
22 Della Terra Pharmaceuticals, a kratom-based
23 pharmaceutical company investigating kratom
24 alkaloids.

25 I was also a scientific advisor to

1 Johnson Foods, also a kratom-based company.

2 In addition to that, I work with and
3 advise other startups in the technology and
4 biotechnology space.

5 Q. If we could turn back to Exhibit 5A and
6 turning to the first -- or excuse me -- the
7 second page, which identifies your company.
8 Let's, if we could, explain to the Court what
9 Botanic Tonics, LLC, is.

10 A. Yeah. So Botanic Tonics is a company
11 that engages in the manufacture, marketing, and
12 sale of botanical dietary supplements. We have
13 a corporate headquarters in California, and we
14 have a manufacturing headquarters in Oklahoma.
15 We've been in business since 2021, and the key
16 products and ingredients we sell are kava- and
17 kratom-related products.

18 Q. Are there particular product lines that
19 are the focus of your company's practice?

20 A. Yes, indeed. Overwhelmingly our lead
21 product line is the Feel Free Classic 2-ounce.
22 It's a 2-ounce liquid supplement that contains
23 kava and kratom.

24 In addition to that liquid form of the
25 supplement, we also have a virtually identical

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1 product. It's a similar blend of kava and
2 kratom, but it's an encapsulated vegetative
3 form.

4 Q. Are all of your sales domestic here in
5 the United States, or do they go beyond United
6 States?

7 A. The vast majority of our sales are in
8 the United States; but we do now have an
9 international presence, including some areas in
10 Europe and in South America.

11 Q. There were some questions earlier about
12 restrictions in other countries; and some of
13 them were like Malaysia, Indonesia. Do you
14 have any insight you can offer the Court as to
15 the regulatory situation there as to why those
16 countries limit kratom?

17 A. Yeah. My understanding is that
18 culturally those -- those countries tend to
19 be -- or they are Islamic. And in line with
20 that, they exclude things like kratom, alcohol,
21 and other substances.

22 Q. And, likewise, there was some testimony
23 about what the European Union or European
24 organization had done. Can you give the Court
25 some insight on that as well?

1 A. Yeah.

2 MR. APPEL: Objection. Foundation.

3 THE COURT: Go ahead and lay a
4 foundation, please.

5 MR. LITTLE: Sure.

6 BY MR. LITTLE:

7 Q. What -- in terms of your responsibility
8 as the chief science officer, to what extent do
9 you familiarize yourself with the laws within
10 the United States and other countries?

11 A. Mostly within the United States. My
12 role requires that I understand the GMP
13 regulations and that I use appropriate science
14 and measurements and validations to achieve
15 compliance with those.

16 Q. And before you go on any longer, what's
17 GMP stand for?

18 A. Good manufacturing practices.

19 Q. And is there any source or governmental
20 entity that promulgates the GMPs?

21 A. From my understanding, it's regulated by
22 the FDA.

23 Q. Okay. And these regulations by the FDA
24 that set forth the GMP cover what type of
25 areas?

1 A. A whole range of areas. Everything from
2 operating a plant to hiring and training
3 personnel, to the specifics of what
4 requirements a company must comply with in
5 order to be compliant with the GMPs.

6 Q. And do all the products manufactured and
7 distributed by Botanic Tonics -- a mouthful,
8 full mouth there -- do they have to comply with
9 the GMPs?

10 A. Yes.

11 Q. Okay. And I'm going to circle back to
12 the other question here in a moment, but in
13 terms of your specific responsibilities as the
14 chief science officer, could you elaborate on
15 what those duties entail?

16 A. Yeah. So, for example, on the
17 regulatory manufacturing side -- I'll give
18 three examples -- setting the specification.
19 One of the subparts of the GMP requirement
20 requires that you identify the identity,
21 strength, and purity of every ingredient and
22 every finished product. Likewise, the GMP
23 requires things like labeling. There are
24 specific label requirements; and, furthermore,
25 there's other elements like post-market

1 surveillance.

2 MR. APPEL: May I just ask that
3 Mr. Atallah speak a little slower. I'm having
4 a little trouble hearing him.

5 THE COURT: All right.

6 BY MR. LITTLE:

7 Q. You do speak quickly, so let's give
8 counsel a chance to catch up.

9 So I think you identified generally
10 three areas, points of emphasis, that you have
11 responsibility for as chief science officer.
12 Would you briefly describe them again so
13 counsel has those.

14 A. Would you like me to repeat?

15 Q. Yes, please.

16 A. Yeah. So, for example, several examples
17 of GMPs required by any sponsor who wishes to
18 market a dietary supplement: Subpart E
19 requires system and specification requirements
20 including identity, strength, and purity;
21 Subpart L includes labeling requirements,
22 including warnings and the amounts -- labeled
23 amounts of how much of each ingredient and how
24 to use the product; Subpart O includes
25 post-market surveillance, a mechanism by which

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1 customers can register complaints about the
2 product to the company.

3 Q. Okay. And so in terms of your capacity
4 as chief science officer, what specific
5 responsibilities do you then have in terms of
6 ensuring the GMPs are satisfied?

7 A. I oversee the analytical and technical
8 methods for which we use to verify the GMPs are
9 in place; and I oversee the entire scientific
10 portfolio where we investigate, both in
11 published literature and with our own
12 experimental data, the safety of our
13 ingredients and product.

14 Q. Still looking at -- back to page 2 of
15 Exhibit 5A and you had identified for us both
16 the product lines and the key ingredients.
17 Just so we're clear then, what is depicted in
18 terms of the images there are images of the
19 various products and the company's logo?

20 MR. APPEL: I'm sorry. Mr. Little, what
21 page are we looking at?

22 MR. LITTLE: Page 2.

23 MR. APPEL: Page 2. Thank you.

24 THE WITNESS: That is correct. We're
25 looking at actual photos of the packaging of

1 marketed products and a photo of the company
2 logo.

3 BY MR. LITTLE:

4 Q. Now, if we look at page 3, if you could
5 provide the Court the market landscape in the
6 state of Ohio for the Feel Free Classic
7 product?

8 A. Yeah. Feel Free is widely or was widely
9 distributed in Ohio, over 1,600 retailers,
10 including large established chains like
11 Circle K and Murphy USA sold Feel Free.

12 In 2025 we registered nearly \$5 million
13 in sales in the state of Ohio, which is a
14 tremendous achievement for us, one of our best
15 selling states. In the lifetime in the state
16 of Ohio we've done over \$13 million, so it
17 seems that it is -- it's out there or it was
18 out there at least.

19 Q. And just so I have -- we all have the
20 sense, what's the price, for example, of one of
21 these products so we know how many units have
22 actually been sold in the state?

23 A. Sorry. Repeat the question.

24 Q. What's the price range for the products
25 so we have a sense of the number of units that

1 have been sold into the state?

2 A. About \$10 per unit.

3 Q. You have to speak up.

4 A. Ten dollars per unit.

5 Q. Thank you.

6 So if we look at a lifetime sales of
7 13 million, you've had 1.3 million sales of
8 products in the state of Ohio?

9 A. Yes.

10 Q. Okay. And during that -- and within the
11 state of Ohio, has there ever been any
12 regulatory action taken by any state agency
13 against your company with respect to any of
14 those 1.3 million unit sales?

15 A. Not that I am aware.

16 Q. Now, give the Court a sense, because
17 we're talking about other folks as well,
18 that -- the total size of the Ohio market for
19 these type of kratom products.

20 A. Yeah. So market researchers -- or
21 U.S.-based market researchers estimate based on
22 the countrywide revenues and the population
23 breakdown, roughly \$87 million annually in
24 kratom sales in the state of Ohio.

25 Q. And the overall sales nationwide for

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1 kratom are estimated to be at what, please?

2 A. Estimated to be \$2 and a half billion.

3 Q. Now, if we could turn to page 4 of
4 Exhibit 5A, could you describe for the Court
5 the pathways by which your company's products
6 are introduced to the market?

7 A. Yeah. We recognize two main pathways to
8 enter the market at either as a food or as a
9 dietary supplement in which kava and kratom,
10 the two ingredients, and Feel Free Classic, the
11 combined product, all qualify as dietary
12 ingredients or products.

13 Q. Okay. And so your company has both some
14 products that are only kava and some that are
15 only kratom?

16 A. That is correct. There's a mixture. We
17 don't currently have any that are only kava,
18 but we have kava products without kratom. We
19 have kratom products without kava and vice
20 versa.

21 Q. Okay. And then if we're looking at
22 page 4 of the materials, there's a reference
23 to -- pardon me -- something called DSHEA.
24 What is that?

25 A. That's the Dietary Supplement Health and

1 Education Act referencing the 1994 law that
2 created the dietary supplement pathway.

3 Q. And is that promulgated at the federal
4 level?

5 A. My understanding is yes.

6 Q. Okay. And then that particular law,
7 what does it establish?

8 A. Well, it establishes specific
9 definitions for what qualifies as a dietary
10 ingredient or a supplement.

11 Q. Okay. And then there's a reference to
12 21 C.F.R. Part 111, Subpart A through P. What
13 is that C.F.R. code in reference to, please?

14 MR. APPEL: Objection. Calls for a
15 legal conclusion.

16 THE COURT: Overruled. Because I just
17 have to look it up myself. So I'll hear some
18 testimony on it and give it the weight I deem
19 proper.

20 THE WITNESS: Sorry. The question
21 again?

22 BY MR. LITTLE:

23 Q. We're looking at page 4 of your
24 materials where it references 21 C.F.R.
25 Part 111, Subparts A through P. Do you see

1 that?

2 A. Yeah.

3 Q. And what's your understanding of that?

4 A. That those are the federal regulations
5 for current good manufacturing practices of
6 dietary supplements.

7 Q. So we talked about the GMPs a moment
8 ago, and this is the specific citation to the
9 GMPs that are used by your company in how to
10 label and distribute the products?

11 A. Correct.

12 Q. Now, in terms of -- let's go to No. 5
13 within your materials about kava and kratom --
14 excuse me -- qualify as a dietary ingredient.
15 Why does your company characterize it in those
16 terms?

17 MR. APPEL: Objection. Calls for a
18 legal conclusion.

19 THE COURT: Overruled.

20 It doesn't mean that it is. It just
21 means why they believe it is.

22 THE WITNESS: Because the statement
23 pulled directly from that USC code on the
24 bottom identifies Item C as an herb or other
25 botanical as a defining feature. So both

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1 kratom and kava are botanicals.

2 BY MR. LITTLE:

3 Q. So -- right. And if we're looking at
4 the very bottom of page 5 where we have an
5 exact -- I believe excerpted is the definition
6 of dietary supplements; is that correct?

7 A. Correct.

8 Q. And if we look at Subpart C there, a
9 dietary supplement includes a herb or other
10 botanical; is that right?

11 A. Correct.

12 Q. And I think we've already heard the
13 testimony that both kava and kratom qualify as
14 a botanical.

15 Now, does your company market or sell
16 this product as a -- as a meal, m-e-a-l?

17 A. No.

18 Q. Or is it marketed as a diet product?

19 A. Diet as in it supplements the diet but
20 it is not diet as in the verb.

21 Q. Okay. Is it marketed as a beverage?

22 A. It is not a beverage, and it is not
23 marketed as a beverage.

24 Q. And why do you not view it as marketed
25 as a beverage?

1 A. FDA looks at several things when
2 determining if a liquid supplement is a
3 beverage or not. All of these come together;
4 but in short, it's things like how is it
5 advertised, how is it packaged, does it deliver
6 a meaningful amount of your daily required
7 water. The answer to all of these questions is
8 no with respect to Feel Free Classic.

9 Feel Free Classic delivers
10 25 milliliters of water per serving or
11 15 milliliters of water per day. That is not
12 enough to survive off of. In fact, Feel Free
13 Classic capsules, which are the dried capsule
14 form, are virtually the identical product but
15 the 2-ounce comes with 50 milliliters of
16 flavored water to help you drink it.

17 So, no, it's not -- it does not
18 meaningfully hydrate. It is not advertised to
19 hydrate. The packaging precludes it from being
20 a meaningful source of hydration. It's just
21 not a beverage.

22 Q. And so when you're trying to figure out
23 whether something is marketed as a beverage,
24 you look to see whether or not it serves as a
25 means for hydration?

1 MR. APPEL: Objection. Leading.

2 THE COURT: Overruled.

3 THE WITNESS: Yes.

4 BY MR. LITTLE:

5 Q. And in this case it's not marketed as --
6 as a means of hydration; is that correct?

7 A. Correct.

8 Q. Okay. And you also told us that the
9 amount of fluid actually embodied in the bottle
10 would not be sufficient for hydration?

11 A. Not nearly.

12 Q. So -- and I want to go back on your
13 comment about the capsule. If I were to
14 consume a capsule, are those typically taken
15 with any fluid?

16 A. Typically you would take it with at
17 least a few ounces of water.

18 Q. And give the Court a comparison. The
19 amount of water that's consumed to swallow a
20 capsule versus the amount of water that is in a
21 bottle is roughly what?

22 A. I would reckon that you consume less
23 water consuming the 2-ounce Feel Free tonic
24 than you would consuming the capsules with a
25 cup of water.

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1 Q. And you said that the distinction
2 between -- excuse me. Within the industry is
3 there a distinction that is drawn between a
4 beverage and a liquid supplement?

5 A. Yes.

6 Q. And what is -- and I think you said --
7 identified some of the factors. Well, what are
8 the factors that differentiate those two?

9 A. The primary factors are how the product
10 is presented to the potential customer
11 including packaging; marketing; labeling; name;
12 and then, of course, how much water does it
13 actually deliver to the diet when used
14 appropriately.

15 According to our labeled conditions of
16 use, no more than one bottle per day. That's,
17 like I mentioned earlier, 15 milliliters of
18 water.

19 Q. Okay. Now, let's -- please look at
20 page 6 of Exhibit 5A. There's a reference
21 to -- would you explain roughly what a food
22 additive is?

23 A. Yeah. So my understanding is that food
24 additive refers to the 1958 pathway to enter
25 the food supply via the GRAS notification; but,

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1 of course, Feel Free Classic is not a food
2 additive. It's a dietary supplement, which the
3 way I read this is specifically excluded from
4 the definition of a food additive.

5 Q. Just so we're clear, then, in terms
6 of -- and I may have jumped a little bit ahead.
7 When water is -- let's take your product, the
8 Feel Free. Explain to the Court how the water
9 is introduced with the kratom product.

10 A. We use large room temperature mixing
11 tanks. The tanks are filled with water and
12 then dry ingredients are added during mixing.

13 Q. So you actually start with a dry kratom
14 product?

15 A. Correct.

16 Q. And it's simply mixed with the water?

17 A. Correct.

18 THE COURT: Is there anything other than
19 the powdered or dry kratom? Is there anything
20 added to that?

21 THE WITNESS: Yeah. There are flavoring
22 components to the water as well.

23 THE COURT: But is there anything added
24 to the kratom itself, or is it just ground up?

25 THE WITNESS: Just ground up kratom.

1 THE COURT: Okay.

2 BY MR. LITTLE:

3 Q. I guess you could have a product that
4 has kava extracts that are mixed with water,
5 right?

6 A. Yeah, of course. Well, the Feel Free
7 Classic includes kava as one of its
8 ingredients.

9 Q. Okay. But you also could have taken
10 kava -- excuse me -- the kava product and
11 extracted from it a product that would then be
12 used with water, but that's not the approach
13 taken here?

14 A. That's not the approach taken here.

15 Q. Okay. So it's not like you're taking a
16 kava leaf, pulling an extract out to increase
17 the concentration and then mixing it with
18 water?

19 A. Correct. There's no procedure that
20 increases the concentration of any kratom
21 alkaloid.

22 MR. HOGAN: You said kava. I think you
23 mean kratom.

24 BY MR. LITTLE:

25 Q. I meant kratom.

1 A. I understood that.

2 Q. All right. So if I were to -- you
3 indicated that you take the kava -- or excuse
4 me -- kratom and you have it put in water
5 that's heated --

6 A. It's cool water, actually.

7 Q. Okay. What's the difference between the
8 way you manufacture it and how someone might
9 put a cup of -- brew a cup of kratom in a home
10 if they took the leaf and put it into a teapot?

11 A. The scale and probably a few extra
12 ingredients that we do to, for example, flavor
13 the water.

14 Q. Okay. But otherwise this is something
15 you could make at home?

16 A. Absolutely, yeah.

17 Q. With using a teapot?

18 A. Correct.

19 Q. Let's look at then page 7 and have you
20 explain to the Court sort of the safety
21 practices that are followed by your company and
22 the manufacturing of the products.

23 A. Yeah. So as part of my requirement --
24 part of my role as the chief science officer
25 and in order to comply with the current good

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1 manufacturing practices, we must establish a
2 basis of safety for the product. And so to do
3 that we use a multilayered approach that
4 includes multiple levels of third-party
5 validation and self-verification.

6 So to break it down simply, at the top
7 we have the fact that Botanic Tonics
8 manufactures our own ingredients according to
9 specific specifications and labels. We also do
10 post-market surveillance, of course. In
11 addition to knowing what we manufacture, we
12 test that exact item. We do our own
13 experiments investigating chemistry, clinical
14 trials, and so on.

15 And then in addition to that we also
16 look to third-party independent published
17 literature to collect all information known
18 about the product.

19 This all combined means that we market a
20 product that we know is safe based on our
21 analysis.

22 Q. So let's then turn to page 8 of the
23 materials and expand on that a bit. If you
24 could walk the Court through this.

25 A. Yeah. This is a good opportunity to

1 show the extent to which the existing GMP
2 regulations address the question of what's in
3 the kratom. Okay?

4 So, for example, on the top item, the
5 manufacturing, we have internal quality control
6 personnel. We have internal SOPs. We bring in
7 third parties, so totally separate independent
8 companies, to come in and audit our practices,
9 audit our real functioning factory; and they
10 give us their accreditation.

11 In addition to just verifying that the
12 GMPs are being followed, we took the extra step
13 to verify that our analytical methods were
14 indeed faithful, accurate analytical methods;
15 and thus we were awarded the ISO 17025
16 accreditation.

17 Q. And what is that for us who are not in
18 your field?

19 A. That's when chemists from an accrediting
20 body visit your lab and in detail review your
21 analytical chemistry procedures and confirm
22 that you're producing accurate and consistent
23 results.

24 Q. Okay.

25 A. And the last thing I would say on the

1 GMPs is we also have the post-market
2 surveillance system. I mentioned earlier the
3 system not only allows customers to complain to
4 the company. We track all of these complaints
5 on a per batch and over time basis. It also
6 exists a reverse logistics mechanism. It takes
7 a tremendous expense and effort on Botanic
8 Tonics' part to create a reverse logistics such
9 as something that will enable a recall, but
10 that is something we do as well; and that's
11 just part of our GMPs.

12 Outside of that I would also want to
13 highlight on our experimental side we use
14 third-party validated protocols like OECD
15 protocols for in vitro and in vivo toxicology
16 work.

17 And then on the literature review side
18 we not only take into account published
19 literature from the world's academics, we also
20 take into account specific regulatory bodies
21 like the World Health Organization and other
22 relevant organizations that have come to
23 conclusions on kratom.

24 Q. Let's look then at page 9, and we have
25 some registrations identified there. Explain

1 what those registrations are from and what they
2 depict?

3 A. Yeah. These are federal and state level
4 registrations for operating a facility that
5 manufacturers food for human consumption. This
6 is, again, part of the complex system of
7 third-party verifications that guarantee that
8 we're making the product we say we're making.

9 Q. And I believe you said the manufacturing
10 facility was in Oklahoma?

11 A. That is correct.

12 Q. Okay. So you have the food license from
13 Tulsa and otherwise have a registration there.

14 If we go to the next page on page 10 --
15 and you had referred to third-party
16 certifications earlier. What's depicted on
17 page 10?

18 A. On the left you see a letter of
19 conformity confirming that Botanic Tonics is
20 compliant with 21 C.F.R. Part 111. This was
21 done by Intertek, the large multinational
22 accreditation body.

23 The second one was the ISO 17025
24 accreditation I mentioned, which is the
25 laboratory accreditation done by a local

1 chemistry group.

2 Q. And then if we could go to page 11 where
3 we talk again about more GMPs; and you had
4 referenced the SOPs earlier, that is, standard
5 operating procedures. Could you elaborate on
6 that for the Court?

7 A. Yeah. So SOPs are indeed standard
8 operating procedures. We have a suite of SOPs
9 that cover every action the company takes on
10 the manufacturing site. In particular we
11 highlight a few of the ones that really hit the
12 point home on how do you know what's in this
13 kratom. Right? Because the point got brought
14 up there could be different compositions in
15 kratom.

16 By establishing specifications for
17 identity, meaning we can prove that it is
18 indeed kratom leaf; strength, meaning we can
19 prove that the alkaloid composition is what we
20 expect it to be; and then purity, meaning we
21 can prove that it is free of deleterious
22 contaminations like pesticides or microbes.
23 With those three, that's our internal system
24 for proving our product is safe. And, like I
25 mentioned, of course, there are all these

1 third-party elements that layer on top of it
2 and verify it as well.

3 Other than that, there's the labeling
4 requirements, which, again, extremely
5 important. This -- Dr. Verkerk spoke about the
6 importance of communicating risk and managing
7 risk and assessing risk. A label is one of the
8 areas we communicate risk, and it's also one of
9 the tools we use to manage risk.

10 Q. Let's look at --

11 MR. APPEL: I'm going to object. Didn't
12 he just refer to the expert who testified?

13 THE COURT: I'm sorry?

14 MR. APPEL: Didn't he just refer to the
15 expert who testified?

16 THE WITNESS: I did. I did, yes.

17 MR. APPEL: I thought there was a
18 separation of witnesses and we have somebody
19 else who is the agency representative. Am I
20 mistaken? Is he not the -- is he the agency
21 representative, or am I getting confused?

22 MR. LITTLE: He's the client
23 representative that's been sitting there the
24 entire morning.

25 MR. APPEL: Okay. I will withdraw my

1 objection.

2 BY MR. LITTLE:

3 Q. We were going to look at some of those
4 product labels. If you could turn to page 12
5 and let's walk through that, what that is and
6 then describe it, what the product label
7 discloses.

8 A. Yeah. So we're looking at the product
9 label for Feel Free Classic 2-ounce liquid
10 supplement. This is obviously a round bottle,
11 so the label wraps around the entire bottle and
12 connects end to end. On the left-hand side you
13 see the front-facing portion where it clearly
14 identifies the brand, product name, key
15 ingredients, and it shows two clear serving
16 lines. This is to help an individual
17 understand how far down the bottle one serving
18 is.

19 This is relevant because on the right
20 side in the supplement facts panel you'll see
21 the most important and required information
22 that FDA expects on labels of dietary
23 supplements, which includes the serving size,
24 the servings per container, and the amount of
25 each dietary ingredient, plus a list of all

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1 other ingredients.

2 Q. And so there is instruction provided as
3 to the number of servings that should be taken
4 in any particular time frame; is that right?

5 A. That's correct. In addition to some
6 other considerations for the consumer to read
7 in terms of labeling restrictions.

8 Q. And there's also information with
9 respect to age-appropriate use?

10 A. Yes, sir.

11 Q. And then if we go to page 13 of the
12 materials, what is this product label for?

13 A. This is the dry capsule version of Feel
14 Free Classic. So this product of similar
15 circumstance to the left but instead of being a
16 bottle filled with liquid, it's filled with
17 those capsules that you see on the bottom
18 right-hand side. Similar to the 2-ounce
19 bottle, you can see the supplement facts panel
20 with all the required facts and requisite
21 warnings and other information.

22 Q. And specifically the instructions or the
23 directions on how many capsules may be taken by
24 mouth during any particular time frame?

25 A. Correct.

1 Q. Much like you'd find on an aspirin
2 bottle or an Advil bottle or any other bottle
3 of --

4 A. Literally any supplement is required to
5 give you a serving size and a servings per day.

6 Q. And all of this, again, is being done
7 consistent with the GMPs?

8 A. Correct.

9 Q. And finally on that page 14.

10 A. This is a kratom-only product. So,
11 unlike the previous two, this product contains
12 no other ingredients besides the capsule
13 itself. Otherwise, everything that applies to
14 the previous applies to this.

15 Q. Okay. And then if we go to page 15, you
16 had described that there's post-market
17 surveillance. Go ahead and expand on that if
18 you would for a moment.

19 A. Yeah. So, like I mentioned, post-market
20 surveillance refers to customer complaints that
21 we gather from customers; and we can get these
22 complaints either directly from the customer or
23 through survey mechanisms or clinical trials.
24 Anything that comes from the customer consuming
25 our product and complaining ends up in the

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1 post-market surveillance system.

2 Now, this is very interesting because we
3 have basically two levels of this. There's the
4 FDA 3500 MedWatch form, which is voluntary
5 reporting; and then there's the 3500A mandatory
6 reporting. The difference between these two is
7 voluntary reporting applies for any adverse
8 event, whereas mandatory reporting only applies
9 to serious adverse events; and a serious
10 adverse event is specifically defined by the
11 FDA. I don't have the full definition in my
12 head; but generally if you require medical
13 intervention or if you're hospitalized, that
14 becomes a serious adverse event.

15 Q. Okay. And it looks like you have
16 recorded here for our use some of the
17 statistics from this post-market surveillance
18 over the course of 150 million servings?

19 A. Yes, indeed.

20 Q. Okay.

21 A. We've tracked over 150 million servings
22 sold. We have fewer than 1,000 adverse events,
23 and we have zero reported serious adverse
24 events.

25 Q. And then let's compare this to other

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1 products. So if you could look at page 16 and
2 explain to the Court what's depicted in this
3 summary.

4 A. So this is a slightly different measure.
5 This is not adverse events reported to
6 companies. This is poison control calls. This
7 is still in public health. This is a great
8 quality signal detection mechanism where
9 essentially if there is a health signal and it
10 affects some part of the population, poison
11 control is one of the areas where we would
12 expect to find it.

13 What we see here is that on a per
14 capita, so per 100K users, we see the number of
15 poison control center calls; and you'll find
16 that ingredients in our supplement like kratom
17 and kava are barely a blip on the radar
18 compared to even more common things like
19 vitamins, not to say the least of the real
20 danger that's out there which is these
21 prescription antidepressants and
22 benzodiazepines.

23 Q. Okay. Now, let's -- let's then turn to
24 your company's position on synthetics. We
25 heard some testimony earlier today about the

1 synthetic kratom, and go ahead and share with
2 the Court the company's perspective on that.

3 A. Yeah. So Botanic Tonics has spent
4 tremendous effort establishing the basis of
5 safety of the kratom leaf that we know. It's a
6 kratom leaf with a specific composition. It's
7 about 40 to 50 percent fiber. It's about
8 2 percent alkaloids, and we know the breakdown
9 of those alkaloids. That we believe we've
10 proven is safe.

11 I'm not aware of any evidence for
12 purified synthetic alkaloids is safe; and, in
13 fact, the evidence I am aware of, it's
14 generally negative.

15 Q. And so does your company utilize
16 synthetic kratom in any of its products?

17 A. No, we do not.

18 Q. Beyond what we've talked about, is this
19 a fair summary of what your company does in
20 terms of ensuring the safety of its products?

21 A. What I've described, yes.

22 Q. I should have asked you when we were
23 talking about GMPs, can you sell kratom in a
24 plastic bag without any labeling information?

25 A. I believe that would be illegal based on

1 the GMP requirements.

2 Q. And did you -- were you involved --
3 excuse me. Did you prepare what we've marked
4 at Exhibit 5A?

5 A. I did.

6 MR. LITTLE: Your Honor, I have no
7 further questions for this witness. Thank you.

8 THE COURT: Thank you.

9 Cross-examination, please.

10 - - -

11 CROSS-EXAMINATION

12 BY MR. APPEL:

13 Q. Hello, Mr. Atallah.

14 A. Yes.

15 Q. I want to make sure I pronounce it
16 correctly.

17 Could you please turn to page 13 of
18 Exhibit 5. I'm sorry. Page 12.

19 A. Could you read the title of that page?

20 THE COURT: Product label.

21 BY MR. APPEL:

22 Q. Product label.

23 A. Got it.

24 Q. All right. This is your Feel Free
25 Classic product, correct?

1 A. Yes.

2 Q. All right. And I see that it has listed
3 that this is a 2-ounce bottle -- yeah, 2-ounce
4 bottle, correct?

5 A. Correct.

6 Q. And this is two servings?

7 A. Correct.

8 Q. Each serving is 20 milligrams of
9 mitragynine?

10 A. Correct.

11 Q. And the reason you know this is
12 20 milligrams of mitragynine is because you're
13 doing some sort of analysis on the powder that
14 you are using, correct?

15 A. Yes. And the finished product that we
16 produce.

17 Q. You need to know that not all kratom
18 powders are going to have the same strength.
19 Fair?

20 A. Yes.

21 Q. So for some it will be stronger, some it
22 will be weaker, but you're doing tests so you
23 know it's 20 milligrams?

24 A. Correct.

25 Q. Let's see, we have a warning. Contains

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1 kratom leaf, which, like nicotine and alcohol,
2 can be habit forming and harmful if not
3 consumed as directed. Did I read that
4 correctly?

5 A. You did.

6 Q. So kratom leaf has addictive qualities
7 like alcohol?

8 A. Is that a question? In some
9 circumstances, yes.

10 Q. And you say do not use if you have a
11 history of substance abuse, right?

12 A. Correct.

13 Q. And that's because this can -- because
14 this product can be abused by people who have
15 histories of substance abuse. Is that why
16 that's on there?

17 A. The warnings here come from our
18 comprehensive risk assessment and literature
19 review. So we did identify substance abuse as
20 a risk factor for increased chance of negative
21 effect.

22 Q. Okay. But one of the risks for this
23 product is that people might become addicted.
24 Fair?

25 A. Yes.

1 Q. Okay. And using this product they could
2 become addicted, not other kratom products?

3 A. Well, to be clear, under the directions
4 of the label the product is safe.

5 Q. Okay. But I'm asking, people could
6 abuse -- could become addicted using this
7 product, right?

8 A. Yes. Especially if they go against what
9 the label recommends.

10 Q. Let's see the next warning here is when
11 consumed as directed, Feel Free Classic has not
12 been shown to cause any serious physical harm.
13 I read that correctly?

14 A. Yes.

15 Q. Okay. Do -- have you had customers
16 who've gotten confused and drank this whole
17 bottle at once?

18 A. I'm sure it's happened.

19 Q. Okay. It's a 2-ounce bottle and you're
20 saying to drink only half of a 2-ounce bottle?

21 A. Yes.

22 Q. Okay. And that's going to be -- how do
23 people expect to measure out whether they've
24 drunk only half of this?

25 THE COURT: There's a line in the middle

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1 of the label.

2 MR. APPEL: Okay.

3 BY MR. APPEL:

4 Q. That's -- that's the test for people
5 to -- between the safe level and not safe
6 level?

7 A. If you held the bottle in your hand, you
8 will see in the -- it's very clear, yeah. It's
9 very easy to go about half.

10 Q. People who are addicted to mitragynine
11 would probably consume more than half a bottle
12 at a time, would you agree with that?

13 A. Yeah.

14 Q. Okay. So people are -- and if you have
15 an addict, they might drink several of these
16 bottles a day?

17 A. That's conceivable. That is
18 conceivable, yes.

19 Q. You had -- you know -- have you gotten
20 complaints or any indications that there are
21 some of your customers who are drinking
22 multiple bottles of this a day?

23 A. Yes.

24 Q. Okay. And that's dangerous?

25 A. Situationally, but I'm not certain about

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1 any individual customer.

2 Q. Okay. You say not for consumption by or
3 sale to persons under the age of 21?

4 A. Correct.

5 Q. And that's because this is
6 habit-forming?

7 A. No. That's because in order to market
8 to people of that age, we would have had to do
9 additional toxicological studies, particularly
10 on earlier development. We did not do those
11 studies, so we excluded that population.

12 Q. Okay. It says can interact with certain
13 medications, consult a licensed qualified
14 healthcare professional before use. Did I read
15 that correctly?

16 A. Correct.

17 Q. In your experience are your customers
18 calling their doctors and saying can I safely
19 take this supplement?

20 A. I couldn't possibly know the answer to
21 that question.

22 Q. But you -- you assume they do because
23 your customers are -- presumably they're
24 responsible and following all of the directions
25 on this label?

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1 A. Actually, I did perform a survey of my
2 customers and found over 75 percent of them
3 said they comply with the label.

4 Q. Do you have a copy of that survey? Not
5 with you; but if we requested that, could that
6 be provided to us?

7 A. A copy exists.

8 Q. Okay. But it is something that's
9 discoverable; if you receive it, it's something
10 that could be produced?

11 A. Yes.

12 Q. Okay. We've got a do not consume with
13 excessive alcohol. Why do you not consume it
14 with excessive alcohol?

15 A. So, again, we are labeling against
16 combining the product with ingredients that we
17 have not studied for herb-herb interactions,
18 likewise, for the medication piece. It's
19 because we didn't prove the safety of that
20 element, so we label against it.

21 Q. All right. I see here it says not
22 intended for those sensitive to the active
23 ingredients?

24 A. Correct.

25 Q. And how would someone know that they're

1 sensitive to the active ingredients?

2 A. They would have tried it or they would
3 have experience from their past where they had
4 tried a similar ingredient.

5 Q. And it's also not intended for women who
6 are pregnant, nursing, or trying to become
7 pregnant?

8 A. Correct.

9 Q. Because those are sensitive populations?

10 A. Because we never did the studies to
11 prove it was safe for those populations.

12 Q. All right. You talked about the GMPs a
13 lot. Did I hear that correctly?

14 A. Correct.

15 Q. In fact, aren't those GMPs primarily
16 related to the sanitation and cleanliness of
17 the manufacturing facility?

18 A. That's a component of the GMPs.

19 Q. And also whether or not there's been
20 labeling?

21 A. Correct.

22 Q. But just because something -- you comply
23 with the GMPs does not mean that the items that
24 are within those bottles meet the generally
25 required accessible use standard, GRAS, right?

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1 A. Yeah. They're two mutually independent
2 standards.

3 Q. You said you had -- you tracked
4 complaints?

5 A. Correct.

6 Q. Any complaints in Ohio?

7 A. I don't have the data in front of me,
8 but I'm sure we have complaints in every market
9 that we sell in.

10 Q. If we submit a request for documents,
11 would the complaints that your company has
12 received be able to be produced to my client?

13 A. In compliance the GMPs, we do keep
14 comprehensive records on all of these. So,
15 yes.

16 Q. Mitragynine is an addictive substance,
17 correct?

18 A. It can be.

19 Q. Okay. Now, the -- you work for the --
20 and I apologize -- Botanical Tonics. You
21 aren't affiliated with Krazy Daze?

22 A. Correct.

23 Q. Okay. Have you ever been to Krazy Daze?

24 A. No.

25 Q. Okay. Do you know what they sell?

1 A. No.

2 Q. Other -- do you know what other
3 substances that they are selling that are --
4 that May have -- where they've taken powdered
5 kratom and infused it with water and other
6 ingredients?

7 A. All I know is that they sold our product
8 and I think they should be allowed to continue.

9 Q. If the Court grants the injunction
10 saying that the board of pharmacy can't limit
11 the ingestion of vegetative kratom or kratom
12 powder and so forth and that -- is it meant to
13 include things where there's infused water? In
14 your experience, are there going to be products
15 that would not meet the standards of safety
16 that your company follows?

17 MR. LITTLE: Objection.

18 MR. APPEL: I'm going to rephrase the
19 question.

20 BY MR. APPEL:

21 Q. I'm guessing that you believe that your
22 company follows the gold standard for safety
23 and health?

24 A. Yes.

25 Q. There are other of your competitions --

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1 competitors who don't, right?

2 A. I wouldn't know one way or another. I
3 do understand that several of my competitors
4 also do gold standard operations.

5 Q. Okay. But you -- I think it's fair to
6 say that there are some fly-by-night operators
7 out there who are unscrupulous?

8 A. It's a big market, and I'm not
9 accountable to them. I'm sure they exist.

10 Q. Okay. Your company was sued in the
11 Northern District of California, right?

12 A. That may be true. I don't have specific
13 knowledge on that.

14 Q. And there was -- it was a class action
15 lawsuit, wasn't it?

16 A. I have some recollection of a class
17 action lawsuit. Again, I'm not sure of the
18 specifics.

19 Q. All right. How much was the settlement
20 for?

21 A. Again, not knowing the specifics, I
22 recall there was a million-dollar settlement.
23 Million, not specifically 1 million, but in the
24 million-dollar range.

25 Q. It was in the millions?

1 A. Yeah.

2 Q. Somewhere between 1 and 10 million?

3 A. That sounds about right.

4 MR. APPEL: Okay. We're going to ask
5 that the Court take judicial notice of Case
6 No. 3:23CV --

7 THE COURT: C what, please?

8 MR. APPEL: C-V.

9 THE COURT: Got it.

10 MR. APPEL: 01460. It's in the federal
11 Northern District of California. There is a
12 settlement involving --

13 THE COURT: Can you get a document
14 marked for me? Because I have to log on and be
15 a member of something and then pay for it.

16 MR. APPEL: Your Honor, we were
17 served -- they added this party as a plaintiff
18 at 10:00 p.m. last night.

19 THE COURT: Well, I'm just saying you
20 can do it later.

21 MR. APPEL: Okay. We will provide that
22 to you certainly by email, if that would be
23 acceptable.

24 THE COURT: That's fine.

25 MR. LITTLE: We'll object as to any

1 judicial notice of a settlement for the reasons
2 that the Court's already articulated.

3 THE COURT: I'll consider it for what
4 it's worth.

5 MR. APPEL: All right. One moment.

6 I am handing the opposing counsel what's
7 been marked as Exhibit A, giving a copy to the
8 witness and to the Court.

9 THE COURT: Thank you.

10 THE WITNESS: Thank you.

11 BY MR. APPEL:

12 Q. You've seen this document before,
13 correct?

14 A. Yes.

15 Q. It's the FDA statement on kratom?

16 A. Yes.

17 Q. Okay. And it, in fact, does say that
18 there are no prescription or over-the-counter
19 drug products containing kratom or its known
20 alkaloids that are legally on the market in the
21 U.S.?

22 MR. LITTLE: Let me object, Your Honor.

23 One, as the Court's already observed, a
24 website is not a statement; and so this is
25 simply hearsay at this point. It's not a rule.

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1 We can always offer the Court a bench
2 memorandum as to how the FDA's statements on a
3 website have no legal effect; but now we're
4 dealing with hearsay as to what this means,
5 given that it's not an official government
6 rule.

7 MR. APPEL: Your Honor, I can't help but
8 notice that they have elicited substantial
9 testimony about a July 26, 2025, statement from
10 the FDA. They've discussed that repeatedly.
11 If any door that's needed that was closed is
12 wide open because of that for us to be able to
13 rebut that that is the FDA's official position.
14 And, furthermore, it's not hearsay because
15 we're using it for a nonhearsay purpose in that
16 a statement by the FDA is not -- is -- has its
17 independent legal effect like a contract would.

18 MR. LITTLE: Well --

19 THE COURT: Well, that's sounds like
20 it's offered for the truth of the matter. I'm
21 going to overrule the objection.

22 I think that these are guidelines. I'm
23 not sure what else it is other than that, but
24 go ahead.

25 MR. APPEL: Okay.

1 BY MR. APPEL:

2 Q. Will you go to the second page, please.
3 It says kratom is not appropriate for use as a
4 dietary supplement. Did I read that correctly?

5 A. Yes.

6 Q. FDA has concluded from available
7 information, including scientific data, that
8 kratom is a new dietary ingredient for which
9 there is inadequate information to provide -- I
10 apologize. I start getting excited when I
11 start reading.

12 FDA has concluded from available
13 information, including scientific data, that
14 kratom is a new dietary ingredient for which
15 there is inadequate information to provide
16 reasonable assurance that such ingredient does
17 not present a significant or unreasonable risk
18 of illness or injury and, therefore, dietary
19 supplements that are or contain kratom are
20 adulterated under Section 402(f)(1)(B) of the
21 FD&C Act. Did I read that correctly?

22 A. Yes.

23 Q. But it is still your opinion that your
24 product is a lawful supplement?

25 A. Correct.

1 Q. Will you turn to Exhibit G6?

2 A. Yes.

3 THE COURT: Before we get there, what's
4 SUD?

5 MR. APPEL: Sorry?

6 THE WITNESS: Cases of kratom-related
7 SUD, what's that?

8 MR. APPEL: Substance use disorder.

9 THE COURT: All right. Thank you.

10 BY MR. APPEL:

11 Q. Tell me when you've gotten to
12 Exhibit 6G.

13 A. I'm here.

14 Q. All right. Is this the -- have you seen
15 this document before?

16 A. Yes.

17 Q. What is it?

18 A. It looks like a communication from
19 former FDA Commissioner Marty Makary to the
20 general public about 7-OH.

21 Q. Okay. When there was discussion about
22 the July 29, 2025, correspondence, is this a
23 document that was being identified?

24 A. I'm not sure. I suspect it is based on
25 the date.

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1 Q. Okay. It says -- I'm just going to see
2 if you can identify this. 7-OH is found in
3 trace amounts in the kratom plant leaf, but
4 that is not our focus. Our primary concern is
5 the concentrated form of 7-OH. This is an
6 important distinction. These concentrated 7-OH
7 opioid products are far more dangerous than
8 traditional kratom leaf products. Did I read
9 that correctly?

10 A. Yes.

11 Q. Do you agree with that?

12 A. Yes.

13 Q. All right. Handing you what -- I've
14 marked something as Exhibit B.

15 MR. APPEL: Handing a copy to the
16 Court --

17 THE COURT: Thank you.

18 MR. APPEL: -- opposing counsel, and the
19 witness.

20 THE WITNESS: Thank you.

21 BY MR. APPEL:

22 Q. I am going to represent to you that I
23 downloaded this off of the FDA's website
24 from -- in their list of items that are GRAS.

25 I'm -- does this look like the form that

1 you expect a no-question letter to look like
2 for a application for GRAS status with the FDA?

3 A. This looks like a communication from
4 Ocean Spray to FDA. Am I wrong about that?

5 Q. Take a look at the very bottom.

6 A. Oh, I'm sorry. You're correct, yeah.
7 You are correct. You described it correctly.

8 Q. Fair.

9 Is there a document like this that has
10 been given regarding kratom from the FDA?

11 A. Could you clarify. Are you saying the
12 FDA, have they given this document to anybody
13 or --

14 THE COURT: The question is as follows:
15 Has any manufacturer/retailer of kratom in the
16 form that you sell it or in any form asked for
17 a GRAS certification from the -- from the
18 United States Food and Drug Administration? In
19 other words, the cranberry people, I think they
20 sent some powder or something and they said,
21 hey, based on the information we've provided,
22 they got a GRAS notice, even though at the end
23 it's got all this language saying, hey, you're
24 still responsible in other things. Have you or
25 your company or do you know of anybody that has

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1 asked for a similar approval?

2 THE WITNESS: The answer is no specific
3 to the GRAS pathway. The answer would be yes
4 for other pathways like NDIN.

5 BY MR. APPEL:

6 Q. And you believe that you would qualify
7 as a supplement, correct?

8 A. Yes.

9 MR. APPEL: Can I have one moment?

10 THE COURT: Sure.

11 MR. APPEL: Your Honor, may I have a
12 five-minute recess for a quick bathroom break?

13 THE COURT: Sure.

14 - - -

15 Thereupon, a recess was taken.

16 - - -

17 THE COURT: We're back on the record.

18 BY MR. APPEL:

19 Q. Just a very short line of questions
20 left.

21 You -- I think you said that there has
22 been an application for kratom in the NDIS
23 system?

24 A. NDIN system.

25 Q. I'm sorry. NDIN.

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1 Has there been an application?

2 A. My understanding is there's been
3 several.

4 Q. Okay. Did your company submit the
5 application?

6 A. No.

7 Q. Okay. Who did?

8 A. Well, I submitted two of them from my
9 previous employer; and then I'm aware of other
10 companies that have submitted the others.

11 Q. Okay. They're applications, but they
12 haven't been granted; is that fair?

13 A. On -- sure, yeah, that's fair.

14 MR. APPEL: Okay. Thank you for your
15 time. I have no further questions.

16 THE COURT: Any redirect?

17 MR. LITTLE: Briefly, Your Honor.

18 - - -

19 REDIRECT EXAMINATION

20 BY MR. LITTLE:

21 Q. Just so the record is clear, it's a
22 G-R-A-S, not g-r-a-s-s?

23 A. Correct.

24 Q. Okay. And briefly explain to the Court
25 what that program is.

1 A. It's the generally recognized as safe
2 program. It's for entry into the food supply.
3 There is a requirement, a guidance for doing a
4 toxicological assessment to determine that your
5 product is -- I'm blanking on the exact
6 terminology, but generally safe for the entire
7 population. So that's the distinction between
8 GRAS and NDIN is GRAS ought to be
9 population-wide whereas NDIN can have labeled
10 exclusions.

11 Q. Exclusions like should not be --
12 pregnant women?

13 A. Exactly.

14 Q. Or children under the age of 21?

15 A. Exactly.

16 Q. Okay. And is the -- take the GRAS
17 program, since that's what you were asked
18 about, is that a voluntary program where a
19 company or a group make the submission to the
20 FDA on their own volition?

21 A. Yeah.

22 Q. Okay. Is -- is a GRAS certification
23 required in the marketplace?

24 A. It is not the only way to get into the
25 market, no.

1 Q. Okay. What are the other ways of moving
2 into the market?

3 A. For both the GRAS law from 1958 and the
4 dietary supplement law there is a kind of a
5 pencils down rule where if you were in the
6 market and met other criteria prior to the
7 enactment of that law, you may continue to
8 market the product.

9 Besides that, there is the other
10 supplement-related pathway like the new dietary
11 ingredient notification pathway.

12 Q. Okay. And in terms of your company's
13 status from federal law standpoint, are you in
14 compliance with now your marketing of your
15 products?

16 A. Yes.

17 Q. And why are you in compliance with
18 federal law as it relates to the marketing of
19 your products?

20 A. Because our product is a safe dietary
21 ingredient with a basis of safety and with GMPs
22 that comply with current GMPs.

23 In addition to that, we have -- we have
24 evidence that the product was on the market
25 prior to 1994, which qualifies it as an old

1 dietary ingredient.

2 Q. Now, this -- is it NDIN?

3 A. Correct. It stands for new dietary
4 ingredient notification.

5 Q. Okay. And you're saying that there's
6 one or more applications you're aware of that's
7 been submitted by a producer of kratom to the
8 FDA?

9 A. Correct.

10 Q. And what was the company or companies
11 you were associated with in which those
12 applications have already been made to the FDA?

13 A. The company I was associated with was
14 called Johnson Foods.

15 Q. Okay. And are those applications still
16 pending, to your knowledge?

17 A. No, they're not.

18 Q. So no action was ultimately taken?

19 A. No, not by Johnson Foods.

20 Q. Okay. Let's go back to a couple of the
21 other questions you were asked about. You --
22 in response to counsel's question, you started
23 to describe the customers. Do you do any
24 research as to the customers that utilize your
25 company's products?

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1 A. We do considerable research.

2 Q. And can you share with the Court the
3 research results about the customer profile for
4 your customers?

5 A. Yeah. For example, earlier I gave an
6 example of a survey we did of subscribers where
7 75 percent of them recorded using the product
8 as label instructions. That same survey we
9 collected demographic data. We wanted to know
10 who are these people.

11 I thought the data was very interesting.
12 A majority of these people, almost 60 percent
13 of them, are married. The unemployment rate is
14 a third the national average, less than
15 2 percent. The average income, over 55 percent
16 of these people made above \$100,000.
17 Forty-five percent of them said -- described
18 their job as being on their feet, something
19 like construction or hospital work or police
20 officers as well. The other 55 percent do
21 office work. So it's -- it's quite a little
22 population. Average age is, I think, somewhere
23 between 35 and 40 and mostly men.

24 Q. And what was the -- are you a customer?

25 A. I am, yes.

1 Q. And why do you consume this product?

2 A. I enjoy the product. I use it
3 situationally as a mild energy booster.

4 Q. Okay. And how do you contrast with just
5 drinking a Diet Coke with caffeine in it?

6 A. A Diet Coke with caffeine, I mean, look,
7 you'll feel it, but it's a very subtle, very --
8 it's almost like a -- it's a drink, right?
9 It's something to hydrate you. This thing is
10 really more just focused on giving you the
11 energy boost.

12 Q. Okay. You also were asked a bunch of
13 questions about labeling. In response you used
14 the term label against. What's label against
15 mean?

16 A. So I'm referring to the portion of our
17 label that advises against certain populations
18 using the product.

19 Q. Okay. And does that mean you -- you
20 label against those because those folks have
21 not been part of your scientific testing?

22 A. Correct. We don't have evidence that we
23 know it's safe for them.

24 Q. So much like you might have on the
25 bottle of a 12-pack of beer where it says

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1 someone who's pregnant shouldn't drink, you'll
2 put those type of labels on your packaging?

3 A. Precisely.

4 Q. You were asked some questions then about
5 the FDA's position on matters and --

6 MR. LITTLE: Your Honor, I don't think I
7 want to take the witness through all these, but
8 we do have in Series 6 of our exhibits the
9 collection of the FDA releases and the
10 newspaper articles and videos of those FDA
11 representatives. It's going to go from
12 Exhibit 6A through Exhibit 6K. 6L is a summary
13 of some of those.

14 Do you want me to go through each one of
15 those, or is it sufficient that we identify
16 them and perhaps counsel wants to go through
17 every one of them.

18 MR. APPEL: Can we go off the record for
19 one moment, and I'll consult?

20 THE COURT: Sure.

21 MR. LITTLE: Sure.

22 - - -

23 Thereupon, a discussion was held off the
24 record.

25 - - -

1 THE COURT: Go ahead.

2 MR. APPEL: I'm going to say, Marion,
3 we're not going to object to the --

4 THE COURT: Great. And I'll admit your
5 stuff, whatever you want to admit.

6 MR. LITTLE: Your Honor, that's going to
7 be Exhibits 6A through 6K.

8 And just for everyone's edification, the
9 exhibits -- there's a couple video clips, Your
10 Honor. Those are on the flash drive. That's
11 6D, 6J, and 6K.

12 Brittny, are those in the --

13 MS. PIERSON: In the notebooks.

14 MR. LITTLE: So there should be a flash
15 drive in the notebook which contains all those
16 materials.

17 THE COURT: I see it.

18 MR. LITTLE: And rather than taking this
19 witness through all these, I will simply talk
20 about those later.

21 I typically move for exhibits at the
22 end, your Honor; but with respect to this
23 witness, we'd also have Exhibits 5A and 5B that
24 we would offer.

25 THE COURT: Any objection to those

1 exhibits?

2 MR. APPEL: No.

3 THE COURT: All right.

4 MR. LITTLE: Your Honor, that's all the
5 questions I have for this witness. Thank you.

6 THE COURT: Anything else?

7 MR. APPEL: Very short recross.

8 - - -

9 RECROSS-EXAMINATION

10 BY MR. APPEL:

11 Q. I think you just testified that
12 75 percent of your customers report that they
13 follow the label, correct?

14 A. Correct.

15 Q. Does that mean 25 percent don't follow
16 the label?

17 A. Twenty-five percent described using --
18 yeah, correct.

19 Q. Your sales in Ohio in 2025 were
20 \$4.8 million?

21 A. Correct.

22 Q. So that would mean approximately
23 \$1.2 million of product was bought by people
24 who were not following the label; is that fair?

25 A. If you were to apply a uniform -- a

1 uniform distribution of those numbers, yeah.

2 MR. APPEL: No further questions.

3 THE COURT: All right.

4 MR. APPEL: Wait. Sorry.

5 THE COURT: Hold on.

6 MR. APPEL: Sorry. We are done.

7 THE COURT: Okay. Anything else?

8 MR. LITTLE: No, Your Honor. Thank you.

9 THE COURT: All right. You can step
10 down. Thanks.

11 All right. Well, your time is running
12 out here, Mr. Little.

13 MR. LITTLE: That will -- that concludes
14 our live testimony, Your Honor.

15 THE COURT: All right. What about the
16 rest of these exhibits? Are they -- are you
17 offering them, or are you not offering them or
18 what?

19 MR. LITTLE: Many of these are for
20 cross-examination. So the ones that we intend
21 to offer have been offered.

22 THE COURT: Okay.

23 MR. LITTLE: The others are part of --
24 some of them are already part of the record
25 before this Court, but I've reserved the rest

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1 for cross-examination.

2 THE COURT: All right. So let's just
3 make sure we're clear on the exhibits that
4 you've offered. So go ahead and go through
5 those quickly.

6 MR. LITTLE: Yes, Your Honor, that would
7 be Exhibits 4A, 4B, 5A, 5B, 6A through 6K.

8 THE COURT: What about L? L is a
9 summary, I think.

10 MR. LITTLE: It's just -- it's just a
11 demonstrative exhibit, Your Honor.

12 THE COURT: All right.

13 MR. APPEL: No objection.

14 THE COURT: Those will all be admitted
15 without objection.

16 MR. LITTLE: Thank you.

17 - - -

18 Thereupon, the exhibits last-above
19 offered were admitted into evidence on behalf
20 of the plaintiff and were marked Plaintiff's
21 Exhibits 4A, 4B, 5A, 5B, 6A through 6K.

22 - - -

23 THE COURT: Anything else?

24 MR. LITTLE: No, Your Honor.

25 THE COURT: All right. So you're

1 resting for today?

2 MR. LITTLE: Yes, Your Honor.

3 THE COURT: Okay. You guys have
4 witnesses? What's your pleasure?

5 MR. APPEL: Yes, we do.

6 MR. WILSON: Yes. We have one witness
7 we'd like to call. He's been sequestered, so
8 we're going to retrieve him now. Thank you.

9 THE COURT: All right. Do you want to
10 identify yourself for the record in case she
11 didn't get everybody in the beginning.

12 MR. WILSON: Thanks.

13 Grant Wilson on behalf of the board of
14 pharmacy, Assistant Attorney General practicing
15 out of 30 East Broad, 23rd Floor, Columbus,
16 Ohio 43215.

17 THE COURT: Office adjacent to Kyle.

18 MR. WILSON: Yes. Next door to
19 Mr. Wilson.

20 THE COURT: All right. We can bring our
21 witness up, if you would, please.

22 - - -

23 Thereupon, a discussion was held off the
24 record.

25 - - -

1 THE COURT: Thanks for your patience.

2 If you would, raise your right hand.

3 (Witness sworn.)

4 THE COURT: Go ahead and have a seat.

5 THE WITNESS: Thank you.

6 THE COURT: I don't know if you heard
7 all the -- I don't think you heard the
8 instructions. So make sure we answer verbally.
9 We have had some cross-talking which is
10 partially my fault Let's try not to do that.
11 Wait until the lawyer finishes the question to
12 respond. Makes it hard for Laurel to take
13 everything down. Make sure you project your
14 voice out so she can hear you. If there's an
15 objection, stop; and I'll direct you as to what
16 to do.

17 So if you would introduce yourself to me
18 and spell your name.

19 THE WITNESS: My name is David Miran,
20 Jr. D-a-v-i-d, M-i-r-a-n, and Jr.

21 THE COURT: Very good.

22 You may request ask questions.

23 MR. WILSON: Thank you, Your Honor.

24 - - -

25

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1 DAVID MIRAN, JR.

2 Called as a witness on behalf of the defendant,
3 being first duly sworn, testified as follows:

4 DIRECT EXAMINATION

5 BY MR. WILSON:

6 Q. Good afternoon, Mr. Miran. Appreciate
7 your patience here. I know it's been a long
8 day for you.

9 I'm going to just ask you some questions
10 today related to your role with the Ohio
11 Department of Agriculture. Okay?

12 A. Uh-huh, yes.

13 Q. Are you currently employed?

14 A. Yes.

15 Q. Where are you employed?

16 A. The Ohio Department of Agriculture.

17 Q. What do you do for the Ohio Department
18 of Agriculture?

19 A. I am the deputy director of regulatory
20 programs for the department.

21 Q. What does deputy director of regulatory
22 programs for the department of agriculture do
23 on a day-to-day basis?

24 A. I oversee the vast majority of our
25 regulatory programs for the department, not on

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1 a day-to-day level, but on an oversight policy
2 level; and those divisions include the division
3 of food safety, the division of meat
4 inspection, dairy division, amongst others.

5 Q. Okay. So you would oversee the
6 regulation of kratom in Ohio from the ODA
7 standpoint, would that be correct?

8 A. That's correct.

9 Q. How is kratom currently regulated in
10 Ohio?

11 A. From the Ohio Department of
12 Agriculture's perspective kratom is regulated
13 from the perspective of if it is -- generally
14 if it is included into a food product or
15 dietary supplement. That -- that would be the
16 scope of our jurisdiction with regard to
17 kratom.

18 Q. And what is the analysis for each of
19 those to decide if it is appropriately added to
20 either -- first to a food product?

21 A. So kratom and many other food additives
22 or food products that -- the first and foremost
23 aspect we have to determine is if that product
24 is considered GRAS or generally recognized as
25 safe.

1 Q. We've had some testimony about GRAS
2 today. Can you explain that from your
3 perspective to the Court about what that is?

4 A. Sure. GRAS is generally recognized as
5 safe. It's primarily the duty of the FDA, the
6 food and drug administration on a federal
7 level. And what FDA does is it determines
8 whether or not a food additive, a food
9 substance, could be used in many terms, is fit
10 to be placed -- fit and safe to be included in
11 food products.

12 Q. And how --

13 THE COURT: So this only includes food
14 products? So I guess the prequestion or a
15 question I would have is: You know, do you
16 have a position as to whether or not kratom,
17 you know, as it's marketed here as a
18 50-milligram liquid, is that considered a food?

19 THE WITNESS: So, Your Honor, the GRAS
20 is for food. There is a separate process
21 that's relatively similar for dietary
22 supplements and then a significantly more
23 complicated process for drugs that, frankly,
24 I'm not that familiar with the drug process
25 because that's outside of ODA's jurisdiction.

1 THE COURT: So does the department of
2 agriculture have a position that you know of --
3 and, again, maybe it's a legal position, maybe
4 the question's not proper -- as to whether or
5 not the product that we've heard about here
6 today marketed in a 50-milligram liquid that
7 has ground up powder and some other things
8 added to it, is that considered a food for
9 purposes of your agency? If you have an
10 opinion or if you know.

11 THE WITNESS: If the question is does
12 ODA have a stance on whether kratom would be
13 considered GRAS approved?

14 THE COURT: Well, is it a food?

15 THE WITNESS: Is it a food is a
16 case-by-case determination based on what the
17 packaging and the intent of the product in
18 front of me at that time.

19 THE COURT: Okay.

20 Go ahead. You may ask.

21 MR. WILSON: Okay.

22 BY MR. WILSON:

23 Q. To your knowledge, has kratom ever been
24 approved as a -- as GRAS for any purpose
25 related to food?

1 A. No.

2 Q. To your knowledge, is there any -- has
3 there been any application for GRAS
4 certification related to kratom to the FDA?

5 A. Not to my knowledge.

6 Q. What are the parameters of establishing
7 something as GRAS? Are there certain pathways?

8 A. There are pathways. It's all through
9 the FDA. What the FDA does is an
10 establishment. ODA is not involved in that
11 determination. We do not do that. Again, the
12 FDA does that, but from my understanding.

13 MR. LITTLE: Objection. Foundation.

14 THE COURT: Well, if you know. I'll let
15 you testify, if you know.

16 MR. WILSON: I can lay the foundation.
17 I was going to go there in my next question.
18 BY MR. WILSON:

19 Q. How does Ohio -- what is Ohio's version
20 of the Food, Drug, and Cosmetic Act?

21 A. The Ohio Department of Agriculture --
22 well, the Ohio Revised Code through
23 Subchapter 3715 incorporates a good deal of the
24 Food, Drug, and Cosmetic Act. And additionally
25 we incorporate by reference through our Ohio

1 Administrative Code rules a significant number
2 of sections of 21 C.F.R. sections.

3 Q. And how does that relate to the FDA's
4 GRAS determinations?

5 A. We rely solely upon FDA's determination
6 on GRAS approval in making those decisions.

7 Q. How would you characterize the -- Ohio's
8 enforcement vis-a-vis the FDA regulations and
9 law?

10 A. Could you say that in another way?

11 Q. Okay. How would you describe how Ohio
12 makes determinations about things like GRAS or
13 new dietary ingredients?

14 MR. LITTLE: Objection to the question.
15 I'm not sure what's being asked.

16 THE COURT: Well, I think the question
17 is this: Do you incorporate FDA and then
18 whatever they decide, you've incorporated it,
19 and then you take action based on that? I
20 don't know if that's worded properly, but --

21 MR. WILSON: Yes.

22 THE WITNESS: Correct. We follow FDA's
23 guidance on whether or not any compound,
24 substance, or whatever you want to say is GRAS
25 approved and we follow that unless there is

1 some statutory -- unless the general assembly
2 has said otherwise.

3 Q. Has the general assembly said otherwise
4 in Ohio with regard to kratom?

5 A. No.

6 Q. Okay. Now, I want to talk about new
7 dietary ingredients. How is that process --
8 how does that process work?

9 A. It's a similar process to the -- similar
10 in structure to the GRAS process. You apply to
11 FDA -- a manufacturer would apply to FDA that a
12 new dietary supplement ingredient should be
13 considered for general FDA approval; and
14 there's studies done and things of that nature,
15 but FDA handles that process.

16 Q. Are you aware what happens after the
17 NDIN is submitted to the FDA? Do they approve,
18 deny?

19 A. FDA generally gives a -- they respond
20 generally in one way, shape, or form from a
21 dietary supplement perspective. They respond
22 generally within 180 days, but they're not
23 required to I don't believe.

24 Q. How do they respond?

25 A. They would respond letting them know

1 that there's no objections to the dietary
2 supplement ingredient.

3 Q. What happens if there are objections?

4 A. Then they would indicate that -- that
5 it's not -- it's not permitted to be included
6 as a dietary supplement.

7 Q. How -- are you aware of any submissions
8 to the FDA on an NDIN basis --

9 A. Not specifically.

10 Q. -- for kratom?

11 A. Yeah. Sorry.

12 Q. Yeah.

13 A. Not specifically, but I do believe that
14 there may be -- I don't know specifically.
15 I'll leave it at that.

16 Q. If there were, would notice be given to
17 whoever filed that that there were no
18 questions?

19 A. I believe so.

20 Q. Are you aware if there are any
21 submissions that have been met -- responded to
22 by the FDA with a no-questions document?

23 A. No, I'm not aware of any.

24 THE COURT: If there would be -- say FDA
25 says no objections, how would regulatory

1 agencies be notified? Would they be notified
2 independently by the FDA?

3 THE WITNESS: The department of
4 agriculture is in routine conversations with
5 FDA. So, yes, we would -- we would be made
6 aware of that.

7 THE COURT: Thank you.

8 BY MR. WILSON:

9 Q. And are you also familiar with GMP or
10 good manufacturing practices?

11 A. Yes.

12 Q. What are those, to your understanding?

13 A. Yeah. GMPs are basic sanitation -- the
14 heart of what ODA food safety does is it
15 inspects food manufacturers to ensure that the
16 facility in which they are producing food meets
17 GMPs, good manufacturing practices. The best
18 way that I can say it is clean floors, walls,
19 and ceilings; clean equipment; making sure that
20 appropriate food safety standards are being
21 applied.

22 Q. Okay. And do those standards consider
23 what's going into the product, like what's
24 being manufactured?

25 A. Absolutely.

1 Q. How?

2 A. If it's -- food safety establishments
3 are only allowed to produce safe quality
4 products; and a part of that would be
5 determining if the food itself is adulterated.
6 So if there's any foreign substances in that
7 food product or if they're using ingredients
8 that is not GRAS approved.

9 Q. What happens -- how is -- is a food or
10 something that's being manufactured as a food
11 product that it contains an ingredient that is
12 not GRAS or otherwise approved, is that
13 considered adulterated?

14 A. That's correct. Inclusion of a nonGRAS
15 approved ingredients would be considered
16 adulterated because it's unfit for food.

17 Q. And, again, because -- if you include
18 kratom in a food product, how would that affect
19 its status related to being adulterated?

20 MR. LITTLE: Objection. Calls for a
21 legal -- an expert opinion, and he's not been
22 designated as an expert.

23 THE COURT: I'm going to overrule it and
24 allow it if he has an answer.

25 Go ahead.

1 THE WITNESS: We would consider it
2 adulterated pursuant to the fact that kratom is
3 not GRAS approved.

4 BY MR. WILSON:

5 Q. Is there a similar analysis for new
6 dietary ingredients?

7 A. Correct.

8 Q. What is that?

9 A. It would be considered adulterated.

10 Q. Okay. Would complying with the GMP
11 practices, would that guarantee the safety of
12 the products that are being used to make the --
13 to make the product?

14 A. No.

15 MR. LITTLE: Objection. Foundation.

16 I don't think this witness has a
17 foundation for most of what he's testified to,
18 Your Honor; but at some point I've got to
19 call -- call foul here.

20 THE COURT: All right. Lay a
21 foundation, please.

22 Sustained.

23 BY MR. WILSON:

24 Q. All right. What are --

25 MR. WILSON: Give me a second.

1 THE COURT: Sure. Take your time.

2 BY MR. WILSON:

3 Q. Mr. Meyer [sic], do you know or are you
4 familiar with Ohio Revised Code 3715?

5 A. Yes.

6 Q. Are you also familiar with 21 U.S.C. and
7 its various subparts?

8 A. To a degree, yes. Yeah, I'm not
9 verbatim on every single one. It is a big
10 title, but yes.

11 Q. And does that include -- does that
12 knowledge include how something is certified as
13 GRAS?

14 A. Yes.

15 Q. For both statutes?

16 A. There's not a specific statute in the
17 Ohio Revised Code that outlines GRAS, but yes.

18 Q. Okay. For -- what about for general
19 manufacturing or good manufacturing processes?

20 A. Yes.

21 Q. What about for new dietary information?

22 A. Generally, yes.

23 Q. Are you basing your testimony today off
24 of that knowledge?

25 A. Yes.

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1 Q. So based upon that knowledge, does -- do
2 good manufacturing processes guarantee the
3 safety of the food or supplements that are
4 contained in a product that is being
5 manufactured?

6 MR. LITTLE: Same objection. No
7 foundation.

8 His general familiarity with statutes
9 doesn't provide him a foundation for this, Your
10 Honor.

11 THE COURT: Overruled.

12 THE WITNESS: No. The fact that a
13 facility is clean is -- is a positive first
14 step; but if you're putting razor blades in
15 that clean facility into a cookie, it does not
16 make it safe.

17 BY MR. WILSON:

18 Q. And I'm going to give you a document
19 that we're going to label as State's Exhibit C.
20 I'm sorry. It's going to be State's Exhibit B,
21 which I believe you've already been given.

22 There's some highlights just for
23 efficiency, if you want to look at that.

24 MR. LITTLE: This is B.

25 MR. HOGAN: Randy, we called this B.

1 THE COURT: The letter that's B is Dear
2 Dr. Cove.

3 MR. WILSON: Oh, I'm sorry. It's A.
4 This one has a B on it, but --

5 THE COURT: Okay. That's FDA and
6 kratom?

7 MR. WILSON: That's FDA and kratom,
8 correct.

9 THE COURT: Okay.
10 BY MR. WILSON:

11 Q. All right. Mr. Meyer, have you seen
12 this document before?

13 A. I have.

14 Q. What is it?

15 A. It is guidance from FDA regarding
16 kratom.

17 Q. To your knowledge, is this the most
18 current statement the FDA has made on kratom?

19 A. This is -- to my knowledge, this is what
20 is currently on FDA's website.

21 Q. Okay. And I want to direct you to some
22 passages here. On your version it is the third
23 paragraph on the first page. Do you see where
24 it says, There are no prescriptions or
25 over-the-counter drug products containing

1 kratom or its known alkaloids that are legally
2 on the market in the U.S.? If a new drug
3 application is submitted for kratom or one of
4 its components to treat a specific health
5 condition, FDA will review the effective --
6 will review the scientific data to determine if
7 a drug product containing kratom or its
8 components is safe and effective to treat the
9 specific medical condition. Do you see that?

10 A. I do.

11 Q. Is that consistent with ODA's position?

12 A. Yes, that's consistent with ODA's
13 understanding of kratom and drugs.

14 Q. I want to draw your attention to the
15 same paragraph, the next page, page 2,
16 beginning at the very top where it says, Kratom
17 is not appropriate for use as a dietary
18 supplement. The FDA has concluded from
19 available information, including scientific
20 data, that kratom is a new dietary ingredient
21 for which there is inadequate information to
22 provide reasonable assurance that such
23 ingredient does not present a significant or
24 unreasonable risk of illness or injury and,
25 therefore, dietary supplements that are or

1 contain kratom are adulterated under
2 Section 402(F)(1)(B) of the FD&C or the Federal
3 Drug and Cosmetic Act. Do you see where it
4 says that?

5 A. Yes, I do.

6 Q. Is that consistent with ODA's position?

7 MR. LITTLE: I'm going to object, Your
8 Honor. I'm trying to understand what position
9 is because we were told earlier this morning
10 that the department doesn't take any action or
11 have a position on this. So is this the
12 position of this witness as to -- I'm unclear.
13 Is this supposed to be a formal position? What
14 are we talking about?

15 MR. WILSON: I think it --

16 THE COURT: Well, let me say this: So I
17 see these guidelines. And I guess I think
18 that's what's currently on the website, even
19 though we had some July study in 2025. So as I
20 read these things, it says there's not enough
21 information. They haven't banned it; and if it
22 is the FDA's official position, I don't know
23 why they just don't seize everything that has,
24 you know -- except the -- if it says concluded
25 as a dietary ingredient, I don't know why they

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1 don't seize it all, capsules, everywhere ban
2 it.

3 So I'm taking this that is some kind of
4 guideline on the website. I don't know that
5 it's some official declaration because, I mean,
6 you know, we got 2 billion worth of sales in
7 the United States; and I can't believe they're
8 just selling the leaves. So I don't know.

9 I'm going to allow the question, but I
10 got questions myself about what does this mean.
11 To me it seems like they're saying we don't
12 have enough evidence to declare it's safe. We
13 haven't banned it.

14 But, anyway, go ahead. Go ahead with
15 the question. I forget what it was now that
16 I --

17 BY MR. WILSON:

18 Q. I believe I had directed you to --

19 THE COURT: Well, he asked you -- I
20 remember now.

21 MR. WILSON: Yeah.

22 THE COURT: Is it the department of
23 agriculture's position, at least, you know, as
24 far as you're concerned, that you -- the Ohio
25 Department of Agriculture has a position that's

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1 consistent with whatever these guidelines are?

2 THE WITNESS: Yes, Your Honor. This
3 is -- I believe this document on the website is
4 actually current as of December of 2025. It
5 says it on the website; but, yes, this is ODA's
6 position with regard to dietary supplements and
7 food.

8 THE COURT: And I guess also it's on the
9 website, but who wrote it, who submitted it,
10 who signed it? I mean, even if Kennedy signed
11 it, well, he's not FDA, I don't think.

12 Go ahead.

13 BY MR. WILSON:

14 Q. So I just want to make sure that it's
15 clear. ODA -- or you believe that this is the
16 most current guidance on kratom issued by the
17 FDA?

18 A. Yes, sir.

19 Q. And you enforce -- or you take this
20 position in your capacity as a director of the
21 regulatory food safety?

22 A. We do.

23 Q. And dietary supplement safety?

24 A. Correct.

25 Q. ODA also has hearing responsibilities

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1 under 119; is that correct?

2 A. Yes.

3 Q. What is your role in the 119 process at
4 ODA?

5 A. It -- if there were -- if ODA were to
6 take an action that was required at a
7 Chapter 119 hearing, I would just be a part of
8 the planning process and things of that nature.

9 Q. And you mentioned earlier that you speak
10 regularly with the FDA. Do they communicate
11 information related to things like embargoes?

12 A. ODA conducts embargoes.

13 Q. Okay. In state?

14 A. In state, yep.

15 Q. And who do you enforce -- or who is
16 subject to a potential embargo in Ohio?

17 A. Pursuant to Ohio Revised Code 3715, the
18 department of agriculture has authority to
19 embargo food anywhere in the state if it is
20 considered adulterated.

21 Q. Okay. So does ODA need rules to
22 consider whether something is adulterated?

23 A. No.

24 MR. LITTLE: Objection. Calls for a
25 legal conclusion.

1 THE COURT: Overruled.

2 I guess, again, I want to ask this
3 question, because --

4 MR. LITTLE: I want to ask that
5 question. I know what you're going to ask.
6 Save it for me.

7 THE COURT: All right. I'll save it for
8 you.

9 Go ahead.

10 MR. WILSON: I don't think I have any --
11 I don't think I have any further questions for
12 this witness.

13 THE COURT: All right. Go ahead.
14 Cross-examination.

15 If you missed anything, I'll let you
16 open it back up when you come back on redirect.

17 MR. LITTLE: Thank you Your Honor.

18 - - -

19 CROSS-EXAMINATION

20 BY MR. LITTLE:

21 Q. Sir, prior to May of 2026, can you tell
22 the Court how many kratom products had been
23 embargoed by the Ohio Department of
24 Agriculture?

25 A. I don't have a specific number, but it's

1 greater than one.

2 Q. Greater than one?

3 A. Yes.

4 Q. How about greater than five?

5 A. Yes.

6 Q. Do you have any sense?

7 A. No, I honestly don't.

8 Q. Was it for more than one site?

9 A. Yes.

10 Q. Okay. What type of product was it?

11 A. Anything that would be considered
12 meeting the definition of a food or dietary
13 supplement.

14 Q. Well, no. I'm asking what type of
15 product was embargoed.

16 A. Could you give me an example of what
17 you're looking for?

18 Q. Well, I'm trying to find out what type
19 of kratom product was embargoed by your
20 department prior to May of '26.

21 A. Food kratom products that would be
22 considered food such as cookies, teas, capsule
23 pills, drinks, those sorts of products.

24 Q. Okay. And so did you first tag those
25 products?

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1 A. That is how the embargo process works.

2 Q. Okay. So you tagged them, you had an
3 embargo, and did you ever at any point in time
4 suggest that to the public that you were not
5 going to enforce these laws?

6 A. Would you say that again for me?

7 Q. Excuse me. I'll restate it.

8 Did you -- at any point in time did the
9 department, to your knowledge, ever communicate
10 to the public that it was not intending to
11 enforce Ohio and federal laws as they impacted
12 any product involving kratom?

13 A. I want to make sure I understand you
14 correctly; and so I'll give you an answer and
15 if it's not answering the question, please let
16 me know.

17 Q. I'll give you a better question if
18 you're confused.

19 A. Okay.

20 Q. You're always entitled to a fair
21 question.

22 I'm trying to find out whether there was
23 a kratom product, whether you want to
24 characterize it as a food or a diet supplement,
25 that you ever communicated to the Ohio public

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1 that was permissible in the state?

2 A. There are no kratom food products that
3 are permissible in the state pursuant to Ohio
4 Revised Code and FDA guidance.

5 Q. Okay. And the code section of the
6 Revised Code you're relying upon is which,
7 please?

8 A. It would be the Code Section 3715, the
9 adulteration, adulterated food section.

10 Q. Okay.

11 A. I think it's 58 -- 52 or 58.

12 Q. And the federal law that you're relying
13 upon for which you just told us is what,
14 please?

15 A. I don't know that code section off the
16 top of my head, but it is the GRAS
17 determination.

18 Q. Well, there's a lot of products that are
19 available on the shelves in this state that
20 don't have GRAS certifications, right?

21 A. Not that I'm aware of.

22 Q. Everything has a GRAS certification?

23 A. It either meets the FDA approval or it
24 was commonly recognized as safe prior to 1950
25 something.

1 Q. Okay. So something that's recognized
2 safe prior to 1950 wouldn't have had a GRAS
3 certification?

4 A. Correct.

5 Q. So there's a lot of products on shelves
6 in stores throughout the state of Ohio that do
7 not have a GRAS certification?

8 A. I think that may be a semantics issue,
9 but it was determined safe by FDA. It did not
10 go through the full-blown GRAS approval post
11 the '50s.

12 Q. Well, I don't think it's semantics.
13 There is a GRAS certification. That's what you
14 said, correct?

15 A. There is, yes.

16 Q. Okay. And we can agree that there are
17 many products available on the shelves
18 throughout all retailers in the state of Ohio
19 that do not have a GRAS certification; is that
20 correct?

21 A. They do not -- I can agree that those --
22 there's many products on the shelves that did
23 not go through the same GRAS process.

24 Q. And there's also products on -- there's
25 dietary supplements on shelves of Ohio

1 retailers that also did not go through the
2 similar process you described that would apply
3 for new dietary supplements, correct?

4 A. Similarly in the '90s there was a pause
5 and anything that was commonly used before then
6 was grandfathered in, if you will.

7 Q. Okay. Well, did you go back at any
8 point -- I'm sorry. There wasn't much
9 information provided about your background.
10 How long have you been with the agency?

11 A. Thirteen years.

12 Q. And your educational background?

13 A. Went to Ohio State, and I went to law
14 school at Capital Law.

15 Q. Okay. What was your scientific
16 background at Ohio State?

17 A. I majored in philosophy.

18 Q. Okay. Well, I'm not going to ask you
19 any philosophical questions today or maybe
20 perhaps I shouldn't ask you the scientific ones
21 either.

22 MR. WILSON: Objection. Argumentative.

23 THE COURT: That's argumentative.

24 Sustained.

25 MR. LITTLE: I'll argue it later, Your

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1 Honor. Thank you.

2 BY MR. LITTLE:

3 Q. So going back, does the department have
4 any internal memorandums setting forth what its
5 position is on kratom?

6 A. We provide guidance on our website that
7 discuss the status of kratom in food products.

8 Q. I asked whether you had any internal
9 memorandums within the department that discuss
10 the subject of kratom.

11 A. We probably do. I can't speak to any
12 specificity.

13 Q. Well, do you have any internal documents
14 at the department that talked about the legal
15 support for the position you stated for the
16 Court today on kratom?

17 A. I would imagine that there is a memo at
18 ODA that discusses the legality of kratom.

19 Q. Well, we don't have to guess or
20 speculate. I'm trying to find out what you
21 know today. Do you know one way or the other?

22 A. I can't tell you 100 percent if there's
23 a specific memo that exists.

24 Q. Okay. Well, you said there was
25 something on your website. There's going to be

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1 a notebook in front of you. Let's look to see
2 what might be on your website. If you could
3 turn to Exhibit 3.

4 A. I don't have a notebook.

5 MR. LITTLE: If I may approach the
6 witness, Your Honor?

7 THE COURT: Sure.

8 THE WITNESS: Thank you, sir.

9 BY MR. LITTLE:

10 Q. Looking at what's marked as Exhibit 3,
11 sir, is that what you were referencing a moment
12 ago that appears on the Ohio Department of
13 Agriculture's website?

14 A. It does. It is.

15 Q. Now, separate and apart from, again,
16 this two-page document that appears on the
17 website, can you tell us what other written
18 documentation had been created by the
19 department of agriculture to support any of the
20 statements found in this exhibit?

21 A. Are you asking for whether or not ODA
22 has conducted a scientific analysis on this
23 subject?

24 Q. Well, let's start there. Has your
25 department conducted any type of scientific

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1 analysis to support any of the statements as
2 set forth in Exhibit 3 or in your testimony
3 today?

4 A. We rely -- no. We rely on FDA's
5 guidance.

6 Q. Okay. So for all the positions that are
7 set forth in what's been marked as Exhibit 3,
8 is that -- are you relying upon FDA guidance?

9 A. Yes.

10 Q. Other than FDA guidance, is there any
11 other basis that you can site for us to support
12 the statement that's found in Exhibit 3?

13 A. No.

14 Q. Do you know when Exhibit 3 was actually
15 first prepared?

16 A. There have been previous versions of a
17 kratom fact sheet. I think this one is
18 relatively new. I don't have a date.

19 Q. Did you have any involvement in the
20 authoring of this?

21 A. I believe I reviewed it.

22 Q. Okay. Who actually authored it?

23 A. It would have been between our
24 communications office and our division of food
25 safety.

1 Q. Okay. So in terms of any former
2 iteration of this, do you know when this was
3 first posted on the agency's website?

4 A. Recent. I can't give you a date.

5 Q. Recent in terms of?

6 A. Couple months.

7 Q. Couple months?

8 A. Within the last few months.

9 Q. Sure. What about the -- and do you know
10 to what extent the predecessor's statement
11 differed from what we've now marked as
12 Exhibit 3?

13 A. I don't believe very much different, to
14 be honest.

15 Q. Okay. Well, in terms of the form with
16 its current verbiage and the predecessor's with
17 similar verbiage, how long has that been stated
18 in place -- or circulated in place?

19 A. Several years.

20 Q. Several years. More than five?

21 A. I would say plus or minus one on that
22 topic, on that number.

23 Q. Is the intent of Exhibit 3 as posted on
24 the department's website to communicate the --
25 to the public the department's formal position

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1 on this matter?

2 A. It is certainly a part of that, yes.

3 Q. Is there any other document by which the
4 agency has communicated its formal position to
5 the public other than through this website page
6 that we've marked as Exhibit 3?

7 A. There are likely emails to
8 individuals/entities that would say the same;
9 but from a broad communication standpoint, this
10 would be it.

11 Q. And maybe I'll ask you a better
12 question. In terms of circulation for general
13 applicability, is Exhibit 3 the sole document
14 you can think of in which the department has
15 communicated to the public its formal position
16 on kratom?

17 A. It is certainly the number one document,
18 yes.

19 Q. I'm asking you if there are any others.

20 A. I don't believe that there are.

21 Q. And is it your expectation that the
22 public would have to comport itself with what
23 is being formally communicated by the
24 department in Exhibit 3?

25 A. Yes.

1 Q. And so then, other than relying upon
2 what you believe to be the FDA's current
3 statement on this matter, you know of no other
4 scientific basis to support the policy position
5 stated by the department of agriculture in
6 Exhibit 3; is that correct?

7 A. We -- as I said before, we rely upon
8 FDA's guidance on this document.

9 Q. Oh, I understand that. I'd like an
10 answer to my question.

11 MR. LITTLE: Could you read back the
12 question for us, please.

13 THE COURT: The question is: Is there
14 anything else besides the FDA statement that
15 you're relying upon for these --

16 THE WITNESS: No. No, Your Honor.

17 MR. LITTLE: Your voice --

18 THE WITNESS: No, Your Honor.

19 BY MR. LITTLE:

20 Q. Now -- so we were talking a moment ago
21 still looking at the second page of Exhibit 3
22 which states the department's formal position
23 about what is permitted with respect to kratom.
24 And now that we've been talking, do you have a
25 better sense you can share with the Court to

1 how many type of -- on how many occasions,
2 then, there's been an embargo or a tagging of
3 product?

4 A. I still can't give you a specific answer
5 on that.

6 Q. Do you know whether -- has it been
7 something that's occurred in the last year or
8 in the course of multiple years since this
9 occurred?

10 A. We've embargoed kratom products over
11 multiple years, yes.

12 Q. And have there been any Chapter 119
13 proceedings associated with that?

14 A. Not to my knowledge.

15 Q. Has there been any court proceedings
16 associated with that?

17 A. Not to my knowledge.

18 Q. Now, let's talk about the FDA's
19 statement, since that's what is the source. If
20 you'd go back to Exhibit A, and let's look at
21 this source document. Do you know when -- what
22 the date was that this source document was
23 created?

24 A. Can you -- Exhibit A.

25 THE COURT: FDA and kratom.

1 THE WITNESS: Oh, yes. Sorry.

2 BY MR. LITTLE:

3 Q. Shown to you by your counsel.

4 THE COURT: Do you have it there?

5 THE WITNESS: I do.

6 THE COURT: Just wanted to make sure you
7 have it.

8 THE WITNESS: Keeping things tidy up
9 here.

10 BY MR. LITTLE:

11 Q. So when was this first published?

12 A. First published I do not know. I know
13 that it was the -- the most current version on
14 FDA's website states December of 2025.

15 Q. And you obviously didn't have any
16 involvement in its preparation. Do you know
17 anyone else that had any involvement in its
18 preparation?

19 A. No.

20 Q. Now, you said you looked at the website.
21 Did you look at any other materials from the
22 FDA about what might be its current position on
23 kratom other than what's embodied in Exhibit A?

24 A. The only other thing we would look for
25 is an official determination that it has

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1 been -- received GRAS approval, and we have not
2 seen any of that.

3 Q. Is that something you look for?

4 A. We would look for it, yes, if we knew it
5 existed.

6 Q. I'm sorry. My question was did you look
7 for it.

8 A. I did not look for it because we have
9 routine communications with FDA on these sorts
10 of subjects.

11 Q. So does that mean because you have
12 routine communications with the FDA on these
13 subjects that you actually contacted the FDA to
14 ask what its current position was on kratom?

15 A. We've had conversations on FDA's current
16 stance on kratom.

17 Q. That is you reached out?

18 A. As a part of routine conversation. I
19 did not pick up the phone to call specifically
20 on kratom, if that is the question.

21 Q. Well, that's what I'm trying to find
22 out --

23 A. Yeah.

24 Q. -- whether you or anyone else to your
25 knowledge picked up the phone and contacted the

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1 federal government asking what their current
2 position was on kratom. Did that ever happen?

3 A. I actually do think that our division --
4 in conversations with our division -- our food
5 safety chief Jodi Taylor, she did make that
6 phone call to our FDA liaison.

7 Q. Were you privy to that conversation?

8 A. I was not a part of that conversation,
9 no.

10 Q. Is that a conversation that's occurred
11 in the last year?

12 A. Yeah.

13 Q. Okay. Are you saying that you haven't
14 seen any of the FDA statements relating to the
15 difference between synthetic and natural
16 kratom?

17 A. I've seen those.

18 Q. Okay. You've seen those.

19 And when you're talking about what's --
20 what the view is, you certainly saw Governor
21 DeWine's emergency order relating to synthetic
22 kratom, didn't you?

23 A. I've seen it, yes.

24 Q. Okay. Well, let's make sure the Court
25 has a copy of that. So we'll look at --

1 MR. LITTLE: Excuse me, Your Honor.

2 BY MR. LITTLE:

3 Q. Let's look at Exhibit 8B.

4 A. AB?

5 Q. 8B.

6 A. 8. I have it.

7 Q. Okay. And Exhibit 8B is a copy of
8 Governor DeWine's executive order 2025-08D; is
9 that right?

10 A. That's what it says, yes.

11 Q. Okay. And that's the one you said you
12 had reviewed; is that right?

13 A. I didn't catch your last word.

14 Q. That's the one you indicated you had
15 reviewed?

16 A. Yes, I read it.

17 Q. Okay. And this was issued in either
18 late December of last year or January of this
19 year; is that right?

20 A. That seems correct in terms of my
21 memory, yeah.

22 Q. And I take it -- I probably misspoke. I
23 think it was December 12th of 2025 because
24 that's what it says above the signature line.

25 A. Yes, yes.

1 Q. And if we look at the third page of that
2 exhibit before you get to the date, you'll see
3 the language, it says, Nothing in this
4 executive order and emergency rule shall be
5 construed to apply to natural kratom in
6 vegetation form; is that right?

7 A. That's what it says.

8 Q. Okay. And, in fact, there was -- is
9 that something that you factored in in terms of
10 your enforcement?

11 A. No.

12 Q. Have you disregarded the governor's
13 executive order in terms of your enforcement?

14 A. No, I have not.

15 Q. Separate and apart from what the
16 governor has done, have you reviewed any of the
17 board of pharmacy's -- excuse me -- the board
18 of pharmacy's emergency rule as it related to
19 kratom?

20 A. I've read it.

21 Q. Okay. And did you also understand that
22 the emergency rule published by the board of
23 pharmacy in late December of last year or
24 January of this year --

25 MR. WILSON: I'm going to go head and

1 object to the relevancy of this. ODA is not a
2 party, and none of this has any bearing on the
3 actual issues at hand.

4 THE COURT: I'm going to overrule it,
5 consider it for what it's worth, and we'll see
6 where it goes.

7 MR. LITTLE: I apologize, Your Honor, I
8 lost my spot.

9 THE COURT: You were talking about the
10 rule and --

11 MR. LITTLE: Yes. Excuse me for one
12 sec.

13 BY MR. LITTLE:

14 Q. If we could look at Exhibit 8C, and do
15 you recognize this as the emergency rule
16 promulgated by the board of pharmacy on or
17 about December 12, 2025?

18 A. I do.

19 Q. Okay. Is that something you had
20 reviewed in terms of trying to determine
21 enforcement?

22 A. Enforcement from an ODA perspective?

23 Q. Yes.

24 A. I've reviewed it. The fact that it --
25 that the synthetic kratom is considered a

1 Schedule I drug doesn't have an impact on
2 whether or not it's allowed to be in food.

3 Q. Okay. So in terms of the position that
4 the department of agriculture has taken in
5 terms of its formal position, has it relied at
6 all upon on what the position taken by the
7 board of pharmacy has been?

8 A. Not at all.

9 Q. At any point in time?

10 A. No.

11 Q. So if the board of pharmacy schedules
12 something as a Schedule I drug, that doesn't
13 impact the department of agriculture's position
14 at all; is that right?

15 A. With regard to kratom, no.

16 Q. And to the extent the board of pharmacy
17 has an express exception for vegetative kratom,
18 that also is irrelevant from your perspective
19 as -- at the department of agriculture; is that
20 right?

21 A. It still doesn't meet the fact that it's
22 not allowed in food.

23 Q. Okay. So -- and also as a dietary
24 supplement, right?

25 A. Correct.

1 Q. Okay. So the department of
2 agriculture's formal position is it bases its
3 position solely upon what the federal
4 government has done, correct?

5 A. Correct.

6 Q. Okay. And it -- its position is not
7 impacted at all of what the governor does or
8 what the board of pharmacy does?

9 A. With regards to food.

10 Q. And?

11 A. Dietary supplements.

12 Q. Thank you.

13 A. You're welcome.

14 Q. And so even if there is an exemption
15 created for -- even if the board of pharmacy
16 were to create an exemption for a kratom
17 product, you -- the department of agriculture
18 would still go through the position of tagging
19 it, embargoing it if it still thought that
20 that's something that the federal law required?

21 A. Yes.

22 Q. Okay. Now, let's look at Exhibit 11A
23 for a moment. Oh, I'm sorry. I apologize. I
24 jumped the gun.

25 If you could please look at -- back to

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1 Exhibit 3, still in the notebook. And we were
2 looking at the second page which stated the
3 department of agriculture's formal position as
4 it relates to kratom. Do you remember that?

5 A. Yep.

6 Q. Okay. My question is: Has department
7 of agriculture ever passed any type of
8 administrative rulemaking on the subject of
9 kratom?

10 A. No, we have not.

11 Q. And at any point in time has even the
12 subject of having kratom being considered as
13 part of an administrative rule issued by the
14 department of agriculture ever occurred, to
15 your knowledge?

16 A. It has not.

17 Q. And so the policy that has been stated
18 by the department of agriculture in Exhibit 3
19 was done without going through the Chapter 119
20 process; is that correct?

21 A. Say that one more time for me.

22 Q. Sure. The policy that has been stated
23 by the department of agriculture as set forth
24 in Exhibit 3 was made without going through the
25 Chapter 119 ODA process?

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1 THE COURT: Well, what they're going to
2 say is that 3715 covers it and they don't need
3 a rule. That's what they're going to say,
4 their legal position.

5 MR. LITTLE: That may be their argument,
6 Judge. We'll see.

7 BY MR. LITTLE:

8 Q. Your answer to the question was yes?

9 A. No. I didn't answer the question.

10 Q. Go ahead and answer, please.

11 A. No, we have not. Well, would you
12 actually say it again for me?

13 Q. Sure. The policy that was set forth by
14 the department in Exhibit 3 was set forth and
15 publicly disseminated to the public without the
16 department going through the Chapter 119
17 process, correct?

18 MR. WILSON: I'm going to go ahead and
19 object to this line of questioning. And
20 considering the lateness of the hour, the lack
21 of relevance, and the fact that the amended
22 complaint concedes that ag may regulate under
23 3715, I'm going to log an objection and more
24 that -- request that the entire line of this
25 questioning be stricken. This is

1 cross-examination, not discovery.

2 THE COURT: Well, I'm going to overrule
3 the objection, but let's move on. If he
4 objects again, I might sustain it. So let's
5 move on.

6 MR. LITTLE: I was, Your Honor, to
7 Exhibit 11A.

8 THE COURT: All right. I got it marked.
9 BY MR. LITTLE:

10 Q. You were asked --

11 A. Is there an 11? Is it just 11 or is it
12 11A?

13 Q. I'm sorry. I believe it's 11.

14 A. Just want to make sure I'm following
15 along.

16 Q. Mine has an error. It's marked 11A.

17 So looking at Exhibit 11, you were asked
18 the question about whether something was
19 adulterated. It's fair to say that the 3715.59
20 actually provides a definition of what's
21 adulterated, correct?

22 A. That's correct.

23 Q. And if we look at Subparagraph A of that
24 section, it is a -- something is adulterated
25 that is food if any of the following apply: It

1 bears or contains any poisonous or deleterious
2 substance that may render it injurious to
3 health, but in case the substance is not an
4 added substance, the food shall not be
5 considered adulterated if the quantity of the
6 substance in the food does not ordinarily
7 render it injurious to health. Do you see
8 that?

9 A. I do.

10 Q. Now, have there been any studies
11 conducted by the department that has indicated
12 that -- that has indicated that kratom has
13 adverse health consequences?

14 A. ODA has not done any studies; and, as I
15 said before, we rely on FDA's work here.

16 Q. Okay. So if the FDA's current position
17 was that it does not take any objection to
18 vegetative kratom, would that also be the
19 position of the ODA?

20 A. If the FDA doesn't take objection to
21 vegetative kratom, is that the question?

22 Q. Yes.

23 A. We would need to see the FDA approved
24 kratom as a GRAS approved ingredient or issued
25 a no-objection letter.

1 Q. So you need to see that type of
2 ramification for taking the position -- what
3 you've articulated now, even though what you've
4 relied upon so far is a website, right?

5 A. No. I mean, we -- again, I said we have
6 routine conversations with FDA and are rather
7 knowledgeable on the subject.

8 Q. So you haven't asked the FDA to issue
9 any formal written document for the State's
10 benefit in relying upon the ODA's position?

11 A. I have not.

12 Q. By the way, under your -- as I
13 understand your testimony as set forth in
14 Exhibit 3, the kratom products that are being
15 distributed nationwide are all unlawful, right?

16 A. Yes.

17 Q. Okay. And is there an explanation you
18 can offer for the Court why it is that all
19 these sales are occurring despite this unlawful
20 activity?

21 A. I can't -- I can't explain FDA's lack of
22 enforcement.

23 Q. Okay. Well, what about the State's lack
24 of enforcement? You characterized for us that
25 there's been some tagging, some embargo, but

1 you would certainly acknowledge that prior to
2 May of this year there were kratom products on
3 retail shelves all across the state, correct?

4 A. I -- I didn't say that there were kratom
5 products all across the state.

6 Q. Well, the evidence is in the record
7 today that there is. Can -- why the lack --

8 MR. WILSON: I'm going to object. This
9 is -- he's already asked and answered this
10 question, and it's not supported by facts in
11 evidence.

12 THE COURT: I'm going to sustain it just
13 because it hasn't really been enforced. They
14 embargoed something. I don't know if they
15 embargoed capsules or vegetation, but there
16 hasn't been much enforcement. He doesn't
17 really know why. So --

18 MR. LITTLE: That's fine, Your Honor.
19 You're the most important person to understand
20 that, so I don't have to beat that.

21 THE COURT: Well, sometimes I wonder if
22 I understand everything; but, like I said,
23 jack-of-all-trades but a master of none.

24 MR. LITTLE: One moment, Your Honor.

25 THE COURT: Sure.

1 MR. LITTLE: Your Honor, that's all the
2 questions I have. Thank you.

3 THE COURT: Thank you.

4 Redirect -- or should we take a stand-up
5 break, Laurel? You need a break?

6 THE REPORTER: We can complete this
7 witness.

8 MR. WILSON: Just briefly.

9 - - -

10 REDIRECT EXAMINATION

11 BY MR. WILSON:

12 Q. I hand you what's going to be labeled as
13 be State's Exhibit C.

14 MR. WILSON: Your Honor, may I approach
15 the witness?

16 THE COURT: Sure.

17 THE WITNESS: Thank you.

18 BY MR. WILSON:

19 Q. Mr. Miran, I've just handed you a
20 document, correct?

21 A. Yep.

22 Q. Have you seen this document before?

23 A. I have.

24 Q. What is it?

25 A. It is the board of pharmacy's frequently

1 asked questions on -- on the sale of kratom --
2 sale and possession of kratom in Ohio.

3 Q. On the first page what is the date that
4 this was issued?

5 A. May 28th of 2026.

6 Q. Was there a prior guidance that you're
7 aware of?

8 A. I don't remember my dates, but there's
9 been at least one or two versions of this.

10 MR. WILSON: I believe that it has been
11 admitted into the record. It's in Mr. Little's
12 exhibit book so to my --

13 (Counsel confer.)

14 MR. LITTLE: It's in there, but I
15 haven't marked it -- I haven't used it.

16 MR. WILSON: Just based upon those
17 questions I would just ask that --

18 MR. LITTLE: I apologize. I'm sorry.
19 Is this the one from this morning?

20 MR. HOGAN: Yes.

21 MR. LITTLE: So it's not in my notebook.

22 MR. WILSON: Can we stipulate to the
23 admissibility of this?

24 MR. LITTLE: No. We knew what the
25 offending document is, Your Honor. We actually

1 attached it to the complaint.

2 THE COURT: Off the record.

3 - - -

4 Thereupon, a discussion was held off the
5 record.

6 - - -

7 THE COURT: Back on the record.

8 So there's no objection to what is it,
9 Exhibit C?

10 MR. WILSON: Correct, Your Honor.

11 THE COURT: All right.

12 MR. WILSON: Do you have a copy of this?

13 THE COURT: I do not.

14 MR. WILSON: May I approach?

15 THE COURT: Sure.

16 MR. WILSON: Thank you.

17 I don't believe I have any further
18 questions for this witness.

19 THE COURT: All right. And this is part
20 of the consent?

21 MR. WILSON: Correct, Your Honor.

22 THE COURT: Okay. Very good.

23 Anything else based on that?

24 MR. LITTLE: No, Your Honor.

25 THE COURT: Hey, thanks for your

1 testimony.

2 THE WITNESS: Thank you.

3 THE COURT: You may step down.

4 Any objection to A, B, and C?

5 I'm going to admit Exhibits A, B, and C
6 for the State.

7 MR. LITTLE: We object to A for the
8 reasons we've already articulated, Your Honor.

9 THE COURT: All right. I'm going to
10 admit it for what it's worth.

11 - - -

12 Thereupon, the exhibits last-above
13 offered were admitted into evidence on behalf
14 of the State and were marked Exhibits A through
15 C.

16 - - -

17 THE COURT: Any other witnesses?
18 Anything else?

19 MR. APPEL: The State has no further
20 witnesses.

21 THE COURT: All right. Here is going to
22 be my proposal: So we got a lot of legal
23 issues still. We've got a motion to dismiss on
24 behalf of the department of agriculture.

25 I'm going to suggest that somebody order

1 this transcript. I don't care if you split the
2 cost or how you handle it, and I'd like briefs
3 within -- I'm going to let you file a 30-page
4 brief. I don't really want closing arguments.
5 I want your positions on granting the
6 preliminary injunction.

7 I'm going to continue the TRO currently
8 until I make a ruling, which I'm allowed to do
9 because I've had my hearing within the 14 days.

10 So my suggestion is get this transcript
11 so I can get a copy of it, file briefs on why
12 you think I should grant the preliminary
13 injunction up to 30 pages with citations to the
14 record and any other motions or any other legal
15 documents you want to file; and then we'll
16 review all that and have a ruling hopefully in
17 the next 30 days. That would be my proposal.

18 So I would continue the TRO as it is.

19 MR. MEYER: Your Honor, do you want
20 those briefs to be simultaneously submitted?

21 THE COURT: Yes.

22 I think in talking to the court reporter
23 she may be able to have a transcript in a
24 couple of weeks, two weeks or so. If you need
25 a little more time for the briefs, I would

1 grant you some time.

2 MR. APPEL: I recommend that we make it
3 14 days from the date that the transcript is
4 completed.

5 THE COURT: I'm okay with that if you
6 are, Mr. Little.

7 MR. LITTLE: I don't have a problem with
8 the timetable, Your Honor. I'm more concerned
9 about -- because the injunction the Court
10 originally issued was fairly narrow; and I'm
11 concerned about that, given that we have -- you
12 could be talking 50 days from now. The Court
13 may take some time to rule on things. I'm --

14 THE COURT: What I can say is this: And
15 I guess I could modify it. I would not like
16 any enforcement against the sale of, you know,
17 the liquid products, the dietary supplements
18 until I make a final ruling. Now, if I need to
19 amendment the TRO to do that, I would do that.

20 Now, I don't know that I'm going to
21 enjoin the department of agriculture because
22 it's not -- this -- this doesn't have anything
23 to do with -- they don't have a regulation. If
24 they have a position that this violates the
25 3715, so be it; but I would encourage you not

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Columbus, Ohio 43215 (614) 525-5991

1 to take any action until we get all this sorted
2 out.

3 So that would be my indication is that I
4 could amend the TRO if we need to, and I think
5 they've been very cooperative and we already
6 had one discussion where they've been
7 cooperative. So that would be my position.

8 MR. LITTLE: Maybe I can suggest I'll
9 confer with counsel, see whether there's an
10 order we could craft because there's a
11 difference between the gentleman's agreement of
12 counsel that we could easily have versus giving
13 people peace of mind.

14 THE COURT: And that's fine. It's not
15 going to be permanent. It's like something I'm
16 going to go, oh, well, I did this, so I'm going
17 to do this in the preliminary injunction. I'd
18 just like to keep the status quo right now
19 until I have time to sort through all this, go
20 through the transcript because I know this is
21 going to be appealed one way or another, and I
22 don't want to add \$20 to any fund that the
23 Court might have.

24 MR. APPEL: Your Honor, one thing that I
25 think would be very helpful, but regardless, is

1 in chambers we were discussing what precisely
2 is the injunctive relief that plaintiffs are
3 seeking; and they indicated they would let us
4 know later. It's very difficult for the State
5 to be able to respond if we don't have some
6 idea of what they're asking for if it's
7 different from what's in the written motion for
8 preliminary injunction.

9 THE COURT: Well, as I understand what
10 they're asking for -- and he can speak up -- he
11 wants me to invalidate the rule, one, the board
12 of pharmacy rule. Two, if I don't invalidate
13 it, he wants me to strictly construe it against
14 you and interpret it in some way that allows
15 his client to continue to do business; or, you
16 know, three, I could also look at the rule and
17 decide whether, you know, it should be
18 interpreted as a Schedule I drug if it violates
19 the adulterated food act. So those are the
20 things that I think.

21 I don't know, is there anything else
22 that you're trying to accomplish?

23 MR. LITTLE: I think the Court fairly
24 summarized it.

25 THE COURT: And those are the things

1 that I'm focusing on.

2 And, again, haven't made my mind up; but
3 I doubt if I invalidate the rule, but, hey, I'm
4 going to listen. I'll see. I've told you what
5 I'm thinking, so that's about all I can do.

6 And, again, I'm going to do the best
7 that I can; and as Magistrate Skeens often said
8 about me, Serrott, never in doubt, but often
9 wrong. Or I say I'm good at making decisions.
10 I'm not always right. That's why we have a
11 Court of Appeals.

12 All right. Folks, anything else for
13 today?

14 MR. APPEL: Just one brief -- I do want
15 to just emphasize that the motion for
16 preliminary injunction, the only party who
17 filed that was Krazy Daze; and there's been no
18 testimony from Krazy Daze at all.

19 This is an interloper who came into the
20 case last night at 10:00 p.m. They did not
21 file a motion for preliminary injunction; and,
22 I mean, there's going to be some issues here
23 where if they're going to be -- since they
24 haven't filed a motion for preliminary
25 injunction, granting any relief at all to an

1 entity which didn't actually ask for it.

2 THE COURT: Well, he can file an amended
3 complaint and an amended motion. So we may as
4 well just deal with it all rather than the
5 procedural issues, although I am thinking about
6 the department of agriculture and their motion
7 to dismiss. So, you know, at some point that
8 needs to be addressed.

9 MR. LITTLE: We'll clean it up, Your
10 Honor; and if we don't have an order for you
11 that addresses scheduling and the other issues
12 for you by Monday, we'll give you a call during
13 the middle of your murder trial.

14 THE COURT: You can talk to Mr. Murphy
15 and then on a break we'll -- and, listen, don't
16 hesitate to call if you can't work something
17 out. I'll give you some guidance, and
18 hopefully can.

19 I do think you guys have worked well
20 together. I know that it's contentious. It's
21 important to their business. It's important to
22 the citizens of the state. So I do want to try
23 and get this right, take my time. So -- all
24 right?

25 MR. LITTLE: Thank you, Your Honor.

1 MR. APPEL: Thank you, Your Honor.

2 THE COURT: Thank you.

3 - - -

4 Thereupon, the proceedings in this
5 matter were concluded.

6 - - -

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CERTIFICATE

I do hereby certify that the foregoing
is a true and correct transcript of proceedings
in this matter, heard on May 29, 2026, taken by
me and transcribed from my stenographic notes.

**** COPY NOT FOR FILING ****

Laurel A. Aurigema, RPR
Official Court Reporter

LAUREL A. AURIGEMA, RPR
Franklin County Court of Common Pleas - General Division
Columbus, Ohio 43215 (614) 525-5991

**COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

KRAZY DAZE INC., et al.,

Plaintiffs,

v.

OHIO BOARD OF PHARMACY,

Defendant.

Case No. 26 CV 004790

Judge Mark Serrott

FINAL JUDGMENT ENTRY

Pursuant to Rule 65(B)(2) of the Ohio Rules of Civil Procedure, and with the agreement of Plaintiffs Krazy Daze, Inc., Botanic Tonics, LLC and Defendant Ohio Board of Pharmacy the Court consolidates the May 29, 2026, preliminary injunction hearing with the trial of the above-captioned action on the merits, *instanter*. The Court has conferred with the parties and confirmed that they do not object to the Court entering a final judgment based on the evidence and arguments currently before the Court. Further, for the reasons set forth in the Court's August 4, 2026, Order Denying Plaintiffs' Motion for Preliminary Injunction, the Court: (1) denies the Plaintiffs' motion for class certification, (2) enters a declaratory judgment finding that Adm.Code 4729:9-1-01.1 was properly promulgated and is not unconstitutional, (3) denies the Plaintiffs' request for a permanent injunction, (4) enters final judgment dismissing Plaintiffs' claims and (5) terminates this case.

The Board of Pharmacy has also moved for a modification of the August 10, 2026 stay order and has requested that the Court incorporate the exhibits attached to its August 13, 2026 Motion to Modify as part of the record and consideration of its final judgment in this case. The Court denies the Board's Motion to Modify. With agreement of the parties, the Court admits the Board's exhibits and incorporates them as part of the record of its final judgment in this case. Upon expiration of the temporary stay the Court imposed by an Order issued on August 10, 2026, the

EXHIBIT

D

Court will not grant or issue a further stay or injunction pending appeal and hereby denies Plaintiffs' request for the same.

IT IS SO ORDERED.

Case Terminated.

Franklin County Court of Common Pleas

Date: 08-21-2026
Case Title: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY
Case Number: 26CV004790
Type: ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a faint, circular, dotted watermark. The signature is fluid and cursive.

/s/ Judge Mark A. Serrott

Court Disposition

Case Number: 26CV004790

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Case Terminated: 06 - Court Trial

Final Appealable Order: Yes

Motion Tie Off Information:

1. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 08-13-2026-MOTION - DEFENDANT: OHIO BOARD OF PHARMACY - OHIO BOARD OF PHARMACY S MOTION TO MODIF

Disposition: MOTION DENIED

2. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 08-07-2026-MOTION TO STAY - PLAINTIFF: KRAZY DAZE INC

Disposition: MOTION GRANTED IN PART

3. Motion CMS Document Id: 26CV0047902[REDACTED]970000

Document Title: 06-29-2026-MOTION FOR LEAVE TO FILE - DEFENDANT: OHIO BOARD OF PHARMACY

Disposition: MOTION IS MOOT

4. Motion CMS Document Id: 26CV0047902[REDACTED]980000

Document Title: 06-03-2026-MOTION TO RECONSIDER - DEFENDANT: OHIO BOARD OF PHARMACY

Disposition: MOTION IS MOOT

5. Motion CMS Document Id: 26CV0047902[REDACTED]910000

Document Title: 05-29-2026-MOTION - PLAINTIFF: KRAZY DAZE INC -
PROVISIONAL CLASS CERTIFICATION

Disposition: MOTION DENIED

6. Motion CMS Document Id: 26CV0047902[REDACTED]920000

Document Title: 05-21-2026-MOTION FOR LEAVE TO FILE - PLAINTIFF:
KRAZY DAZE INC

Disposition: MOTION IS MOOT

Franklin County Ohio Court of Appeals Clerk of Courts- 2026 Aug 25 2:40 PM-26AP000735

IN THE COURT OF APPEALS
FRANKLIN COUNTY, OHIO
TENTH APPELLATE DISTRICT

Krazy Daze, Inc., et al,	:	
	:	
Plaintiffs/Appellants,	:	Case No. 26-AP-000735
	:	
v.	:	(Accelerated Calendar)
	:	
Ohio Board of Pharmacy,	:	
	:	
Defendant/Appellee.	:	

**MOTION OF APPELLANTS KRAZY DAZE INC.
AND BOTANIC TONICS, LLC
FOR AN INJUNCTION PENDING APPEAL**

Pursuant to 7(A) of the Ohio Rules of Appellate Procedure and Local Rule 7, Plaintiffs/Appellant Krazy Daze Inc. (“Krazy Daze”) and Botanic Tonics, LLC (“BT”) (collectively, “Appellants”) move for an injunction pending appeal enjoining Defendant/Appellant the Ohio Board of Pharmacy (“BOP”) and anyone in active concert or participation with it, who receives notice thereof, from treating as a Schedule I (or other) controlled substance any product that contains, as an ingredient, vegetative kratom in either leaf or ground up/pulverized leaf form,

whether the product is sold in liquid, capsule, or other form and irrespective of whether the product is marketed for ingestion or consumption, specifically including BT's "Feel Free" line of products.

The basis for this Motion is set forth in the attached Memorandum.¹

Respectfully submitted,

/s/ Marion H. Little, Jr.

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Counsel for Plaintiffs/Appellants

¹ Before filing this Motion, Plaintiffs sought a stay/injunction pending appeal from the Trial Court. The Trial Court denied such relief, as noted in its Final Judgment Entry. [Exh. D to Plaintiffs' contemporaneously-filed Motion to Expedite Appeal (the "MEA"), adopted and incorporated herein.]

MEMORANDUM IN SUPPORT

I. INTRODUCTION

An injunction pending appeal is needed because the Trial Court’s clearly erroneous ruling about the meaning and import of a newly-enacted administrative rule threatens Plaintiffs and other Ohioans with not only presumed irreparable harm but also improper criminal prosecution and the loss of a most fundamental right—the right to be free from incarceration.

Even though the BOP twice admitted that such rule is capable of multiple, *contradictory* interpretations, the Trial Court determined that the BOP’s Mitragynine-Related Compounds Rule, Ohio Admin. Code § 2729:9-1-01.1 (the “MCR”) plainly and unambiguously deems natural-leaf kratom to be a Schedule I controlled substance, equivalent to heroin, if it is mixed with *anything* else—including obviously-harmless and otherwise-legal ingredients, like *water*. [See MEA at 9; MEA Exh. C (PI Decision).]

It did so despite the fact that the MCR, on its face, was not intended to regulate natural kratom. Rather, as its name indicates, the rule was specifically targeted at synthetic and/or concentrated *compounds* related

to mitragynine—the primary active ingredient in leaf kratom that, in its natural form, has been repeatedly shown to be safe for human consumption. [5/29/26 Hearing Tr. at 51-52, 83.]

And it did so even though the express language of the MCR does *not* impose such a limitation. Instead, the exception specified in Section 4729:9-1-01.1(D) of the MCR broadly carves out “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf[.]” It does *not* say that mixing “natural kratom leaf” with anything else, like water, automatically elevates a legal substance to Schedule I.

In giving effect to the BOP’s “interpretation” of its own admittedly-ambiguous rule, the Trial Court, thus, *expanded* the scope of criminal—indeed, felony—drug liability under R.C. Chapter 2925, which incorporates the BOP’s scheduling determinations. The Trial Court also endorsed the BOP’s informal attempt to *expand* the scope of its own rule, without engaging in the formal rule-making process, in violation of R.C. Chapter 119. And, it violated the rule of lenity, which requires that statutes and regulations whose violation can give rise to civil or criminal penalties be strictly construed in favor of the accused; not in favor of expanded

criminal exposure. In these circumstances, all of the factors supporting the issuance of injunctive relief pending appeal are clearly satisfied.

II. ARGUMENT

A. Appellants Are Likely To Succeed On The Merits.

Plaintiffs are very likely to succeed on the merits in this Appeal, for multiple reasons.

First, because the BOP has admitted that the MCR is subject to multiple, and contradictory, interpretations and because the rule directly informs the scope of criminal drug liability in this state, it is unconstitutionally vague and, thus, void for vagueness as a matter of law. *See, e.g., State v. Neidler*, 1996 WL 339923, *2-3 (6th Dist. June 21, 1996) (reversing defendant's criminal conviction for violating administrative rule prohibiting a person from "possessing" certain firearms during specified hunting season period; rule was void for vagueness because it allowed for "multiple interpretations of 'possession'" such that it had no "explicit standards to determine the prohibited conduct" and permitted arbitrary and discriminatory enforcement by wildlife officers).

To be enforceable, a regulation that can lead to penalties must set forth a clear standard with which a regulated party is able to conform its conduct. *See O'Brien v. Ohio Lotter Comm'n*, 2005-Ohio-1412, ¶¶ 16-21 (11th Dist.). This requirement serves to prevent “arbitrary and discriminatory” enforcement by an agency and preserves the separation of powers by ensuring that the legislative policy-making function is not delegated to the executive on an “ad hoc and subjective” basis. *Id.* at ¶ 21.

Second, as noted above, the Trial Court’s construction of the MCR is *not* supported by the plain language of the rule. Instead, it added a new limitation on the scope of the natural kratom exception to scheduling that the BOP adopted via the Chapter 119 rule-making process. Because this new interpretation, which expands criminal exposure for Ohioans, was not, itself, adopted via the Chapter 119 process, it amounts to improper rule-making that renders such expansion unlawful and unenforceable.

The Chapter 119 rule-making process is the *sole* mechanism for an administrative agency, like the BOP, to regulate with general applicability and the force of law. *See In re Avery Health Care Ctr.*, 2020-Ohio-3383, ¶ 36 (10th Dist.). A “rule” is defined as “any rule, regulation, or standard,

having a general and uniform operation, adopted, promulgated, and enforced by any agency under the authority of the laws governing such agency, and includes any appendix to a rule.” R.C. 119.01(C).

Where an agency seeks to announce or otherwise impose a regulatory standard or an *expansion* of an existing one, with general applicability, outside of the Chapter 119 context, its action satisfies the definition of a rule but the regulation or standard imposed thereby is invalid and unenforceable because of the agency’s failure to complete the requisite rule-making process. *See State v. Gigliotti*, 2000 WL 1867265, *6 (Ohio App. 6th Dist. Dec. 22, 2000) (“a directive from a memorandum does not rise to the level of an administrative regulation, and is not enforceable”); *Avery*, 2020-Ohio-3383 at ¶ 36 (“An unwritten administrative policy ... does not have the force and effect of a legally promulgated statute or administrative rule.”).

Third, because the construction of the otherwise-ambiguous MCR adopted by the Trial Court would, if allowed to stand, expand the scope of criminal liability in Ohio, such construction violates—and is, thus, rendered invalid by application of—the rule of lenity. This rule states, in

pertinent part, that “sections of the Revised Code defining offenses or penalties *shall be strictly construed against the state*, and liberally construed in favor of the accused.” R.C. 2901.04(A) (emphasis added). Even where application of a regulation may—unlike here—result only in civil penalties, the Ohio Supreme Court has held that this rule of strict construction fully applies. *See, e.g., State ex rel. Edwards v. Indus. Comm.*, 92 Ohio St. 3d 422, 423 (2001) (because award for employer’s violation of safety requirement specified in BWC regulations is “in the nature of a penalty, it must be strictly construed, with any reasonable doubts to be construed against applying it to the employer”).

As a result, the Trial Court clearly erred in construing the MCR to establish a standard that expands the basis for severe criminal penalties, rather than strictly construing it in favor of the regulated parties.

B. Irreparable Harm Is Presumed In This Context.

Against this backdrop, irreparable harm is presumed. “[C]omplying with a regulation later held invalid almost *always* produces the irreparable harm of nonrecoverable compliance costs.” *BST Holdings, L.L.C. v. Occupational Safety & Health Admin., United States Dep’t of Lab.*, 17

F.4th 604, 618 (5th Cir. 2021) (emphasis in original). In effect, such administrative overreach leaves regulated parties with “no choice that avoids irreparable harm.” *Washington v. United States Dept. of Health & Human Servs.*, 2025 WL 3002366, *28 (D. Or. Oct. 27, 2025). Such harm also exists, given the MCR’s unconstitutional vagueness, because “when constitutional rights are threatened or impaired, irreparable injury is presumed” *Churchill Downs Tech. Initiatives Co. v. Michigan Gaming Control Bd.*, 162 F.4th 631, 642 (6th Cir. 2025).

Such harm is particularly acute where, as here, enforcement of the improper rule and/or the Trial Court’s erroneous construction thereof threatens Ohioans’ “most elemental of liberty interests—the interest in being free from physical detention by one’s own government.” *See State ex rel. W. v. Hoying*, 2025-Ohio-660, ¶ 68 (10th Dist.).

C. No Harm To Others Will Result And Injunctive Relief Will Otherwise Serve The Public Interest.

On the other hand, no third-parties will be harmed by issuance of an injunction that merely prevents enforcement of a likely-invalid administrative rule and rejects the criminal scheduling of a substance and

products that have been sold legally in Ohio for many years. Rather, the public's interest, as a whole, will best be served by an injunction that reins in administrative overreach by way of unlawful rule-making: "The public interest is served by observing the Separation of Powers between the branches, not by executive overreach." *Washington* at *29 (internal citation omitted).

That is particularly true here since the undisputed evidence confirms that products—like Feel Free—that contain only natural kratom leaf (as opposed to other mitragynine-related compounds) are safe for human consumption. [Tr. 40-58, 72-78, 119.] The Court should grant the Motion.

Respectfully submitted,

/s/ Marion H. Little, Jr.
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Counsel for Plaintiffs/Appellants

CERTIFICATE OF SERVICE

I hereby certify that the foregoing Motion for an Order Expediting Appeal was served via email this 25th day of August, 2026 upon the following:

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/s/ Marion H. Little, Jr.
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1431-001: 1094015

Franklin County Ohio Court of Appeals Clerk of Courts- 2026 Aug 28 10:59 AM-26AP000735

IN THE COURT OF APPEALS
FRANKLIN COUNTY, OHIO
TENTH APPELLATE DISTRICT

Krazy Daze, Inc., et al,	:	
	:	
Plaintiffs/Appellants,	:	Case No. 26-AP-000735
	:	
v.	:	(Accelerated Calendar)
	:	
Ohio Board of Pharmacy,	:	
	:	
Defendant/Appellee.	:	

**COMBINED REPLY OF APPELLANTS KRAZY DAZE INC.
AND BOTANIC TONICS, LLC IN SUPPORT OF MOTIONS TO
EXPEDITE AND FOR
AN INJUNCTION PENDING APPEAL**

Where a criminal statute, or a regulation that supplies the definitions incorporated into a criminal statute, is ambiguous, Ohio Supreme Court precedent makes clear that it should be enjoined:

‘It is a basic principle of due process that an enactment is void for vagueness if its prohibitions are not clearly defined. Vague laws offend several important values. First, because we assume that man is free to steer between lawful and unlawful conduct, we insist that laws give the person of ordinary intelligence a reasonable opportunity to know what is prohibited, so that he may act accordingly. ... Second, if arbitrary and discriminatory enforcement is to be prevented, laws must provide explicit standards for those who apply them. ...’

Due process requires that the terms of a criminal statute be reasonably clear and definite and that there be ascertainable standards of guilt on which citizens, courts, and the police may rely. A person **cannot be punished** simply because the state believes that he or she is *probably* a criminal. ... **It is a constitutional imperative that the dividing line between the lawful and the criminal be clear to all and not subject to conjecture.**

[Akron v. Rowland, 67 Ohio St. 3d 374, 381-82 (1993) (quoting Grayned v. Rockford, 408 U.S. 104, 108-109 (1972) (italics in original, other emphasis added).]

Here, the BOP twice admitted that the MCR, which supplies the definition used in Ohio’s criminal drug law, is ambiguous. First, in a consent order, the BOP confessed that a “reasonable person” could read the MCR in a manner that was contrary to the BOP’s supposed intent. [Motion to Expedite Exh. E, 6/10/26 Final Consent Judgment Entry in Case No. 26 CV 4720 at 2 ¶¶ 5-8.] Second, in a brief filed with the Trial Court in this case, the BOP stated that the MCR is subject to two, “possible” but diametrically opposite “interpretations[.]” [Motion to Expedite Exhibit F, BOP’s 5/26/26 Reply at 7.]

While the Trial Court erroneously concluded otherwise without reasoned analysis, the promulgating agency's own admissions establish that departments of this government charged with responsibility over this matter realize they lack a reasonably certain standard for enforcement. Necessarily, then, an injunction must issue and expedited treatment of this Appeal is clearly warranted.

Faced with its own admissions, the BOP resorts to offering a series of misstatements and mischaracterizations that fail to support its opposition to the requested relief (or, its defense of the facially-ambiguous MCR). For example:

- Wrong Standard Of Review. The BOP asserts that the Trial Court's decision and judgment will be reviewed only for an abuse of discretion. [BOP Injunction Memo Contra at 4.] Not so. The BOP conveniently omits the fact that, even though the BOP did not file a counterclaim or seek affirmative relief, it convinced the Trial Court to enter a declaratory judgment deeming the MCR to have been "properly promulgated" and "not unconstitutional[.]" [Motion to Expedite Exh. D, Final Judgment Entry at 1.] At minimum, that

legal determination is subject to *de novo* review. Arnott v. Arnott, 2012-Ohio-3208, ¶ 13 (“[O]nce a trial court determines that a matter is appropriate for declaratory judgment, its holdings regarding questions of law are reviewed on a de novo basis.”).

- **Misstatement Of Expert Testimony.** The BOP remarkably asserts that Plaintiffs’ expert “admitted on cross-examination that kava and mitragynine are expected to have chemical interactions.” [BOP Injunction Memo Contra at 3.] Not so. In fact, **the expert stated precisely the opposite**, as reflected on the precise page of the transcript cited by the BOP: “So these -- the kava components, the kavalactones in particular, none of the kava compounds are opioid agonists, **so they do not create an additive or synergistic effect.**” [Motion to Expedite Exh. A, Tr. at 102 (emphasis added).]
- **Overstatement Of The Relief Sought.** The BOP wastes significant space, and the Court’s time, arguing about the dangers of “synthesized” mitragynine-related compounds, like 7-OH. [BOP Injunction Memo Contra at 2, 8.] Note well Appellants **do not seek an order enjoining enforcement of the MCR as to those synthetic**

substances. They do not manufacture, distribute, or sell any synthetic compounds. Rather, they merely seek an injunction enjoining the treatment, as a controlled substance, “any product that contains, as an ingredient, **vegetative kratom in either leaf or ground up/pulverized leaf form**, whether the product is sold in liquid, capsule, or other form and irrespective of whether the product is marketed for ingestion or consumption, specifically including BT’s “Feel Free” line of products.” [Motion for Injunction at 1-2 (emphasis added).] The BOP’s focus on other substances is, thus, nothing more than a red herring and misdirection play.

- **Mischaracterization Of R.C. Chapter 3715**. Although irrelevant to the illegality of the MCR, the BOP mischaracterizes the supposed “illegality” of “mitragynine-related compounds” under R.C. Chapter 3715, which is administered by the Ohio Department of Agriculture (“ODA”). [BOP Injunction Memo Contra at 6.] To be clear, Chapter 3715 says nothing about Kratom- or mitragynine-containing products. And, ODA has not enacted any type of rule blanketly declaring such products to be illegal or otherwise

adulterated for purposes of that statute. Indeed, the ODA's statutory authority with respect to adulterated products is specifically limited, under R.C. 3715.55 and 3715.59, to a case-by-case "tagging" process that, tellingly, the agency has only (partially) invoked, as to unspecified kratom-related products, on a limited and ad hoc basis. [Motion to Expedite Exh. A, Tr. at 219-20, 230-31.]

The Court should give no credence to the BOP's misstatements and red herrings. Instead, it should grant Appellants' Motions and ensure that no Ohioans are prosecuted on the basis of an admittedly vague and, thus, invalid "rule."

Respectfully submitted,

/s/ Marion H. Little, Jr.

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing Motion for an Order Expediting Appeal was served via email this 28th day of August, 2026 upon the following:

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/s/ Marion H. Little, Jr.
Marion H. Little, Jr. (0042679)

1431-001: 1094695

In the Court of Common Pleas for Franklin County, Ohio

KRAZY DAZE, INC.,	:	
	:	
Plaintiff,	:	Case No. 26-CV-004790
	:	
v.	:	Judge Chris Brown
	:	
OHIO BD. OF PHARMACY,	:	
	:	
Defendant.	:	
	:	
	:	

**DEFENDANT OHIO BOARD OF PHARMACY’S MEMORANDUM CONTRA
MOTION FOR TEMPORARY RESTRAINING ORDER**

I. Introduction

Plaintiff Krazy Daze, Inc. (“Krazy Daze”) has asked this Court to issue a statewide temporary restraining order¹ against the Board of Pharmacy (“the Board” or “Pharmacy”) to overturn any “ban on the marketing and sale of natural kratom leaf and natural kratom leaf products for purposes of ingestion.” Motion for TRO at 1.

Krazy Daze attacks guidance that the Board issued. But the Board never purported to treat that guidance as a rule or law. It was instead a “frequently asked questions” document -- the epitome of guidance. Even if the guidance document is wrong (which it is not), it is still just a guidance document, not a *de facto* rule.

¹ Plaintiffs have also asked for a preliminary injunction. Due to the short timeframe, the Board will file a response to the motion for preliminary injunction in a separate filing.



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Krazy Daze is attempting an end-run around the law to permit it to sell its kratom-infused beverages even though kratom products cannot be sold as food, drugs or supplements under Ohio's pure food and drug law -- laws which have been in effect for decades.

The Court should not grant a TRO because the recent change of law is not what makes Krazy Daze's drinks illegal.

II. There is Parallel Litigation Ongoing.

This case is not happening in a vacuum. There is a parallel case pending before Judge Serrott filed two days before this case. *See Miracle Kratom, LLC v. Ohio Dept. of Agriculture*, 26-CV-4720 ("*Miracle Kratom*"). At approximately 9 p.m. the day before a TRO hearing was held in that case, Krazy Daze filed this lawsuit along with a motion to consolidate.² Both cases involve challenges to Adm.Code 4729:9-1-01.1 (the "7-OH rule") alleging that the rule can be improperly read to make some kratom leaf products schedule I controlled substances.

The two cases are different in a significant way. *Miracle Kratom* alleges that it sells kratom leaves and kratom leaf powder. Krazy Daze sells beverages. Or, as it puts it, Krazy Daze sells "dietary supplements made with natural, pure-leaf vegetative kratom

² Judge Serrott verbally stated on May 22, 2026, that he would grant the TRO in favor of the plaintiffs in the *Miracle Kratom* case (not a statewide TRO) and it would be in effect only until a preliminary injunction hearing is held on May 29, 2026.

in its dried and powdered form *infused with water and with other legal dietary ingredients.*" Complaint at ¶ 11 (emphasis added). In other words, beverages.

This is critical because Ohio law provides a current carve-out for vegetative kratom leaf and powdered leaf. But not beverages or supplements. While Miracle Kratom's lawsuit is really about how it is allowed to label its products, Krazy Daze is trying to convince the Court to permit it to illegally sell a product intended for human consumption. Krazy Daze is trying to skirt the determinations of the FDA and the Ohio Department of Agriculture that kratom cannot be marketed or sold as a food, drug or supplement.

III. Legal Standards for a Temporary Restraining Order

"A temporary restraining order is a form of relief intended to prevent the applicant from suffering immediate and irreparable harm, injury or damage." *Garb-Ko v. Benderson*, 2013-Ohio-1249, ¶ 32 (10th Dist.) citing *Coleman v. Wilkinson*, 147 Ohio App.3d 357, 358 (10th Dist.2002). "The purpose of a temporary injunction is to preserve and protect the ability of the court to provide an effective judgment on the merits. It is not intended as a remedy for the litigant. Rather, it is a necessary adjunct to the administration of justice, intended as a means of preserving the court's ability to grant effective, meaningful relief after a determination of the merits." *Gobel v. Laing*, 12 Ohio App.2d 93, 94 (10th Dist.1967).

"In determining whether injunctive relief should be granted, a trial court generally examines four factors: (1) whether the evidence presents a substantial likelihood that

plaintiff will prevail on the merits, (2) whether denying the injunction will cause plaintiff to suffer irreparable injury, (3) whether granting the injunction will cause third parties to suffer unjustifiable harm, and (4) whether the injunction will serve the public interest.” *Grab-Ko*, ¶ 32 citing *Cuyahoga Re-Entry Agency v. Ohio Dept. of Rehab. & Corr.*, 2012 Ohio 2034, ¶ 31 (10th Dist.) and *Vanguard Transp. Sys., Inc. v. Edwards Transfer & Storage Co., Gen. Commodities Div.*, 109 Ohio App.3d 786, 790 (10th Dist.1996).

“[T]o establish a right to a requested preliminary injunction, the movant must demonstrate clear and convincing evidence of each of these four factors.” *City of Columbus v. State*, 2023-Ohio-2858, ¶ 20 (10th Dist.).

Injunctions against government agencies should be granted with caution “especially in cases affecting a public interest where the court is asked to interfere with or suspend the operation of important works or control the action of another department of government.” *Cementech, Inc. v. City of Fairlawn*, 2006-Ohio-2991, ¶ 10.

IV. A Brief History of the 7-OH Rule.

In December 2025, the Board issued an emergency rule placing some kratom-derived substances onto the schedule I controlled substances list. The primary chemical at issue for the emergency rule was 7-hydroxymitragynine (known colloquially as “7-OH”).

In that emergency rule, the Board attempted to carve out vegetative kratom by creating an exception to the scheduling for vegetative kratom. (Based on a complaint that

the emergency rule was unclear, the Board entered into a consent agreement in the case *Channel Zero v. Bd. of Pharmacy*, Case No. 26-CV-0497 to clarify that the emergency rule did not apply to vegetative kratom and powdered kratom leaf. A copy of that consent agreement is attached to Krazy Daze's complaint as Exhibit A.)

In January 2026, the Board proposed two rules. The first rule would be the permanent version of the emergency rule. Adm.Code 4729:9-1-01.1 (the "7-OH rule") establishes that "mitragynine related compounds" are schedule I controlled substances. But the Board expressly exempted vegetative kratom from being scheduled by the 7-OH rule. "Mitragynine-related compounds do not include . . . (D) Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code." Adm.Code 4729:9-1-01.1(D). That rule went into effect on May 19, 2026.

In January 2026, the Board also proposed a second rule to make vegetative kratom a schedule I controlled substance. That rule is still in the rule-making phase.³ (The rule targeting 7-OH is Adm.Code 4729:9-1-**01.1**. The proposed rule targeting vegetative kratom is Adm.Code 4729:9-1-**01.2**.)

³ The Board received over 1,600 comments on this second rule. The Board will review those comments at its June 2026 Board meeting.

V. This Court Can Not Enjoin Non-Parties.

Krazy Daze asks that this Court issue an injunction that will govern entities that are *not* parties to this case. Krazy Daze asks for a TRO to be issued to the Board “and anyone acting under its authority, at its direction, or otherwise in active concert or participation with it (including, without limitation, the Ohio Department of Agriculture (‘ODA’) and law enforcement) from taking any steps to enforce or otherwise attempting to enforce a statewide ban on the marketing and sale of natural kratom leaf and natural kratom leaf products for purposes of ingestion.” Motion for TRO at 1.

At various points of the complaint and TRO, it seems that Krazy Daze’s real issue is *not* with the Board’s FAQ. It is with how the FDA and the ODA have treated kratom intended for consumption. For ODA, Krazy Daze is unhappy with how it has handled consumable kratom products under R.C. 3715.55 and .59.

This Court should *not* issue a TRO to entities (such as ODA) that are not parties to this litigation. Nor should it enjoin any enforcement of R.C. Chapter 3715, the Pure Food and Drug Act, when Krazy Daze only challenges the May 14th FAQ issued by the Board.

VI. Krazy Daze Has Not Shown a Substantial Likelihood of Success on the Merits

A. The 7-OH Rule Governs This Question, Not The Guidance.

While Krazy Daze spends considerable amount of time challenging the Board’s “frequently asked questions” guidance, it glosses over the fact that this issue is really

governed by subsection (D) of the 7-OH rule. The following is deemed to *not* be a mitragynine-related compound (i.e. not made a schedule I controlled substance): “(D) Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code.” Adm.Code 4729:9-1-01.1(D). R.C. Chapter 3715 contains the Pure Food and Drug Law.⁴ There are two possible interpretations of this provision.

Interpretation One: Vegetative kratom leaf and powdered leaf are not schedule I controlled substances. Any product must also comply with the Pure Food and Drug Law. (i.e. a product that violates the Pure Food and Drug Law may be illegal for other reasons, but is still not a scheduled I controlled substance because of the 7-OH rule)

Interpretation Two: Vegetative kratom leaf and powdered leaf are not schedule I controlled substances *when* they comply with the Pure Food and Drug Law. (i.e. an otherwise legal product will be a schedule I controlled substance if it fails to comply with the Pure Food and Drug Law).

It was the intention of the Board to follow the first interpretation. Otherwise, a labelling error would mean the difference between a kratom product being a schedule I controlled substance or not. Board staff will soon revisit its May 14, 2026, guidance to see if any tweaks to the language will be necessary.

⁴ There does not appear to be any dispute that the Board had statutory authority to promulgate the 7-OH rule because it has statutory authority to promulgate a rule to “add a previously unscheduled compound, mixture, preparation, or substance to any schedule.” R.C. 3719.44(A)(1).

B. The Exception in the 7-OH Rule Does Not Apply to Beverages.

This case is easy in one way. The plain language of the 7-OH rule shows that beverages cannot fall under the vegetative kratom exception. The following is *not* a schedule I controlled substance: “(D) Mitragynine *in vegetative form, including natural kratom leaf and ground natural kratom leaf*, in accordance with Chapter 3715. of the Revised Code.” Adm.Code 4729:9-1-01.1(D)(emphasis added).

Krazy Daze freely acknowledges that it sells kratom products that are mixed into a drinkable format that includes other ingredients. It is not in vegetative form. “Plaintiff’s business includes the sale of dietary supplements made with natural, pure-leaf vegetative kratom in its dried and powdered form infused with water *and with other legal dietary ingredients*.” Complaint at ¶ 11 (emphasis added).

This is either a beverage or a liquid supplement (in this situation, that is a distinction without a difference). Krazy Daze’s description of its product would be like saying that chicken noodle soup is “wheat mixed with water and other legal dietary ingredients.” Both descriptions are equally nonsensical.

So, even if everything Krazy Daze says is correct, it is not entitled to relief because its product plainly does not meet the exception in the 7-OH rule.

C. The FAQ Does Not Purport To Be a Rule.

Krazy Daze’s central argument is that the May 14th FAQ is a *de facto* rule. In fact, the FAQ is a guidance document and does *not* have the force of law. It does not purport

to be an administrative rule, nor does it function as a *de facto* administrative rule. In fact, the FAQ states “The information contained in this notice does not, and is not intended to, constitute legal advice; instead, all information provided is for general informational purposes only.” Exhibit C to the Complaint, p.1.

This document expressly states that it is “guidance . . . on the enforcement of OAC 4729:9-1-01.1 and the manufacture, possession and sale kratom in Ohio.” *Id.* Indeed, the structure of the document is responses to “Frequently Asked Questions” about an administrative rule going into effect in a week. *Id.* at 2. Krazy Daze has not cited to any cases where a document purporting to be an FAQ was treated as a *de facto* rule.

This is critical because documents which *explain* the law rather than *expand* the law are not rules. *State ex rel. Saunders v. Indus. Comm’n*, 2004-Ohio-339 ¶ 33. “The pivotal issue in determining the effect of a document is whether it enlarges the scope of the rule or statute from which it derives rather than simply interprets it.” *Id.* at ¶ 27, citing *Ohio Nurses Assn., Inc. v. Ohio State Bd. of Nursing Edn. & Nurse Registration*, 44 Ohio St.3d 73, 76 (1989); *OPUS III-VII Corp. v. Ohio State Bd. of Pharmacy*, 109 Ohio App. 3d 102, 113 (10th Dist. 1996). Put another way, “An action that establishes a new policy or standard is a rule under R.C. 119.01(C); one that implements or interprets a pre-existing rule or statute is not.” *O’Neal v. State*, 2021-Ohio-3663, ¶ 27, citing *Saunders*, ¶ 27.

The FAQ states that it was seeking to provide “guidance . . . on the enforcement of OAC 4729:9-1-01.1 and the manufacture, possession, and sale of kratom in Ohio.” Exhibit

C to the complaint, p. 1. If the FAQ was secretly trying to be a rule, it would state that it would be in effect until revoked or superseded. It says the opposite. “Information contained in this notice may not constitute the most up-to-date legal or other information.” *Id.*

Reasonable people can disagree as to how a statute or rule should be interpreted. When put to the test, courts sometimes agree with how an agency interpreted a law in a guidance document and sometimes disagrees. But a guidance document is not suddenly turned into a *de facto* law when it gives a wrong answer.

D. The FAQ Does Not Expand The 7-OH Rule.

The Board recognizes that the FAQ is far from perfect. A document that was meant to simplify issues for manufacturers and retailers has led to anger and confusion. The Board will be reassessing the FAQ before May 29, 2026 (the date of the preliminary injunction hearing in the Miracle Kratom matter).

However, this Court should not gloss over the fact that for Krazy Daze to prevail it has to show that the FAQ was inconsistent with the 7-OH rule. It isn't.

Critically, Krazy Daze *never* identifies any quotation in the motion for TRO that *expressly* stated that a kratom product that would otherwise be legal will be a schedule I controlled substance if it fails to comply with all terms of Ohio's pure food and drug law.

The only quotation from the FAQ that Krazy Daze identifies in its motion for TRO is the following: “natural kratom may only be sold in its whole or dried leaf form or

powdered form *as long as* it is not marketed as a food, drug or dietary supplement.”

Motion for TRO quoting Exhibit C to Complaint, p. 3.

Krazy Daze leaves out a key portion of this quote. Here is the full sentence.

“Under existing Ohio law and consistent with ODA’s legal authority, natural kratom may only be sold in its whole or dried leaf form or powdered form as long as it is not marketed as a food, drug or dietary supplement.” Motion for TRO quoting Exhibit C to Complaint, p. 3.

The FAQ wasn’t purporting to interpret the 7-OH rule. It was describing the pure food and drug law (R.C. Chapter 3715) and pointed to the agency that enforces the law in regards to food and supplements.⁵ “For more information on the sale of kratom in its whole or dried leaf form or powdered form, see the guidance from the Ohio Department of Agriculture.” Exhibit C to the Complaint, p. 3 (hyperlink omitted).

It was the Department of Agriculture, not the Board, which concluded that “kratom is not permitted to be processed into, or marketed as, a food, drug or dietary supplement (e.g., incorporated into a food or represented as any edible product.)” Exhibit D to the Complaint at 2.

⁵ The Board has broad jurisdiction under R.C. Chapter 3715 as well, but typically focuses its enforcement on unsafe drugs.

Krazy Daze has *not* alleged that the FAQ is inconsistent with R.C. Chapter 3715, nor has it expressly asked for the Court to block enforcement of the Pure Food and Drug Act.

Due to an interplay of federal and state law, vegetative kratom cannot be sold or marketed as a food, drug or supplement. See Exhibit A, Affidavit of Jaime Higley, attached. Doing so is a violation of R.C. 3715.52 and .55 and is a crime under R.C. 3715.99.

The FDA position on whether kratom can be added to a food product or sold as a dietary supplement is clear:

Kratom is not appropriate for use as a dietary supplement. FDA has concluded from available information, including scientific data, that Kratom is a new dietary ingredient for which there is inadequate information to provide reasonable assurance that such ingredient does not present a significant or unreasonable risk of illness or injury and, therefore, dietary supplements that are or contain kratom are adulterated under section 402(f)(1)(B) of the [Federal Food, Drug, and Cosmetic] Act. Further, FDA has determined that kratom, when added to food, is an unsafe food additive within the meaning of section 409; food containing an unsafe food additive, such as kratom, is adulterated under section 402(a)(2)(C)(i). Based on these determinations by FDA, kratom is not lawfully marketed as a dietary supplement and cannot be lawfully added to conventional foods.

Therefore, kratom is not lawfully marketed in the U.S. as a drug product, a dietary supplement, or a food additive in conventional food.

Exhibit __ at p. 2.

The Ohio Department of Agriculture has concluded that any kratom product sold in Ohio that is not strictly the raw vegetative form of the leaf—whether whole or ground—is considered adulterated. Possession of adulterated food, drugs, or dietary

supplements has carried criminal penalty in Ohio for decades. If Plaintiffs were manufacturing, selling, holding, or delivering products that were adulterated prior to May 19, 2026, they were engaged in criminal conduct. *See* R.C. 3715.52(A); 3715.99(D). The FAQ and the 7-OH rule did not alter the preexisting criminality of or prohibition on selling Kratom as a food, drug, or dietary supplement in Ohio.

In other words, the FAQ has nothing to do with the fact that it is illegal for Krazy Daze to sell beverages that contain kratom. It has been illegal to sell kratom as a food, drug or supplement for decades.

VII. Plaintiffs Have Not Shown Any Harm, Much Less Irreparable Harm.

In order to obtain a preliminary injunction, the Plaintiffs “must demonstrate clear and convincing evidence” that there will be irreparable harm. *City of Columbus v. State*, 2023-Ohio-2858, ¶ 20 (10th Dist.).

Plaintiffs have fallen woefully short of demonstrating that they will suffer *any* harm -- much less irreparable harm from the FAQ. As noted above, Krazy Daze’s product is a consumable liquid mixed with other ingredients. Under any reasonable interpretation of the 7-OH rule, it will not meet the narrow exception for vegetative kratom.

Krazy Daze has fallen woefully short of showing that it has been harmed by the Board’s May 14th FAQ.

VIII. Blocking Enforcement of the 7-OH Rule Will Harm Third Parties and Is Not In the Public Interest.

Krazy Daze's request for a TRO is wildly overbroad. According to its Motion for TRO, the Board promulgated a *de facto* rule when it issued an FAQ. Even if that is correct, this Court should not grant a TRO forbidding *all* state and local agencies from enforcing *any* laws about consumable kratom. As the Ohio Supreme Court has explained, injunctions against government agencies should be granted with caution "especially in cases affecting a public interest where the court is asked to interfere with or suspend the operation of important works or control the action of another department of government." *Cementech*, 2006-Ohio-2991, ¶ 10.

This should be doubly true where a party is implicitly asking for a court to enjoin an entire chapter of the Revised Code that involves the safety of food, drugs and supplements.

Finally, the public has an interest in the enforcement of its health safety laws. As Judge Young aptly held in another case involving kratom products, "the public has a substantial interest in the functioning of administrative agencies and regulation of controlled substances." *Holistic Alternative Recovery Trust v. Ohio Pharmacy Bd.*, Case No 26-CV 403 (citing *Doe v. State Med. Bd. of Ohio*, 2022-Ohio-1600, ¶ 12 (Ct. of Claims)). (A courtesy copy is attached.)

These factors should weigh heavily against granting a TRO.

VI. Conclusion.

This Court should deny Krazy Daze's request for a temporary restraining order. Its request is wildly overbroad, it has not shown that it was harmed by the Board's FAQ, and it does not have a substantial likelihood of success on the merits.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that a copy of the foregoing was served on the date of filing by operation of this Court's electronic filing system on all counsel of record.

/s/ Henry G. Appel
HENRY G. APPEL (0068479)
Principal Assistant Attorney General

IN THE COMMON PLEAS COURT
CUYAHOGA COUNTY, OHIO
CIVIL DIVISION

CITY OF CLEVELAND,
601 Lakeside Avenue
Cleveland, OH 44114-1077

And

CUYAHOGA COUNTY BOARD OF
HEALTH
5550 Venture Drive
Parma, OH 44107

Plaintiffs,

vs.

OHIO TEAHOUSE, INC.
DBA Sacred Waters Kava Bar
C/O Stat. Agent Christopher
Nunnari
15319 Detroit Ave.
Lakewood, OH 44107

And

SACRED VORTEX, INC.
C/O Stat. Agent Julie Moran
4546 Lansing Dive
North Olmsted, OH 44070

Defendants.

Case No. CV 25 123140

Judge Mollie Ann Murphy

EXHIBIT
D

AFFIDAVIT OF JAMIE HIGLEY

STATE OF OHIO)
) SS:
COUNTY OF FRANKLIN)

Jamie Higley, being over the age of twenty-one and being first duly cautioned and sworn,
avers and states as follows:

EXHIBIT
A

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1. I have both a Bachelor of Science in Environmental Health that I obtained in 1996 and a Bachelor of Science in Community Health that I obtained in 1991 from Ohio University.
2. I am employed by the Ohio Department of Health as the Administrator of the Food Safety Program in the Bureau of Environmental Health and Radiation Protection, a position I have held since 2011. As the Food Safety Program Administrator, I am responsible for oversight of licensing and inspection activities. I supervise food safety program staff who conduct surveys of local health district food service operation programs; provide training to local health district staff; audit certification in food protection course providers; administer the Certification in Food Protection Program; and provide technical assistance to local health districts, the food industry, general public, and other stakeholders.
3. In my position at the Ohio Department of Health ("Department"), I also draft language for the Ohio Uniform Food Safety Code and Ohio Administrative Code Chapter 3701-21.
4. Under the Federal Food, Drug, and Cosmetic ("FD&C") Act, any substance used or intended for use in food must be authorized by the Food and Drug Administration ("FDA") for use as a food additive unless the use of that substance is generally recognized as safe ("GRAS") by qualified experts as described in 21 CFR 170.30.
5. The Ohio Uniform Food Safety Code is based upon the model food code issued by the FDA under state law in ORC 3717.05(B)(1). The FDA updates its Model Food Code every four years and sends an email to state agencies to inform them the Model Food Code has been updated.

6. Since the FDA has determined that kava is an unapproved food additive, the Ohio Uniform Food Safety Code prohibits the use of this ingredient in foods and beverages prepared and/or served in licensed food service operations and retail food establishments. See Ohio Administrative Code (O.A.C.) 3717-1-03.1(I) (providing “Food cannot contain unapproved food additives[.]”).
7. In 2020, the Food and Drug Administration (FDA) issued a memo stating that kava root is not safe for human consumption. Additionally, the FDA memo states that kava root is not an approved food additive and is not considered GRAS as specified in Title 21 of the Code of Federal Regulations (CFR) §170.30(c)(1). Food and Drug Administration. *Memorandum: Review of the published literature pertaining to the safety of Kava for use in conventional foods*. (August 11, 2020.) Available at: <https://www.fda.gov/media/169556/download>.
8. To my knowledge I am not aware of any food additive regulation that authorizes the use of kratom extract in food. I am also not aware of any information to indicate that kratom extract is a prior sanctioned substance (see 21 CFR Part 181). Prior sanctioned substances are those substances whose use in contact with food is the subject of a letter issued by FDA or USDA before 1958 offering no objection to a specific use of a specific substance. See *Determining the Regulatory Status of Components of a Food Contact Material* (Feb. 3, 2018), Available at: <https://www.fda.gov/food/packaging-food-contact-substances-fcs/determining-regulatory-status-components-food-contact-material> (last accessed Oct, 25, 2025).
9. Furthermore, I am not aware of any basis to conclude that kratom extract is GRAS for use in conventional foods. FDA's regulations in 21 CFR 170.30(a)-(c) describe the criteria for eligibility for classification of a food ingredient as GRAS.

10. The Ohio Department of Health regulates food service operations where food is intended to be served in individual portions in response to an order under ORC 3717.01(F).
11. Kratom cannot be served in a Food Service Operation as it not an authorized food or food additive, nor can it be served as a side to a food service order. The “FDA has determined that kratom, when added to food, is an unsafe food additive within the meaning of section 409; food containing an unsafe food additive, such as kratom, is adulterated under section 402(a)(2)(C)(i). Based on these determinations by FDA, kratom is not lawfully marketed as a dietary supplement and cannot be lawfully added to conventional food. Therefore, kratom is not lawfully marketed in the U.S. as a drug product, a dietary supplement, or a food additive in conventional food.” U.S. Food and Drug Administration, “FDA and Kratom,” (Sept. 25, 2025), Available at: <https://www.fda.gov/news-events/public-health-focus/fda-and-kratom> (last accessed Oct. 25, 2025).

Further Affiant sayeth naught.

Jamie Higley
JAMIE HIGLEY

Sworn to before me and subscribed in my presence this 29th day of October, 2025



BRIANNE RENE' VEIT BROWN
Attorney at Law
NOTARY PUBLIC
STATE OF OHIO
My Commission Has
No Expiration Date
Section 147.03 O.R.C.

Brianne R. V. Brown
Notary Public

**IN THE COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

Holistic Alternative Recovery Trust, Inc.,	:	
	:	Case No. 26 CV 403
Plaintiff,	:	
	:	Judge David C. Young
v.	:	
	:	Magistrate Mark Petrucci
State of Ohio Board of Pharmacy, et al.,	:	
	:	
Defendants.	:	

Entry

This case was before the undersigned for a hearing on the motion for temporary restraining order filed on January 13, 2026. The hearing was held on January 20, 2026. Counsel for the parties appeared, and arguments were made on the record. Defendants also filed a memorandum contra on January 19, 2026, and Plaintiff filed a reply on January 21, 2026.

Adm.Code 4729:9-1-01.1 ("the Rule") was enacted under R.C. 3719.45, which authorizes the State Board of Pharmacy to make additions to schedule I by emergency rule. Plaintiff challenges the Rule which declares Mitragynine-related compounds to be schedule I controlled substances.

A temporary restraining order is a form of relief intended to prevent the applicant from suffering irreparable harm, injury, or damage. Civ.R. 65(A). A court must examine and balance the following factors to determine if injunctive relief should be granted:

- (1) whether the evidence presents a substantial likelihood that plaintiff will prevail on the merits, (2) whether denying the injunction will cause plaintiff to suffer irreparable injury, (3) whether granting the injunction will cause third parties to suffer unjustifiable harm, and (4) whether the injunction will serve the public interest.

Garb-Ko, Inc. v. Benderson, 10th Dist. Franklin Nos. 12AP-430, 12AP-474, 12AP-475, 12AP-476, 2013-Ohio-1249, ¶ 32, quoting *Cuyahoga Re-Entry Agency v. Ohio Dept. of Rehab. & Corr.*, 10th Dist. No. 11AP-740, 2012-Ohio-2034, ¶ 31. The party seeking the temporary



restraining order must demonstrate by clear and convincing evidence that they are entitled to such. *Id.* “The issue of whether to grant or deny an injunction is a matter within the discretion of the trial court[.]” *Id.*

The undersigned has reviewed the filings and considered the argument. Upon a balancing of the factors, the Court finds that the motion is not well-taken.

There was not a demonstration, by clear and convincing evidence, that Plaintiff has a substantial likelihood of success on the merits. “[A]n administrative rule that is issued pursuant to statutory authority has the force of law unless it is unreasonable or conflicts with a statute covering the same subject matter.” *Maralgate, L.L.C. v. Greene Cty. Bd. of Revision*, 130 Ohio St.3d 316, 2011-Ohio-5448, ¶ 21, quoting *Nestle R&D Ctr., Inc. v. Levin*, 122 Ohio St.3d 22, 2009 Ohio 1929, 907 N.E.2d 714, ¶ 40, quoting *State ex rel. Celebrezze v. Natl. Lime & Stone Co.* (1994), 68 Ohio St.3d 377, 382, 1994 Ohio 486, 627 N.E.2d 538.

In determining whether a rule is reasonable, “deference is given to the agency’s expertise in evaluating the reasonableness and lawfulness of the rule.” [*Midwestern College*, 656 N.E.2d 963] at 24. An administrative rule is presumed to be reasonable and the party challenging the rule must rebut this presumption by a preponderance of substantial, probative, and reliable evidence. *Id.*

Vargas v. State Med. Bd. of Ohio, 2012-Ohio-2735, ¶ 32 (10th Dist.). “A decision is unreasonable if there is no sound reasoning process that would support that decision.” *Aaaa Ents. v. River Place Community Urban Redevelopment Corp.*, 50 Ohio St.3d 157, 161 (1990).

Plaintiff argues that the Board had an insufficient factual basis for the Rule’s enactment which would make it unreasonable. Exhibit C to the Complaint is an analysis issued by the Board titled: Classification of Mitragynine-Related Compound as Schedule I Controlled Substances. In that document, the Board explains how it analyzed the three factors set forth in R.C. 3719.45(A)(2).

In so doing, the Board relied upon different evidence and studies. This included studies that

found that kratom compounds affect the body like opioids and that medications approved for treatment of opioid-use disorder have been used to treat kratom-use disorder. (Comp., Ex. C at fns. xiv, xv, xxv, xxvi, xxvii.) The Board also cited studies about the potency of available products versus mitragrynine. (*Id.* at fns. xi, xiii.) It looked at the number of reports to poison control involving kratom and how that had grown from the previous year. (*Id.* at fn. ix.) The Board noted that kratom is illegal in seven other states and thirty-three countries. (*Id.* at fns. xvii, xviii, xix.)

Next, the Board looked at evidence of how the products are widely available in many varied preparations and how the packaging of such products can look like an everyday treat. (*Id.* at fns. xxix, xxxi.) There were further reports that kratom withdraw is similar to opioid withdraw, that kratom is advertised as a pain reliever and a way to get off opioids, and it is not always included on or being caught on drug screens. (*Id.* at fns. xxxii, xxxiii, xxxiv, xxxv.)

Finally, the Board looked at the number of deaths in Ohio and nationally from kratom and how that number has grown in recent years. (*Id.* at fn. xxxvii, l.) It noted that there is evidence suggesting that high enough doses of kratom alkaloids may cause opioid toxicity via the same pathways implicated in conventional opioid overdoses. (*Id.* at fns. xxxviii, xxxix, xli.) The Board cited the FDA study that found both morphine and 7-OH induced significant respiratory depression that could be reversed using naloxone and concluded that 7-OH may expose people to similar risks as classic opioids. (*Id.* at fn. xliii.) It considered documented cases of pregnant people using kratom resulting in neonatal abstinence syndrome in the newborns. (*Id.* at fn. xlvii, xlviii, xlix.) They also considered anecdotal evidence that kratom has dangers including use disorder and withdrawal. (*Id.* at fns. li, lii, liii, lvi, lvii, lviii, lix, lx, lxi.)

The Board relied on an appropriate factual record. As to accepted medical uses, the Board's report cited the FDA indicating that no manufacturer has sought to develop a drug that includes

kratom in the US. (*Id.* at fn. xvi.). At the hearing, Plaintiff pointed out some limitations with the FDA study that was relied upon by the Board, for example testing was only done on animals. However, the Board consists of professionals who can take those limitations into consideration. Studies are almost never without any limitations, and it was not unreasonable for the Board to rely on the FDA's study.

Next, there was a showing of irreparable harm. "A risk of loss or damage to a business entity qualifies as irreparable harm." *Franks v. Rankin*, 2012-Ohio-1920, ¶ 36 (10th Dist.). However, this factor must be weighed against the others, which do not support the issuance of a temporary restraining order. No single factor is dispositive, and all four must be balanced. *Youngstown City School Dist. Bd. of Edn. v. State*, 2017-Ohio-555, ¶ 68 (10th Dist.).

The remaining two factors weigh against issuing a temporary restraining order. Third parties may suffer harm if the injunction is granted based on the Board's determination and the information and research relied upon in enacting the Rule. The public interest factor weighs against granting an injunction. Injunctions should be granted with caution "especially in cases affecting a public interest where the court is asked to interfere with or suspend the operation of important works or control the action of another department of government." *Cementech, Inc. v. City of Fairlawn*, 109 Ohio St.3d 475, 2006-Ohio-2991, 849 N.E.2d 24, ¶ 10, quoting *Danis Clarkco Landfill Co. v. Clark Cty. Solid Waste Mgt. Dist.* (1995), 73 Ohio St.3d 590, 604, 1995 Ohio 301, 653 N.E.2d 646, quoting *Leaseway Distrib. Ctrs, Inc. v. Dept. of Adm. Servs.* (1988), 49 Ohio App.3d 99, 106, 550 N.E.2d 955. The public has a substantial interest in the functioning of administrative agencies and regulation of controlled substances. *See Doe v. State Med. Bd. of Ohio*, Ct. of Cl. No. 2022-00077JD, 2022-Ohio-1600, ¶ 12.

Based on the foregoing, the factors weighed against issuing a temporary restraining order.

The Court hereby **DENIES** Plaintiff's request for a temporary restraining order. A preliminary injunction hearing shall be set before Magistrate Mark Petrucci by separate order of reference.

IT IS SO ORDERED.

Copies electronically to counsel of record.

Franklin County Court of Common Pleas

Date: 01-23-2026
Case Title: HOLISTIC ALTERNATIVE RECOVERY TRUST INC -VS- STATE
OF OHIO BOARD OF PHARMACY
Case Number: 26CV000403
Type: ENTRY

It Is So Ordered.



/s/ Judge David C. Young

IN THE COURT OF APPEALS
TENTH APPELLATE DISTRICT

Krazy Daze, Inc., *et al.*,

Plaintiffs-Appellants,

v.

Ohio Board of Pharmacy,

Defendant-Appellee.

Case No. 26-AP-000735

APPELLEE OHIO BOARD OF PHARMACY'S
MEMORANDUM IN OPPOSITION TO APPELLANTS' MOTION
FOR AN INJUNCTION PENDING APPEAL

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Counsel for Defendant-Appellee

I. Introduction

In May 2026, the Ohio Board of Pharmacy (“the Board”) exercised its statutory authority to declare that “mitragynine-related compounds” are Schedule I controlled substances. The Board created a narrow carve-out in the rule; mitragynine in “vegetation form” was not included as a Schedule I controlled substance.

Plaintiffs-Appellants Krazy Daze and Botanic Tonics (“Krazy Daze”) sought a permanent injunction insisting that the beverage to the right meets the exception because it is “in vegetation form.” (Appellants’ Exhibit 5-A, p. 12). Krazy Daze made the related argument that the rule in question, Adm.Code 4729:9-1-



01.1 (the “rule” or “kratom rule”), is unlawfully vague because they cannot tell if their product is legal or not.

The trial court has concluded that the kratom rule is clear and unambiguous and that the Feel Free beverage is not in vegetation form. “It does not take a doctorate degree to determine once a kratom leaf is mixed

with anything else, it stops being ‘vegetation.’” Aug. 4, 2026 Order Denying Request for Preliminary Injunction at 5 (hereinafter “Slip Op.”)

This Court should not grant an injunction pending appeal. The trial court’s denial of a permanent injunction was not an abuse of discretion. It is both common sense and the law that beverages containing a “plethora of other ingredients . . . cease to be considered mitragynine in vegetation form.” Slip Op. at 5.

More importantly, Krazy Daze asks this Court to enjoin the enforcement of the kratom rule altogether. The kratom rule lists several substances, including 7-OH, that Krazy Daze concedes should be illegal because of its high likelihood of abuse. Such an action would endanger Ohioans.

II. Kratom is addictive.

At the preliminary injunction hearing, Krazy Daze’s own witnesses conceded that kratom can be addictive.

Dr. Robert Verkerk, Botanic Tonics, LLC’s expert, admitted that kratom can be toxic, habit-forming and can lead to addiction. Tr. pp. 97-100. Krazy Daze introduced as evidence the label for the Feel Free beverage,

which warned customers in capital letters: “CAN BE HABIT-FORMING.” (Appellant’s Exhibit 5-A, p. 12).

Ramsey Atallah, the Chief Science Officer for Botanic Tonics, LLC, testified customers could become addicted to Feel Free beverages “especially if they go against what the label recommends.” Tr. at 171. Yet, he acknowledged that the company’s own customer surveys showed that *one in four* of its customers did not follow the directions on the label. Tr. pp. 171-174, 195.

Dr. Verkerk admitted that Feel Free beverages are more than just kratom leaf and water. The beverages contain kava extract, another psychoactive substance, which Dr. Verkerk described as “calming.” Tr. p. 48. Dr. Verkerk described Feel Free as containing a “combination of different botanicals.” Tr. p. 90. He admitted on cross-examination that kava and mitragynine are expected to have chemical interactions. Tr. p. 102.

III. There is no reasonable likelihood that this Court will find that the trial court abused its discretion.

The question before this Court is whether Krazy Daze has a substantial likelihood of success on the merits of the appeal. It does not. To prevail on

the merits of their ultimate appeal, Krazy Daze will need to show that the trial court's decision denying permanent injunctive relief was an abuse of discretion. *Garono v. State*, 37 Ohio St.3d 171, 173 (1988). Krazy Daze does not clear this high hurdle.

Krazy Daze asks this Court to allow the sale of any product "that contains, as an ingredient, vegetative kratom in either leaf or ground-up/pulverized leaf form . . . specifically including BT's 'Feel Free' line of products." Motion at 1-2.

Krazy Daze has no reasonable likelihood of showing the kratom rule to be unconstitutionally vague. "Whether a statute or administrative rule is void for vagueness revolves around whether a person of average intelligence could comprehend what conduct is prohibited by statute." *Valerian v. Ohio Liquor Control Comm'n*, 2003-Ohio-6930, ¶ 15 (10th Dist.). The void-for-vagueness doctrine "does not require statutes to be drafted with scientific precision." *Columbia Gas Transm. Corp. v. Levin*, 2008-Ohio-511, ¶ 46.

It is telling that Krazy Daze cites the Board's prior legal filings to support their claims of vagueness, but glosses over the actual language in the rule. Here is the provision at issue: "Mitragynine-related compounds do

not include any of the following: . . . Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code.” Adm.Code 4729:9-1-01.1(D).

The trial court properly concluded that “vegetation form” is synonymous with “plant.” The Court need only ask this question: did the trial court abuse its discretion in saying that a bottle of Feel Free Classic was not a plant? The answer is plainly no. A plant is not made of plastic and does not have a screw top. It does not have a label listing its ingredients and identifying its serving size. It does not have (*in really* tiny fine print) a list of “other ingredients” like citric acid, pineapple juice, stevia leaf and “natural flavors.” (Appellants Exhibit 5-A, p. 12.)

Krazy Daze doesn’t like the exception in the kratom rule because beverages are clearly not “in vegetation form.” But it clearly knows what the rule means. As the trial court succinctly explained, “[i]t does not require a doctorate degree to determine once the kratom leaf is mixed with anything else, it stops being ‘vegetation.’” Slip. Op. at 7.

IV. Krazy Daze cannot show irreparable harm.

Krazy Daze cannot show irreparable harm because mitragynine-related compounds are already illegal under R.C. Chapter 3715, the Pure Food and Drug law, the validity of which is not before the Court. Adm.Code 4729:9-1-01.1 therefore is not even the *but for* cause of harm. See *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 158 (2014) (for a pre-enforcement challenge to a statute, the threatened prosecution must be contained within the *same* statute proscribing the alleged conduct).

So even if this Court were to grant an injunction, Krazy Daze still could not legally sell its mitragynine-related compounds in Ohio. Said differently, Krazy Daze would have to break law #1 (the Pure Food and Drug Law) before they could ever face prosecution for breaking law #2 (unlawfully possessing a controlled substance, i.e. a mitragynine-related compound). Against this backdrop, the trial court correctly determined that “any threatened prosecution can be avoided by following the rule that this Court has found to be unambiguous. Slip Op. at 7.

As for lost sales, the trial court correctly followed this Court’s holding that purely economic loss that could be recoverable from money damages

does not constitute irreparable harm. *Id.*, citing *Smith v. Advantis Computer Consulting, Inc.*, 2001 Ohio App. LEXIS 1456, at *10 (10th Dist. Mar. 29, 2001).

V. Third parties would be harmed by an injunction.

As noted above, Krazy Daze's own witnesses conceded that kratom can cause addiction or serious injury. Tr. pp. 97-100, 170-172. Botanic Tonics' Founder and Chairman, JW Ross admitted that when he came up with the formula for Feel Free Classic, he "knew some people would abuse it." (Ex. 3, attached). Ohio Department of Public Health statistical data showed that kratom played a role in 255 overdose deaths in the Buckeye State between 2019 and 2024. (Ex. 4, attached).

An injunction lowering the bar would lead to more Ohioans becoming addicted, getting injured, or dying from mitragynine-related compounds. This is the epitome of harm to third parties.

VI. An injunction will harm public interest.

The fourth related factor, public interest, weighs heavily against injunctive relief. Injunctions against government agencies should be granted with caution "especially in cases affecting a public interest where the court

is asked to interfere with or suspend the operation of important works or control the action of another department of government.” *Cementech, Inc. v. City of Fairlawn*, 2006-Ohio-2991, at ¶ 10.

The kratom rule applies to all mitragynine-related compounds, including synthesized compounds like 7-OH that even Krazy Daze concedes are particularly dangerous and a “public health concern.” (Ex. 2, p. 9 ¶¶ 27-40). Yet Krazy Daze still demands this Court enjoin enforcement of the rule classifying these dangerous compounds as controlled substances. In finding that the public interest was not served by an injunction, the trial court succinctly explained:

The Court is mindful of the addictive effects of mitragynine-related compounds and the possibility for abuse of kratom. Defendants followed the proper procedure in promulgating the rule, and its plain interpretation - while detrimental to Plaintiff’s business interests - appears to be beneficial to the public in attempting to prevent the ill effects that may arise from abuse of products containing natural leaf kratom.

Slip Op. at 8.

It bears repeating that even Krazy Daze admits that its products can cause addiction or serious injury. This admission is borne out by the wave of lawsuits that kratom and Feel Free have triggered. See, e.g., *In re K.K.*,

2025-Ohio-4746, ¶¶ 32, 70, 93 (8th Dist.) (upholding termination of parental rights where child’s caregiver had a history of substance abuse, had consumed “Feel Free” kratom products and was unable to stop using kratom); *Johnson v. Farmers New World Ins. Co.*, 2024 U.S. App. LEXIS 238183 (10th Cir. Sept. 12, 2024) (upholding dismissal of claims against insurance company for denial of coverage where decedent’s death was partly attributable to using kratom to self-medicate); *In re B.P.*, 2023 W. Va. LEXIS 229, ** 7-9 (S. Ct. W. Va. June 13, 2023) (upholding the termination of parental rights where mother hid her chronic kratom use and her second child was born with symptoms of drug withdrawal and drug screens at the delivery showed a false positive for fentanyl “due to the chemical composition of kratom.”); *In re Dependency of V.W.*, 2023 Wash App. LEXIS 2341, ¶ 49-50 (Wash. Ct. App. Dec. 18, 2023) (upholding finding of dependency based on abuse or neglect against mother who was a daily kratom user and had a “history of opioid use and drug-seeking behavior”).

The Board’s decision to classify mitragynine-related compounds as Schedule I controlled substances was meant to protect public health. This Court should not grant an injunction that harms it.

VII. Conclusion

Krazy Daze wants this Court to grant an injunction pending appeal for beverages that it admits are addictive. The trial court made the common-sense decisions that (1) the kratom rule's exception for products "in vegetation form" is not unconstitutionally vague and (2) Feel Free beverages are not "in vegetation form." Pausing the kratom rule, even temporarily, would mean unleashing 7-OH and other substances that even Krazy Daze believe are dangerous.

This Court should deny the request for an injunction pending appeal.

Respectfully submitted,

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Attorney General of Ohio

/s/ Henry G. Appel

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Counsel for Defendant-Appellee
Ohio Board of Pharmacy

CERTIFICATE OF SERVICE

I certify that a copy of the foregoing was served on the date of filing by operation of this Court's electronic filing system on all counsel of record. A copy has also been served by email on August 27, 2026 to counsel for Krazy Daze and Botanic Tonics, Christopher J. Hogan hogan@litohio.com, and Marion H. Little, Esq., little@litohio.com.

/s/ Henry G. Appel

HENRY G. APPEL (0068479)

Principal Assistant Attorney General

**COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

KRAZY DAZE INC., et al.,

Plaintiffs,

v.

OHIO BOARD OF PHARMACY,

Defendant.

Case No. 26 CV 004790

Judge Mark Serrott

MIRACLE KRATOM, LLC, et al.,

Plaintiffs,

v.

OHIO DEPARTMENT OF
AGRICULTURE, et al.,

Defendants.

Case No. 26 CV 004720

Judge Mark Serrott

**PLAINTIFFS' EMERGENCY MOTION FOR A STAY OF COURT'S ORDER
VACATING TEMPORARY RESTRAINING ORDER**

Plaintiffs Krazy Daze Inc. ("Krazy Daze") and Botanic Tonics ("BT") respectfully move for an Order immediately staying, for ten (10) days, the portion of the Court's August 4, 2026, Order (the "8/4/26 Order") that vacated the existing Temporary Restraining Order, as modified on July 13, 2026 (the "TRO"). The basis for this emergency Motion is set forth in the attached memorandum in support.

STATE'S EXHIBIT

1

Respectfully submitted,

/s/ Christopher J. Hogan

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Botanic Tonics, Inc.

MEMORANDUM IN SUPPORT

“Inherent within [this] court’s jurisdiction, and essential to the orderly and efficient administration of justice, is the power to grant or deny stays.” State v. Hochhausler, 76 Ohio St. 3d 455, 464 (1996); see also Miller v. Mission Essential [Group], LLC, 2023-Ohio-3077, ¶ 42 (10th Dist.) (same). The Court should exercise that power here to prevent substantial, immediate harm and the unnecessary destruction of valuable products that are, at minimum, legal elsewhere in the United States irrespective of the challenged scheduling determinations by Defendant Ohio Board of Pharmacy (“BOP”) at issue in this case.

Via its 8/4/26 Order, the Court determined—at least on a preliminary basis—that the BOP’s Mitragynine-Related Compounds rule is valid and that its terms deem the Feel Free products manufactured by BT and sold (for years) by numerous Ohio retailers, like Krazy Daze, to be Schedule I controlled substances. Thus, in vacating the TRO, the Court effectively rendered the possession or sale of Feel Free a crime (and, potentially, a felony offense) under R.C. 2925.01(A), 2925.03, and 2925.11, which incorporate the BOP’s scheduling determinations into Ohio’s “Drug Offenses[.]”

Until the Court issued the 8/4/26 Order, the TRO—with “indefinite[]” effect—expressly barred BOP, and those in active concert or participation with it, from treating Feel Free products as controlled substances. The Court’s immediate lifting of that bar has significant and costly consequences that could be avoided by a brief, 10-day stay of the portion of the 8/4/26 Order that vacated the TRO.

Data supplied by BT’s authorized distributors indicates that, over the past 90 days (which includes the period while the TRO was in effect), more than 442,000 cartons, with over 5.3 million bottles of Feel Free, were sold to more than 6,600 retailers in Ohio. Given this volume, there is little doubt that many of those retailers still have significant and valuable inventory on hand (the Court will likely recall Mr. Atallah’s testimony that Feel Free typically sells for \$10 per bottle).

A brief, 10-day stay of the Court’s vacation of the TRO would allow BT and its distributors to give notice to and work with those retailers to secure the inventory and move it to other state(s) where the sale and possession of Feel Free remains legal. That would obviate the need for immediate destruction of valuable products without harming others inasmuch as—subject to any further rulings—such products would not be sold in Ohio.

In sum, the Court should exercise its inherent authority to briefly stay its vacation of the TRO to prevent extensive and unnecessary harm that will otherwise result from the immediate criminalization of the possession and sale of Feel Free products in Ohio. The instant Motion should be granted.

Respectfully submitted,

/s/ Christopher J. Hogan

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Counsel for Plaintiffs Krazy Daze Inc. and
Botanic Tonics, Inc.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on August 7, 2026, a copy of the foregoing was filed
via ECF which will provide electronic notice of the same to all counsel of record in this action.

/s/ Christopher J. Hogan

Christopher J. Hogan (0079829)

1092794v.2

**COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

KRAZY DAZE INC., and on behalf of all	:	
others similarly situated,	:	
	:	Case No. 26 CV 004290
and	:	
	:	Judge Mark Serrott
BOTANIC TONICS, LLC	:	
13105 E. 61ST ST., SUITE A	:	
BROKEN ARROW, OK 74012,	:	
	:	
Plaintiffs,	:	
	:	
v.	:	
	:	
OHIO BOARD OF PHARMACY,	:	
	:	
Defendant.	:	

MIRACLE KRATOM, LLC, et al.,	:	
	:	
Plaintiffs,	:	Case No. 26 CV 004720
	:	
v.	:	Judge Mark Serrott
	:	
OHIO DEPARTMENT OF	:	
AGRICULTURE, et al.,	:	
	:	
Defendants.	:	

**FIRST AMENDED CLASS ACTION COMPLAINT FOR
DECLARATORY AND INJUNCTIVE RELIEF**

For their First Amended Class Action Complaint against Defendant Ohio Board of Pharmacy (the “BOP”), Plaintiffs Krazy Daze Inc. (“Krazy Daze”), on behalf of itself and similarly situated class members, and Botanic Tonics, LLC (“BT”) (collectively, “Plaintiffs”), allege as follows:

I.

INTRODUCTION

1. This matter presents a case study in the unlawful consequences that flow from the executive branch's efforts to make, rather than implement, public policy.

2. Establishing the public policy of Ohio is exclusively a legislative function. The role of the executive branch, and administrative agencies more specifically, is simply to implement and enforce legislative policy in conformance with the jurisdiction and authority expressly conferred upon them by the legislature.

3. As a result, administrative agencies' lawful actions are strictly circumscribed by their legislative grant of jurisdiction. And, to be enforceable, administrative action that is intended to set a uniform standard or have broad effect must be in the form of a formal rule adopted pursuant to the administrative procedures set forth in Chapter 119 of the Revised Code.

4. In the case of the BOP, and as pertinent here, the legislature vested the agency with limited authority, via the Chapter 119 rulemaking process, to: (1) establish schedules of controlled substances consistent with those adopted at the federal level; and (2) schedule additional substances based on its consideration of statutorily-specified criteria. See R.C. 3719.41, 3719.44.

5. In delegating such authority to the BOP, the legislature did not vest the BOP with jurisdiction to consider other factors, to consider or interpret the statutory jurisdiction and unpromulgated pronouncements of another state agency, or to make the scheduling of a substance dependent on the seller's purported compliance with generic regulatory requirements allegedly applicable under a different chapter of the Revised Code.

6. Yet here, through "guidance" that operates as an administrative rule, and not promulgated via the R.C. Chapter 119 process, and now through its own interpretation of a rule purportedly adopted via the Chapter 119 process, the BOP has declared all natural kratom leaf and

kratom leaf powder—whether or not mixed with other legal substances, like water—Schedule I controlled (banned) substances if sold or marketed for purposes of ingestion, i.e., as a food or a dietary supplement. It further purports to construe Ohio Department of Agriculture (“ODA”) law and policy and require compliance with an unpromulgated standard announced by the ODA, another state agency.

7. In doing so, and because there is no known or historical use of natural kratom leaf that does not involve ingestion, the BOP effectively eviscerated and nullified its own recently-enacted rule, O.A.C. § 4729:9-1.01.1(A)(4) (the “Mitragynine-Related Compounds Rule”), which expressly excluded from scheduling “kratom leaf and ground natural kratom leaf” The Mitragynine-Related Compounds Rule’s express language does not, on its face, purport to condition the exclusion on whether the natural kratom leaf or powder is mixed with other, legal substances.

8. The evisceration and nullification of BOP’s own promulgated rule was (and is) unlawful and invalid.

9. In announcing, via “guidance” and interpretation—to which this Court owes no deference—a supposedly uniform ban on the marketing and sale of natural leaf kratom for ingestion, the BOP has attempted to make policy and impose a new rule in violation of Chapter 119 and the rule of lenity codified in R.C. 2905.04(A). Further, in purporting to make the scheduling of natural kratom leaf products contingent on compliance with unpromulgated standards announced by another administrative agency, the BOP exceeded its own statutory jurisdiction in the scheduling of controlled substances.

10. Unless enjoined, the BOP’s unlawful attempt to regulate by press release and unlawful interpretation places Plaintiffs, who collectively represent the approximately 1,600 other

retail sellers of natural kratom leaf products, and approximately 50 manufacturers of such products who sell them, in Ohio on the horns of a dilemma. Plaintiffs and the similarly situated class members can stop distributing and selling natural leaf kratom and powder products the Mitragynine-Related Compounds Rule, itself, purports to allow by excluding them from scheduling. Or, they can continue selling those products and risk severe, indeed criminal, sanctions, based on the BOP's unpromulgated "guidance," reference to the unpromulgated standards announced by ODA, and an unlawful interpretation of the admittedly-vague Mitragynine-Related Compounds Rule that contradict the terms of the promulgated rule.

11. To prevent the immediate and ongoing irreparable harm resulting from the BOP's unlawful actions, Plaintiffs seek and are entitled, both for themselves and for the members of the class, to declaratory and injunctive relief deeming the newly-announced ban invalid and unenforceable, and barring the BOP and/or anyone else acting at its direction from taking any action to enforce the same.

II. THE PARTIES

12. Krazy Daze is an Ohio corporation that maintains its principal place of business in Springfield, Ohio. Krazy Daze is a retail seller of natural kratom leaf products within the state of Ohio. But for the unlawful administrative action described herein, Krazy Daze's business includes the sale of dietary supplements made with natural, pure-leaf vegetative kratom in its dried and powdered form infused with water and with other legal dietary ingredients ("Natural-Leaf Kratom Dietary Supplements").

13. BT is an Oklahoma-based manufacturer of Natural-Leaf Kratom Dietary Supplements whose products are distributed in Ohio and sold by more than 1,600 retailers in Ohio—including Krazy Daze. To its knowledge, BT is the only manufacturer of a liquid kratom

product made with natural, ground up kratom leaves in their vegetative form, as opposed to concentrated kratom extracts.

14. Defendant BOP is an agency of the State of Ohio that maintains its principal office in Franklin County, Ohio. Among other things, the BOP is statutorily charged with adopting and updating rules “establishing schedule I, schedule II, schedule III, schedule IV, and schedule V [drugs in Ohio] incorporating the five schedules of controlled substances under the federal drug abuse control laws.” See R.C. 3719.41(A) & (B).

15. When validly enacted, the Schedules promulgated by the BOP are used by it and law enforcement officials in, among other things, enforcing Ohio’s criminal drug laws, including those found in Chapter 2925 of the Revised Code. See R.C. 3719.18.

16. While the BOP’s primary function is to simply adopt schedules of controlled substances in effect at the federal level, the BOP is also authorized to schedule additional substances; but only upon consideration and application of specifically-enumerated factors and/or upon making specific findings as to the potential for abuse. See R.C. 3719.41(A), 3719.44.

17. In exercising its scheduling functions, the BOP must comply with the administrative rulemaking requirements set forth in Chapter 119 of the Revised Code. Id. Among other things, those requirements include public notice, an opportunity for public comment, a public hearing, and review by the General Assembly’s Joint Committee on Agency Rule Review (“JCARR”).

18. The BOP’s compliance with Chapter 119 is, thus, a statutory requisite to the BOP’s authority and jurisdiction to adopt and/or add items to Ohio’s schedules of controlled substances.

CLASS ALLEGATIONS

19. Krazy Days brings this action as a class action on behalf of itself and all other members of a class defined as all retailers who, but for the BOP's challenged actions, sell Natural-Leaf Kratom Dietary Supplements and similar natural-leaf kratom products in Ohio.

20. The members of the class are so numerous that joinder of all individual members is impracticable.

21. There are questions of law and fact common to the Class, inasmuch as the same issues and legal principles governing the lawfulness/unlawfulness of the BOP's challenged actions affect and impact the ability of all class members to continue engaging in otherwise-lawful business activities.

22. The claims of Krazy Daze are typical of the class, and the BOP's defenses are typical of the defenses pertinent to all members of the class.

23. Krazy Daze will fairly and adequately protect the interests of the class in continuing to engage in otherwise-lawful business activities but for the BOP's unlawful conduct.

24. The BOP's challenged actions in this case, which purport to impose a statewide ban on the possession, marketing, and sale of natural leaf kratom products when mixed with other legal substances and/or for purposes of ingestion, apply generally to the class such that preliminary and final injunctive relief, with corresponding declaratory relief, is appropriate respecting the class as a whole.

25. Adjudication of this case as a class action will facilitate judicial economy and reduce the state's costs in defending the unlawful and improper actions of BOP in a single action rather than in numerous actions that might potentially be filed in multiple jurisdictions across the state.

JURISDICTION AND VENUE

26. The Court has jurisdiction over this matter because it involves a dispute between entities, and class members, who directly or indirectly do business in Ohio on the one hand and a state agency on the other; and because Plaintiffs seek only declaratory and injunctive relief. No monetary damages are sought.

27. Venue is proper before this Court because, among other things, the BOP is a state agency that maintains its principal office in Franklin County, Ohio. See Ohio R. Civ. P. 3(C). Venue is also proper here because the BOP's unlawful actions described herein were taken in Franklin County, Ohio. Id.

FACTUAL BACKGROUND

A. Centuries Of Natural Kratom Use, And Scientific Studies, Confirm Its Safety.

28. Kratom (*Mitragyna Speciosa*) is an evergreen tree native to Southeast Asia.

29. People have used kratom in various ways for hundreds of years, resulting in a long history of proven safe, traditional use. All of those uses involve ingestion.

30. Chewing the leaves of kratom, drinking teas, infusions and water-based decoctions prepared from kratom leaves or consuming dried/powdered leaves have been practiced for centuries, especially in Thailand, Malaysia, Indonesia and Papua New Guinea.

31. Over the past several decades, natural kratom leaf products have gained popularity as foods or dietary supplements in the United States and other western countries. Users of these natural products, which can incorporate dried or powdered forms of natural kratom leaves, often claim the same benefits, among others, as traditional kratom users have reported experiencing for centuries: improved energy and mood without any psychoactive effects.

32. Some of the natural, dried leaf kratom-containing products sold in the United States include natural leaf kratom supplements (the “Natural-Leaf Kratom Dietary Supplements”) marketed as dietary supplements and specifically sold by Krazy Daze and other class members in Ohio. Those tonics, in pertinent part, contain kratom in only its vegetative natural form: finely divided (comminuted)/powdered kratom leaves infused with water that have been dried and shipped from the parts of the world where the tree is indigenous.

33. Consumed responsibly in its natural leaf or dried/powdered leaf form that limits the concentration of key bioactive compounds, kratom has proven to be safe and devoid of any significant or unreasonable risk of illness or injury. On top of centuries of experience with its safe and responsible use in other countries, scientific studies have found no evidence that the daily ingestion of even moderate amounts of natural kratom in pure or dried/powdered leaf form has either short-term or long-term negative health consequences to the consumer.

34. The principal, active ingredient in natural kratom is an alkaloid compound known as mitragynine. In its natural form, and in the amounts present in the Natural-Leaf Kratom Dietary Supplements sold by Krazy Daze and other class members (20 mg per daily dose, with a maximum recommendation of two doses per day), mitragynine has proven and been scientifically shown to be safe for human consumption, with atypical minimal (and inconsequential) risk of and/or incidences of negative health consequences.

35. Although pure mitragynine is the alkaloid compound in natural kratom (typically representing around one-half or two-thirds of the total alkaloid content), the natural leaf typically also contains trace—although pharmacologically insignificant—amounts of 7-hydroxymitragynine (also known as 7-OH). These trace levels are so low as to have no impact on the already minimal risk profile of natural kratom leaf products.

36. Nonetheless, given even the limited presence of natural mitragynine and trace amounts of other related compounds in the Natural-Leaf Kratom Dietary Supplements, Plaintiffs have chosen to voluntarily limit the sale of such products to persons aged 21 and up who can supply appropriate proof of the same.

B. In Contrast To The Natural-Leaf Kratom Dietary Supplements Manufactured And Sold By Plaintiffs, Some Companies Have Manufactured And Marketed Dangerous Synthetic And/Or Concentrated Products Containing Large Amounts Of 7-OH That Present A Much Different Risk Profile For Consumers.

37. In contrast to natural, leaf kratom products, including the Natural-Leaf Kratom Dietary Supplements manufactured and sold by Plaintiffs, some manufacturers and distributors have begun producing and offering non-natural products in the form of mitragynine concentrates or isolates that deliver the mitragynine at much higher levels than those associated with traditional use and/or concentrated or synthetic 7-OH (the “Enhanced 7-OH Products”).

38. Given that the amounts of 7-OH in these types of products are far in excess of the trace levels found in traditional or natural kratom leaf products, such products may pose a significant health risk given 7-OH at higher concentrations acts pharmacologically as a potent opioid (specifically, a μ -opioid agonist). Products containing isolated or concentrated mitragynine also give rise to substantial health concerns because mitragynine is metabolized in the human liver to 7-OH (the low levels of mitragynine in the Natural-Leaf Kratom Dietary Supplements are insufficient to be of toxicological concern).

39. With the levels found in synthetic or concentrated products, exposure to 7-OH has, thus, been found to have opiate-like effects and presents a heightened risk for psychological and/or physiological dependency (addiction).

40. Thus, to the extent public health concerns exist as to the sale of kratom-derived products, those concerns are driven by and arise especially from the problematic Enhanced 7-OH Products and, to a lesser extent, from the products based on concentrated or isolated mitragynine (that give rise to toxicologically significant exposure to 7-OH following conversion by the liver); **not** by natural kratom leaf products, including the Natural-Leaf Kratom Dietary Supplements, which deliver an alkaloid profile that is in line with products used traditionally in the Southeast Asian region for centuries.

C. The BOP's Initial, Botched Effort To Schedule Enhanced 7-OH Products Via An Improper "Emergency" Rule.

41. In or about July 2025, the federal Food and Drug Administration ("FDA") took steps to alert the public and medical professionals to the potential dangers of and health risks associated with Enhanced 7-OH Products. See <https://www.fda.gov/news-events/press-announcements/fda-takes-steps-restrict-7-oh-opioid-products-threatening-american-consumers>.

42. The FDA noted that it was "specifically targeting 7-OH, a concentrated byproduct of the kratom plant; it is not focused on natural kratom leaf products." *Id.*

43. In an Opinion Editorial published in the New York Post on or about July 29, 2025, former FDA Commissioner Dr. Marty Makary stated: "To be clear, the kratom plant leaf, which contains trace amounts of 7-OH and has been consumed for centuries, is not our focus at the FDA. Rather, we are seeking to remove a dangerous synthetic opioid from retail shelves nationwide." See <https://nypost.com/2025/07/29/opinion/beware-synthetic-kratom-7-oh-powers-a-new-opioid-crisis/>.

44. Consistent with this federal guidance, the Ohio General Assembly continues to consider, at the committee level, legislation that would regulate natural kratom leaf products, while banning synthetic forms of 7-OH. See <https://legiscan.com/OH/drafts/HB587/2025>.

45. Other states have taken steps to do just that. Florida's Attorney General, for instance, issued an emergency rule in August 2025 that adds to Schedule I (in that state) products containing 7-OH above 400 parts per million on a dry-weight basis—a concentration far higher than that found in natural leaf kratom (including in the Natural-Leaf Kratom Dietary Supplements). See <https://www.myfloridalegal.com/sites/default/files/2025-09/2er25-2.pdf>. While Florida regulates the sale of natural kratom leaf products, it has drawn a bright line between them and Enhanced 7-OH products, which are banned by the state's emergency rule. *Id.*

46. Consistent with other states' scheduling of potent 7-OH products, the BOP, in or about early December 2025, initiated the process, with the support of the Governor, of adopting an emergency rule that would result in the immediate addition to Schedule I of "mitragynine-related compounds." As publicly acknowledged by the BOP, however, the Governor made clear that "natural kratom in vegetation form" should not be scheduled.

47. The terms of the emergency rule enacted by the BOP, however, did not accomplish the publicly-stated intent. Instead, in pertinent part, such rule exempted only "Mitragynine."

48. On its face, this exemption did not carve out natural kratom leaf or kratom leaf products because, as noted above, even the leaf itself contains trace (but toxicologically insignificant) amounts of 7-OH.

49. Different sellers of natural kratom products sued the BOP in Channel Zero Marketing, LLC, et al. v. Ohio Board of Pharmacy, Case No. 2026 CV 000497 (Franklin C.P.) (McIntosh, J.) (the "Emergency Rule Action"). Faced with the Governor's and its own statements about the intent of the emergency rule, the BOP ultimately agreed to a final consent judgment entry in the Emergency Rule Action in which the Court declared that "the Emergency Mitragynine-Related Compounds Rule was not intended to, and does not, schedule or otherwise apply to natural

kratom and natural kratom leaf products that contain trace amounts of mitragynine-related compounds.”

50. The court also permanently enjoined the BOP from “taking any steps to enforce or otherwise attempting to enforce, or from directing, acting in concert with, or advising any other entity (including, without limitation, law enforcement) to enforce or attempt to enforce the Emergency Mitragynine-Related Compounds Rule as to natural kratom and/or natural kratom leaf products that contain trace amounts of mitragynine-related compounds.” A true and accurate copy of the Final Consent Judgment Entry entered in the Emergency Rule Action is attached as Exhibit A.

D. The BOP Promulgates The Mitragynine-Related Compounds Rule, Which Purports To Exempt From Scheduling “Natural Kratom Leaf” In Vegetation Form.

51. By law, the BOP’s emergency rule only had temporary effect. Thus, the BOP proceeded with an R.C. Chapter 119 administrative process that resulted in its promulgation of the formal Mitragynine-Related Compounds Rule, which took effect on May 19, 2026.

52. The final rule is identical to its “emergency” predecessor, except in one respect. The emergency rule’s court-modified exemption for “Mitragynine” has now been replaced with the following: “Mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code.” A true and accurate copy of the Mitragynine-Related Compounds Rule is attached as Exhibit B. Nothing in the express language of this rule purports to condition the stated exemption on whether or not the natural kratom leaf or powder: (a) is marketed or sold for purposes of ingestion; (b) is literally sold only as an actual leaf or bag of powder; or (c) is mixed with other legal substances, like water.

53. Further, the adopted Mitragynine-Related Compounds Rule provides no specificity as to the applicability or relevance of Chapter 3715—i.e., Ohio’s Pure Food and Drug Law (the “OPFDL”), which includes many provisions. It does, however, make clear the BOP’s intent that natural kratom leaf and ground natural kratom leaf are **not** to be treated as Schedule I substances.

E. The BOP Issues Public “Guidance” In Which It Announces A Standard That Effectively Eviscerates And Nullifies The Mitragynine-Related Compounds Rule’s Exemption For Natural Kratom.

54. Rather than allowing the language of its promulgated rule to speak for itself, the BOP went further and issued a May 14, 2026, “Consumer and Retailer Notice” (the “5/14/26 Notice”) in which it purported to provide “guidance” regarding the final Mitragynine-Compounds Rule. A true accurate copy of the 5/14/26 Notice is attached as Exhibit C.

55. In reality, through this unpromulgated “guidance”—essentially a press release—the BOP announced a new statewide standard that: (1) effectively results in a statewide ban (indeed, criminalization) of the sale of natural leaf kratom and natural leaf kratom products, and (2) thereby eviscerates and nullifies the very exemption the BOP, itself, purported to enact in Ohio Admin. Code § 4729:9-1-01.1(D).

56. Referring generally to the “legal authority” of, and unpromulgated “guidance” from, the ODA, a separate agency, the BOP proclaimed in the 5/14/26 Notice that “natural kratom may only be sold in its whole or dried leaf form or powdered form as long as it is not marketed as a food, drug, or dietary supplement.” (Emphasis by BOP.) In other words, the BOP proclaimed in its Notice that natural kratom leaf and natural kratom leaf products **are** Schedule I controlled substances if they are marketed or sold as being ingestible. In doing so, the BOP purported to make its scheduling determination contingent on whether or not a product is sold in compliance with R.C. Chapter 3715: “*Products that are not vegetation and that do not comply with ORC 3715.*”

are Schedule I controlled substances effective May 19, 2026. [Id. (bold and italics by BOP, underlining added).]

57. Because, as noted above, the historical and only known uses of natural kratom involve its ingestion as a food or dietary supplement (even in natural leaf or powder form), this new “guidance” from the BOP amounts to a statewide prohibition on the marketing and sale of natural kratom in Ohio—a prohibition that the terms of the Mitragynine-Related Compounds Rule do not, themselves, impose.

58. In proclaiming this new standard, and in addition to generically referencing (and, apparently, interpreting) the unspecified “legal authority” of another agency (ODA), the BOP pointed to a separate public notice (i.e., press release) from ODA in which that agency purported to announce that “Natural Kratom is not permitted to be processed into, or marketed as, a food, drug, or dietary supplement (e.g., incorporated into a food or represented as any edible product.)” A true and accurate copy of the ODA’s public pronouncement, available at <https://agri.ohio.gov/divisions/food-safety/resources/Kratom>, is attached as Exhibit D.

59. The ODA purported to base this proclamation, which it, likewise, did not adopt or promulgate via the Chapter 119 rulemaking process, on OPFDL provisions related to the marking and treatment of allegedly “adulterated” foods, drugs, and supplements. See R.C. 3715.55, 3715.59, 3715.83.

60. But, on their face, those provisions afford neither the BOP nor ODA with jurisdiction or authority to declare an entire class of foods, supplements, or drugs “adulterated.” Specifically, those provisions do not empower either BOP or ODA to impose a blanket ban on an entire category of foods (whether on the basis of alleged “adulterat[ion]” or otherwise), let alone to do so without following the Chapter 119 rulemaking process. Rather, R.C. 3715.55(B), (C),

and (D) provide only for a case-by-case process to determine whether a particular product based on its form, dosage, and directions for use presents a significant or unreasonable risk of illness or injury, in which case the designating agency must affix a “tag” to the specific good(s) at issue, which then triggers an “embargo[]” or “detain[ment]” of the goods and a judicial review process that affords the owner/possessor of the allegedly adulterated product(s) with an opportunity to challenge such designation in the local municipal or county court.

61. Further, even where the OPFDL authorizes ODA to adopt rules, that authority is subject to a key limitation: “the rules shall be no more restrictive than the regulations promulgated under the federal ‘Food, Drug, and Cosmetic Act,’ 52 Stat. 1040 [REDACTED], 21 U.S.C.A. 301, et seq., as amended.” R.C. 3715.82. Since no federal blanket ban on the [REDACTED] natural kratom and natural kratom products is in effect, even a promulgated rule imposing such a ban would necessarily be unlawful and ineffective.

62. At bottom, the BOP has announced a new rule, without following the Chapter 119 process, that eviscerates a key carve-out in the Mitragynine-Related Compounds Rule, on the basis of its own interpretation of the authority and similarly unpromulgated pronouncements of the ODA that ODA, itself, lacked authority to make. Left unchecked, this unlawful administrative encroachment on both legislative and judicial power means that Plaintiffs and other similarly-situated sellers and manufacturers of natural leaf kratom products—which are supposed to be carved out from Schedule I—face the prospect of criminal liability and being falsely branded as illicit drug dealers merely by continuing to sell proven-safe, natural kratom leaf products.

63. Accordingly, the BOP’s 5/14/26 Notice is an unlawful and invalid rule that otherwise exceeds its (and ODA’s) statutory jurisdiction. The effective statewide ban on the sale of ingestible kratom leaf and kratom leaf products pronounced therein is, thus, void and

unenforceable as a matter of law. Class-wide declaratory and injunctive relief from the Court is, therefore, necessary to ensure that no such effect is given to the BOP's unlawful, administrative overreach.

F. The BOP Proffers An Interpretation Of The Mitragynine-Related Compounds Rule That Is Inconsistent With The Rule's Terms, Common Sense, And The Rule Of Lenity.

64. Since Krazy Daze filed its initial Complaint and Motion for Temporary Restraining Order/Preliminary Injunction in this case, the BOP has taken the position in its memorandum in opposition (the "Opposition") that subsection (D) of the Mitragynine-Related Compounds Rule, Ohio Admin. Code § 4729:9-1-01.1(D), exempts only actual kratom leaves or powder that are not labeled or marketed for ingestion.

65. On its face, however, the cited provision does no such thing. Apart from improperly referring to a different statutory scheme that has nothing to do with the scheduling of "Controlled Substances" (R.C. Chapter 3517), Section 4719:9-1-01.1(D) states simply that "mitragynine in vegetation form, including natural kratom leaf and ground natural kratom leaf," are not Schedule I substances. Nothing in this provision purports to make natural kratom leaves/powder a Schedule I controlled substance simply because it is mixed with another non-controlled substance, like water.

66. Moreover, because the only historic and known use for natural kratom is ingestion, the BOP's proffered interpretation is nonsensical and contrary to common sense. Under the BOP's interpretation, literal kratom leaves and powder would only be exempt from scheduling if not marketed for ingestion—i.e., the only known use for the same—while the exact same material, when mixed with water, would be a Schedule I substance. In any event, the result is an effective statewide ban since false marketing of goods is otherwise prohibited by consumer protection laws.

67. Not only is the BOP's proffered interpretation absurd, but it is contrary to the "rule of lenity," codified in R.C. 2901.04(A), which states, in pertinent part, that "sections of the Revised Code defining offenses or penalties shall be strictly construed against the state, and liberally construed in favor of the accused."

68. As noted above, the scheduling of a "controlled substance" by the BOP can result in the criminal prosecution of anyone caught selling or possessing such a substance. See R.C. 2905.01(A) (ascribing to "controlled substance," for purposes of Ohio's "Drug Offenses" law, the same meaning as in R.C. Chapter 3719).

69. To the extent the BOP continues to proffer a nonsensical interpretation of the Mitragynine-Related Compounds Rule that violates both common sense and the rule of lenity, and which is due no deference from the Court, class-wide declaratory and injunctive relief is necessary to ensure that no such effect is given to the BOP's incorrect, absurd, and unlawful interpretation of its own rule.

G. The BOP Admits The Mitragynine-Related Rule Is Subject To Multiple, Conflicting Interpretations; The Rule Is, Therefore, Vague.

70. In its Opposition, the BOP also admitted that the Mitragynine-Related Compounds Rule is susceptible of two, directly contradictory "interpretations[.]"

71. In doing so, the BOP admitted that the Section 4729:9-1.01.1(D) exception could "possibl[y]" be construed as stating that vegetative and powdered kratom leaf are not scheduled, but that any such products must also comply with R.C. 3715—which has nothing to do with scheduling. On the other hand, the BOP admitted that such provision could also be construed as making the scheduling of vegetative and powdered kratom leave contingent on compliance with Chapter 3715.

72. These admissions confirm that the Mitragynine-Related Compounds Rule, at least as to the subject exception, is vague and unenforceable.

73. Class-wide declaratory and injunctive relief is, thus, additionally warranted to prevent the BOP from proceeding with and enforcing an unlawfully vague administrative rule.

COUNT ONE

(Declaratory Relief)

74. Plaintiffs adopt the foregoing allegations as if fully repeated herein.

75. The BOP's pronouncement, via a public notice/press release, of a statewide ban on the marketing and sale of natural kratom for ingestion (its only historic/traditional use) constitutes an invalid "rule" because the BOP failed to comply with the R.C. Chapter 119 rulemaking process in announcing it.

76. Further, in purporting to make such ban, and the scheduling of natural kratom leaf products, contingent on its own interpretation of another agency's "legal authority" and unpromulgated pronouncements, the BOP exceeded its limited jurisdiction in the scheduling controlled substances.

77. Alternatively, to the extent the BOP contends that the Mitragynine-Related Compounds Rule's mere, non-specific reference to R.C. Chapter 3715 somehow justifies its announcement of a blanket ban, the Rule itself—which can lead to criminal enforcement—is void for vagueness.

78. In addition, the Mitragynine-Related Compounds Rule, the violation of which could result in severe criminal sanctions, is void for vagueness in light of the BOP's own admission that the rule is subject to multiple, and contradictory, interpretations. And, even if the Rule was not impermissibly vague, the BOP's proffered interpretation that the Rule schedules natural kratom

leaf and powder if it is marketed for ingestion and/or mixed with another legal substance, like water, is inconsistent with the language of the rule, absurd, and otherwise violates the rule of lenity.

79. For any or all of these reasons, the ban announced in the 5/14/26 Notice and/or via the BOP's subsequent interpretation of the Mitragynine-Related Compounds Rule, if not the rule itself, is unlawful, void, and of no effect to the extent it purports to prohibit the marketing and sale of natural kratom leaf products when mixed with other legal substances or for their sole, historical and intended purpose: ingestion.

80. The BOP, of course, disagrees. Thus, a real and present controversy exists, which is ripe for resolution by this Court inasmuch as Plaintiffs and the class face the present threat of criminal enforcement and prosecution in continuing to sell products that, among other things, the Mitragynine-Related Compounds Rule purports to exempt from Schedule I.

81. A declaratory judgment, consistent with Chapter 2721 of the Revised Code and Rule 57 of the Ohio Rules of Civil Procedure, would resolve this controversy and provide certainty to all involved.

82. Further, to preserve the Court's ability to award meaningful relief and prevent the patently-irreparable harm that would result to Plaintiffs and the class if faced with criminal enforcement of a void and unenforceable "rule," the Court should grant temporary, preliminary, and permanent injunctive relief banning the BOP and anyone acting at its direction or otherwise in active concert or participation with it (including, but not limited to, ODA and law enforcement) from taking any steps to enforce a purported statewide prohibition banning/criminalizing the sale of natural or ground kratom leaf, or any natural kratom leaf products, when mixed with other lawful substances and/or for purposes of ingestion.

WHEREFORE, Plaintiffs pray that the Court grant Plaintiffs the following relief:

- (1) Preliminarily and finally certify this as a class action pursuant to Ohio Civil Rule 23(B)(2) and certify that the Class shall include all retailers who, but for the BOP's challenged actions, sell Natural-Leaf Kratom Dietary Supplements and similar natural-leaf kratom products in Ohio.
- (2) Awarding Plaintiffs and the Class a final, declaratory judgment declaring that the 5/14/26 Notice is an invalid and unenforceable "rule," that the BOP lacks authority or jurisdiction to impose or enforce a statewide ban on the marketing and sale of natural kratom leaf and natural kratom leaf products for purposes of ingestion and/or when mixed with other legal substances; that the BOP's interpretation of the Mitragynine-Compounds Rule as imposing such a ban is unlawful and violates the rule of lenity; and/or that the Mitragynine-Related Compounds Rule is, itself, void for vagueness and unenforceable;
- (3) Granting Plaintiffs and the Class temporary, preliminary, and permanent injunctive relief barring the BOP and anyone acting under its authority, at its direction, or otherwise in active concert or participation with it (including, without limitation, ODA and law enforcement) from taking any steps to enforce or otherwise attempting to enforce a statewide ban on the marketing and sale of natural kratom leaf and natural kratom leaf products when mixed with other legal substances and/or for purposes of ingestion; and
- (4) Awarding Plaintiffs and the Class such other relief as the Court may deem just and equitable.

Respectfully submitted,

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little@litohio.com

Attorneys for Plaintiffs and Putative Class Counsel

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on May 28, 2026, a copy of the foregoing was filed via ECF which will provide electronic notice of the same to all counsel of record in this action.

/s/ Marion H. Little, Jr.

Marion H. Little, Jr. (0042679)

1431-001.1087102

AFFIDAVIT

STATE OF OHIO :
 : ss.
COUNTY OF FRANKLIN:

I, Erika Albert, being fully cautioned and sworn, do hereby depose and state that the following is true based upon my first-hand knowledge:

1. I am employed by the Ohio Board of Pharmacy (Board).
2. I serve the Board in the position of Agent.
3. In the course of my regular duties, I am responsible for inspecting and investigating licensees and registrants of the Board, as well as non-licensed individuals and entities, and ensuring compliance with Chapters 2925., 3715., 3719., 3796., 4729., and 4752. of the Ohio Revised Code and all related Rules in the Ohio Administrative Code. I also review actions of applicants, licensees, and registrants to ensure compliance with DEA, FDA, and Federal Food Drug and Cosmetic Act, and all other federal pharmacy and drug-related regulations.
4. On or about July 2, 2026, I purchased a Feel Free Classic from Quenching Caverns, located at 5250 Godown Road, Columbus, Franklin County, Ohio.
5. Exhibit 1, attached to this document, is a photograph of the back of the bottle of Feel Free Classic I purchased from Quenching Caverns on July 2, 2026.
6. Exhibit 2, attached to this document, is a photograph of the front of the bottle of Feel Free Classic I purchased from Quenching Caverns on July 2, 2026.
7. Exhibit 3, attached to this document, is a photograph of the receipt for the bottle of Feel Free Classic I purchased from Quenching Caverns on July 2, 2026.
8. On or about July 2, 2026, I purchased a Feel Free Classic from Tobacco Plus, located at 4143 Buckeye Pkwy., Grove, City, Franklin County, Ohio.

STATE'S EXHIBIT

3

9. Exhibit 4, attached to this document, is a photograph of the back of the bottle of Feel Free Classic I purchased from Tobacco Plus on July 2, 2026.
10. Exhibit 5, attached to this document, is a photograph of the front of the bottle of Feel Free Classic I purchased from Tobacco Plus on July 2, 2026.
11. Exhibit 6, attached to this document, is a photograph of the receipt for the bottle of Feel Free Classic I purchased from Tobacco Plus on July 2, 2026.
12. On or about August 11, 2026, I purchased a Feel Free Classic from Quenching Caverns, located at 5250 Godown Road, Columbus, Franklin County, Ohio.
13. Exhibit 7, attached to this document, is a photograph of the back of the bottle of Feel Free Classic I purchased from Quenching Caverns on August 11, 2026.
14. Exhibit 8, attached to this document, is a photograph of the front of the bottle of Feel Free Classic I purchased from Quenching Caverns on August 11, 2026.
15. Exhibit 9, attached to this document, is a photograph of the receipt for the bottle of Feel Free Classic I purchased from Quenching Caverns on August 11, 2026.
16. On or about August 11, 2026, I purchased a Feel Free Classic from Tobacco Plus, located at 4143 Buckeye Pkwy., Grove, City, Franklin County, Ohio.
17. Exhibit 10, attached to this document, is a photograph of the back of the bottle of Feel Free Classic I purchased from Tobacco Plus on August 11, 2026.
18. Exhibit 11, attached to this document, is a photograph of the front of the bottle of Feel Free Classic I purchased from Tobacco Plus on August 11, 2026.
19. Exhibit 12, attached to this document, is a photograph of the receipt for the bottle of Feel Free Classic I purchased from Tobacco Plus on August 11, 2026.
20. On or about August 12, 2026, I watched a YouTube link, <https://www.youtube.com/watch?v=Rzn6VmO5TzU>. The link is for a podcast

called Unlatched Mind. JW Ross, the owner of Botanic Tonics and the creator of Feel Free, was interviewed on the podcast. At 47:10 of the video, J.W. Ross says:

"You know, I wish there was something out there that you know that had no habit forming um component to it. But that is that's a fantasy because anything that rewards you is going to be habit forming.

That's not the question to be asking because that's a given. What the question to ask is that does it work, and if I use it on a regular basis is it going to hurt me?

If you can answer those two things positively, then that's... that's your thing."

21. On or about August 12, 2026, I watched a YouTube link, <https://www.youtube.com/watch?v=-CypTLnyX44>. The link is for a podcast called Beyond a Million. JW Ross, the owner of Botanic Tonics and the creator of Feel Free, was interviewed on the podcast. At 46:39 of the video, JW Ross says:

"As far as your question about the downside. Unfortunately, just like anything else that alters your mood and makes you feel good, it can be habit forming. It doesn't matter if its sugar or cheese or sex or whatever. I mean, it's any of these things if done in excess can cause physical or social problems.

I was mindful of that having come from that world and in the very early stages because no one had mixed these plants together before, I purposely did, you know, abusive levels of them for a period of like three or four months and check my blood chemistry versus my annual blood chemistry.

And I didn't see, you know, elevation liver enzymes or anything like that.

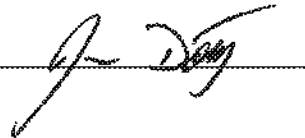
Because I knew that some people would abuse it. I mean that's just... you can't create something that makes you feel good that somebody's not gonna, you know, abuse it. It's just.... that's just life, unfortunately."

Further affiant sayeth naught.

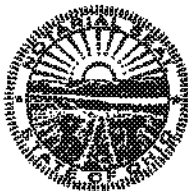

ERIKA ALBERT

Sworn to before me and signed in my presence this 13th day of
August, 2026

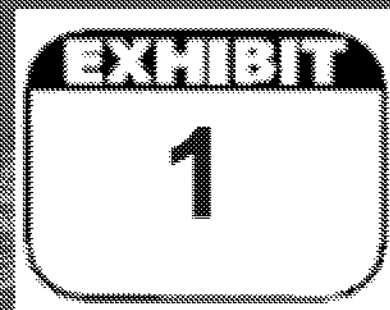
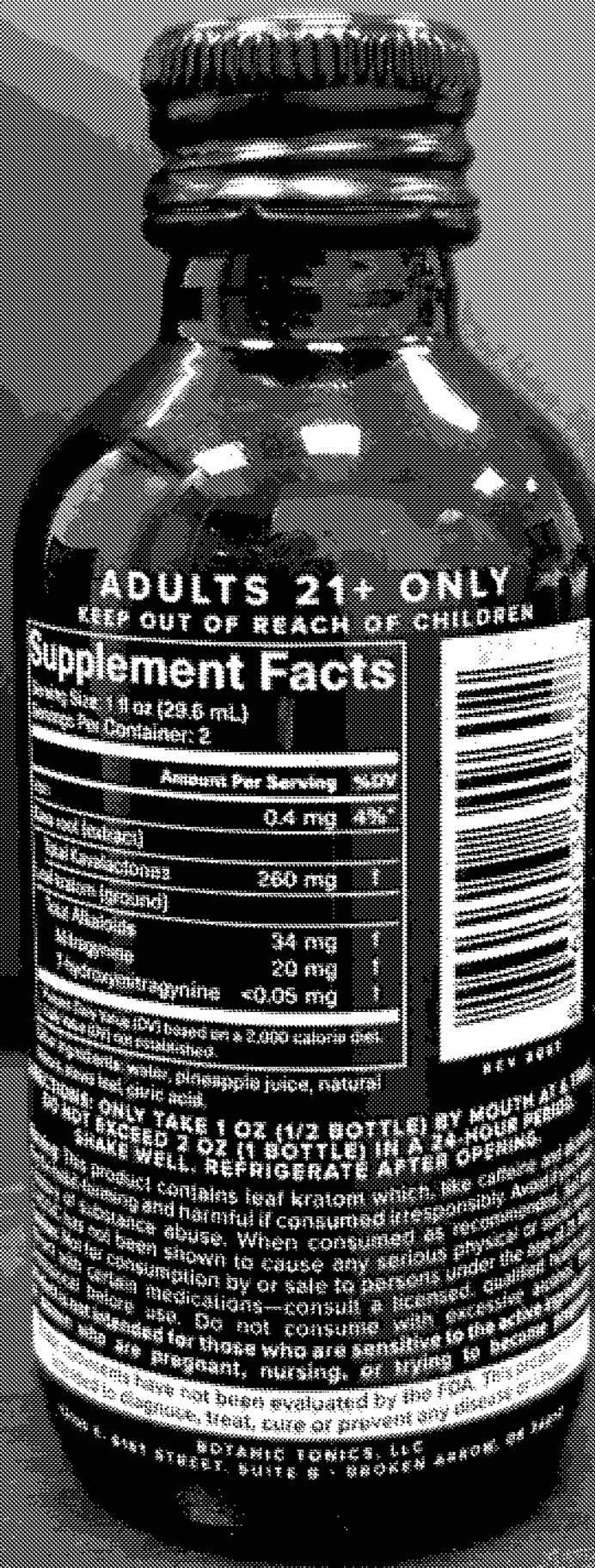
Jason Doty
Notary Public



My commission expires 8/27/2029.



Jason L. Doty
Notary Public, State of Ohio
My Commission Expires 08-27-2029





EXHIBIT

2

5250 GODOWN RD

Columbus, Ohio-43235

Phone : (614)-619-1188

Receipt Date : JUL 02, 2026 11:06 AM

Sales Date : JUL 02, 2026 11:06 AM

Register No. : 1 Batch : 30160

POS OrderId : 101-20260702110616671

Last Print

Item Name	Qty	Price
-----------	-----	-------

bee1 bree2.oz	01	\$9.99
---------------	----	--------

SubTotal : (QTY :1) \$9.99

TAX1 (8.00%) : \$0.80

Total Tax : \$0.80

Discount : \$0.00

Total Charge : \$10.79

Amount Collected : \$20.00

Change Due(--) : \$9.21

Tender

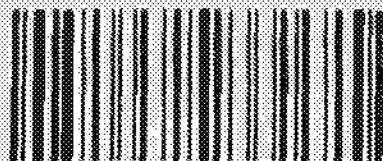
Cash : \$10.79

Total Tendered : \$10.79

Other Details

*** You saved \$0.32 because you paid in cash ***

米

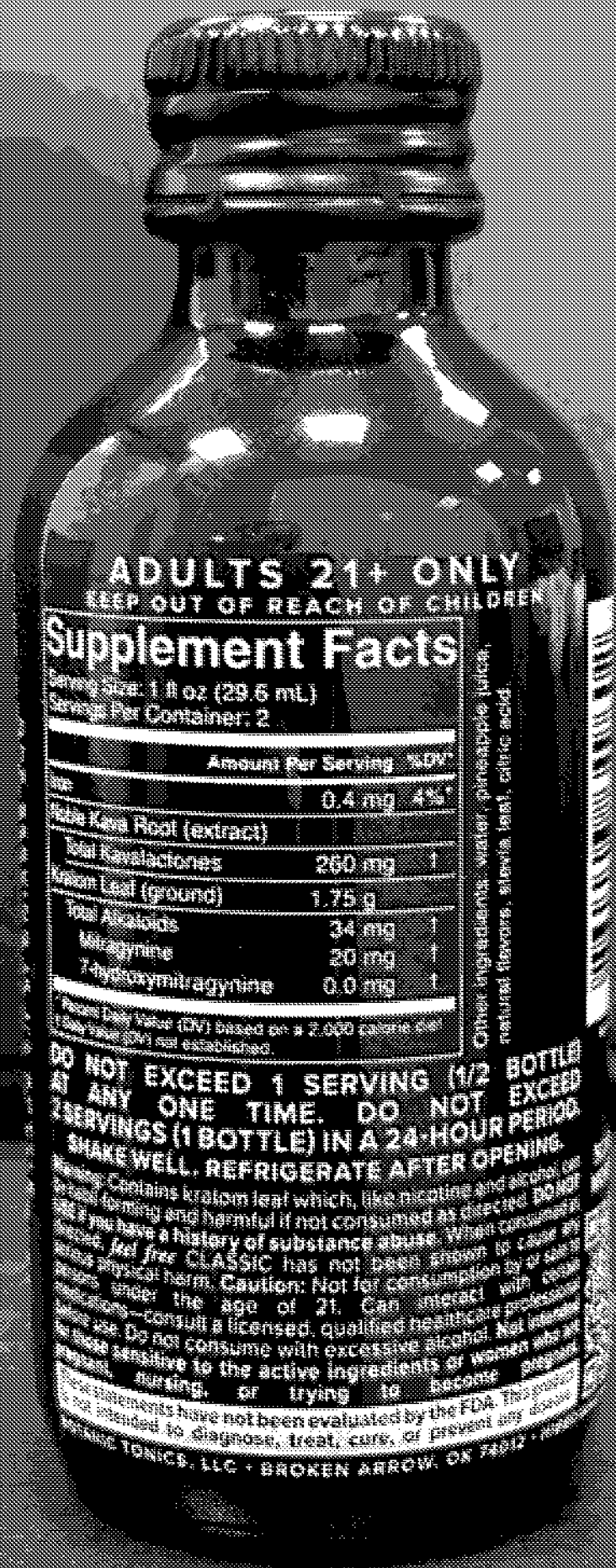


214070206167



EXHIBIT

3



EXHIBIT

4



EXHIBIT

5

00051

123

Printed On: Grocery Chain Clerk at South of the Commons Plaza 2026 Aug 13 10:00 AM 202607004700

TOBACCO PLUS GROVE CITY
4143 Buckeye Pkwy
Grove City, OH 43123

SALES INVOICE

Feelfree	8.99	T
Subtotal	8.99	
state tax	0.72	
Total Sale	\$ 9.71	
Cash	20.00	
Change	10.29	

Sold Items : 1
Verified Age : 21

Thank you for shopping at our store. Our goal is
your satisfaction every time you shop with us.

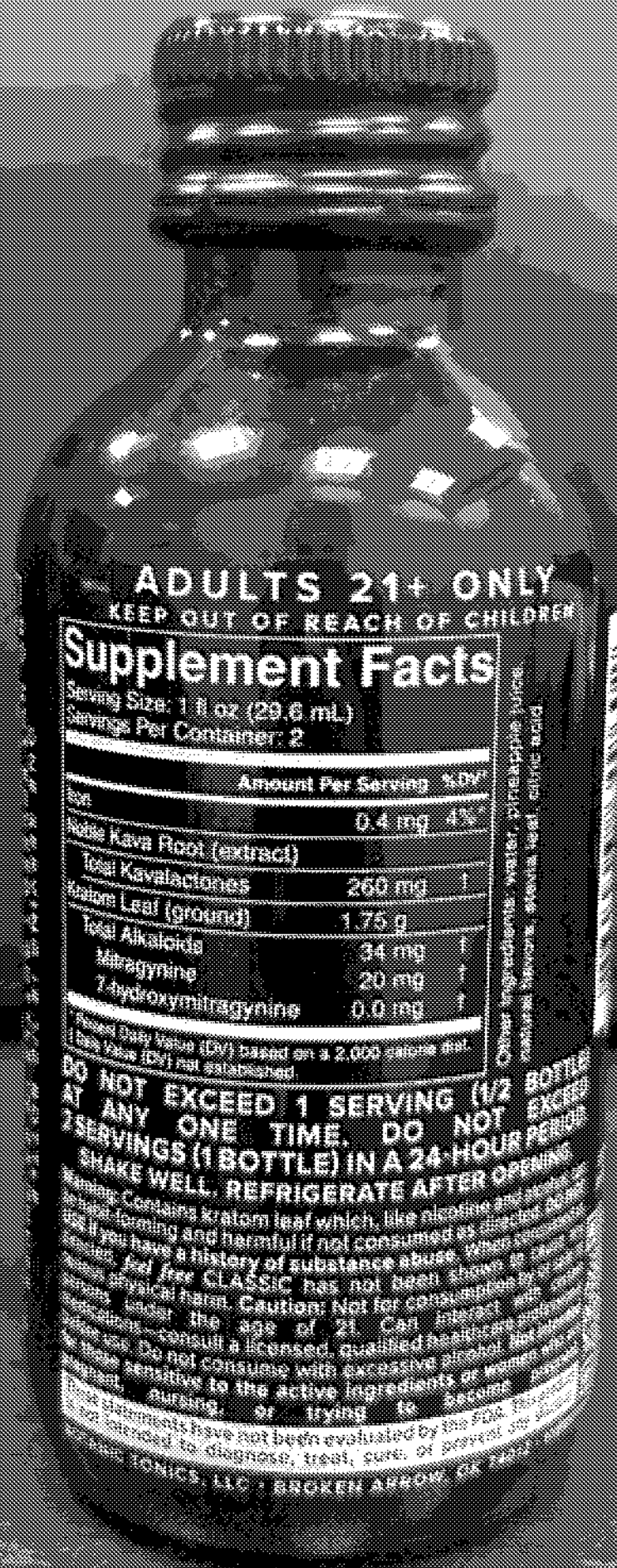
Please tell us your BOSS Club number with every
order to receive BR Club benefits.



11473934837195/2
Your Cashier: TOBACCO PLUS
Terminal: 69390

07/02/2026 10:26am, #12







EXHIBIT

8

QUENCHING CAVERNS

5250 GOROWN RD

Columbus, Ohio-43235

Phone : (614)-619-1188

Receipt Date : AUG 11, 2026 11:37 AM

Sales Date : AUG 11, 2026 11:37 AM

Register No. : 1 Batch : 30200

PUS OrderId : 101-20260811113734581

Last Print

Item Name	Qty	Price
beel bree2.oz	01	\$9.99

Subtotal : [QTY : 1] \$9.99

TAX1 (8.00%) : \$0.80

Total Tax : \$0.80

Discount : \$0.00

Total Charge : \$10.79

Amount Collected : \$20.00

Change Due(-) : \$9.21

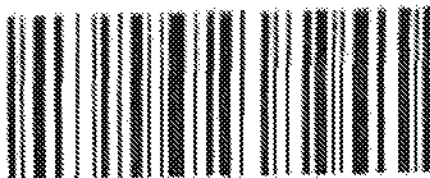
Tender

Cash : \$10.79

Total Tendered : \$10.79

Other Details

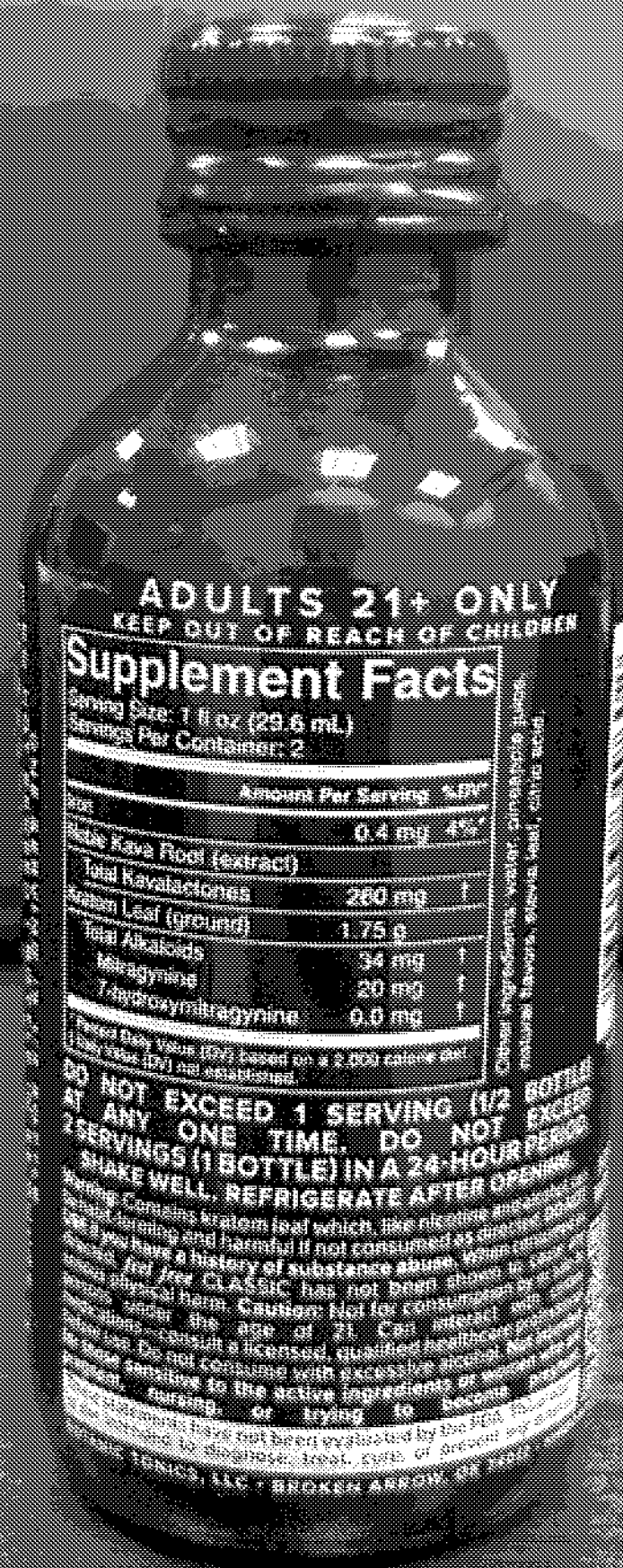
*** You saved \$0.82 because you paid in cash ***



4 1 2 0 8 1 1 3 7 3

EXHIBIT

9





EXHIBIT

11

TOBACCO PLUS GROVE CITY
4143 Buckeye Pkwy
Grove City, OH 43123

SALES INVOICE

Fee/free	8.99	T
Subtotal	8.99	
state tax	0.72	
Total Sale	9.71	
Balance Due	\$ 9.71	
Cash	20.00	
Change	10.29	

Sold Items : 1
Verified Age : 21

Thank you for shopping at our store. Our goal is
your satisfaction every time you shop with us.

Please tell us your BOSS Club number with every
order to receive HR Club benefits.



1149613661366/51

Your Cashier: Administrator
Terminal: 69390

08/11/2026 12:12pm, #13

EXHIBIT

12

AFFIDAVIT

STATE OF OHIO

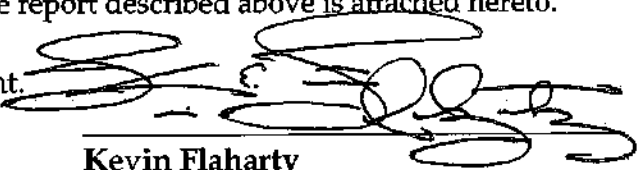
:
:
SS.

COUNTY OF FRANKLIN:

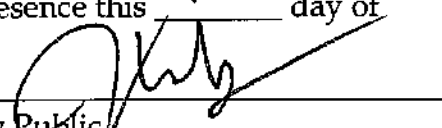
I, Kevin Flaharty, being fully cautioned and sworn, do hereby depose and state that the following is true based upon my first-hand knowledge:

1. I am employed by the Ohio Board of Pharmacy (Board).
2. I serve the Board in the position of Chief of Investigations.
3. In the course of my regular duties, I am responsible for overseeing the agents, inspectors, and compliance specialists for the Board responsible for inspecting and investigating licensees and registrants of the Board, as well as non-licensed individuals and entities, and ensuring compliance with Chapters 2925., 3715., 3719., 3796., 4729., and 4752. of the Ohio Revised Code and all related Rules in the Ohio Administrative Code. I also review actions of applicants, licensees, and registrants to ensure compliance with DEA, FDA, and Federal Food Drug and Cosmetic Act, and all other federal pharmacy and drug-related regulations.
4. During the course of my duties, I received a copy of a report from the Ohio Department of Public Health entitled "Unintentional Drug Overdose Deaths Involving Mitragynine (Kratom), Ohio SUDORS, 2019-2024."
5. A true and accurate copy of the report described above is attached hereto.

Further affiant sayeth naught.


Kevin Flaharty

Sworn to before me and signed in my presence this 13th day of
August, 2026


Notary Public

My commission expires Does Not Expire



Joseph Kotlak, Esq.
Notary Public, State Of Ohio
Recorded in Franklin County
My Commission Does Not Expire

STATE'S EXHIBIT

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Key Takeaways

Of the 26,469 unintentional drug overdose deaths that occurred from 2019-2024, 255 deaths (1%) had positive toxicology results for mitragynine (kratom). In 2024, 54 drug overdose deaths tested positive for mitragynine, representing 1.8% of all unintentional drug overdose deaths for the year.

Of the 255 unintentional drug overdose deaths that had positive toxicology for mitragynine during this time frame, 217 decedents (85.1% of deaths with positive toxicology for mitragynine) also tested positive for other select substances, including opioids, cocaine, amphetamines, benzodiazepines. Additionally, 181 decedents (71.0% of deaths with positive toxicology for mitragynine) tested positive for illegally made fentanyl.

EXHIBIT**1-1**

Number of Unintentional Drug Overdose Deaths Involving Mitragynine (Kratom), 2019 - 2024

Year	Total Number Overdose Deaths	Number of Deaths with Mitragynine Detected in Postmortem Toxicology	% of Total Overdose Deaths with Mitragynine Detected in Postmortem Toxicology	Number of Deaths with Mitragynine Listed as a Cause of Death	% of Deaths with Mitragynine Detected in Postmortem Toxicology Where Mitragynine Was Listed as a Cause of Death	Number of Deaths with Mitragynine Detected in Postmortem Toxicology That Were Also Positive for Other Select Substances	% of Deaths with Mitragynine Detected in Postmortem Toxicology That Were Also Positive for Other Select Substances	Number of Deaths with Mitragynine Detected in Postmortem Toxicology That Were Also Positive for Illegally Made Fentanyl	% of Deaths with Mitragynine Detected in Postmortem Toxicology That Were Also Positive for Illegally Made Fentanyl
2019	3,962	10	0.5%	15	78.9%	17	89.5%	15	78.9%
2020	4,943	34	0.7%	29	85.3%	39	85.3%	24	70.6%
2021	5,174	49	0.9%	37	75.5%	41	83.7%	32	67.3%
2022	4,936	47	1.0%	40	85.1%	44	93.6%	39	83.0%
2023	4,461	52	1.2%	37	71.2%	43	82.7%	38	73.1%
2024	3,013	54	1.8%	44	81.5%	43	79.6%	32	59.3%
Total	25,469	255	1.0%	202	79.2%	217	85.1%	181	71.0%

Data Notes

Source: Ohio State Unintentional Drug Overdose Reporting System (SUDORS). Analysis: ODH Chronic Disease, Violence, and Injury Epidemiology Section. Data pulled 8/03/2025.

Includes Ohio residents who died in Ohio due to unintentional drug overdose with at least one overdose-specific circumstance field documented between 2019 - 2024 (N=26,469).

SUDORS captures all drug overdose deaths of unintentional and undetermined intent. SUDORS inclusion criteria uses a combination of ICD-10 codes and literal text fields from the death certificate. ICD-10 codes X40-X44 and Y10-Y14, the Cause of Death fields, the Other Condition field, and the How Injury Occurred field are all used to identify potential SUDORS cases. Cases are reviewed by trained abstractors using the standardized SUDORS coding manual to determine if the death should be included.

Positivity for a substance indicates it was detected in postmortem toxicology testing. SUDORS toxicology information can reliably communicate substances that were present and/or contributed to the death. However, due to limitations in toxicology testing, this data cannot definitively conclude that other substances were not present.

Involvement of other select substances detected in postmortem toxicology includes opioids (e.g. illegally made fentanyl, heroin, prescription opioids, and other opioids), cocaine, amphetamines (e.g. methamphetamine), and benzodiazepines.

Definitions

Mitragynine: includes the following substances detected in postmortem toxicology test results: kratom, 7-hydroxymitragynine, mitragynine, and specioclatine.

Mitragynine Detected in Postmortem Toxicology: Mitragynine was detected in postmortem toxicology testing, however this does not indicate the substance caused or contributed to the death.

Mitragynine Listed as a Cause of Death: Mitragynine was included as a cause of death on the death certificate or coroner/medical examiner report. Multiple substances are often listed as a cause of death for a fatal drug overdose. The "Cause of Death" variable captures any substance that caused or contributed to the drug overdose death. In the absence of a viable specimen for postmortem toxicology, a coroner or medical examiner can determine a substance as a cause of death based on other factors, such as scene evidence. Additionally, a toxicology report for a decedent may not be available. For these reasons, a substance listed as a cause of death may not have been indicated as present in toxicology.

**IN THE COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO**

MIRACLE KRATOM, LLC, *et al.*,

CASE NO. 26CV004720

Plaintiffs,

JUDGE SERROTT

v.

**OHIO DEPARTMENT OF
AGRICULTURE, *et al.*,**

Defendants.

FINAL CONSENT JUDGMENT ENTRY

Pursuant to the stipulation and agreement of the parties, Plaintiffs Miracle Kratom, LLC, BKP Industries, Co., Braymoore Corp., and Glenwood Mountain Co. (“Plaintiffs”) and Defendants Ohio Board of Pharmacy (“the Board”) the Court hereby finds:

BACKGROUND

1. Plaintiffs state that they are retailers, within the state of Ohio, of natural kratom leaf products made with natural, pure-leaf vegetative kratom in its dried and powdered form.
2. The Board is an agency of the State of Ohio that is statutorily charged, under R.C. 3719.41(A) & (B), with adopting and updating rules, in accordance with Chapter 119 of the Revised Code, “establishing schedule I, schedule II, schedule III, schedule IV, and schedule V [drugs in Ohio] incorporating the five schedules of controlled substances under the federal drug abuse control laws.”
3. On or about May 19, 2026, Adm.Rule 4729:9-1-01.1 (“the 7-OH rule”) went into effect. The 7-OH rule established that “mitragynine related compounds” are schedule I controlled substances.
4. The 7-OH rule expressly provided that vegetative kratom is *not* a schedule I controlled substance. The rule provides:

STATE'S EXHIBIT

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“Mitragynine-related compounds do not include . . . (D) Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf, in accordance with Chapter 3715. of the Revised Code.” Adm.Code 4729:9-1-01.1 (D).

5. The Board agrees this provision establishes that vegetative kratom is not a schedule I controlled substance, but that the requirements of the Pure Food and Drug Act (R.C. Chapter 3715) would still apply. Therefore, vegetative kratom in a person’s possession will not become a schedule I controlled substance simply because that vegetative kratom violates one or more provisions of R.C. Chapter 3715.

6. On May 14, 2026, the Board issued a document entitled: “Consumer and Retailer Notice: Sale and Possession in Ohio.” (“The May 14th Guidance.”) The Board intended the May 14th Guidance to provide guidance regarding “the enforcement of OAC 4729:9-1-01.1 and the manufacture, possession and sale of kratom in Ohio.”

7. The Board and the Plaintiffs agree that a reasonable person could read the May 14th Guidance as indicating that the Board intended to treat vegetative kratom products as a schedule I controlled substance if those products, for whatever reason, did not comply with R.C. Chapter 3715.

8. Plaintiffs and other retailers of kratom products believed that the Board intended the May 14th Guidance to establish that vegetative kratom products would be a schedule I controlled substance if, for whatever reason, the products did not comply with R.C. Chapter 3715.

RELIEF GRANTED

9. In accordance with these stipulations and the parties' agreement, and for good cause shown, the Court ORDERS, ADJUDGES, and DECREES, and hereby enters FINAL JUDGMENT, as follows:

- A. Pursuant to Chapter 2721 of the Ohio Revised Code and Rule 57 of the Ohio Rules of Civil Procedure, the Court declares that Adm.Code 4729:9-1-01.1 (effective May 19, 2026) does not make vegetative kratom (including natural kratom leaf and ground natural kratom leaf) a schedule I controlled substance regardless of compliance with R.C. Chapter 3715.
- B. The Board must apply the interpretation of 4729:9-1-01.1 found in this Order for all retailers of vegetative kratom.
- C. The Board will forthwith amend the May 14th Guidance to include the following: "Mitragynine in vegetative form, including natural kratom leaf and ground natural kratom leaf is not a schedule I controlled substance under this Rule. All entities that possess, manufacture, market or sell kratom or kratom products must comply with R.C. Chapter 3715, the Pure Food and Drug Act, regardless of whether the kratom product is a controlled substance or not."
- D. Plaintiffs must comply with any relevant portions of R.C. Chapter 3715, the Pure Food and Drug Act, and acknowledge it is not lawful to sell products in Ohio that fail to comply with R.C. Chapter 3715.
- E. This Order does not bar the Board or any other party from exercising any other authority granted pursuant to Chapter 4729, Chapter 3719, or Chapter 3715 of the Ohio Revised Code.

- F. This Order applies only to Adm.Code 4729:9-1-01.1 (effective May 19, 2026), and does not restrict the Board from proposing or adopting any other rule relating to kratom products, mitragynine, or mitragynine-related compounds.
- G. Each party shall bear its own attorneys' fees, expenses, and court costs.
- H. Each of the undersigned parties, via its respective legal counsel, approves, and irrevocably waives all rights to appeal, this Final Consent Judgment Entry.
- I. This is a FINAL JUDGMENT as to Plaintiffs and the Board of Pharmacy and the Board of Pharmacy is dismissed with prejudice. Plaintiffs' claims against the Ohio Department of Agriculture remain pending.
- J. The Court hereby retains continuing, exclusive jurisdiction to enforce, and to adjudicate any disputes or issues relating to, this Final Consent Judgment Entry.

IT IS SO ORDERED.

Judge Mark Serrott

Approved:

/s/ Jonathan R. Secrest

Jonathan R. Secrest (0075445)
 David A. Lockshaw, Jr. (0082403)
 Nicola R. Lewis (0106044)
 DICKINSON WRIGHT PLLC
 180 East Broad Street, Suite 3400
 Columbus, Ohio 43215
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jsecrest@dickinson-wright.com
dlockshaw@dickinson-wright.com
nlewis@dickinson-wright.com

Counsel for Plaintiffs

/s/ Henry G. Appel

D. Grant Wilson (0100293)
 Henry G. Appel (0068479)
 Assistant Attorneys General
 Health and Human Services Section
 30 East Broad Street, 26th Floor
 Columbus, Ohio 43215
 (614) 466-8600
Grant.Wilson@OhioAGO.gov
Henry.Appel@OhioAGO.gov

Counsel for Ohio Board of Pharmacy

Franklin County Court of Common Pleas

Date: 06-10-2026

Case Title: MIRACLE KRATOM LLC ET AL -VS- OHIO DEPARTMENT OF AGRICULTURE ET AL

Case Number: 26CV004720

Type: AGREED ORDER

It Is So Ordered.

A handwritten signature in black ink, reading "Mark A. Serrott", is written over a circular, dotted official seal.

/s/ Judge Mark A. Serrott

IN THE COURT OF APPEALS OF OHIO
TENTH APPELLATE DISTRICT

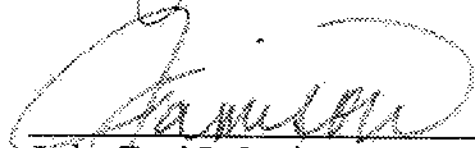
Krazy Daze Inc, et al., :
Plaintiffs-Appellants, :
v. : No. 26AP-735
Ohio Board of Pharmacy, : (REGULAR CALENDAR)
Defendant-Appellee. :

JOURNAL ENTRY

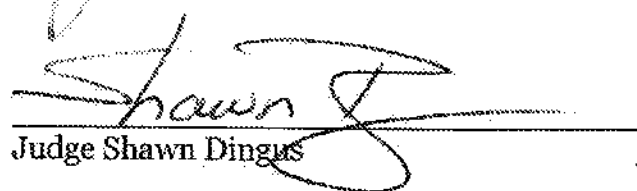
Appellants' August 25, 2026 motion for an injunction pending appeal is denied.
Appellants' August 25, 2026 motion to expedite this appeal is also denied.



Judge Julia L. Dorrian



Judge Terri B. Jamison



Judge Shawn Dingus

cc: Clerk, Court of Appeals
Clerk, Common Pleas Civil
Court Reporter

Court Disposition

Case Number: 26AP000735

Case Style: KRAZY DAZE INC -VS- OHIO BOARD OF PHARMACY

Motion Tie Off Information:

1. Motion CMS Document Id: 26AP0007352[REDACTED]700000

Document Title: 08-25-2026-MOTION FOR INJUNCTION - KRAZY DAZE INC

Disposition: MOTION DENIED

2. Motion CMS Document Id: 26AP0007352[REDACTED]840000

Document Title: 08-25-2026-MOTION - KRAZY DAZE INC - MOTION TO
EXPEDITE APPEAL

Disposition: MOTION DENIED



Classification of Mitragynine-Related Compounds as Schedule I Controlled Substances

Section 1: Summary

The Ohio Board of Pharmacy (Board), pursuant to section 3719.45 of the Ohio Revised Code, proposes the placement of mitragynine-related compounds, which are some of the main active constituents of the plant kratom and substances synthesized from those compounds, into Schedule I.

Section 2: Background

Pursuant to section 3719.45 of the Revised Code, the Board shall, pursuant to emergency rule, add a previously unscheduled compound, mixture, preparation, or substance to Schedule I if the Board determines that the compound, mixture, preparation, or substance has no accepted medical use in treatment in this state and poses an imminent hazard to the public health, safety, or welfare.

In determining whether a previously unscheduled compound, mixture, preparation, or substance poses an imminent hazard to the public health, safety, or welfare, the Board shall consider all of the following with respect to the compound, mixture, preparation, or substance:

1. Its actual or relative potential for abuse;
2. The scope, duration, and significance of that abuse;
3. The risk it poses to the public health.

**PLAINTIFFS
EXHIBIT**

8-A

Section 3: Evaluating Mitragynine-Related Compounds Under the 3-Factor Criteria

(1) The actual or relative potential for abuse.

With respect to its relative potential for abuse, mitragynine-related compounds are highly likely to follow the same pattern seen with bath salts. Bath salts were created by modifying cathinones—a primary active ingredient found in a plant called khat.ⁱ As soon as one of those modifications was identified and scheduled, a new cathinone-like compound was developed to evade the law. Bath salts became widely available online and at physical retail locations. “Because of their initial legal status, they were...presumed by users to be safe alternatives to other popularly abused stimulants.”ⁱⁱ Rather than regulating bath salts, several states, including Ohio, and the federal government addressed this issue by banning all cathinone-like compounds (referred to as “substituted” or “synthetic” cathinones).ⁱⁱⁱ

Similarly, mitragynine-related compounds are modified versions of kratom’s primary active ingredient—mitragynine. According to the European Union Drug Agency, “[t]he chemical total syntheses reported for several kratom alkaloids are too complex to be used for economic production of any [of] these compounds. However, mitragynine can serve as a chemical precursor to the more potent 7-hydroxymitragynine.”^{iv} Products containing concentrated mitragynine-related compounds (e.g., 7-hydroxymitragynine (7-OH) and mitragynine pseudoindoxyl (MP)) are available to Ohio consumers today.^{v vi}

Mitragynine can be isolated from kratom leaves and then synthetically transformed into 7-hydroxymitragynine and other semi-synthetic compounds. Using mitragynine as a scaffold, scientific researchers have designed novel opioids with significantly enhanced μ -opioid receptor activity. One such compound, MGM-15 (dihydro-7-hydroxy mitragynine), first described in 2014, is a highly potent semi-synthetic opioid that can be synthesized from 7-hydroxymitragynine in a single step. In September 2025, the presence of MGM-15 was confirmed in commercially available tablets.^{vii}

The European Monitoring Centre for Drugs and Drug Addiction (EMCDDA) notes that mitragynine and 7-OH are selective and full agonists of the μ -opioid receptor.^{viii} Despite a long history of use originating from Southeast Asia, the widespread commercialization of kratom and products containing mitragynine-related compounds is a recent development. As kratom commercialization has grown, so too have the number of adverse events reported to poison control centers. From January 1 to July 31, 2025, poison control centers in the United States (US) received 1,690 reports of exposure cases involving kratom—a number that

already surpasses the total for all of 2024.^{ix} Notably, adverse events associated with items that can be categorized as supplements are underreported. At least one source estimates the reporting rate for adverse events related to supplements to be approximately 2 percent.^x

7-OH and MP are approximately 10 and 100 times more potent than mitragynine, respectively.^{xi} At just 10 times the potency of mitragynine, the effects and actual abuse of 7-OH prompted Food and Drug Administration (FDA) Commissioner Dr. Martin Makary to warn that it could be the next wave of the opioid crisis.^{xii} One study found that the amount of 7-OH in available products exceeded that found in naturally occurring material by up to 500%.^{xiii} As with bath salts, each of the mitragynine-related compounds already available to consumers can be modified slightly to create a new drug and evade the law.

Kratom contains over 40 naturally occurring known alkaloids. One study examined the likely effects of 25 of those compounds. The study concluded that all the compounds share the most structural similarities with controlled opioid analgesics, such as morphine derivatives. Further analysis determined that 22 (including mitragynine) of the 25 compounds in kratom bind to μ -opioid receptors. The authors further noted:

The data from the PHASE model shows us that kratom compounds are predicted to affect the body just like opioids. Based on the scientific information in the literature and further supported by our computational modeling and the reports of its adverse effects in humans, we feel confident in calling compounds found in kratom, opioids.^{xiv}

In various preclinical studies, 7-OH has demonstrated greater potency than classical opioids. For example, 7-OH produces respiratory depression with more than 3-fold greater potency than morphine. According to the FDA, since the substance's therapeutic and psychoactive effects are mediated through the same μ -opioid receptor pathways as classical opioids, it can be considered to have opioid properties warranting similar regulatory consideration.^{xv}

According to the FDA, no marketer has sought to develop a drug that includes kratom in the US.^{xvi} Neither kratom nor any mitragynine-related compounds have been approved for medical use as a drug nor are they generally recognized as safe by the FDA. Kratom is illegal in 33 countries, including Malaysia where it is found naturally.^{xvii} It is also banned in several states including Alabama, Arkansas, Indiana, Vermont, Rhode Island, Louisiana, and Wisconsin.^{xviii} ^{xix} In August, Florida emergency scheduled 7-OH.^{xx} In Ohio, the City of Toledo embargoed kratom products with Health Commissioner Karim Baroudi stating, "[w]hile some

may believe kratom to be a harmless herbal product, its effects can be unpredictable, and its sale is not allowed under current Ohio law.^{xxi} On November 5, 2025, the Toledo City Council moved to ban the sale of mitragynine-related substances and, on the same day, the state of Kentucky moved to classify 7-OH as a Schedule I narcotic.^{xxii xxiii} In December 2024, the Drug Enforcement Administration (DEA) referenced 7-OH when it identified kratom as a Drug and Chemical of Concern.^{xxiv}

Medications approved by the FDA to treat opioid-use disorder have been used to treat individuals experiencing substance-use disorder associated with mitragynine-related compounds. For example, a case report of a male in his 40s with a history of kratom use was successfully treated with buprenorphine/naloxone, which helped alleviate his withdrawal symptoms and allowed him to abstain from kratom.^{xxv} Other case examples have been cited throughout medical literature to support the use of buprenorphine/naloxone to treat kratom-use disorder.^{xxvi xxvii} Significantly, the term kratom-use disorder is not exclusive to mitragynine, but encompasses various kratom-derived alkaloids.^{xxviii}

(2) The scope, duration, and significance of abuse.

Mitragynine preparations in the US may differ significantly from traditional kratom preparations. Where isolates and extracts are widely available in the US, kratom was traditionally made from boiling fresh leaves. The impacts are notable as increased demand, including for 7-OH and MP products, has coincided with a wide variety of product preparations such as gummies, organic extracts, vapes, liquid shots, and tablets. In fact, websites stress the ease of consuming semi-synthetic products over kratom.^{xxix}

On July 29, 2025, Commissioner Makary sent a letter to healthcare professionals stating that “7-OH products have exploded in popularity in recent years, with vape shops, gas stations and corner stores selling pills, gummies, candies, and even eye-catching products like ice cream cones containing 7-OH.” Makary goes on to say, “increases in adverse events and related reports to poison control,” raises concern “about the growth of 7-OH product sales nationwide.”^{xxx} Several examples of widely available products intended to look like everyday treats provided by the FDA contain multiple mitragynine-related compounds (see Figure 1).^{xxxi}

Figure 1. Examples Provided by the FDA of Commercial Products Containing Mitragynine-Related Compounds



The National Drug Early Warning System (NDEWS) conducts real-time national surveillance to detect emerging drug trends. NDEWS methods include both novel methods like street reporting and web monitoring as well as traditional data sources like overdose deaths and treatment admissions. According to NDEWS, Reddit users report the following regarding mitragynine-related compounds:

Users describe withdrawal symptoms from concentrated alkaloid products as more severe than traditional kratom leaf, with some comparing them to pharmaceutical opioid withdrawal. Limited awareness exists about the pharmacological differences between traditional kratom and these novel derivatives, leading to unexpected overdose-like symptoms including respiratory depression concerns.^{xxxii}

The Ohio Substance Abuse Monitoring (OSAM) Network report from January 2025 found kratom use associated with opioid use, as the substance reportedly has similar effects, and kratom is reportedly advertised to help mitigate opioid withdrawal symptoms and stop opioid use. They stated: “[a]dvertisements for kratom [are] on Facebook ... advertised as a way to get off of opiates, certain kinds of opiates; [Kratom] has similar withdrawal [symptoms as heroin]; Kratom mimics the effects of heroin ... but the POs (parole officers) are aware of it now.”^{xxxiii}

A treatment provider in the Cleveland region spoke about the promoted health benefits of kratom, saying, “[y]ou can go to the store and buy [kratom] now ... because people look up positive things about it (health benefits). It’s a pain reliever ... it does give the effect of opiates or heroin.... If someone has a little pain and they think it’s healthy and natural [then they may try it]....”^{xxxiv}

Reportedly, kratom is desirable because it is not always included on drug screens. Treatment providers observed: “Kratom is still one of those things that’s out there that’s being abused, that’s not being caught [through drug screening]; I spoke to our nurse practitioner, and in small doses [kratom] doesn’t show up on the [drug] screen. It’s because people are taking way high doses that are detectable [on drug screens] that are not good for you, you know, addiction wise; A lot of places don’t test for it [on drug screens]. So, until we started testing for it, I didn’t hear that much about it, but now our lab tests routinely include kratom.”^{xxxv}

Internationally, the United Nations reports that the United States and Australia have reported toxicology cases with high concentration 7-OH products being involved to the [UNODC Early Warning Advisory \(EWA\) on New Psychoactive Substances Tox-Portal](#). 7-hydroxymitragynine and mitragynine pseudoinoxyl are currently not controlled under the UN conventions, which are intended to establish an international legal framework for drug control.^{xxxvi}

(3) The risk to the public health.

In Ohio, a growing number of deaths associated with kratom – which contains the main active constituents mitragynine and 7-hydroxymitragynine – have been reported, indicating that these compounds are a risk to public health. From 2019 to 2024, the Ohio Department of Health reported at least 202 deaths in which kratom is listed as a cause of death (see Figure 2).

Figure 2. Number of Unintentional Drug Overdose Deaths Involving Kratom (Mitragynine), 2019 - 2024 ^{xxxvii}							
Year	Total No. Overdose Deaths	No. of Deaths with Kratom Detected in Postmortem Toxicology	% of Total Overdose Deaths with Kratom Detected in Postmortem Toxicology	No. of Deaths with Kratom Listed as a Cause of Death	% of Deaths with Kratom Detected in Postmortem Toxicology where Kratom Was Listed as a Cause of Death	No. of Deaths with Kratom Detected in Postmortem Toxicology That Were Also Positive for Other Substances	% of Deaths with Kratom Detected in Postmortem Toxicology That Were Also Positive for Other Substances
2019	3,962	19	0.5%	15	78.9%	17	89.5%
2020	4,943	34	0.7%	29	85.3%	29	85.3%
2021	5,174	49	0.9%	37	75.5%	41	83.7%
2022	4,916	47	1.0%	40	85.1%	44	93.6%
2023	4,461	52	1.2%	37	71.2%	43	82.7%
2024*	3,015	54	1.8%	44	81.5%	43	79.6%
Total	26,471	255	0.9%	202	79.2%	217	85.1%

*Data for 2024 is not yet complete.

Several forensic cases of opioid-like deaths with lung congestion and high postmortem mitragynine blood concentrations with no obvious alternative causes of death have now been reported.^{xxxviii xxxix} There is also a report of naloxone being successfully used to reverse kratom intoxication.^{xl} This evidence suggests that high enough doses of kratom alkaloids may cause opioid toxicity via the usual opioid-receptor pathways implicated in conventional opioid overdoses.^{xli} A recent news release from the Los Angeles County Department of Public Health reported three fatal overdoses involving high doses of 7-hydroxymitragynine and alcohol to persons who were “otherwise healthy, with no other substances identified as substantively contributing to their deaths.”^{xlii}

The example from Los Angeles County reinforces the dangers of respiratory depression with 7-OH. A 2025 study examining respiratory depression of morphine and 7-OH found that both induced significant respiratory depression and could be reversed using naloxone. The authors conclude that 7-OH may expose individuals to similar risks as classic opioids.^{xliii}

After Utah developed a regulatory scheme to maintain over-the-counter access to kratom, overdose deaths related to kratom and treatment for kratom use disorder persisted. One emergency room physician reported patients sharing that they, “had no idea it was just like a

narcotic,” and that his patients experience the same withdrawal symptoms as those withdrawing from narcotics.^{xliv} The Utah State Medical Examiner reported nearly 160 kratom-related deaths over a five-year period. While most of those overdoses involved polysubstance use, the state saw almost 50% as many kratom-only deaths in the most recent 12-month reporting period as Utah had seen since 2014.^{xlv} Consequently, the Utah legislature proposed to add all alkaloids from kratom and their analogs to the state’s list of controlled substances in November 2025. The bill sponsor originally voted to regulate kratom in 2019 but now “sees kratom in all forms as a dangerous opioid masquerading as a supplement.”^{xlvi}

There are also documented cases of kratom use by expecting mothers resulting in neonatal abstinence syndrome for newborns.^{xlvii xlviii xlix} These cases are particularly concerning given that the promotion of kratom products as safe alternatives to opioids may well persuade expecting mothers to consume kratom products to avoid the adverse impacts of opioids on their unborn child. The concern is compounded by the previously discussed tendency of consumers to believe that the legal status of a substance means that it is a safe alternative to a controlled substance.

Nationally, the FDA notes that the number of fatal overdose cases reported by the Drug Enforcement Administration Toxicology Testing program in which one or more of these substances were detected for 2023 to 2025 are approximately three-fold higher than for the years 2019 through 2022, coinciding with the more recent entry of mitragynine-related products in the marketplace, such as 7-OH and MP.ⁱ

Recent news reports also highlight the dangers of having these unregulated compounds widely available. An Akron woman reported developing “a debilitating kratom addiction” after consuming a product containing the substance thinking it was a safe, “plant-based” drink. She ended up losing her house, marriage, and half of her body weight because of her exposure and subsequent addiction to this compound. The woman reports “her addiction would have taken her life too, had she not gone to rehab in 2024.”ⁱⁱ

An analysis of 329 posts to Reddit online forums for kratom use between 2020 and 2022 revealed common themes of problematic use of kratom extracts leading to use disorder development and withdrawal.^{iii iii} Furthermore, limited pre-clinical data suggest that 7-hydroxymitragynine likely confers greater misuse potential than mitragynine, again,

indicating that new, more concentrated products with higher alkaloid amounts or isolated, highly potent alkaloids may have enhanced risks to public health.^{liv}

Evidence supports the position that the ingredients in mitragynine-related products available to consumers are void of robust quality control. Mitragynine-related products appear to follow the same pattern as popular natural alternatives and/or “legal highs” to controlled substances that came before it. In one study, products clearly labeled as containing the single alkaloid 7-OH all “contained at least detectable amounts of mitragynine and mitragynine pseudoindoxyl, as well as some other Kratom alkaloids.”^{lv}

Finally, anecdotal reports submitted to the Board highlight the dangers that kratom-related products pose to public health:

- *I am writing to urge the Board to finalize the proposed classification of 7-hydroxymitragynine (7-OH) and other kratom compounds as Schedule I controlled substances. I have personally witnessed the devastating effects of 7-OH. My husband has struggled with a severe addiction, enduring constant withdrawal symptoms and repeated relapses. The substance's easy availability in stores and online has made it nearly impossible for him to fully recover, and I have seen how accessible it puts others at risk.^{lvi}*
- *Hello, I am a married wife of a kratom addict. I married my husband 7 years ago after he was clean off drugs (pills, cocaine, weed) for 8 years. He relapsed after 4 years into our marriage and has been addicted to kratom since. He was offered a sample by a gas station attendant ... stated "are you looking for energy, try this". Since then he takes up to 60 capsules a day lost 25 pounds and is in a constant state of irritability, speedy, highs, and super lows withdrawing ect. He tried detox once and relapse 2 days later. He says it's so hard to quit bc it's so easy to get and cheap. This garbage is horrible and I cannot believe kids can get a hold of this junk. I am pleading for your office to understand the severity of this "supplement". My soon to be ex-husband has now transitioned to the "7oh tabs" that are more potent and also easy to get apparently sold at smoke shops and cbd stores. I know it is the choice of the individual to pick up a substance and it's their responsibility to quit, but I worry about my kids (16 and 5) in their future if they stumble upon this gas station heroine. To whatever it's worth I just wanted to share my story.^{lvii}*

- Good morning. I understand the Ohio Board of Pharmacy is considering a ban on Kratom. I am in support of this ban. I have a family member that has become addicted to Feel Free made by Botanic Tonics. It was originally marketed as a kava drink and alcohol alternative. Come to find out the company is facing many lawsuits due to its false marketing. While they now say it includes kratom, it's too late for my family. The drink is extremely addictive and very strong. I don't believe that it is pure leaf kratom, there has to be more in this drink. It has created many issues for my family and severely negatively impacted my family's life. Please consider this ban. This drink is legal opioid and available at most gas stations. This drink is very addictive and dangerous. Please seriously consider the ban on kratom and more specifically Feel Free. Also, please reference the Reddit thread quitting feelfree, you will see all the people suffering from the dangerous and addictive qualities of this drink.^{lviii}*
- My husband is a recovering opioid addict. Recently, he was introduced to kratom tablets and began taking them without telling me. When I first noticed the physical changes—his pupils shrinking and his energy levels spiking—I honestly believed he had relapsed on opioids. It was terrifying and brought back painful memories of our past struggles. He has now been taking kratom daily for months. He repeatedly tells me he plans to stop, but I can see that he cannot. He is worried about withdrawal and continues to use it despite the harm it is causing to his health and to our family. To me, this feels like we are back at square one, only with a substance that is currently unregulated and readily available. This is not the first time we have faced this danger. About a year ago, my husband was using the “blue bottle Feel Free” drinks (also containing kratom). After months of daily use, he ended up hospitalized with dangerously high liver enzyme levels and signs of serious liver damage. It took a long recovery, and now we are living through a repeat situation with kratom tablets. I know kratom is sometimes marketed as a “safe alternative” or a supplement, but my family's experience shows otherwise. For people in recovery, it is not a harmless plant—it is another addictive drug that threatens to undo years of hard work and healing.^{lix}*
- Someone very close to me began using kratom thinking it was a safe, natural way to manage stress and pain with out opiates. Over time, I watched it take over their life. They became anxious, detached, angry, and sick when they tried to stop. It broke my heart to see how something so easy to buy could cause such deep harm — not only to them, but to everyone who loves them. He would pass out while alone with our 22month*

old, he has been hospitalized with heart problems from use. We both have missed work, it has damaged our relationship, careers, children, and every aspect of our lives.^{bx}

- I'm not sure who will be reading this email or if it will really even matter but I urge you to please ban kratom and 7hydroxymitragynine. My fiancé has been addicted to this stuff almost an exact year to the day and it has torn my family apart. He has gone into close to 30k of credit card debt trying to keep up with this habit and it has cause a lot of mental distress. I know he has to take responsibility for his use and action but the first time he took a pill it was given to him FOR FREE as a sample from the clerk at the corner store. It was given to him as a "natural herbal supplement" to boost energy and help with anxiety. What was left out was that is stuff is essentially legal heroine. I am praying everyday for this to be banned and maybe when it is he will be able to actually stay sober for more than a few days at a time. This is an evil product and should 100% be taken off the shelves and made illegal.^{bxi}

Section 4: Finding of the Board

Section 3719.45 of the Revised Code authorizes the Ohio Board of Pharmacy to add a previously unscheduled compound, mixture, preparation, or substance to Schedule I if the Board determines that it has no accepted medical use in treatment in this state and poses an imminent hazard to the public health, safety, or welfare.

After a thorough review of available data, the Ohio Board of Pharmacy hereby finds that mitragynine-related compounds:

1. Have no accepted medical use in treatment in this state; and
2. Pose an imminent hazard to the public health, safety, or welfare.

Based on these findings, the Board hereby concludes that mitragynine-related compounds should be controlled in Schedule I and requests the Governor to issue an order pursuant to division (G) of section 119.03 of the Revised Code for the emergency filing of rule 4729:9-1-01.1 of the Administrative Code.

Section 5: Proposed Emergency Rule

4729:9-1-01.1 – Mitragynine-Related Compounds (NEW)

The following are classified as schedule I controlled substances:

(A) Mitragynine-related compounds, whether synthetic or naturally occurring substances contained in the plant, or in the resinous extractives of *mitragyna speciosa* (also known as kratom) and/or synthetic substances, derivatives, prodrugs, isomers, esters, ethers, salts and salts of isomers, esters and ethers with similar chemical structure.

Mitragynine-related compounds include, but are not limited to, the following: 7-hydroxymitragynine; mitragynine pseudoindoxyl; dihydro-7-hydroxy mitragynine; and 7-acetoxymitragynine. Mitragynine-related compounds do not include any of the following:

- (1) Any dangerous drug that is the subject of an application approved by the United States food and drug administration under subsections 505(c) or (j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355(c) or (j)) (December 12, 2025) for marketing as a dangerous drug;
- (2) Any compound used in food consistent with either:
 - (a) A food additive regulation published in the United States code of federal regulations; or
 - (b) A “no questions response” issued by the United States food and drug administration in response to a generally recognized as safe notice.
- (3) Any drug approved by the United States food and drug administration to that may be lawfully sold over the counter without a prescription in accordance with section 505G of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355h) (December 12, 2025).
- (4) Mitragynine.

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- ^{lxi} Received by contact@pharmacy.ohio.gov, October 10, 2025.

Safety of Natural Leaf-Based vs Concentrated or Synthetic Kratom Products

Scientific evidence relevant to Ohio law, federal treatment, and consumer-risk implications

Robert Verkerk MSc, DIC, PhD, FACN
Regulatory Strategies International LLC
8401 Mayland Drive,
Ste S, Richmond, VA 23294, USA



REGULATORY STRATEGIES
INTERNATIONAL LLC
VISUALIZE : STRATEGIZE : REALIZE

Core scientific issue: natural leaf-based kratom should not be equated with concentrated, semi-synthetic, or adulterated kratom alkaloid products

SCOPE

Resume: Robert H. Verkerk, BSc, MSc, DIC, PhD, FACN

- President & Science Lead, Regulatory Strategies International LLC
- Executive & Scientific Director, Alliance for Natural Health USA and Alliance for Natural Health International
- Multidisciplinary scientist with nearly 40 years’ experience across academia, nonprofit advocacy and scientific consultancy
- Specialist in toxicology, xenobiotic exposure, hazard identification, exposure assessment and dose-response evaluation
- Expertise in botanical ingredient safety, phytochemical complexity, adulteration, contamination, labeling and consumer-use context
- MSc and PhD in plant sciences from Imperial College London; seven years’ postdoctoral research at Imperial College London (UK)
- Fellow of the American College of Nutrition (USA) and Regional Fellow of the Royal Society of Medicine (UK)
- Author of 60+ scientific papers, conference proceedings and technical reports, including peer-reviewed work on nutrient/supplement risk assessment
- Recent expert reports on kratom and kava toxicology, natural vs synthetic kratom alkaloids, product quality, adulteration and comparative risk

SCGPN

Expert role

- I offer opinions on botanical chemistry, toxicology, pharmacodynamics, addiction potential, and risk analysis.
- The central question relating to consumer health is whether Ohio’s treatment of kratom aligns with the scientifically material distinctions between product types.
- Risk cannot be determined by botanical species or plant part alone. Dose determines toxicity (Paracelsus principle of toxicology).
- WHO, FDA (Center for Food Safety and Applied Nutrition [CFSAN]) and other agencies agree on 3 components of risk analysis: risk assessment, risk management, and risk communication.

Scientific bottom line: potential for risk includes assessment of botanical species, plant part, product form, phytochemical profile, dose, adulteration, and labeling

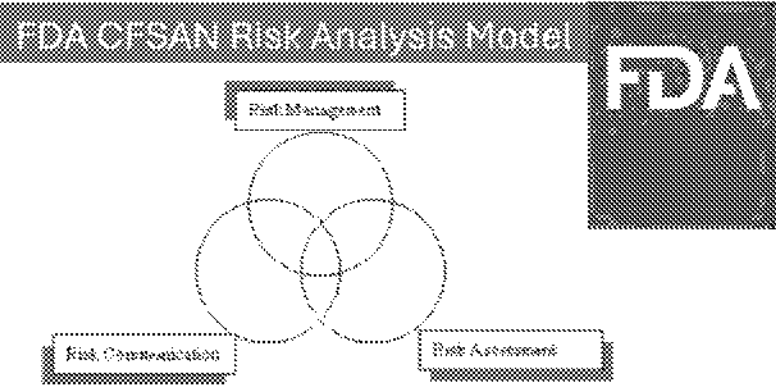


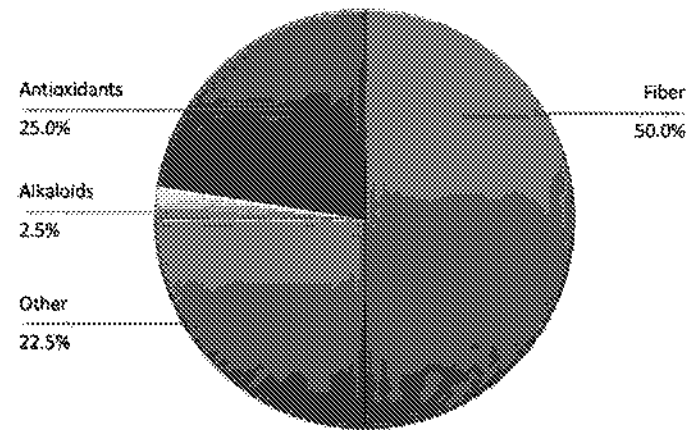
Figure I-1. The Three Components of Risk Analysis

BACKGROUND

What natural kratom is: botanical leaf with a complex alkaloid matrix

- Kratom is the leaf of *Mitragyna speciosa* Korth., a tree native to Southeast Asia.
- Traditional preparations (involving low-dose exposure to alkaloids) include chewing leaves, brewing tea, powdered leaf, infusions, and decoctions.
- Mitragynine (MIT) is typically the dominant alkaloid; 7-hydroxymitragynine (7-OH), a more potent mu-opioid receptor (MOR) agonist, is normally at trace levels, below those that trigger adverse effects.
- The function of mu-opioid agonists of concern (MIT, 7-OH, MIT pseudoindoxyl [MPI]) is dose-dependent.

Constituents of Natural Kratom Leaf (matrix)



Source data: Leon et al., 2009

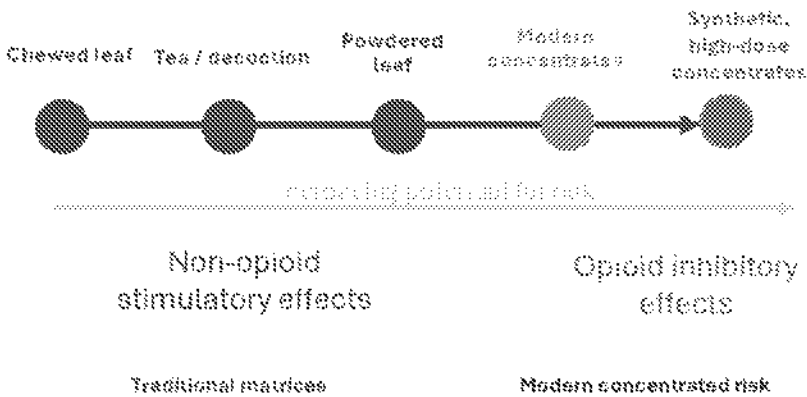
The relevant comparator is not “kratom”, the plant species; it is the defined product matrix, alkaloid profile, dose consumed, the presence of adulterants, and labeling.

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FOOD HISTORY

Natural kratom's history as a food

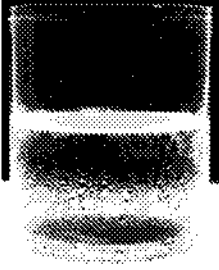
- Traditional use: fresh or dried leaf, chewed or prepared as tea/infusion/decoction.
- Longstanding Southeast Asian use among laborers and communities for energy, endurance, relaxation, and moderate pain-related uses where alkaloid doses *do not* induce opioid effects.
- Traditional exposure typically involves leaf material and aqueous preparations — not isolated alkaloids or fortified products.
- The safe-use inference depends on similarity of phytochemical/alkaloid profile and dosing/exposure to traditional usage.
- Two-phase (hermetic) response: When exposure to specific opioid receptor agonists (e.g. MIT, 7-OH, MPI) exceed known thresholds, effects on body change from stimulatory to inhibitory (i.e. opioid effects).



Many natural substances exhibit two-phase differences in response



Turmeric root



Drinking water

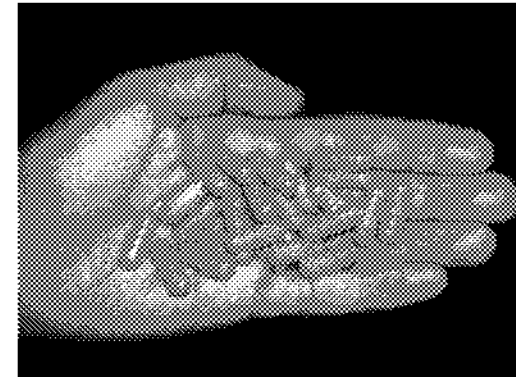
Moderate = beneficial ←→ Excess = harmful

Natural kratom's history as a dietary supplement in the U.S.

- FDA describes kratom as a botanical that qualifies as a dietary ingredient under 21 U.S.C. § 321(ff)(1).
- First used marketed as dietary supplement in the USA in the 1970s following experiences of Vietnam Veterans.
- 1988: Sales receipts, brochures and affidavits confirm that leaf kratom was sold pre-October 1994 i.e. = Old Dietary ingredient (ODI).
- 2013: First extract sold in USA, breaking from traditional consumption formats.
- In commerce, natural leaf-based kratom has commonly appeared as powders, capsules, tablets, teas, liquid leaf extracts, and bulk leaf materials.
- In some states concentrated kratom alkaloid products have become increasingly common on US market, some derived from natural kratom, others being biosynthetically manufactured.
- A scientifically responsible dietary supplement framework would require clear dose directions, alkaloid limits, CoAs, warnings, age limits, and adulterant controls.



Natural kratom leaf



Kratom capsules: natural, or partially synthetic?

[Kratom capsules: natural, or partially synthetic?](#)

PRODUCT-TYPE DISTINCTIONS

Natural kratom leaf is not toxicologically equivalent to fortified or synthetic products

Natural leaf / leaf-like preparation

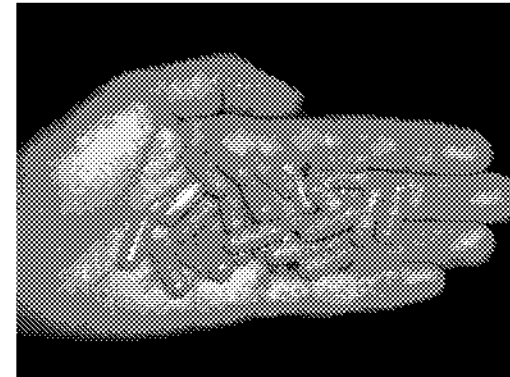
- Multi-constituent matrix
- Trace/low 7-OH
- Slower/flatter exposure
- Co-alkaloid modulation
- Risk controlled by dose and quality



Natural kratom leaf

Synthetic / semi-synthetic 7-OH or MPI

- Potent MOR activity
- Bypasses matrix controls
- Greater dependence potential
- Respiratory-depressant concern
- Should be treated as adulteration/high-risk



Kratom capsules: natural, or partially synthetic?

<https://www.fda.gov/oc/ohrt/ohrt-report-2019-2020.pdf>



by Matthew A. Horvath,^{1,4} Martin A. East,² John Bathory,³ and Ramsey Atallah⁴

NDI 1346 - NPI-001, a dried kratom leaf powder - Original NDI Notification

Posted by the Food and Drug Administration on Aug 4, 2005

FDA has complete clinical report (NDI 1346)

- n=60 per group
- 3 groups, including dried natural kratom leaf
- 0.5, 1, 2, and 4 grams dried natural kratom leaf daily
- Single Ascending Dose and 15-day Multiple Ascending Dosing study

2025

2024

2024

2024

2023

2022

2021

2021

2020

2019

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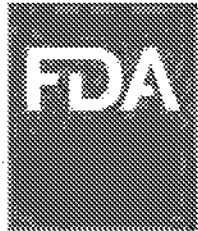
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FOIA ASCENDING DOSE STUDY

FDA single ascending dose pilot study points to intrinsic safety and lack of addiction potential of lower doses



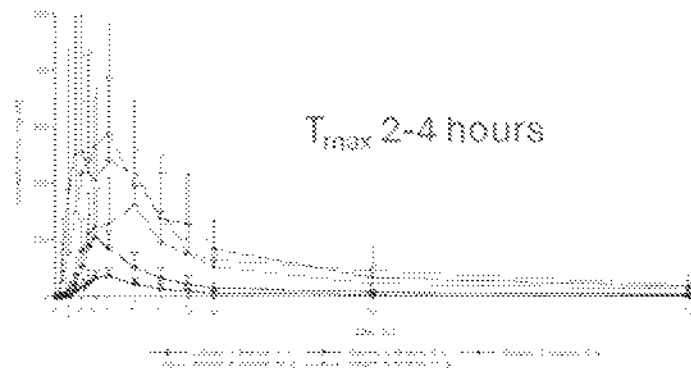
Key findings

- RCT design: 40 subjects, 8 per cohort (6 kratom, 2 placebo), doses: 1, 3, 8, 10 & 12 g in caps
- No serious adverse effects at any dose
- No significant adverse effects or addictive ('liking') potential at lower (1 or 3 g) doses, where 1 g delivered 10-20 mg MIT, 3 g delivered 30-60 mg MIT)
- Most common adverse effect at high doses (8, 10 or 12g) was vomiting

Source: Reissig et al, 2026.

Adverse effects by System Organ Class

System Organ Class	Kratom 1 g (N=4)	Kratom 3 g (N=4)	Kratom 8 g (N=4)	Kratom 10 g (N=4)	Kratom 12 g (N=4)	Placebo (N=4)	Placebo (N=4)
Gastrointestinal Disorders	0	0	2 (50.0%)	1 (25.0%)	2 (50.0%)	2 (50%)	3 (75.0%)
Nervous System Disorders	1 (25.0%)	0	1 (25.0%)	3 (75%)	0	6 (100%)	6 (100.0%)
Psychiatric Disorders	0	0	1 (25.0%)	2 (50.0%)	0	1 (25%)	3 (75.0%)
Skin and Subcutaneous Disorders	1 (25.0%)	0	0	0	1 (25.0%)	0	0 (0.0%)
General Disorders	0	0	0	1 (25.0%)	1 (25.0%)	0	1 (25.0%)



Pilot study confirms risk assessment that No Observable Adverse Effect Level for MIT exposure can reasonably estimated as 40 mg/day, including a safety margin

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TOXICOLOGY

Dose, alkaloid profile, and adulteration determine toxicological risk

Risk variable	Scientific control point	Why it matters
MIT	≈20 mg/dose; max two divided doses/day; ≥6 h apart	High MIT increases endogenous 7-OH burden
7-OH	Natural leaf: trace/very low; risk threshold ≈>1 mg/serving	Direct 7-OH exposure raises opioid burden
Mitragynine pseudoindoxyl (MPI)	Any significant level should be a red flag	Potent MOR activity; ultra-trace levels may reflect biotransformation by fungi on leaf. Higher levels typically imply synthesis/adulteration
Total alkaloids / matrix	Should resemble leaf-based/traditional profile	Isolates and fortified products bypass matrix modulation and may change phytochemical profile associated with safe history of traditional use
Quality controls	Certificates of Analysis (CoA), validated methods, solvent disclosure, contaminant screen	Absent testing makes dose and adulteration impossible to verify

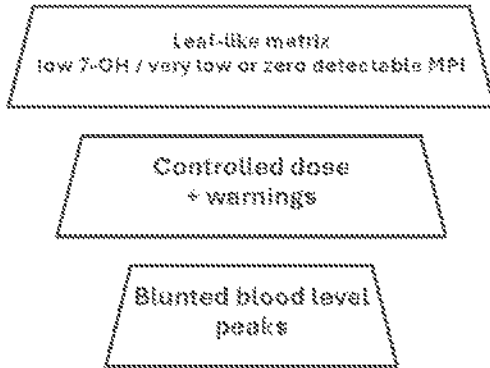
High levels of MIT (>40 mg/day), higher than trace levels of 7-OH (>1 mg/day) or ultra-trace levels of MPI (significantly > limits of detection*) do not reflect natural leaf-based products and should be treated as high-risk adulteration signals.

* HPLC-MS/MS can detect MGP at ultra-trace levels (0.01–0.1 ng/mL = 0.01–0.1 ppb)

Addiction potential differs materially by alkaloid exposure

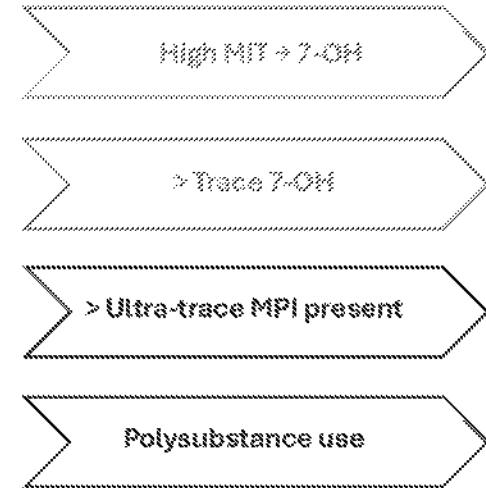


Lower-risk profile



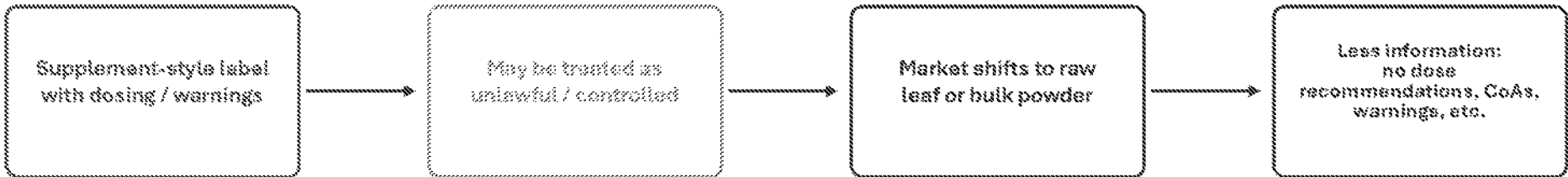
- 2021: WHO Expert Committee on Drug Dependence (ECDD) review found insufficient evidence for international control of kratom/MIT/7-OH at that time, while recommending surveillance.
- Animal/self-administration evidence points to abuse liability for 7-OH.
- MPI-containing products should be treated as highest-risk because they are even more potent opioid receptor agonists than 7-OH and significant amounts cannot arise naturally on leaf.

Higher-risk profile



Ohio’s apparent paradox: the permitted product would be the least controlled product

Ohio rule/guidance states natural kratom in vegetation form is exempt from scheduling, except when it is marketed as a food, dietary supplement or drug. This is nonsensical as kratom is only used by consumers as a food or dietary supplement.

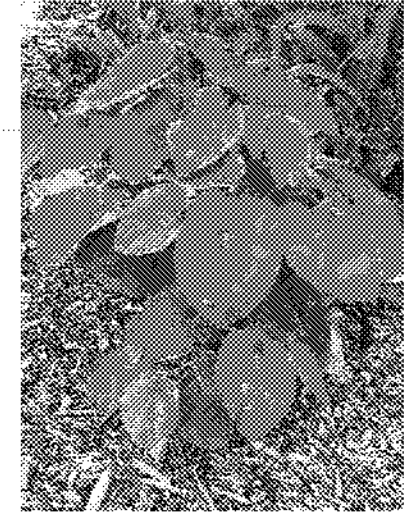


- To satisfy this rule traders would need to consume bagged kratom with no labeling or directions.
- This guidance could magnify the consumer health risk: bad actors may sell bags of leaf/powder without declared MIT/7-OH levels, maximum recommended dose, dosing interval, age restrictions, warnings, or third-party CoAs.
- Consumers would receive less risk information than under a dietary supplement framework.

A safer approach would be to target adulteration, high 7-OH/MPI, excessive MIT, and labeling failures — not suppress dose-controlled risk communication.

Kava, a legal dietary ingredient, may be added to kratom

- Federal dietary supplement law (DSHEA) recognizes herbs/botanicals, extracts, constituents, and combinations of such dietary ingredients as potential dietary supplement ingredients.
- From a regulatory standpoint, dietary ingredients in dietary supplements are excluded from the definition of 'food additive' under 21 U.S.C. § 321(ff).
- From a scientific standpoint, adding a second botanical does not make a product unsafe per se; the question is whether the ingredient identity, plant part, dose, quality, and interactions create an unreasonable risk.
- Kava has a long traditional history as a beverage/root preparation and as a food (beverage) and dietary supplement.
- Concerns over kava safety around 1999-2002 related to use of non-noble varieties, aerial parts, solvent/concentrated extracts that alter the profile, and/or contaminants.
- In the profile and dose levels contained in *feel free*, kava does not potentiate any toxicity or opioid effects and is safe.
- Kavalactones do not act as opioid-receptor agonists.



Kava (*Piper methysticum*)



feel free® (Botanic Tonics)

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FEEL FREE KAVA SAFETY

Kava in *feel free*® does not present a significant risk of harm or injury

Assessment item	Reported profile / amount	Scientific significance
Kratom MIT	20 mg tonic; 17 mg capsules	At or below proposed safe upper level
7-OH	<0.05 mg/serving	Trace/low; not a fortified 7-OH product
Kavalactones	260 mg tonic; 210 mg capsules	Below traditional-use exposures
Kava Identity	Noble kava root extract	Avoids higher-risk non-noble/aerial-part concerns
Flavokavains	<0.010% in CO ₂ extract	Negligible
Clinical data	Short-term multi-dose study	No significant impact on vitals, labs, or withdrawal symptoms

I have found no publicly available pharmacodynamic evidence that kratom+kava co-use at these levels presents risk when used as intended

SCIENCE-BASED ALIGNMENT

A scientifically coherent framework targets the true risk variables

Regulate / restrict

- Synthetic / semi-synthetic 7-OH and MPI products
- Fortified products with excessive 7-OH or high MIT burden
- False or drug-disease claims
- Products with no CoA or inaccurate labeling
- Contaminants, adulterants, and solvent residues
- Products appealing to children or without age controls

Permit with controls

- Leaf-based products with traditional-like alkaloid profile
- Clear MIT, 7-OH and MPI testing/disclosure
- Maximum serving size and daily dose guidance
- Dosing amounts and interval advice, e.g., ≥6 h between doses
- Warnings for pregnancy, minors, liver disease, substance-use history, and drug interactions
- Traceability and validated third-party CoAs

This aligns legal controls with toxicological controls

CONCLUSIONS



Main scientific conclusions

After a thorough review of all of the available available, relevant evidence, I conclude the following:

- *feel free*® does not present a significant or unreasonable risk of illness or injury when used by healthy adults in accordance with the directions for use.
- Natural, leaf-based kratom has a traditional food and dietary supplement history, and natural leaf kratom when consumed in amounts less than 5 grams daily does not present a significant risk of illness or injury.
- The major scientific distinction is natural leaf matrix versus concentrated, synthetic, semi-synthetic, or adulterated alkaloid products.
- High MIT and products with significant levels of 7-OH or MPI provide material toxicological and addiction-risk signals.
- Kava co-formulation should not be treated as adulteration per se; in *feel free*®'s stated profile and amounts, the kava component does not appear to contribute to any safety risk and may in fact enhance the safety of the product.

SOURCE NOTES

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IN THE COURT OF APPEALS
FRANKLIN COUNTY, OHIO
TENTH APPELLATE DISTRICT

Krazy Daze, Inc., et al,	:	
	:	
	:	Case No. 26-AP-000735
Plaintiffs/Appellants,	:	
	:	(Accelerated Calendar)
	:	
v.	:	
	:	
Ohio Board of Pharmacy,	:	
	:	
Defendant/Appellee.	:	

**MOTION OF APPELLANTS KRAZY DAZE INC.
AND BOTANIC TONICS, LLC FOR AN ORDER (A)
EXPEDITING APPEAL AND (B) EXPEDITING THE
CONSIDERATION OF THE INSTANT MOTION**

Pursuant to Rules 14(B) and 15 of the Ohio Rules of Appellate Procedure and Local Rule 7, Plaintiffs/Appellant Krazy Daze Inc. (“Krazy Daze”) and Botanic Tonics, LLC (“BT”) (collectively, “Appellants”) move for an Order expediting this Appeal and the consideration of the instant motion. Specifically, Appellants seek an Order:

- (1) Requiring that Appellants file their opening merit briefs within 7 days of the filing of the trial court’s record;

- (2) Requiring that Appellee the Ohio Board of Pharmacy (“BOP”), file its responsive merit brief within 7 days of service of the Appellants’ brief;
- (3) Requiring Appellants to file any reply briefs within 5 days of service of BOP’s responsive merit brief;
- (4) Expediting oral argument to the earliest date reasonably practicable following submission of the parties’ briefs; and
- (5) Expediting the Court’s issuance of a decision to the earliest date reasonably practicable following oral argument.

The basis for this Motion is set forth in the attached Memorandum.

Respectfully submitted,

/s/ Marion H. Little, Jr.

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MEMORANDUM IN SUPPORT

This Appeal is extremely time-sensitive. It involves constitutional and other threshold challenges to the BOP’s promulgation and interpretation of a rule (a) *the BOP, itself, has twice admitted to be ambiguous* and (b) whose plain language, contrary to the Trial Court’s erroneous conclusion, does *not* support or otherwise justify administrative action by the BOP that, barring expedition and/or an injunction pending appeal (the subject of a separate motion that is incorporated herein), will immediately *expand* the scope of *felony* drug liability to the sale and possession of natural products that Ohioans have sold and used, legally, for years.

Because the results of this Appeal will directly impact Ohioans’ “*most elemental of liberty interests*—the interest in being free from physical detention by one’s own government[.]” the Court should grant Plaintiffs’ instant Motion and expedite this Appeal—even if it does not issue an injunction pending appeal. *See State ex rel. W. v. Hoying*, 2025-Ohio-660, ¶ 68 (10th Dist.) (emphasis added).

A. Background.

This Appeal centers on the enforceability, meaning, and import of the BOP's recently-enacted "Mitragynine-Related Compounds Rule" (the "MCR"). Ohio Admin. Code § 4729:9-1-01.1. The rule purports to deem "mitragynine-related compounds" as Schedule I controlled substances, on par with heroin—a determination that renders the possession and/or sale thereof a felony offense under Ohio's Drug Offenses, R.C. Chapter 2905. *See* R.C. 2925.01(A).

Mitragynine is the primary active ingredient in kratom (*Mitragyna Speciosa*), which is an evergreen tree or, more accurately, a "bush" native to Southeast Asia. [Tr. at 105; Plaintiffs' Hearing Exh. ("P.Exh.") 4(A).]¹ For at least hundreds of years, people have used kratom, in its leaf or ground up leaf form, in various ways; including as part of a tea or decoction. [*Id.*; Tr. at 51-52.] That has resulted in a long history of proven safe, traditional use. [*Id.*] Such traditional uses of natural kratom have been prevalent in the United States for decades. [*Id.* at 83.]

¹ References to the record refer to the transcript of the May 29, 2026, preliminary injunction ("Tr.") and exhibits admitted in connection therewith. A copy of the transcript is attached as Exhibit A to this Motion. Copies of the referenced hearing exhibits are also attached.

BT is the manufacturer, and Krazy Daze is one of thousands of Ohio sellers, of Feel Free Classic (“Feel Free”), a liquid dietary supplement that contains pure, ground up kratom leaves infused with water and other legal ingredients. [*Id.* at 138-39; 152-57; P.Exh. 5(A).]

As a natural-leaf kratom product, Feel Free stands in stark contrast to other products that contain synthesized or concentrated/enhanced 7-hydroxymitragynine (also known as 7-OH) (“Enhanced 7-OH Products”)—a compound found in only trace, pharmacologically insignificant amounts in natural-leaf kratom. [P.Exh. 4(A) at 4.]

As part of a larger, \$2.5-billion national legal kratom industry, BT has engaged in significant sales, and generated significant historical revenues from those sales, in Ohio. [*Id.* at 144-46.] Specifically, BT has generated more than \$13-million in lifetime sales in Ohio, which includes nearly \$5-million in 2025 alone. [*Id.*]

B. The BOP Seeks To Twist A Rule Designed To Schedule Enhanced 7-OH Products Into A Ban On Natural Kratom.

The current saga began in December 2025, when the BOP adopted an “emergency” MCR at the request of Governor DeWine. In his

Executive Order urging the BOP to take action, the Governor made clear that his concern was the scheduling of Enhance 7-OH products; not “natural kratom in vegetation form[.]” [P.Exhs. 8(A)-(D).]

The BOP’s emergency MCR did not accomplish the Governor’s objective. Litigation ensued and the BOP ultimately agreed to a consent order in which the Franklin County Common Pleas Court declared that “the Emergency Mitragynine-Related Compounds Rule was not intended to, and does not, schedule or otherwise apply to natural kratom and *natural kratom leaf products* that contain trace amounts of mitragynine-related compounds.” [P.Exh.8(E) (emphasis added).]

Thereafter, the BOP proceeded with enacting the final MCR, which was effective on May 19, 2026. As with its emergency predecessor, this version of the MCR was specifically designed to focus on Enhanced 7-OH products; not natural kratom. Thus, while the final MCR purported to schedule “mitragynine-related compounds[.]” it expressly carved out from scheduling: “Mitragynine in vegetation form, including natural

kratom leaf and ground natural kratom leaf[.]” Ohio Admin. Code § 4729:9-1-01.1(D).²

Nothing on the face of the final MCR purports to schedule natural kratom leaves simply because they are mixed with water or other legal ingredients, as in Feel Free. In fact, the BOP is attempting, via a *separate* proposed rule that has *not* been enacted via the R.C. Chapter 119 process, to schedule mitragynine in *all* of its forms. [See <https://www.pharmacy.ohio.gov/documents/pubs/messages/2026-01-15%20e-news%20january%202026.pdf> (describing proposed rule that would deem “mitragynine” to be a Schedule I controlled substance).]

Nonetheless, the BOP has sought to use the limited-purpose MCR to impose what amounts to the blanket scheduling of even natural kratom

² The text of the final rule also purports to condition this “natural kratom” exception on compliance with a separate chapter of the Revised Code, Chapter 3715. However, the BOP purported to clarify—in connection with the proceedings below and via an *unpromulgated* notice—that compliance with Chapter 3715 is distinct separate from its scheduling determinations reflected in the MCR. [See <https://www.pharmacy.ohio.gov/documents/pubs/special/kratom/consumer%20and%20retailer%20notice%20-%20sale%20and%20possession%20of%20kratom%20in%20ohio.pdf>.]

leaf if it is mixed with literally anything else—including water. Indeed, the BOP’s asserted position would presumably criminalize the sale or possession of even pure kratom leaves that have simply been washed to remove bacteria and other harmful contaminants that exist in nature.³

C. The Trial Court’s Erroneous Interpretation Of The MCR And Grave (And Immediate) Import Thereof.

The Trial Court initially granted a temporary restraining order that, as later modified, enjoined the BOP from treating “as a Schedule I (or other) controlled substance any product that contains, as an ingredient, vegetative kratom in either leaf or ground up/pulverized leaf form, whether the product is sold in liquid, capsule, or other form and irrespective of whether the product is marketed for ingestion or consumption,” specifically including “Plaintiff Botanic Tonics, LLC’s “Feel Free” line of products. [Exh. B, Trial Court’s 7/13/26 Amended Order Modifying and Extending Temporary Restraining Order at 1-2.]

³ That is yet another absurdity in the BOP’s position. Under the BOP’s interpretation, the MCR would not schedule natural kratom leaves that contain naturally-present pathogens or contaminants, even though they are much more likely to cause harm than natural kratom leaf products—like Feel Free—that undergo a thorough sanitization process.

However, on August 4, 2026, the Trial Court issued an order denying Plaintiffs' motion for a preliminary injunction that, in effect, would have indefinitely extended the existing TRO (the "PI Decision")—a decision that was later incorporated into the Trial Court's August 21, 2026, final judgment entry. [Exhs. C & D.] In its PI Decision, the Trial Court concluded that the MCR is plain and unambiguous and that the rule's exception for natural-leaf kratom in its "vegetative" form literally means *only the plant*—nothing else. [Exh. C at 5.]

That conclusion is wrong. The BOP, itself, has conceded that the Rule lacks such clarity. As discussed in Plaintiffs' contemporaneously-filed Motion for Injunction Pending Appeal (the "MIPA"), the BOP admitted—on two separate occasions, including once in a separate consent judgment entry—that the MCR and/or its interpretation(s) thereof are ambiguous. [Exh. E, 6/10/26 Final Consent Judgment Entry in Case No. 26 CV 4720; Exh. F, BOP's 5/26/26 TRO Memo Contra at 7.]

Accordingly, as discussed in the MIPA, the BOP-acknowledged ambiguity renders the MCR facially void for vagueness. It also means that, in announcing and seeking to enforce a restrictive interpretation of

the exception for natural-leaf kratom, the BOP expanded the scope of the MCR and, thus, engaged in unlawful rule-making, without even attempting to satisfy the strict administrative requirements set forth in R.C. Chapter 119. And, it means the BOP's construction of the ambiguous MCR so as to expand the criminal liability faced by Ohioans violates the rule of lenity—which requires courts to do the opposite.

Thus, as of today, unwitting Ohioans in possession of a previously-legal product face criminal prosecution and potential imprisonment based on the BOP's improper and draconian interpretation of its own rule. The Court should grant this Motion and provide expedited relief before the citizens' fundamental liberty interests are further jeopardized by the BOP's unlawful overreach.

Respectfully submitted,
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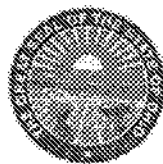
CERTIFICATE OF SERVICE

I hereby certify that the foregoing Motion for an Order Expediting Appeal was served via email this 25th day of August, 2026 upon the following:

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1431-001: 1093815



MIKE DEWINE
GOVERNOR
STATE OF OHIO

Executive Order 2025-08D

The Emergency Adoption of Rule 4729:9-1-01.1 of the Ohio Administrative Code by the Ohio Board of Pharmacy

WHEREAS, kratom is a plant found in southeast Asia that is marketed in Ohio as an opioid alternative, despite having no approved uses¹; and

WHEREAS, the effects of kratom depend on dose, with low doses having stimulant effects and high doses having opioid-like effects; and

WHEREAS, mitragynine is the primary psychoactive substance naturally found in kratom; and

WHEREAS, mitragynine can be easily altered by chemists to produce dangerous mitragynine-like compounds, such as 7-hydroxymitragynine ("7-OH")²; and

WHEREAS, dangerous mitragynine-like compounds, such as 7-OH, bear public health and safety risks as their potency are often significantly greater than that of morphine³; and

¹ US Food and Drug Administration. 7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat. <https://www.fda.gov/media/187899/download?attachment>. Last accessed Dec. 10, 2025.

² Cayman Chemical. NPS Snapshot: Kratom-Derived Semi-Synthetic Opioids. <https://cdn2.caymanchem.com/cdn/cms/caymanchem/LiteratureCMS/NPS%20Snapshot%20Kratom-Derived%20Semi-Synthetic%20Opioids.pdf>. Last accessed Dec. 10, 2025; Kromlski, AJ; Denn, MT; Brower, JO; Papsun, DM; Logan, BK. (2025) *Evaluation of Commercially Available Smoke Shop Products Marketed as "7-Hydroxy Mitragynine" & Related Alkaloids*, Center for Forensic Science Research and Education, United States.

³ Cayman Chemical. NPS Snapshot: Kratom-Derived Semi-Synthetic Opioids. <https://cdn2.caymanchem.com/cdn/cms/caymanchem/LiteratureCMS/NPS%20Snapshot%20Kratom-Derived%20Semi-Synthetic%20Opioids.pdf>. Last accessed Dec. 10, 2025; Kromlski, AJ; Denn, MT; Brower, JO; Papsun, DM; Logan, BK. (2025) *Evaluation of Commercially Available Smoke Shop Products Marketed as "7-Hydroxy Mitragynine" & Related Alkaloids*, Center for Forensic Science Research and Education, United States; Makary, Marty. "FDA Warns Healthcare Professionals About 7-OH," July 29, 2025. <https://www.fda.gov/media/187899/download?attachment>. Last accessed Dec. 10, 2025; US Food and Drug Administration. 7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat. <https://www.fda.gov/media/187899/download?attachment>. Last accessed Dec. 10, 2025.

WHEREAS, adverse effects of products containing dangerous mitragynine-like compounds, such as 7-OH, have prompted the US Food and Drug Administration ("FDA") to suggest that those products are the next wave of the opioid crisis⁴; and

WHEREAS, according to the FDA, "[t]his public health threat is troubling and requires immediate and impactful policies to educate consumers and take regulatory action that limits access to 7-OH containing products."⁵; and

WHEREAS, Section 3719.45 of the Ohio Revised Code authorizes the Ohio Board of Pharmacy ("Board of Pharmacy") to add a previously unscheduled compound, mixture, preparation, or substance to Schedule I by emergency rule if the Board determines the compound has no accepted medical use in treatment in this state and poses an imminent hazard to the public health, safety, or welfare; and

WHEREAS, the Board of Pharmacy found that mitragynine-related compounds have no accepted medical use in treatment in this state, have a high potential for abuse, and pose an imminent hazard to the public health, safety, or welfare; and

WHEREAS, Section 119.03(G) of the Ohio Revised Code authorizes the Governor, on the request of a State agency, to suspend the normal rule making procedures with respect to specific rules when an emergency exists necessitating the immediate adoption, amendment, or rescission of such rules. When such a determination is made, the agency may immediately adopt, amend, or rescind such rules, but the rules are only valid for one hundred and eighty (180) days; and

WHEREAS, the Board of Pharmacy has requested a determination whether an emergency exists that requires 4729:9-1-01.1 on an emergency basis and that would therefore permit the Board of Pharmacy, pursuant to Section 3719.45 of the Ohio Revised Code, to immediately adopt this rule.

NOW THEREFORE, I, Mike DeWine, Governor of the State of Ohio, have determined, upon the request of the Board of Pharmacy, that an emergency exists requiring the immediate adoption of rule 4729:9-1-01.1 of the Ohio Administrative Code.

Further, I hereby order that the procedures prescribed by Section 119.03 of the Ohio Revised Code with respect to the adoption or amendment of the specified rule be suspended and that the Board of Pharmacy be permitted to adopt the rule immediately by filing it electronically with the Secretary of State, the Director of the Legislative Service Commission, and the Joint Committee on Agency Rule Review ("JCARR").

⁴ Makary, Marty. "FDA Warns Healthcare Professionals About 7-OH," July 29, 2025. <https://www.fda.gov/media/187898/download?attachment>. Last accessed Dec. 10, 2025; US Food and Drug Administration. Preventing the Next Wave of the Opioid Epidemic: What You Need to Know About 7-OH. <https://www.fda.gov/media/187913/download?attachment>. Last accessed Dec. 10, 2025.

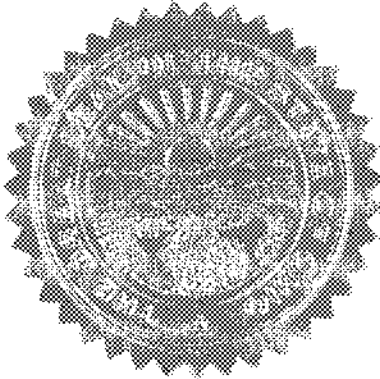
⁵ US Food and Drug Administration. 7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat. <https://www.fda.gov/media/187899/download?attachment>. Last accessed Dec. 10, 2025.

Furthermore, I hereby order that this Executive Order be filed in electronic form with the Board of Pharmacy, the Secretary of State, the Director of the Legislative Service Commission, and JCARR.

Nothing in this Executive Order and Emergency Rule shall be construed to apply to natural kratom in vegetation form.

I signed this Executive Order on December 12, 2025, in Columbus, Ohio, and it will expire one hundred and eighty (180) days from the effective date of the emergency rule, or upon the adoption of the rule through the normal JCARR process, whichever is sooner.


Mike DeWine, Governor



ATTEST:

Frank LaRose, Secretary of State